

Dresden Edition

THE WORKS

OF

Robert G. Ingersoll

"TO PLOW IS TO PRAY; TO PLANT IS TO PROPHECY, AND THE HARVEST ANSWERS AND FULFILLS."

IN TWELVE VOLUMES

VOLUME XI.

MISCELLANY

NEW YORK

THE DRESDEN PUBLISHING CO.,

C. P. FARRELL

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THE WORKS OF ROBERT G. INGERSOLL

By Robert G. Ingersoll

**"TO PLOW IS TO PRAY; TO PLANT IS TO PROPHECY,
AND THE HARVEST ANSWERS AND FULFILLS."**

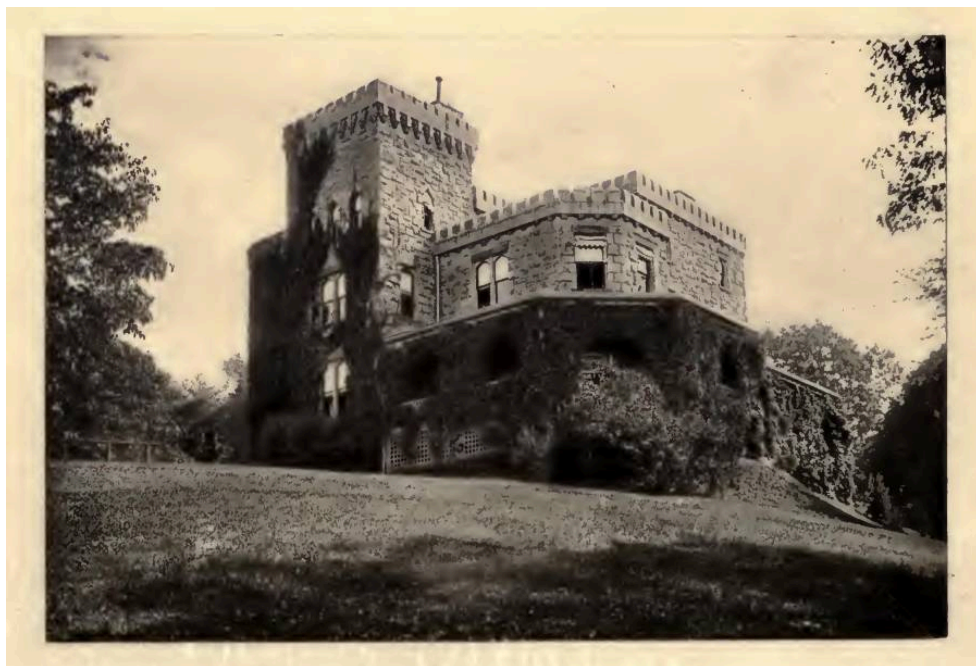
IN TWELVE VOLUMES, VOLUME XI.

MISCELLANY

1900

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North View of "Walston," Dobbs Ferry-on-Hudson, New York

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ADDRESS ON THE CIVIL RIGHTS ACT.

ON the 22d of October, 1883, a vast number of citizens met at Lincoln Hall, Washington, D. C., to give expression to their views concerning the decision of the Supreme Court of the United States, in which it is held that the Civil Rights Act is unconstitutional.

Col. Robert G. Ingersoll was one of the speakers.

The Hon. Frederick Douglass introduced him as follows:

Abou Ben Adhem—(may his tribe increase!)
Awoke one night from a deep dream of peace,
And saw within the moonlight of his room,
Making it rich and like a lily in bloom,
An angel writing in a book of gold:
Exceeding peace had made Ben Adhem bold;
And to the presence in the room he said,
"What writest thou?" The vision raised its head,
And, with a look made all of sweet accord,
Answered, "The names of those who love the Lord."
"And is mine one?" asked Abou. "Nay, not so,"
Replied the angel. Abou spoke more low,
But cheerily still; and said, "I pray thee, then,
Write me as one that loves his fellow-men."
The angel wrote, and vanished. The next night
It came again, with a great wakening light,
And showed the names whom love of God had blest;
And, lo! Ben Adhem's name led all the rest.

I have the honor to introduce Robert G. Ingersoll.

MR. INGERSOLL'S SPEECH.

Ladies and Gentlemen:

We have met for the purpose of saying a few words about the recent decision of the Supreme Court, in which that tribunal has held the first and second sections of the Civil Rights Act to be unconstitutional; and so held in spite of the fact that for years the people of the North and South have, with singular unanimity, supposed the Act to be constitutional—supposed that it was upheld by the 13th and 14th Amendments,—and so supposed because they knew with certainty the intention of the framers of the amendments. They knew this intention, because they knew what the enemies of the amendments and the enemies of the Civil Rights Act claimed was the intention. And they also knew what the friends of the

amendments and the law admitted the intention to be. The prejudices born of ignorance and of slavery had died or fallen asleep, and even the enemies of the amendments and the law had accepted the situation.

But I shall speak of the decision as I feel, and in the same manner as I should speak even in the presence of the Court. You must remember that I am not attacking persons, but opinions—not motives, but reasons—not judges, but decisions.

The Supreme Court has decided:

1. That the first and second sections of the Civil Rights Act of March 1, 1875, are unconstitutional, as applied to the States—not being authorized by the 13th and 14th Amendments.

2. That the 14th Amendment is prohibitory upon the States only, and the legislation forbidden to be adopted by Congress for enforcing it, is not "direct" legislation, but "corrective,"—such as may be necessary or proper for counteracting and restraining the effect of laws or acts passed or done by the several States.

3. That the 13th Amendment relates only to slavery and involuntary servitude, which it abolishes.

4. That the 13th Amendment establishes universal freedom in the United States.

5. That Congress may probably pass laws directly enforcing its provisions.

6. That such legislative power in Congress extends only to the subject of slavery, and its incidents.

7. That the denial of equal accommodations in inns, public conveyances and places of public amusement, imposes no badge of slavery or involuntary servitude upon the party, but at most infringes rights which are protected from State aggression by the 14th Amendment.

8. The Court is uncertain whether the accommodations and privileges sought to be protected by the first and second sections of the Civil Rights Act are or are not rights constitutionally demandable,—and if they are, in what form they are to be protected.

9. Neither does the Court decide whether the law, as it stands, is operative in the Territories and the District of Columbia.

10. Neither does the Court decide whether Congress, under the commercial power, may or may not pass a law securing to all persons equal accommodations on lines of public conveyance between two or more States.

11. The Court also holds, in the present case, that until some State law has been passed, or some State action through its officers or agents has been taken adverse to the rights of citizens sought to be protected by the 14th Amendment, no legislation of the United States under said amendment, or any proceeding under such legislation, can be called into activity, for the reason that the prohibitions of the amendment are against State laws and acts done under State authority. The essence of said decision being, that the managers and owners of inns, railways, and all public conveyances, of theatres and all places of public amusement, may discriminate on account of race, color, or previous condition of servitude, and that the citizen so discriminated against, is without redress.

This decision takes from seven millions of people the shield of the Constitution. It leaves the best of the colored race at the mercy of the meanest of the white. It feeds fat the ancient grudge that vicious ignorance bears toward race and color. It will be approved and quoted by hundreds of thousands of unjust men. The masked wretches who, in the darkness of night, drag the poor negro from his cabin, and lacerate with whip and thong his quivering flesh, will, with bloody hands, applaud the Supreme Court. The men who, by mob violence, prevent the negro from depositing his ballot—who with gun and revolver drive him from the polls, and those who insult with vile and vulgar words the inoffensive colored girl, will welcome this decision with hyena joy. The basest will rejoice—the noblest will mourn.

But even in the presence of this decision, we must remember that it is one of the necessities of government that there should be a court of last resort; and while all courts will more or less fail to do justice, still, the wit of man has, as yet, devised no better way. Even after reading this decision, we must take it for granted that the judges of the Supreme Court arrived at their conclusions honestly and in accordance with the best light they had. While they had the right to render the decision, every citizen has the right to give his opinion as to whether that decision is good or bad. Knowing that they are liable to be mistaken, and honestly mistaken, we should always be

charitable enough to admit that others may be mistaken; and we may also take another step, and admit that we may be mistaken about their being mistaken. We must remember, too, that we have to make judges out of men, and that by being made judges their prejudices are not diminished and their intelligence is not increased. No matter whether a man wears a crown or a robe or a rag. Under the emblem of power and the emblem of poverty, the man alike resides. The real thing is the man—the distinction often exists only in the clothes. Take away the crown—there is only a man. Remove the robe—there remains a man. Take away the rag, and we find at least a man.

There was a time in this country when all bowed to a decision of the Supreme Court. It was unquestioned. It was regarded as "a voice from on high." The people heard and they obeyed. The Dred Scott decision destroyed that illusion forever. From that day to this the people have claimed the privilege of putting the decisions of the Supreme Court in the crucible of reason. These decisions are no longer exempt from honest criticism. While the decision remains, it is the law. No matter how absurd, no matter how erroneous, no matter how contrary to reason and justice, it remains the law. It must be overturned either by the Court itself (and the Court has overturned hundreds of its own decisions), or by legislative action, or by an amendment to the Constitution. We do not appeal to armed revolution. Our Government is so framed that it provides for what may be called perpetual peaceful revolution. For the redress of any grievance, for the purpose of righting any wrong, there is the perpetual remedy of an appeal to the people.

We must remember, too, that judges keep their backs to the dawn. They find what has been, what is, but not what ought to be. They are tied and shackled by precedent, fettered by old decisions, and by the desire to be consistent, even in mistakes. They pass upon the acts and words of others, and like other people, they are liable to make mistakes. In the olden time we took what the doctors gave us, we believed what the preachers said; and accepted, without question, the judgments of the highest court. Now it is different. We ask the doctor what the medicine is, and what effect he expects it to produce. We cross-examine the minister, and we criticise the decision of the Chief-Justice. We do this, because we have found that some doctors do not kill, that some ministers are quite reasonable, and that some judges know something about law. In this country, the people are the sovereigns. All officers—including judges—are simply their servants, and

the sovereign has always the right to give his opinion as to the action of his agent. The sovereignty of the people is the rock upon which rests the right of speech and the freedom of the press.

Unfortunately for us, our fathers adopted the common law of England—a law poisoned by kingly prerogative—by every form of oppression, by the spirit of caste, and permeated, saturated, with the political heresy that the people received their rights, privileges and immunities from the crown. The thirteen original colonies received their laws, their forms, their ideas of justice, from the old world. All the judicial, legislative, and executive springs and sources had been touched and tainted.

In the struggle with England, our fathers justified their rebellion by declaring that Nature had clothed all men with the right to life, liberty, and the pursuit of happiness. The moment success crowned their efforts, they changed their noble declaration of equal rights for all, and basely interpolated the word "white." They adopted a Constitution that denied the Declaration of Independence—a Constitution that recognized and upheld slavery, protected the slave-trade, legalized piracy upon the high seas—that demoralized, degraded, and debauched the nation, and that at last reddened with brave blood the fields of the Republic.

Our fathers planted the seeds of injustice, and we gathered the harvest. In the blood and flame of civil war, we retraced our fathers' steps. In the stress of war, we implored the aid of Liberty, and asked once more for the protection of Justice. We civilized the Constitution of our fathers. We adopted three Amendments—the 13th, 14th and 15th—the Trinity of Liberty.

Let us examine these amendments:

"Neither slavery, nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States or any place subject to their jurisdiction.

"Congress shall have power to enforce this article by appropriate legislation."

Before the adoption of this amendment, the Constitution had always been construed to be the perfect shield of slavery. In order that slavery might be protected, the slave States were considered as sovereign. Freedom was regarded as a local prejudice, slavery as the ward of the Nation, the jewel of the Constitution. For three-quarters of a century, the Supreme Court of the

United States exhausted judicial ingenuity in guarding, protecting and fostering that infamous institution. For the purpose of preserving that infinite outrage, words and phrases were warped, and stretched, and tortured, and thumbscrewed, and racked. Slavery was the one sacred thing, and the Supreme Court was its constitutional guardian.

To show the faithfulness of that tribunal, I call your attention to the 3d clause of the 2d section of the 4th article of the Constitution:

"No person held to service or labor in any State under the laws thereof, escaping to another, shall, in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered up on the claim of the party to whom such service or labor may be due."

The framers of the Constitution were ashamed to use the word "slave," and thereupon they said "person." They were ashamed to use the word "slavery," and they evaded it by saying, "held to service or labor." They were ashamed to put in the word "master," so they called him "the party to whom service or labor may be due."

How can a slave owe service? How can a slave owe labor? How could a slave make a contract? How could the master have a legal claim against a slave? And yet, the Supreme Court of the United States found no difficulty in upholding the Fugitive Slave Law by virtue of that clause. There were hundreds of decisions declaring that Congress had power to pass laws to carry that clause into effect, and it was carried into effect.

You will observe the wording of this clause:

"No person held to service or labor in any State under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered up on the claim of the party to whom such service or labor may be due."

To whom was this clause directed? To individuals or to States? It expressly provides that the "person" held to service or labor shall not be discharged from such service or labor in consequence of any law or regulation in the "State" to which he has fled. Did that law apply to States, or to individuals?

The Supreme Court held that it applied to individuals as well as to States. Any "person," in any State, interfering with the master who was endeavoring to steal the person he called his slave, was liable to indictment,

and hundreds and thousands were indicted, and hundreds languished in prisons because they were noble enough to hold in infinite contempt such infamous laws and such infamous decisions. The best men in the United States—the noblest spirits under the flag—were imprisoned because they were charitable, because they were just, because they showed the hunted slave the path to freedom, and taught him where to find amid the glittering host of heaven the blessed Northern Star.

Every fugitive slave carried that clause with him when he entered a free State; carried it into every hiding place; and every Northern man was bound, by virtue of that clause, to act as the spy and hound of slavery. The Supreme Court, with infinite ease, made a club of that clause with which to strike down the liberty of the fugitive and the manhood of the North.

In the Dred Scott decision it was solemnly decided that a man of African descent, whether a slave or not, was not, and could not be, a citizen of a State or of the United States. The Supreme Court held on the even tenor of its way, and in the Rebellion that tribunal was about the last fort to surrender.

The moment the 13th Amendment was adopted, the slaves became freemen. The distinction between "white" and "colored" vanished. The negroes became as though they had never been slaves—as though they had always been free—as though they had been white. They became citizens—they became a part of "the people," and "the people" constituted the State, and it was the State thus constituted that was entitled to the constitutional guarantee of a republican government.

These freed men became citizens—became a part of the State in which they lived.

The highest and noblest definition of a State, in our Reports, was given by Justice Wilson, in the case of *Chisholm, &c., vs. Georgia*;

"By a State, I mean a complete body of free persons, united for their common benefit, to enjoy peaceably what is their own, and to do justice to others."

Chief Justice Chase declared that:

"The people, in whatever territory dwelling, whether temporarily or permanently, or whether organized under regular government, or united by less definite relations, constitute the State."

Now, if the people, the moment the 13th Amendment was adopted were all free, and if these people constituted the State; if, under the Constitution of the United States, every State is guaranteed a republican government, then it is the duty of the General Government to see to it that every State has such a government. If distinctions are made between free men on account of race or color, the government is not republican. The manner in which this guarantee of a republican form of government is to be enforced or made good, must be left to the wisdom and discretion of Congress.

The 13th Amendment not only destroyed, but it built. It destroyed the slave-pen, and on its site erected the temple of Liberty. It did not simply free slaves—it made citizens. It repealed every statute that upheld slavery. It erased from every Report every decision against freedom. It took the word "white" from every law, and blotted from the Constitution all clauses acknowledging property in man.

If, then, all the people in each State, were, by virtue of the 13th Amendment, free, what right had a majority to enslave a minority? What right had a majority to make any distinctions between free men? What right had a majority to take from a minority any privilege, or any immunity, to which they were entitled as free men? What right had the majority to make that unequal which the Constitution made equal?

Not satisfied with saying that slavery should not exist, we find in the amendment the words "nor involuntary servitude." This was intended to destroy every mark and badge of legal inferiority.

Justice Field upon this very question, says:

"It is, however, clear that the words 'involuntary servitude' include something more than slavery, in the strict sense of the term. They include also serfage, vassalage, villanage, peonage, and all other forms of compulsory service for the mere benefit or pleasure of others. Nor is this the full import of the term. The abolition of slavery and involuntary servitude was intended to make every one born in this country a free man, and as such to give him the right to pursue the ordinary avocations of life without other restraint than such as affects all others, and to enjoy equally with them the fruits of his labor. A person allowed to pursue only one trade or calling, and only in one locality of the country, would not be, in the strict sense of the term, in a condition of slavery, but probably no one would deny

that he would be in a condition of servitude. He certainly would not possess the liberties, or enjoy the privileges of a freeman."

Justice Field also quotes with approval the language of the counsel for the plaintiffs in the case:

"Whenever a law of a State, or a law of the United States, makes a discrimination between classes of persons which deprives the one class of their freedom or their property, or which makes a caste of them, to subserve the power, pride, avarice, vanity or vengeance of others—there involuntary servitude exists within the meaning of the 13th Amendment."

To show that the framers of the 13th Amendment intended to blot out every form of slavery and servitude, I call attention to the Civil Rights Act, approved April 9, 1866, which provided, among other things, that:

"All persons born in the United States, and not subject to any foreign power—excluding Indians not taxed—are citizens of the United States; and such citizens, of every race and color, without regard to any previous condition of slavery or involuntary servitude, are entitled to the full and equal benefit of all laws and proceedings for the security of person and property enjoyed by white citizens, and shall be subject to like punishments, pains and penalties—and to none other—any law, statute, ordinance, regulation or custom to the contrary notwithstanding; and they shall have the same rights in every State and Territory of the United States as white persons."

The Supreme Court, in *The Slaughter-House Cases*, (16 Wallace, 69) has said that the word servitude has a larger meaning than the word slavery. "The word 'servitude' implies subjection to the will of another contrary to the common right." A man is in a state of involuntary servitude when he is forced to do, or prevented from doing, a thing, not by the law of the State, but by the simple will of another. He who enjoys less than the common rights of a citizen, he who can be forced from the public highway at the will of another, who can be denied entrance to the cars of a common carrier, is in a state of servitude.

The 13th Amendment did away with slavery not only, and with involuntary servitude, but with every badge and brand and stain and mark of slavery. It abolished forever distinctions on account of race and color.

In the language of the Supreme Court:

"It was the obvious purpose of the 13th Amendment to forbid all shades and conditions of African slavery."

And to that I add, it was the obvious purpose of that amendment to forbid all shades and conditions of slavery, no matter of what sort or kind—all marks of legal inferiority. Each citizen was to be absolutely free. All his rights complete, whole, unmaimed and unabridged.

From the moment of the adoption of that amendment, the law became color-blind. All distinctions on account of complexion vanished. It took the whip from the hand of the white man, and put the nation's flag above the negro's hut. It gave horizon, scope and dome to the lowest life. It stretched a sky studded with stars of hope above the humblest head.

The Supreme Court has admitted, in the very case we are now discussing, that:

"Under the 13th Amendment the legislation meaning the legislation of Congress—so far as necessary or proper to eradicate all forms and incidents of slavery and involuntary servitude, may be direct and primary, operating upon the acts of individuals, whether sanctioned by State legislation or not."

Here we have the authority for dealing with individuals.

The only question then remaining is, whether an individual, being the keeper of a public inn, or the agent of a railway corporation, created by a State, can be held responsible in a Federal Court for discriminating against a citizen of the United States on account of race, color, or previous condition of servitude. If such discrimination is a badge of slavery, or places the party discriminated against in a condition of involuntary servitude, then the Civil Rights Act may be upheld by the 13th Amendment.

In *The United States vs. Harris*, 106 U. S., 640, the Supreme Court says:

"It is clear that the 13th Amendment, besides abolishing forever slavery and involuntary servitude within the United States, gives power to Congress to protect all citizens from being in any way subjected to slavery or involuntary servitude, except for the punishment of crime, and in the enjoyment of that freedom which it was the object of the amendment to secure."

This declaration covers the entire case.

I agree with Justice Field:

"The 13th Amendment is not confined to African slavery. It is general and universal in its application—prohibiting the slavery of white men as well as black men, and not prohibiting mere slavery in the strict sense of the term, but involuntary servitude in every form." 16 Wallace, 90.

The 13th Amendment declares that neither slavery nor involuntary servitude shall exist. Who must see to it that this declaration is carried out? There can be but one answer. It is the duty of Congress.

At last the question narrows itself to this: Is a citizen of the United States, when denied admission to public inns, railway cars and theatres, on account of his race or color, in a condition of involuntary servitude? If he is, then he is under the immediate protection of the General Government, by virtue of the 13th Amendment; and the Civil Rights Act is clearly constitutional.

If excluded from one inn, he may be from all; if from one car, why not from all? The man who depends for the preservation of his privileges upon a conductor, instead of the Constitution, is in a condition of involuntary servitude. He who depends for his rights—not upon the laws of the land, but upon a landlord, is in a condition of involuntary servitude.

The framers of the 13th Amendment knew that the negro would be persecuted on account of his race and color—knew that many of the States could not be trusted to protect the rights of the colored man; and for that reason, the General Government was clothed with power to protect the colored people from all forms of slavery and involuntary servitude.

Of what use are the declarations in the Constitution that slavery and involuntary servitude shall not exist, and that all persons born or naturalized in the United States shall be citizens—not only of the United States, but of the States in which they reside—if, behind these declarations, there is no power to act—no duty for the General Government to discharge?

Notwithstanding the 13th Amendment had been adopted—notwithstanding slavery and involuntary servitude had been legally destroyed—it was found that the negro was still the helpless victim of the white man. Another amendment was needed; and all the Justices of the Supreme Court have told us why the 14th Amendment was adopted.

Justice Miller, speaking for the entire court, tells us that:

"In the struggle of the civil war, slavery perished, and perished as a necessity of the bitterness and force of the conflict."

That:

"When the armies of freedom found themselves on the soil of slavery, they could do nothing else than free the victims whose enforced servitude was the foundation of the war."

He also admits that:

"When hard pressed in the contest, the colored men (for they proved themselves men in that terrible crisis) offered their services, and were accepted, by thousands, to aid in suppressing the unlawful rebellion."

He also informs us that:

"Notwithstanding the fact that the Southern States had formerly recognized the abolition of slavery, the condition of the slave, without further protection of the Federal Government, was almost as bad as it had been before."

And he declares that:

"The Southern States imposed upon the colored race onerous disabilities and burdens—curtailed their rights in the pursuit of liberty and property, to such an extent that their freedom was of little value, while the colored people had lost the protection which they had received from their former owners from motives of interest."

And that:

"The colored people in some States were forbidden to appear in the towns in any other character than that of menial servants—that they were required to reside on the soil without the right to purchase or own it—that they were excluded from many occupations of gain and profit—that they were not permitted to give testimony in the courts where white men were on trial—and it was said that their lives were at the mercy of bad men, either because laws for their protection were insufficient, or were not enforced."

We are informed by the Supreme Court that, "under these circumstances," the proposition for the 14th Amendment was passed through Congress, and that Congress declined to treat as restored to full participation in the Government of the Union, the States which had been in insurrection, until they ratified that article by a formal vote of their legislative bodies.

Thus it will be seen that the rebel States were restored to the Union by adopting the 14th Amendment. In order to become equal members of the

Federal Union, these States solemnly agreed to carry out the provisions of that amendment.

The 14th Amendment provides that:

"All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States, and of the State wherein they reside."

That is affirmative in its character. That affirmation imposes the obligation upon the General Government to protect its citizens everywhere. That affirmation clothes the Federal Government with power to protect its citizens. Under that clause, the Federal arm can reach to the boundary of the Republic, for the purpose of protecting the weakest citizen from the tyranny of citizens or States. That clause is a contract between the Government and every man—a contract wherein the citizen promises allegiance, and the nation promises protection.

By this clause, the Federal Government adopted all the citizens of all the States and Territories, including the District of Columbia, and placed them under the shield of the Constitution—made each one a ward of the Republic.

Under this contract, the Government is under direct obligation to the citizen. The Government cannot shirk its responsibility by leaving a citizen to be protected in his rights, as a citizen of the United States, by a State. The obligation of protection is direct. The obligation on the part of the citizen to the Government is direct. The citizen cannot be untrue to the Government because his State is. The action of the State under the 14th Amendment is no excuse for the citizen. He must be true to the Government. In war, the Government has a right to his service. In peace, he has the right to be protected.

If the citizen must depend upon the State, then he owes the first allegiance to that government or power that is under obligation to protect him. Then, if a State secedes from the Union, the citizen should go with the State—should go with the power that protects.

That is not my doctrine. My doctrine is this: The first duty of the General Government is to protect each citizen. The first duty of each citizen is to be true—not to his State, but to the Republic.

This clause of the 14th Amendment made us all citizens of the United States—all children of the Republic. Under this decision, the Republic refuses to acknowledge her children. Under this decision of the Supreme Court, they are left upon the doorsteps of the States. Citizens are changed to foundlings.

If the 14th Amendment created citizens of the United States, the power that created must define the rights of the citizens thus created, and must provide a remedy where such rights are infringed. The Federal Government speaks through its representatives—through Congress; and Congress, by the Civil Rights Act, defined some of the rights, privileges and immunities of a citizen of the United States—and Congress provided a remedy when such rights and privileges were invaded, and gave jurisdiction to the Federal courts.

No State, or the department of any State, can authoritatively define the rights, privileges and immunities of a citizen of the United States. These rights and immunities must be defined by the United States, and when so defined, they cannot be abridged by State authority.

In the case of *Bartemeyer vs. Iowa*, 18 Wall., p. 140, Justice Field, in a concurring opinion, speaking of the 14th Amendment, says:

"It grew out of the feeling that a nation which had been maintained by such costly sacrifices was, after all, worthless, if a citizen could not be protected in all his fundamental rights, everywhere—North and South, East and West—throughout the limits of the Republic. The amendment was not, as held in the opinion of the majority, primarily intended to confer citizenship on the negro race. It had a much broader purpose. It was intended to justify legislation extending the protection of the National Government over the common rights of all citizens of the United States, and thus obviate objection to the legislation adopted for the protection of the emancipated race. It was intended to make it possible for all persons—which necessarily included those of every race and color—to live in peace and security wherever the jurisdiction of the nation reached. It therefore recognized, if it did not create, a national citizenship. This national citizenship is primary and not secondary."

I cannot refrain from calling attention to the splendor and nobility of the truths expressed by Justice Field in this opinion.

So, Justice Field, in his dissenting opinion in what are known as *The Slaughter-House Cases*, found in 16 Wallace, p. 95, still speaking of the 14th Amendment, says:

"It recognizes in express terms—if it does not create—citizens of the United States, and it makes their citizenship dependent upon the place of their birth or the fact of their adoption, and not upon the constitution or laws of any State, or the condition of their ancestry.

"A citizen of a State is now only a citizen of the United States residing in that State. The fundamental rights, privileges and immunities which belong to him as a free man and a free citizen of the United States, are not dependent upon the citizenship of any State. * * *

"They do not derive their existence from its legislation, and cannot be destroyed by its power."

What are "the fundamental rights, privileges and immunities" which belong to a free man? Certainly the rights of all citizens of the United States are equal. Their immunities and privileges must be the same. He who makes a discrimination between citizens on account of color, violates the Constitution of the United States.

Have all citizens the same right to travel on the highways of the country? Have they all the same right to ride upon the railways created by State authority? A railway is an improved highway. It was only by holding that it was an improved highway that counties and States aided in their construction. It has been decided, over and over again, that a railway is an improved highway. A railway corporation is the creation of a State—an agent of the State. It is under the control of the State—and upon what principle can a citizen be prevented from using the highways of a State on an equality with all other citizens?

These are all rights and immunities guaranteed by the Constitution of the United States.

Now, the question is—and it is the only question—can these rights and immunities, thus guaranteed and thus confirmed, be protected by the General Government?

In the case of *The U. S. vs. Reese, et al.*, 92 U. S., p. 207, the Supreme Court decided, the opinion having been delivered by Chief-Justice Waite, as follows:

"Rights and immunities created by, and dependent upon, the Constitution of the United States can be protected by Congress. The form and the manner of the protection may be such as Congress in the legitimate exercise of its legislative discretion shall provide. This may be varied to meet the necessities of the particular right to be protected."

This decision was acquiesced in by Justices Strong, Bradley, Swayne, Davis, Miller and Field. Dissenting opinions were filed by Justices Clifford and Hunt, but neither dissented from the proposition that:

"Rights and immunities created by or dependent upon the Constitution of the United States can be protected by Congress," and that "the form and manner of the protection may be such as Congress in the exercise of its legitimate discretion shall provide."

So, in the same case, I find this language:

"It follows that the Amendment"—meaning the 15th—"has invested the citizens of the United States with a new constitutional right, which is within the protecting power of Congress. This, under the express provisions of the second section of the Amendment, Congress may enforce by appropriate legislation."

If the 15th Amendment invested the citizens of the United States with a new constitutional right—that is, the right to vote—and if for that reason that right is within the protecting power of Congress, then I ask, if the 14th Amendment made certain persons citizens of the United States, did such citizenship become a constitutional right? And is such citizenship within the protecting power of Congress? Does citizenship mean anything except certain "rights, privileges and immunities"?

Is it not an invasion of citizenship to invade the immunities or privileges or rights belonging to a citizen? Are not, then, all the immunities and privileges and rights under the protecting power of Congress?

The 13th Amendment found the negro a slave, and made him a free man. That gave to him a new constitutional right, and according to the Supreme Court, that right is within the protecting power of Congress.

What rights are within the protecting power of Congress? All the rights belonging to a free man.

The 14th Amendment made the negro a citizen. What then is under the protecting power of Congress? All the rights, privileges and immunities

belonging to him as a citizen.

So, in the case of *Tennessee vs. Davis*, 100 U. S., 263, the Supreme Court, held that:

"The United States is a government whose authority extends over the whole territory of the Union, acting upon all the States, and upon all the people of all the States.

"No State can exclude the Federal Government from the exercise of any authority conferred upon it by the Constitution, or withhold from it for a moment the cognizance of any subject which the Constitution has committed to it."

This opinion was given by Justice Strong, and acquiesced in by Chief-Justice Waite, Justices Miller, Swayne, Bradley and Harlan.

So in the case of *Pensacola Tel. Co. vs. Western Union Tel. Co.*, 96 U. S., p. 10, the opinion having been delivered by Chief-Justice Waite, I find this:

"The Government of the United States, within the scope of its power, operates upon every foot of territory under its jurisdiction. It legislates for the whole Nation, and is not embarrassed by State lines."

This was acquiesced in by Justices Clifford, Strong, Bradley, Swayne and Miller.

So we are told by the entire Supreme Court in the case of *Tiernan vs. Rynker*, 102 U. S., 126, that:

"When the subject to which the power applies is national in its character, or of such a nature as to admit of uniformity of regulation, the power is exclusive of State authority."

Surely the question of citizenship is "national in its character." Surely the question as to what are the rights, privileges and immunities of a citizen of the United States is "national in its character."

Unless the declarations and definitions, the patriotic paragraphs, and the legal principles made, given, uttered and defined by the Supreme Court are but a judicial jugglery of words, the Civil Rights Act is upheld by the intent, spirit and language of the 14th Amendment.

It was found that the 13th Amendment did not protect the negro. Then the 14th was adopted. Still the colored citizen was trodden under foot. Then the 15th was adopted. The 13th made him free, and, in my judgment, made him

a citizen, and clothed him with all the rights of a citizen. That was denied, and then the 14th declared that he was a citizen. In my judgment, that gave him the right to vote. But that was denied—then the 15th was adopted, declaring that his right to vote should never be denied.

The 13th Amendment made all free. It broke the chains, pulled up the whipping-posts, overturned the auction-blocks, gave the colored mother her child, put the shield of the Constitution over the cradle, destroyed all forms of involuntary servitude, and in the azure heaven of our flag it put the Northern Star.

The 14th Amendment made us all citizens. It is a contract between the Republic and each individual—a contract by which the Nation agrees to protect the citizen, and the citizen agrees to defend the Nation. This amendment placed the crown of sovereignty on every brow.

The 15th Amendment secured the citizen in his right to vote, in his right to make and execute the laws, and put these rights above the power of any State. This amendment placed the ballot—the sceptre of authority—in every sovereign hand.

We are told by the Supreme Court, in the case under discussion, that:

"We must not forget that the province and scope of the 13th and 14th Amendments are different;" that the 13th Amendment "simply abolished slavery," and that the 14th Amendment "prohibited the States from abridging the privileges and immunities of citizens of the United States; from depriving them of life, liberty or property, without due process of law; and from denying to any the equal protection of the laws."

We are told that:

"The amendments are different, and the powers of Congress under them are different. What Congress has power to do under one it may not have power to do under the other." That "under the 13th Amendment it has only to do with slavery and its incidents;" but that "under the 14th Amendment it has power to counteract and render nugatory all State laws or proceedings which have the effect to abridge any of the privileges or immunities of the citizens of the United States, or to deprive them of life, liberty or property, without due process of law, or to deny to any of them the equal protection of the laws."

Did not Congress have that power under the 13th Amendment? Could the States, in spite of the 13th Amendment, deprive free men of life or property without due process of law? Does the Supreme Court wish to be understood, that until the 14th Amendment was adopted the States had the right to rob and kill free men? Yet, in its effort to narrow and belittle the 13th Amendment, it has been driven to this absurdity. Did not Congress, under the 13th Amendment, have power to destroy slavery and involuntary servitude? Did not Congress, under that amendment, have the power to protect the lives, liberty and property of free men? And did not Congress have the power "to render nugatory all State laws and proceedings under which free men were to be deprived of life, liberty or property, without due process of law"?

If Congress was not clothed with such power by the 13th Amendment, what was the object of that amendment? Was that amendment a mere opinion, or a prophecy, or the expression of a hope?

The 14th Amendment provides that:

"No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States. Nor shall any State deprive any person of life, liberty, or property without due process of law; nor deny to any person within its jurisdiction the equal protection of its laws."

We are told by the Supreme Court that Congress has no right to enforce the 14th Amendment by direct legislation, but that the legislation under that amendment can only be of a "corrective" character—such as may be necessary or proper for counteracting and redressing the effect of unconstitutional laws passed by the States. In other words, that Congress has no duty to perform, except to counteract the effect of unconstitutional laws by corrective legislation.

The Supreme Court has also decided, in the present case, that Congress has no right to legislate for the purpose of enforcing these clauses until the States shall have taken action. What action can the State take? If a State passes laws contrary to these provisions or clauses, they are void. If a State passes laws in conformity to these provisions, certainly Congress is not called on to legislate. Under what circumstances, then, can Congress be called upon to act by way of "corrective" legislation, as to these particular clauses? What can Congress do? Suppose the State passes no law upon the

subject, but allows citizens of the State—managers of railways, and keepers of public inns, to discriminate between their passengers and guests on account of race or color—what then?

Again, what is the difference between a State that has no law on the subject, and a State that has passed an unconstitutional law? In other words, what is the difference between no law and a void law? If the "corrective" legislation of Congress is not needed where the State has passed an unconstitutional law, is it needed where the State has passed no law? What is there in either case to correct? Surely it requires no particular legislation on the part of Congress to kill a law that never had life.

The States are prohibited by the Constitution from making any regulations of foreign commerce. Consequently, all regulations made by the States are null and void, no matter what the motive of the States may have been, and it requires no law of Congress to annul such laws or regulations. This was decided by the Supreme Court of the United States, long ago, in what are known as *The License Cases*. The opinion may be found in the 5th of Howard, 583.

"The nullity of any act inconsistent with the Constitution, is produced by the declaration that the Constitution is supreme."

This was decided by the Supreme Court, the opinion having been delivered by Chief Justice Marshall, in the case of *Gibbons vs. Ogden*, 9 Wheat, 210.

The same doctrine was held in the case of *Henderson et al., vs. Mayor of New York, et al.*, 92 U. S. 272—the opinion of the Court being delivered by Justice Miller.

So it was held in the case of *The Board of Liquidation vs. McComb*—2 Otto, 541.

"That an unconstitutional law will be treated by the courts as null and void"—citing *Osborn vs. The Bank of the United States*, 9 Wheaton, 859, and *Davis vs. Gray*, 16 Wallace, 220.

Now, if the legislation of Congress must be "corrective," then I ask, corrective of what? Certainly not of unconstitutional and void laws. That which is void, cannot be corrected. That which is unconstitutional is not the subject of correction. Congress either has the right to legislate directly, or not at all; because indirect or corrective legislation can apply only,

according to the Supreme Court, to unconstitutional and void laws that have been passed by a State; and as such laws cannot be "corrected," the doctrine of "corrective legislation" dies an extremely natural death.

A State can do one of three things: 1. It can pass an unconstitutional law; 2. It can pass a constitutional law; 3. It can fail to pass any law. The unconstitutional law, being void, cannot be corrected. The constitutional law does not need correction. And where no law has been passed, correction is impossible.

The Supreme Court insists that Congress can not take action until the State does. A State that fails to pass any law on the subject, has not taken action. This leaves the person whose immunities and privileges have been invaded, with no redress except such as he may find in the State Courts in a suit at law; and if the State Court takes the same view that is apparently taken by the Supreme Court in this case,—namely, that it is a "social question," one not to be regulated by law, and not covered in any way by the Constitution—then, discrimination can be made against citizens by landlords and railway conductors, and they are left absolutely without remedy.

The Supreme Court asks, in this decision,

"Can the act of a mere individual—the owner of the inn, or public conveyance, or place of amusement, refusing the accommodation, be justly regarded as imposing any badge of slavery or servitude upon the applicant, or only as inflicting an ordinary civil injury properly cognizable by the laws of the State, and presumably subject to redress by those laws, until the contrary appears?"

How is "the contrary to appear"? Suppose a person denied equal privileges upon the railway on account of race and color, brings suit and is defeated? And suppose the highest tribunal of the State holds that the question is of a "social" character—what then? If, to use the language of the Supreme Court, it is "an ordinary civil injury, imposing no badge of slavery or servitude," then, no Federal question is involved.

Why did not the Supreme Court tell us what may be done when "the contrary appears"? Nothing is clearer than the intention of the Supreme Court in this case—and that is, to decide that denying to a man equal accommodations at public inns on account of race or color, is not an abridgment of a privilege or immunity of a citizen of the United States, and

that such person, so denied, is not in a condition of involuntary servitude, or denied the equal protection of the laws. In other words—that it is a "social question."

I have been told by one who heard the decision when it was read from the bench, that the following phrase was in the opinion:

"There are certain physiological differences of race that cannot be ignored."

That phrase is a lamp, in the light of which the whole decision should be read.

Suppose that in one of the Southern States, the negroes being in a decided majority and having entire control, had drawn the color line, had insisted that:

"There were certain physiological differences between the races that could not be ignored," and had refused to allow white people to enter their hotels, to ride in the best cars, or to occupy the aristocratic portion of a theatre; and suppose that a white man, thrust from the hotels, denied the entrance to cars, had brought his suit in the Federal Court. Does any one believe that the Supreme Court would have intimated to that man that "there is only a social question involved,—a question with which the Constitution and laws have nothing to do, and that he must depend for his remedy upon the authors of the injury"? Would a white man, under such circumstances, feel that he was in a condition of involuntary servitude? Would he feel that he was treated like an underling, like a menial, like a serf? Would he feel that he was under the protection of the laws, shielded like other men by the Constitution? Of course, the argument of color is just as strong on one side as on the other. The white man says to the black, "You are not my equal because you are black;" and the black man can with the same propriety, reply, "You are not my equal because you are white." The difference is just as great in the one case as in the other. The pretext that this question involves, in the remotest degree, a social question, is cruel, shallow, and absurd.

The Supreme Court, some time ago, held that the 4th Section of the Civil Rights Act was constitutional. That section declares that:

"No citizen possessing all other qualifications which are or maybe prescribed by law, shall be disqualified for service as grand or petit juror in

any court of the United States or of any State, on account of color or previous condition of servitude."

It also provides that:

"If any officer or other person charged with any duty in the selection or summoning of jurors, shall exclude, or fail to summon, any citizen in the case aforesaid, he shall, on conviction, be guilty of misdemeanor and be fined not more than five hundred dollars."

In the case known as *Ex-parte vs. Virginia*—found in 100 U. S. 339—it was held that an indictment against a State officer, under this section, for excluding persons of color from the jury, could be sustained. Now, let it be remembered, there was no law of the State of Virginia, by virtue of which a man was disqualified from sitting on the jury by reason of race or color. The officer did exclude, and did fail to summon, a citizen on account of race or color or previous condition of servitude. And the Supreme Court held:

"That whether the Statute-book of the State actually laid down any such rule of disqualification or not, the State, through its officer, enforced such rule; and that it was against such State action, through its officers and agents, that the last clause of the section was directed."

The Court further held that:

"This aspect of the law was deemed sufficient to divest it of any unconstitutional character."

In other words, the Supreme Court held that the officer was an agent of the State, although acting contrary to the statute of the State; and that, consequently, such officer, acting outside of law, was amenable to the Civil Rights Act, under the 14th Amendment, that referred only to States. The question arises: Is a State responsible for the action of its agent when acting contrary to law? In other words: Is the principal bound by the acts of his agent, that act not being within the scope of his authority? Is a State liable—or is the Government liable—for the act of any officer, that act not being authorized by law?

It has been decided a thousand times, that a State is not liable for the torts and trespasses of its officers. How then can the agent, acting outside of his authority, be prosecuted under a law deriving its entire validity from a constitutional amendment applying only to States? Does an officer, by

acting contrary to State law, become so like a State that the word State, used in the Constitution, includes him?

So it was held in the case of *Neal vs. Delaware*,—103 U. S., 307,—that an officer acting contrary to the laws of the State—in defiance of those laws—would be amenable to the Civil Rights Act, passed under an amendment to the Constitution now held applicable only to States.

It is admitted, and expressly decided in the case of *The U. S. vs. Reese et al.*, (already quoted) that when the wrongful refusal at an election is because of race, color, or previous condition of servitude, Congress can interfere and provide for the punishment of any individual guilty of such refusal, no matter whether such individual acted under or against the authority of the State.

With this statement I most heartily agree. I agree that:

"When the wrongful refusal is because of race, color, or previous condition of servitude, Congress can interfere and provide for the punishment of any individual guilty of such refusal."

That is the key that unlocks the whole question. Congress has power—full, complete, and ample,—to protect all citizens from unjust discrimination, and from being deprived of equal privileges on account of race, color, or previous condition of servitude. And this language is just as applicable to the 13th and 14th, as to the 15th Amendment. If a citizen is denied the accommodations of a public inn, or a seat in a railway car, on account of race or color, or deprived of liberty on account of race or color, the Constitution has been violated, and the citizen thus discriminated against or thus deprived of liberty, is entitled to redress in a Federal Court.

It is held by the Supreme Court that the word "State" does not apply to the "people" of the State—that it applies only to the agents of the people of the State. And yet, the word "State," as used in the Constitution, has been held to include not only the persons in office, but the people who elected them—not only the agents, but the principals. In the Constitution it is provided that "no State shall coin money; and no State shall emit bills of credit." According to this decision, any person in any State, unless prevented by State authority, has the right to coin money and to emit bills of credit, and Congress has no power to legislate upon the subject—provided he does not counterfeit any of the coins or current money of the United States. Congress would have to deal—not with the individuals, but with the

State; and unless the State had passed some act allowing persons to coin money, or emit bills of credit, Congress could do nothing. Yet, long ago, Congress passed a statute preventing any person in any State from coining money. No matter if a citizen should coin it of pure gold, of the requisite fineness and weight, and not in the likeness of United States coins, he would be a criminal. We have a silver dollar, coined by the Government, worth eighty-five cents; and yet, if any person, in any State, should coin what he called a dollar, not like our money, but with a dollar's worth of silver in it, he would be guilty of a crime.

It may be said that the Constitution provides that Congress shall have power to coin money, and provide for the punishment of counterfeiting the securities and current coin of the United States; in other words, that the Constitution gives power to Congress to coin money and denies it to the States, not only, but gives Congress the power to legislate against counterfeiting. So, in the 13th, 14th, and 15th Amendments, power is given to Congress, and power is denied to the States, not only, but Congress is expressly authorized to enforce the amendments by appropriate legislation. Certainly the power is as broad in the one case as in the other; and in both cases, individuals can be reached as well as States.

So the Constitution provides that:

"Congress shall have power to regulate commerce among the several States."

Under this clause Congress deals directly with individuals. The States are not engaged in commerce, but the people are; and Congress makes rules and regulations for the government of the people so engaged.

The Constitution also provides that:

"Congress shall have power to regulate commerce with the Indian tribes."

It was held in the case of *The United States vs. Holliday*, 3 Wall., 407, that:

"Commerce with the Indian tribes means commerce with the individuals composing those tribes."

And under this clause it has been further decided that Congress has the power to regulate commerce not only between white people and Indian tribes, but between Indian tribes; and not only that, but between individual

Indians. *Worcester vs. The State*, 6 Pet., 575; *The United States vs. 4.3 Gallons*, 93 U. S., 188; *The United States vs. Shawmux*, 2 Saw., 304.

Now, if the word "tribe" includes individual Indians, may not the word "State" include citizens?

In this decision it is admitted by the Supreme Court that where a subject is submitted to the general legislative power of Congress, then Congress has plenary powers of legislation over the whole subject. Let us apply these words to the 13th Amendment. In this very decision I find that the 13th Amendment:

"By its own unaided force and effect, abolished slavery and established universal freedom."

The Court admits that:

"Legislation may be necessary and proper to meet all the various cases and circumstances to be affected by it, and to prescribe proper modes of redress for its violation in letter or spirit."

The Court further admits:

"And such legislation may be primary and direct in its character."

And then gives the reason:

"For the amendment is not a mere prohibition of State laws establishing or upholding slavery, but an absolute declaration that slavery or involuntary servitude shall not exist in any part of the United States."

I now ask, has that subject—that is to say, Liberty,—been submitted to the general legislative power of Congress? The 13th Amendment provides that Congress shall have power to enforce that amendment by appropriate legislation.

In construing the 13th and 14th Amendments and the Civil Rights Act, it seems to me that the Supreme Court has forgotten the principle of construction that has been laid down so often by courts, and that is this: that in construing statutes, courts may look to the history and condition of the country as circumstances from which to gather the intention of the Legislature. So it seems to me that the Court failed to remember the rule laid down by Story in the case of *Prigg vs. The Commonwealth of Pennsylvania*, 16 Pet., 611, a rule laid down in the interest of slavery—laid down for the purpose of depriving human beings of their liberty:

"Perhaps the safest rule of interpretation, after all, will be found to be to look to the nature and objects of the particular powers, duties and rights with all the lights and aids of contemporary history, and to give to the words of each just such operation and force consistent with their legitimate meaning, as may fairly secure and attain the ends proposed."

It must be admitted that certain rights were conferred by the 13th Amendment. Surely certain rights were conferred by the 14th Amendment; and these rights should be protected and upheld by the Federal Government. And it was held in the case last cited, that:

"If by one mode of interpretation the right must become shadowy and unsubstantial, and without any remedial power adequate to the end, and by another mode it will attain its just end and secure its manifest purpose—it would seem, upon principles of reasoning absolutely irresistible, that the latter ought to prevail. No court of justice can be authorized so as to construe any clauses of the Constitution as to defeat its obvious ends, when another construction, equally accordant with the words and sense thereof, will enforce and protect them."

In the present case, the Supreme Court holds, that Congress can not legislate upon this subject until the State has passed some law contrary to the Constitution.

I call attention in reply to this, to the case of *Hall vs. De Cuir*, 95 U. S., 486. The State of Louisiana, in 1869, acting in the spirit of these amendments to the Constitution, passed a law requiring that all persons engaged within that State in the business of common carriers of passengers, should make no discrimination on account of race, color, or previous condition of servitude. Under this law, Mrs. De Cuir, a colored woman, took passage on a steamer, buying a ticket from New Orleans to Hermitage—the entire trip being within the limits of the State. The captain of the boat refused to give her equal accommodations with other passengers—the refusal being on the ground of her color. She commenced suit against the captain in the State Court of Louisiana, and recovered judgment for one thousand dollars. The defendant appealed to the Supreme Court of that State, and the judgment of the lower court was sustained. Thereupon, the captain died, and the case was taken to the Supreme Court of the United States by his administrator, on the ground that a Federal question was involved.

You will see that this was a case where the State had acted, and had acted exactly in accordance with the constitutional amendments, and had by law provided that the privileges and immunities of the citizen of the United States—residing in the State of Louisiana—should not be abridged, and that no distinction should be made on account of race or color. But in that case the Supreme Court of the United States solemnly decided that the legislation of the State was void—that the State of Louisiana had no right to interfere—no right, by law, to protect a citizen of the United States from being discriminated against under such circumstances.

You will remember that the plaintiff, Mrs. De Cuir, was to be carried from New Orleans to Hermitage, and that both places were within the State of Louisiana. Notwithstanding this, the Supreme Court held:

"That if the public good required such legislation, it must come from Congress and not from the State."

What reason do you suppose was given? It was this: The Constitution gives to Congress power to regulate commerce between the States; and it appeared from the evidence given in that case, that the boat plied between the ports of New Orleans and Vicksburg. Consequently, it was engaged in interstate commerce. Therefore, it was under the protection of Congress; and being under the protection of Congress, the State had no authority to protect its citizens by a law in perfect harmony with the Constitution of the United States, while such citizens were within the limits of Louisiana. The Supreme Court scorns the protection of a State!

In the case recently decided, and about which we are talking to-night, the Supreme Court decides exactly the other way. It decides that if the public good requires such legislation, it must come from the States, and not from Congress; that Congress cannot act until the State has acted, and until the State has acted wrong, and that Congress can then only act for the purpose of "correcting" such State action. The decision in *Hall vs. De Cuir* was rendered in 1877. The Civil Rights Act was then in force, and applied to all persons within the jurisdiction of the United States, and provided expressly that:

"All persons within the jurisdiction of the United States shall be entitled to the full and equal enjoyment of the accommodations, privileges, and facilities of inns, public conveyances on land or water, theatres, and other places of public amusement, without regard to race or color."

And yet the Supreme Court said:

"No carrier of passengers can conduct his business with satisfaction to himself, or comfort to those employing him, if on one side of a State line his passengers, both white and colored, must be permitted to occupy the same cabin, and on the other to be kept separate."

What right had the other State to pass a law that passengers should be kept separate, on account of race or color? How could such a law have been constitutional? The Civil Rights Act applied to all States, and to both sides of the lines between all States, and produced absolute uniformity—and did not put the captain to the trouble of dividing his passengers. The Court further said:

"Uniformity in the regulations by which the carrier is to be governed from one end to the other of his route, is a necessity in his business."

The uniformity had been guaranteed by the Civil Rights Act, and the statute of the State of Louisiana was in exact conformity with the 14th Amendment and the Civil Rights Act. The Court also said:

"And to secure uniformity, Congress, which is untrammelled by State lines, has been invested with the exclusive power of determining what such regulations shall be."

Yes. Congress has been invested with such power, and Congress has used it in passing the Civil Rights Act—and yet, under these circumstances, the Court proceeds to imagine the difficulty that a captain would have in dividing his passengers as he crosses a State line, keeping them apart until he reaches the line of another State, and then bringing them together, and so going on through the process of dispersing and huddling, to the end of his unfortunate route.

It is held by the Supreme Court, that uniformity of duties is essential to the carrier, and so essential, that Congress has control of the whole matter. If uniformity is so desirable for the carrier that Congress takes control, then uniformity as to the rights of passengers is equally desirable; and under the 13th and 14th Amendments, Congress has the exclusive power to state what the rights, privileges and immunities of passengers shall be. So that, in 1877, the Supreme Court decided that the *States could not* legislate; and in 1883, that *Congress could not*, unless the State had. If Congress controls interstate commerce upon the navigable waters, it also controls interstate commerce upon the railways. And if Congress has exclusive jurisdiction in

the one case, it has in the other. And if it has exclusive jurisdiction, it does not have to wait until States take action. If it does not have to wait until States take action, then the Civil Rights Act, in so far as it refers to the rights of passengers going from one State to another, must be constitutional.

It must be remembered, in this discussion, that the 8th Section of the Constitution conferred upon Congress the power:

"To make all laws that may be necessary and proper for carrying into execution the powers vested by the Constitution in the Government of the United States."

So the 2nd Section of the 13th Article provides:

"Congress shall have power to enforce this article by appropriate legislation."

The same language is used in the 14th and 15th Amendments.

"This clause does not limit—it enlarges—the powers vested in the General Government. It is an additional power—not a restriction on those already granted. It does not impair the right of the Legislature to exercise its best judgment in the selection of measures to carry into execution the constitutional powers of the Government. A sound construction of the Constitution must allow to the National Legislature that discretion with respect to the means by which the powers it confers are to be carried into execution, which will enable that body to perform the high duties assigned to it in the manner most beneficial to the people. Let the end be legitimate—let it be within the scope of the Constitution, and all means which are appropriate—which are plainly adapted to that end—are constitutional."

This is the language of Chief Justice Marshall, in the case of *M'Caulay, vs. The State*, 4 Wheaton, 316.

"Congress must possess the choice of means, and must be empowered to use any means which are in fact conducive to the exercise of a power granted by the Constitution." *U. S. vs. Fisher*, 2 Cranch, 358.

Again:

"The power of Congress to pass laws to enforce rights conferred by the Constitution is not limited to the express powers of legislation enumerated in the Constitution. The powers which are necessary and proper as means to carry into effect rights expressly given and duties expressly enjoined, are

always implied. The end being given, the means to accomplish it are given also." *Prigs vs. The Commonwealth*, 16 Peters, 539.

This decision was delivered by Justice Story, and is the same one already referred to, in which liberty was taken from a human being by judicial construction. It was held in that case that the 2nd Section of the 4th Article of the Constitution, to which I have already called attention, contained "a positive and unqualified recognition of the right" of the owner in a slave, unaffected by any State law or regulation. If this is so, then I assert that the 13th Amendment "contains a positive and unqualified recognition of the right" of every human being to liberty; that the 14th Amendment "contains a positive and unqualified recognition of the right" to citizenship; and that the 15th Amendment "contains a positive and unqualified recognition of the right" to vote.

Justice Story held in that case that:

"Under and by virtue of that section of the Constitution the owner of a slave was clothed with entire authority in every State in the nation to seize and recapture his slave."

He also held that:

"In that sense, and to that extent, that clause of the Constitution might properly be said to execute itself, and to require no aid from legislation—State or National."

"But," says Justice Story:

"The clause of the Constitution does not stop there, but says that he, the slave, shall be delivered up on claim of the party to whom such service or labor may be due."

And he holds that:

"Under that clause of the section Congress became clothed with the appropriate authority to legislate for its enforcement."

Now let us look at the 13th and 14th Amendments in the light of that decision.

First. Liberty and citizenship were given the colored people by this amendment. And Justice Story tells us that:

"The power of Congress to enforce rights conferred by the Constitution is not limited to the express powers of legislation enumerated in the

Constitution, but the powers which are necessary to protect such rights are always implied."

Language cannot be stronger; words cannot be clearer. But now this decision has been reversed by the Supreme Court, and Congress is left powerless to protect rights conferred by the Constitution. It has been shorn of implied powers. It has duties to perform, and no power to act. It has rights to protect, but cannot choose the means. It is entangled in its own strength. It is a prisoner in the bastille of judicial construction.

Let us go further. Justice Story tells us that:

"The words 'but shall be given up on the claim of the person to whom such labor or service may be due,' clothes Congress with the appropriate authority to legislate for its enforcement."

In the light of this remark, let us look at the 14th Amendment:

"All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside."

To which are added these words:

"No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty or property without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws."

Now, if the words: "But shall be delivered up on claim of the party to whom such service or labor may be due," clothes Congress with power to legislate upon the entire subject, then I ask if the words in the 14th Amendment declaring that "no law shall be made by any State, or enforced, which shall abridge the privileges or immunities of citizens of the United States; and that no State shall deprive any person of life, liberty or property without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws," does not clothe Congress with the power to legislate upon the entire subject?

In the two cases there is only this difference: The first decision was made in the interest of human slavery—made to protect property in man; and the second decision ought to have been made for exactly the opposite purpose. Under the first decision, Congress had the right to select the means—but

now that is denied. And yet it was decided in *M'Cauley vs. The State*, 4 Wheaton, 316, that:

"When the Government has a right to do an act, and has imposed on it the duty of performing an act, then it must, according to the dictates of reason, be allowed to select the means."

Again:

"The Government has the right to employ freely every means not prohibited, for the fulfillment of its acknowledged duties."

The Legal Tender Cases—12 Wallace, 457.

It will thus be seen that Congress has the undoubted right to make all laws necessary for the exercise of all the powers vested in it by the Constitution. When the Constitution imposes a duty upon Congress, it grants the necessary means. Congress certainly, then, has the right to pass all necessary laws for the enforcement of the 13th, 14th and 15th Amendments. Any legislation is "appropriate" that is calculated to accomplish the end sought and that is not repugnant to the Constitution. Within these limits Congress has the sovereign power of choice. No better definition of "appropriate legislation" has been given than that by the Supreme Court of California, in the case of *The People vs. Washington*, 38 California, 658:

"Legislation which practically tends to facilitate the securing to all, through the aid of the judicial and executive departments of the Government, the full enjoyment of personal freedom, is appropriate."

The Supreme Court despairingly asks:

"If this legislation is appropriate for enforcing the prohibitions of the Amendment, it is difficult to see where it is to stop. Why may not Congress, with equal show of authority, enact a code of laws for the enforcement and vindication of all rights of life, liberty and property?"

My answer is: The legislation will stop when and where the discriminations on account of race, color or previous condition of servitude, stop. Whenever an immunity or privilege of a citizen of the United States is trodden down by the State, or by an individual, under the circumstances mentioned in the Civil Rights Act—that is to say, on account of race, color, or previous condition of servitude—then the Federal Government must interfere. The Government must defend the immunities and privileges of its

citizens, not only from State invasion, but from individual invaders, when that invasion is based upon the distinction of race, color, or previous condition of servitude. The Government has taken upon itself that duty. This duty can be discharged by a law making a uniform rule, obligatory not only upon States, but upon individuals. All this will stop when the discriminations stop.

After such examination of the authorities as I have been able to make, I lay down the following propositions, namely:

1. The sovereignty of a State extends only to that which exists by its own authority.

2. The powers of the General Government were not conferred by the people of a single State; they were given by the people of the United States; and the laws of the United States, in pursuance of the Constitution, are supreme over the entire Republic.

3. The Constitution of the United States is the supreme law of each State.

4. The United States is a Government whose authority extends over the whole territory of the Union, acting upon all the States and upon all the people of all the States.

5. No State can exclude the Federal Government from the exercise of any authority conferred upon it by the Constitution, or withhold from it, for a moment, the cognizance of any subject which that instrument has committed to it.

6. It is the duty of Congress to enforce the Constitution, and it has been clothed with power to make all laws necessary and proper for carrying into execution all the powers vested by the Constitution in the General Government.

7. It is the duty of the Government to protect every citizen of the United States in all his rights, everywhere, without regard to race, color, or previous condition of servitude; and this the Government has the right to do by direct legislation.

8. Every citizen, when his privileges and immunities are invaded by the legislature of a State, has the right of appeal from such. State to the Supreme Court of the nation.

9. When a State fails to pass any law protecting a citizen from discrimination on account of race or color, and fails, in fact, to protect such

citizen, then such citizen has the right to find redress in the Federal Courts.

10. Whenever, in the Constitution, a State is prohibited from doing anything that in the nature of the thing can be done by any citizen of that State, then the word "State" embraces and includes all the people of a State.

11. The 13th Amendment declares that neither slavery nor involuntary servitude shall exist within the jurisdiction of the United States.

This is not a mere negation—it is a splendid affirmation. The duty is imposed upon the General Government by that amendment to see to it that neither slavery nor involuntary servitude shall exist.

It is a question absolutely within the power of the Federal Government, and the Federal Government is clothed with power to make all necessary laws to enforce that amendment against States and persons.

12. The 14th Amendment provides that all persons born or naturalized in the United States and subject to the jurisdiction thereof, are citizens of the United States and of the States wherein they reside. This is also an affirmation. It is not a prohibition. The moment that amendment was adopted, it became the duty of the United States to protect the citizens recognized or created by that amendment. We are no longer citizens of the United States because we are citizens of a State, but we are citizens of the United States because we have been born or have been naturalized within the jurisdiction of the United States. It therefore follows, that it is not only the right, but it is the duty, of Congress, to pass all laws necessary for the protection of citizens of the United States.

13. Congress can not shirk this responsibility by leaving citizens of the United States to the care and keeping of the several States.

The recent decision of the Supreme Court cuts, as with a sword, the tie that binds the citizen to the nation. Under the old Constitution, it was not certainly known who were citizens of the United States. There were citizens of the States, and such citizens looked to their several States for protection. The Federal Government had no citizens. Patriotism did not rest on mutual obligation. Under the 14th Amendment, we are all citizens of a common country; and our first duty, our first obligation, our highest allegiance, is not to the State in which we reside, but to the Federal Government. The 14th Amendment tends to destroy State prejudices and lays a foundation for national patriotism.

14. All statutes—all amendments to the Constitution—in derogation of natural rights, should be strictly construed.

15. All statutes and amendments for the preservation of natural rights should be liberally construed. Every court should, by strict construction, narrow the scope of every law that infringes upon any natural human right; and every court should, by construction, give the broadest meaning to every statute or constitutional provision passed or adopted for the preservation of freedom.

16. In construing the 13th, 14th and 15th Amendments, the Supreme Court need not go back to decisions rendered in the days of slavery—when every statute was construed in favor of the sovereignty of the State and the rights of the master. These amendments utterly obliterated such decisions. The Supreme Court should begin with the amendments. It need not look behind them. They are a part of the fundamental organic law of the nation. They were adopted to destroy the old statutes, to obliterate the infamous clauses in the Constitution, and to lay a new foundation for a new nation.

17. Congress has the power to eradicate all forms and incidents of slavery and involuntary servitude, by direct and primary legislation binding upon States and individuals alike. And when citizens are denied the exercise of common rights and privileges—when they are refused admittance to public inns and railway cars, on an equality with white persons—and when such denial and refusal are based upon race and color, such citizens are in a condition of involuntary servitude.

The Supreme Court has failed to take into consideration the intention of the framers of these amendments. It has failed to comprehend the spirit of the age. It has undervalued the accomplishment of the war. It has not grasped in all their height and depth the great amendments to the Constitution and the real object of government. To preserve liberty is the only use for government. There is no other excuse for legislatures, or presidents, or courts, for statutes or decisions. Liberty is not simply a means—it is an end. Take from our history, our literature, our laws, our hearts—that word, and we are naught but moulded clay. Liberty is the one priceless jewel. It includes and holds and is the weal and wealth of life. Liberty is the soil and light and rain—it is the plant and bud and flower and fruit—and in that sacred word lie all the seeds of progress, love and joy.

This decision, in my judgment, is not worthy of the Court by which it was delivered. It has given new life to the serpent of State Sovereignty. It has breathed upon the dying embers of ignorant hate. It has furnished food and drink, breath and blood, to prejudices that were perishing of famine, and in the old case of *Civilization vs. Barbarism*, it has given the defendant a new trial.

From this decision, John M. Harlan had the breadth of brain, the goodness of heart, and the loyalty to logic, to dissent. By the fortress of Liberty, one sentinel remains at his post. For moral courage I have supreme respect, and I admire that intellectual strength that breaks the cords and chains of prejudice and damned custom as though they were but threads woven in a spider's loom. This judge has associated his name with freedom, and he will be remembered as long as men are free.

We are told by the Supreme Court that:

"Slavery cannot exist without law, any more than property and lands and goods can exist without law."

I deny that property exists by virtue of law. I take exactly the opposite ground. It was the fact that man had property in lands and goods, that produced laws for the protection of such property. The Supreme Court has mistaken an effect for a cause. Laws passed for the protection of property, sprang from the possession and ownership of the thing to be protected. When one man enslaves another, it is a violation of all justice—a subversion of the foundation of all law. Statutes passed for the purpose of enabling man to enslave his fellow-man, resulted from a conspiracy entered into by the representatives of brute force. Nothing can be more absurd than to call such a statute, born of such a conspiracy a law. According to the idea of the Supreme Court, man never had property until he had passed a law upon the subject. The first man who gathered leaves upon which to sleep, did not own them, because no law had been passed on the leaf subject. The first man who gathered fruit—the first man who fashioned a club with which to defend himself from wild beasts, according to the Supreme Court, had no property in these things, because no laws had been passed, and no courts had published their decisions.

So the defenders of monarchy have taken the ground that societies were formed by contract—as though at one time men all lived apart, and came together by agreement and formed a government. We might just as well say

that the trees got into groves by contract or conspiracy. Man is a social being. By living together there grow out of the relation, certain regulations, certain customs. These at last hardened into what we call law—into what we call forms of government—and people who wish to defend the idea that we got everything from the king, say that our fathers made a contract. Nothing can be more absurd. Men did not agree upon a form of government and then come together; but being together, they made rules for the regulation of conduct. Men did not make some laws and then get some property to fit the laws, but having property they made laws for its protection.

It is hinted by the Supreme Court that this is in some way a question of social equality. It is claimed that social equality cannot be enforced by law. Nobody thinks it can. This is not a question of social equality, but of equal rights. A colored citizen has the same right to ride upon the cars—to be fed and lodged at public inns, and to visit theatres, that I have. Social equality is not involved.

The Federal soldiers who escaped from Libby and Andersonville, and who in swamps, in storm, and darkness, were rescued and fed by the slave, had no scruples about eating with a negro. They were willing to sit beneath the same tree and eat with him the food he brought. The white soldier was then willing to find rest and slumber beneath the negro's roof. Charity has no color. It is neither white nor black. Justice and Patriotism are the same. Even the Confederate soldier was willing to leave his wife and children under the protection of a man whom he was fighting to enslave.

Danger does not draw these nice distinctions as to race or color. Hunger is not proud. Famine is exceedingly democratic in the matter of food. In the moment of peril, prejudices perish. The man fleeing for his life does not have the same ideas about social questions, as he who sits in the Capitol, wrapped in official robes. Position is apt to be supercilious. Power is sometimes cruel. Prosperity is often heartless.

This cry about social equality is born of the spirit of caste—the most fiendish of all things. It is worse than slavery. Slavery is at least justified by avarice—by a desire to get something for nothing—by a desire to live in idleness upon the labor of others—but the spirit of caste is the offspring of natural cruelty and meanness.

Social relations depend upon almost an infinite number of influences and considerations. We have our likes and dislikes. We choose our companions. This is a natural right. You cannot force into my house persons whom I do not want. But there is a difference between a public house and a private house. The one is for the public. The private house is for the family and those they may invite. The landlord invites the entire public, and he must serve those who come if they are fit to be received. A railway is public, not private. It derives its powers and its rights from the State. It takes private land for public purposes. It is incorporated for the good of the public, and the public must be served. The railway, the hotel, and the theatre, have a right to make a distinction between people of good and bad manners—between the clean and the unclean. There are white people who have no right to be in any place except a bath-tub, and there are colored people in the same condition. An unclean white man should not be allowed to force himself into a hotel, or into a railway car—neither should the unclean colored. What I claim is, that in public places, no distinction should be made on account of race or color. The bad black man should be treated like the bad white man, and the good black man like the good white man. Social equality is not contended for—neither between white and white, black and black, nor between white and black.

In all social relations we should have the utmost liberty—but public duties should be discharged and public rights should be recognized, without the slightest discrimination on account of race or color. Riding in the same cars, stopping at the same inns, sitting in the same theatres, no more involve a social question, or social equality, than speaking the same language, reading the same books, hearing the same music, traveling on the same highway, eating the same food, breathing the same air, warming by the same sun, shivering in the same cold, defending the same flag, loving the same country, or living in the same world.

And yet, thousands of people are in deadly fear about social equality. They imagine that riding with colored people is dangerous—that the chance acquaintance may lead to marriage. They wish to be protected from such consequences by law. They dare not trust themselves. They appeal to the Supreme Court for assistance, and wish to be barricaded by a constitutional amendment. They are willing that colored women shall prepare their food—that colored waiters shall bring it to them—willing to ride in the same cars with the porters and to be shown to their seats in theatres by colored ushers

—willing to be nursed in sickness by colored servants. They see nothing dangerous—nothing repugnant, in any of these relations,—but the idea of riding in the same car, stopping at the same hotel, fills them with fear—fear for the future of our race. Such people can be described only in the language of Walt Whitman. "They are the immutable, granitic pudding-heads of the world."

Liberty is not a social question. Civil equality is not social equality. We are equal only in rights. No two persons are of equal weight, or height. There are no two leaves in all the forests of the earth alike—no two blades of grass—no two grains of sand—no two hairs. No two any-things in the physical world are precisely alike. Neither mental nor physical equality can be created by law, but law recognizes the fact that all men have been clothed with equal rights by Nature, the mother of us all.

The man who hates the black man because he is black, has the same spirit as he who hates the poor man because he is poor. It is the spirit of caste. The proud useless despises the honest useful. The parasite idleness scorns the great oak of labor on which it feeds, and that lifts it to the light.

I am the inferior of any man whose rights I trample under foot. Men are not superior by reason of the accidents of race or color. They are superior who have the best heart—the best brain. Superiority is born of honesty, of virtue, of charity, and above all, of the love of liberty. The superior man is the providence of the inferior. He is eyes for the blind, strength for the weak, and a shield for the defenceless. He stands erect by bending above the fallen. He rises by lifting others.

In this country all rights must be preserved, all wrongs redressed, through the ballot. The colored man has in his possession in his care, a part of the sovereign power of the Republic. At the ballot-box he is the equal of judges and senators, and presidents, and his vote, when counted, is the equal of any other. He must use this sovereign power for his own protection, and for the preservation of his children. The ballot is his sword and shield. It is his political providence. It is the rock on which he stands, the column against which he leans. He should vote for no man who does not believe in equal rights for all—in the same privileges and immunities for all citizens, irrespective of race or color.

He should not be misled by party cries, or by vague promises in political platforms. He should vote for the men, for the party, that will protect him;

for congressmen who believe in liberty, for judges who worship justice, whose brains are not tangled by technicalities, and whose hearts are not petrified by precedents; and for presidents who will protect the blackest citizen from the tyranny of the whitest State. As you cannot trust the word of some white people, and as some black people do not always tell the truth, you must compel all candidates to put their principle' in black and white.

Of one thing you can rest assured: The best white people are your friends. The humane, the civilized, the just, the most intelligent, the grandest, are on your side. The sympathies of the noblest are with you. Your enemies are also the enemies of liberty, of progress and of justice. The white men who make the white race honorable believe in equal rights for you. The noblest living are, the noblest dead were, your friends. I ask you to stand with your friends.

Do not hold the Republican party responsible for this decision, unless the Republican party endorses it. Had the question been submitted to that party, it would have been decided exactly the other way—at least a hundred to one. That party gave you the 13th, 14th and 15th Amendments. They were given in good faith. These amendments put you on a constitutional and political equality with white men. That they have been narrowed in their application by the Supreme Court, is not the fault of the Republican party. Let us wait and see what the Republican party will do. That party has a strange history, and in that history is a mingling of cowardice and courage. The army of progress always becomes fearful after victory, and courageous after defeat. It has been the custom for principle to apologize to prejudice. The Proclamation of Emancipation gave liberty only to slaves beyond our lines—those beneath our flag were left to wear their chains. We said to the Southern States: "Lay down your arms, and you shall keep your slaves." We tried to buy peace at the expense of the negro.

We offered to sacrifice the manhood of the North, and the natural rights of the colored man, upon the altar of the Union. The rejection of that offer saved us from infamy. At one time we refused to allow the loyal black man to come within our lines. We would meet him at the outposts, receive his information, and drive him back to chain and lash. The Government publicly proclaimed that the war was waged to save the Union, with slavery. We were afraid to claim that the negro was a man—afraid to admit that he was property—and so we called him "contraband." We hesitated to

allow the negro to fight for his own freedom—hesitated to let him wear the uniform of the nation while he battled for the supremacy of its flag.

These are some of the inconsistencies of the past. In spite of them we advanced. We were educated by events, and at last we clearly saw that slavery was rebellion; that the "institution" had borne its natural fruit—civil war; that the entire country was responsible for slavery, and that slavery was responsible for rebellion. We declared that slavery should be extirpated from the Republic. The great armies led by the greatest commander of the modern world, shattered, crushed and demolished the Rebellion. The North grew grand. The people became sublime. The three sacred amendments were adopted. The Republic was free.

Then came a period of hesitation, apology and fear. The colored citizen was left to his fate. For years the Federal arm, palsied by policy, was powerless to protect; and this period of fear, of hesitation, of apology, of lack of confidence in the right, has borne its natural fruit—this decision of the Supreme Court.

But it is not for me to give you advice. Your conduct has been above all praise. You have been as patient as the earth beneath, as the stars above. You have been law-abiding and industrious, You have not offensively asserted your rights, or offensively borne your wrongs. You have been modest and forgiving. You have returned good for evil. When I remember that the ancestors of my race were in universities and colleges and common schools while you and your fathers were on the auction-block, in the slave-pen, or in the field beneath the cruel lash, in States where reading and writing were crimes, I am astonished at the progress you have made.

All that I—all that any reasonable man—can ask is, that you continue doing as you have done. Above all things—educate your children—strive to make yourselves independent—work for homes—work for yourselves—and wherever it is possible become the masters of yourselves.

Nothing gives me more pleasure than to see your little children with books under their arms, going and coming from school.

It is very easy to see why colored people should hate us, but why we should hate them is beyond my comprehension. They never sold our wives. They never robbed our cradles.. They never scarred our backs. They never pursued us with bloodhounds. They never branded our flesh.

It has been said that it is hard to forgive a man to whom we have done a great injury. I can conceive of no other reason why we should hate the colored people. To us they are a standing reproach. Their history is our shame. Their virtues seem to enrage some white people—their patience to provoke, and their forgiveness to insult. Turn the tables—change places—and with what fierceness, with what ferocity, with what insane and passionate intensity we would hate them!

The colored people do not ask for revenge—they simply ask for justice. They are willing to forget the past—willing to hide their scars—anxious to bury the broken chains, and to forget the miseries and hardships, the tears and agonies, of two hundred years.

The old issues are again upon us. Is this a Nation? Have all citizens of the United States equal rights, without regard to race or color? Is it the duty of the General Government to protect its citizens? Can the Federal arm be palsied by the action or non-action of a State?

Another opportunity is given for the people of this country to take sides. According to my belief, the supreme thing for every man to do is to be absolutely true to himself. All consequences—whether rewards or punishments, whether honor and power, or disgrace and poverty, are as dreams undreamt. I have made my choice. I have taken my stand. Where my brain and heart go, there I will publicly and openly walk. Doing this, is my highest conception of duty. Being allowed to do this, is liberty.

If this is not now a free Government; if citizens cannot now be protected, regardless of race or color; if the three sacred amendments have been undermined by the Supreme Court—we must have another; and if that fails, then another; and we must neither stop, nor pause, until the Constitution shall become a perfect shield for every right, of every human being, beneath our flag.

TRIAL OF C. B. REYNOLDS FOR BLASPHEMY.

Address to the Jury.

** Within thirty miles of New York, in the city of Morristown, New Jersey, a man was put on trial yesterday for distributing a pamphlet argument against the infallibility of the Bible. The crime which the Indictment alleges is Blasphemy, for which the statutes of New Jersey provide a penalty of two hundred dollars fine, or twelve months imprisonment, or both. It is the first case of the kind ever tried in New Jersey, although the law dates back to colonial days. Charles B. Reynolds is the man on trial, and the State of New Jersey, through the Prosecuting Attorney of Morris County, is the prosecutor. The Circuit Court, Judge Francis Child, assisted by County Judges Munson and Quimby, sit upon the case. Prosecutor Wilder W. Cutler represents the State, and Robert G. Ingersoll appears for the defendant.*

Mr. Reynolds went to Boonton last summer to hold "free-thought" meetings. Announcing his purpose without any flourish, he secured a piece of ground, pitched a tent upon it, and invited the towns-people to come and hear him. It was understood that he had been a Methodist minister: that, finding it impossible to reconcile his mind to some of the historical parts of the Bible, and unable to accept it in its entirety as a moral guide, he left the church and set out to proclaim his conclusions. The churches in Boonton arrayed themselves against him. The Catholics and Methodists were especially active. Taking this opposition as an excuse, one element of the town invaded his tent. They pelted Reynolds with ancient eggs and vegetables. They chopped away the guy ropes of the tent and slashed the canvas with their knives. When the tent collapsed, the crowd rushed for the speaker to inflict further punishment by plunging him in the duck pond. They rummaged the wrecked tent, but in vain. He had made his way out in the confusion and was no more seen in Boonton.

But what he had said did not leave Boonton with him, and the pamphlets he had distributed were read by many who probably would not have looked between their covers had his visit been attended by no unusual circumstances. Boonton was still agitated up on the subject when Mr. Reynolds appeared in Morristown. This time he did not try to hold meetings, but had his pamphlets with him.

Mr. Reynolds appeared in Morristown with the pamphlets on October thirteenth. A Boonton delegation was there, clamoring for his indictment for blasphemy. The Grand Jury

heard of his visit and found two indictments against him; one for blasphemy at

Boonton and the second for blasphemy at Morristown. He furnished a five hundred dollar bond to appear for trial. On account of Colonel Ingersoll's throat troubles the case was adjourned several times through the winter and until Monday last, when it was set peremptorily for trial yesterday.

The public feeling excited at Boonton was overshadowed by that at Morristown and the neighboring region. For six months no topic was so interesting to the public as this. It monopolized attention at the stores, and became a fruitful subject of gossip in social and church circles. Under such circumstances it was to be expected that everybody who could spare the time would go to court yesterday. Lines of people began to climb the court house hill early in the morning. At the hour of opening court the room set apart for the trial was packed, and distaffs had to be stationed at the foot of the stairs to keep back those who were not early enough. From nine thirty to eleven o'clock the crowd inside talked of blasphemy in all the phases suggested by this case, and the outsiders waited patiently on the lawn and steps and along the dusty approaches to the gray building.

Eleven o'clock brought the train from New York and on it Colonel Ingersoll. His arrival at the court house with his clerk opened a new chapter in the day's gossip. The event was so absorbing indeed, that the crowd failed entirely to notice an elderly man wearing a black frock snit, a silk hat, with an army badge pinned to his coat, and looking like a merchant of means, who entered the court house a few minutes behind the famous lawyer. The last comer was the defendant.

All was ready for the case. Within five minutes five jurors were in the box. Then Colonel Ingersoll asked what were his rights about challenges. He was informed that he might make six peremptory challenges and must challenge before the jurors took their seats. The only disqualification the Court would recognize would be the inability of a juror to change his opinion in spite of evidence. Colonel Ingersoll induced the Court to let him examine the five in the box and promptly ejected two Presbyterians.

Thereafter Colonel Ingersoll examined every juror as soon as presented. He asked particularly about the nature of each man's prejudice, if he had one. To a juror who did not know that he understood the word, the Colonel replied: "I may not define the word legally, but my own idea is that a man is prejudiced when he has made up his mind on a case without knowing anything about it." This juror thought that he came under that category.

Presbyterians had a rather hard time with the examiner. After twenty men had been examined and the defence had exercised five of its peremptory challenges, the following were sworn as jurymen. * * * *

The jury having been sworn, Prosecutor Cutler announced that he would try only the indictment for the offence in

Morristown. He said that Reynolds was charged with distributing pamphlets containing matter claimed to be blasphemous under the law. If the charge could be proved he asked a verdict of guilty. Then he called sixteen townspeople, to most of whom Reynolds had given a pamphlet.

Colonel Ingersoll tried to get the Presbyterian witnesses to say that they had read the pamphlet. Not one of them admitted it. Further than this he attempted no cross-examination.

"I do not know that I shall have any witnesses one way or the other," Colonel Ingersoll said, rising to suggest a recess. "Perhaps after dinner I may feel like making a few remarks."

"There will be great disappointment if you do not" Judge Child responded, in a tone that meant a word for himself as well as for the other listeners. The spectators nodded approval to this sentiment. At 4:20 o'clock Col. Ingersoll having spoken since 2 o'clock, Judge Child adjourned court until this morning.

As Colonel Ingersoll left the room a throng pressed after him to offer congratulations. One old man said: "Colonel Ingersoll I am a Presbyterian pastor, but I must say that was the noblest speech in defence of liberty I ever heard! Your hand, sir; your hand,"—The Times, New York, May 20, 1887.

GENTLEMEN of the Jury: I regard this as one of the most important cases that can be submitted to a jury. It is not a case that involves a little property, neither is it one that involves simply the liberty of one man. It involves the freedom of speech, the intellectual liberty of every citizen of New Jersey.

The question to be tried by you is whether a man has the right to express his honest thought; and for that reason there can be no case of greater importance submitted to a jury. And it may be well enough for me, at the outset, to admit that there could be no case in which I could take a greater—a deeper interest. For my part, I would not wish to live in a world where I could not express my honest opinions. Men who deny to others the right of speech are not fit to live with honest men.

I deny the right of any man, of any number of men, of any church, of any State, to put a padlock on the lips—to make the tongue a convict. I passionately deny the right of the Herod of authority to kill the children of the brain. A man has a right to work with his hands, to plow the earth, to sow the seed, and that man has a right to reap the harvest. If we have not that right, then all are slaves except those who take these rights from their

fellow-men. If you have the right to work with your hands and to gather the harvest for yourself and your children, have you not a right to cultivate your brain? Have you not the right to read, to observe, to investigate—and when you have so read and so investigated, have you not the right to reap that field? And what is it to reap that field? It is simply to express what you have ascertained—simply to give your thoughts to your fellow-men.

If there is one subject in this world worthy of being discussed, worthy of being understood, it is the question of intellectual liberty. Without that, we are simply painted clay; without that, we are poor, miserable serfs and slaves. If you have not the right to express your opinions, if the defendant has not this right, then no man ever walked beneath the blue of heaven that had the right to express his thought. If others claim the right, where did they get it? How did they happen to have it, and how did you happen to be deprived of it? Where did a church or a nation get that right?

Are we not all children of the same Mother? Are we not all compelled to think, whether we wish to or not? Can you help thinking as you do? When you look out upon the woods, the fields,—when you look at the solemn splendors of the night—these things produce certain thoughts in your mind, and they produce them necessarily. No man can think as he desires. No man controls the action of his brain, any more than he controls the action of his heart. The blood pursues its old accustomed ways in spite of you. The eyes see, if you open them, in spite of you. The ears hear, if they are unstopped, without asking your permission. And the brain thinks in spite of you. Should you express that thought? Certainly you should, if others express theirs. You have exactly the same right. He who takes it from you is a robber.

For thousands of years people have been trying to force other people to think their way. Did they succeed? No. Will they succeed? No. Why? Because brute force is not an argument. You can stand with the lash over a man, or you can stand by the prison door, or beneath the gallows, or by the stake, and say to this man: "Recant or the lash descends, the prison door is locked upon you, the rope is put about your neck, or the torch is given to the fagot." And so the man recants. Is he convinced? Not at all. Have you produced a new argument? Not the slightest. And yet the ignorant bigots of this world have been trying for thousands of years to rule the minds of men by brute force. They have endeavored to improve the mind by torturing the

flesh—to spread religion with the sword and torch. They have tried to convince their brothers by putting their feet in iron boots, by putting fathers, mothers, patriots, philosophers and philanthropists in dungeons. And what has been the result? Are we any nearer thinking alike to-day than we were then?

No orthodox church ever had power that it did not endeavor to make people think its way by force and flame. And yet every church that ever was established commenced in the minority, and while it was in the minority advocated free speech—every one. John Calvin, the founder of the Presbyterian Church, while he lived in France, wrote a book on religious toleration in order to show that all men had an equal right to think; and yet that man afterward, clothed in a little authority, forgot all his sentiments about religious liberty, and had poor Servetus burned at the stake, for differing with him on a question that neither of them knew anything about. In the minority, Calvin advocated toleration—in the majority, he practiced murder.

I want you to understand what has been done in the world to force men to think alike. It seems to me that if there is some infinite being who wants us to think alike, he would have made us alike. Why did he not do so? Why did he make your brain so that you could not by any possibility be a Methodist? Why did he make yours so that you could not be a Catholic? And why did he make the brain of another so that he is an unbeliever—why the brain of another so that he became a Mohammedan—if he wanted us all to believe alike?

After all, may be Nature is good enough and grand enough and broad enough to give us the diversity born of liberty. May be, after all, it would not be best for us all to be just the same. What a stupid world, if everybody said yes to everything that everybody else might say.

The most important thing in this world is liberty. More important than food or clothes—more important than gold or houses or lands—more important than art or science—more important than all religions, is the liberty of man.

If civilization tends to do away with liberty, then I agree with Mr. Buckle that civilization is a curse. Gladly would I give up the splendors of the nineteenth century—gladly would I forget every invention that has leaped from the brain of man—gladly would I see all books ashes, all works of art

destroyed, all statues broken, and all the triumphs of the world lost—gladly, joyously would I go back to the abodes and dens of savagery, if that were necessary to preserve the inestimable gem of human liberty. So would every man who has a heart and brain.

How has the church in every age, when in authority, defended itself? Always by a statute against blasphemy, against argument, against free speech. And there never was such a statute that did not stain the book that it was in, and that did not certify to the savagery of the men who passed it. Never. By making a statute and by defining blasphemy, the church sought to prevent discussion—sought to prevent argument—sought to prevent a man giving his honest opinion. Certainly a tenet, a dogma, a doctrine, is safe when hedged about by a statute that prevents your speaking against it. In the silence of slavery it exists. It lives because lips are locked. It lives because men are slaves.

If I understand myself, I advocate only the doctrines that in my judgment will make this world happier and better. If I know myself, I advocate only those things that will make a man a better citizen, a better father, a kinder husband—that will make a woman a better wife, a better mother—doctrines that will fill every home with sunshine and with joy. And if I believed that anything I should say to-day would have any other possible tendency, I would stop. I am a believer in liberty. That is my religion—to give to every other human being every right that I claim for myself, and I grant to every other human being, not the right—because it is his right—but instead of granting I declare that it is his right, to attack every doctrine that I maintain, to answer every argument that I urge—in other words, he must have absolute freedom of speech.

I am a believer in what I call "intellectual hospitality." A man comes to your door. If you are a gentleman and he appears to be a good man, you receive him with a smile. You ask after his health. You say: "Take a chair; are you thirsty, are you hungry, will you not break bread with me?" That is what a hospitable, good man does—he does not set the dog on him. Now, how should we treat a new thought? I say that the brain should be hospitable and say to the new thought: "Come in; sit down; I want to cross-examine you; I want to find whether you are good or bad; if good, stay; if bad, I don't want to hurt you—probably you think you are all right,—but your room is better than your company, and I will take another idea in your

place." Why not? Can any man have the egotism to say that he has found it all out? No. Every man who has thought, knows not only how little he knows, but how little every other human being knows, and how ignorant, after all, the world must be.

There was a time in Europe when the Catholic Church had power. And I want it distinctly understood with this jury, that while I am opposed to Catholicism I am not opposed to Catholics—while I am opposed to Presbyterianism I am not opposed to Presbyterians. I do not fight people,—I fight ideas, I fight principles, and I never go into personalities. As I said, I do not hate Presbyterians, but Presbyterianism—that is, I am opposed to their doctrine. I do not hate a man that has the rheumatism—I hate the rheumatism when it has a man. So I attack certain principles because I think they are wrong, but I always want it understood that I have nothing against persons—nothing against victims.

There was a time when the Catholic Church was in power in the Old World. All at once there arose a man called Martin Luther, and what did the dear old Catholics think? "Oh," they said, "that man and his followers are going to hell." But they did not go. They were very good people. They may have been mistaken—I do not know. I think they were right in their opposition to Catholicism—but I have just as much objection to the religion they founded as I have to the church they left. But they thought they were right, and they made very good citizens, and it turned out that their differing from the Mother Church did not hurt them. And then after awhile they began to divide, and there arose Baptists; and the other gentlemen, who believed in this law that is now in New Jersey, began cutting off their ears so that they could hear better; they began putting them in prison so that they would have a chance to think. But the Baptists turned out to be good folks—first rate—good husbands, good fathers, good citizens. And in a little while, in England, the people turned to be Episcopalians, on account of a little war that Henry VIII. had with the Pope,—and I always sided with the Pope in that war—but it made no difference; and in a little while the Episcopalians turned out to be just about like other folks—no worse—and, as I know of, no better.

After awhile arose the Puritan, and the Episcopalian said, "We don't want anything of him—he is a bad man;" and they finally drove some of them away and they settled in New England, and there were among them

Quakers, than whom there never were better people on the earth—industrious, frugal, gentle, kind and loving—and yet these Puritans began hanging them. They said: "They are corrupting our children; if this thing goes on, everybody will believe in being kind and gentle and good, and what will become of us?" They were honest about it. So they went to cutting off ears. But the Quakers were good people and none of the prophecies were fulfilled.

In a little while there came some Unitarians and they said, "The world is going to ruin, sure;"—but the world went on as usual, and the Unitarians produced men like Channing—one of the tenderest spirits that ever lived—they produced men like Theodore Parker—one of the greatest brained and greatest hearted men produced upon this continent—a good man—and yet they thought he was a blasphemer—they even prayed for his death—on their bended knees they asked their God to take time to kill him. Well, they were mistaken. Honest, probably.

After awhile came the Universalists, who said: "God is good. He will not damn anybody always, just for a little mistake he made here. This is a very short life; the path we travel is very dim, and a great many shadows fall in the way, and if a man happens to stub his toe, God will not burn him forever." And then all the rest of the sects cried out, "Why, if you do away with hell, everybody will murder just for pastime—everybody will go to stealing just to enjoy themselves." But they did not. The Universalists were good people—just as good as any others. Most of them much better. None of the prophecies were fulfilled, and yet the differences existed.

And so we go on until we find people who do not believe the Bible at all, and when they say they do not, they come within this statute.

Now, gentlemen, I am going to try to show you, first, that this statute under which Mr. Reynolds is being tried is unconstitutional—that it is not in harmony with the constitution of New Jersey; and I am going to try to show you in addition to that, that it was passed hundreds of years ago, by men who believed it was right to burn heretics and tie Quakers to the end of a cart; men and even modest women—stripped naked—and lash them from town to town. They were the men who originally passed that statute, and I want to show you that it has slept all this time, and I am informed—I do not know how it is—that there never has been a prosecution in this State for blasphemy.

Now, gentlemen, what is blasphemy? Of course nobody knows what it is, unless he takes into consideration where he is. What is blasphemy in one country would be a religious exhortation, in another. It is owing to where you are and who is in authority. And let me call your attention to the impudence and bigotry of the American Christians. We send missionaries to other countries. What for? To tell them that their religion is false, that their gods are myths and monsters, that their saviors and apostles were impostors, and that our religion is true. You send a man from Morristown—a Presbyterian, over to Turkey. He goes there, and he tells the Mohammedans—and he has it in a pamphlet and he distributes it—that the Koran is a lie, that Mohammed was not a prophet of God, that the angel Gabriel is not so large that it is four hundred leagues between his eyes—that it is all a mistake—there never was an angel so large as that. Then what would the Turks do? Suppose the Turks had a law like this statute in New Jersey. They would put the Morristown missionary in jail, and he would send home word, and then what would the people of Morristown say? Honestly—what do you think they would say? They would say, "Why, look at those poor, heathen wretches. We sent a man over there armed with the truth, and yet they were so blinded by their idolatrous religion, so steeped in superstition, that they actually put that man in prison." Gentlemen, does not that show the need of more missionaries? I would say, yes.

Now, let us turn the tables. A gentleman comes from Turkey to Morristown. He has got a pamphlet. He says, "The Koran is the inspired book, Mohammed is the real prophet, your Bible is false and your Savior simply a myth." Thereupon the Morristown people put him in jail. Then what would the Turks say? They would say, "Morristown needs more missionaries," and I would agree with them.

In other words, what we want is intellectual hospitality. Let the world talk. And see how foolish this trial is. I have no doubt that the prosecuting attorney-agrees with me to-day, that whether this law is good or bad, this trial should not have taken place. And let me tell you why. Here comes a man into your town and circulates a pamphlet. Now, if they had just kept still, very few would ever have heard of it. That would have been the end. The diameter of the echo would have been a few thousand feet. But in order to stop the discussion of that question, they indicted this man, and that question has been more discussed in this country since this indictment than all the discussions put together since New Jersey was first granted to

Charles II.'s dearest brother James, the Duke of York.. And what else? A trial here that is to be reported and published all over the United States, a trial that will give Mr. Reynolds a congregation of fifty millions of people. And yet this was done for the purpose of stopping a discussion of this subject. I want to show you that the thing is in itself almost idiotic—that it defeats itself, and that you cannot crush out these things by force. Not only so, but Mr. Reynolds has the right to be defended, and his counsel has the right to give his opinions on this subject.

Suppose that we put Mr. Reynolds in jail. The argument has not been sent to jail. That is still going the rounds, free as the winds. Suppose you keep him at hard labor a year—all the time he is there, hundreds and thousands of people will be reading some account, or some fragment, of this trial. There is the trouble. If you could only imprison a thought, then intellectual tyranny might succeed. If you could only take an argument and put a striped suit of clothes on it—if you could only take a good, splendid, shining fact and lock it up in some dungeon of ignorance, so that its light would never again enter the mind of man, then you might succeed in stopping human progress. Otherwise, no.

Let us see about this particular statute. In the first place, the State has a constitution. That constitution is a rule, a limitation to the power of the Legislature, and a certain breastwork for the protection of private rights, and the constitution says to this sea of passions and prejudices: "Thus far and no farther." The constitution says to each individual: "This shall panoply you; this is your complete coat of mail; this shall defend your rights." And it is usual in this country to make as a part of each constitution several general declarations—called the Bill of Rights. So I find that in the old constitution of New Jersey, which was adopted in the year of grace 1776, although the people at that time were not educated as they are now—the spirit of the Revolution at that time not having permeated all classes of society—a declaration in favor of religious freedom. The people were on the eve of a revolution. This constitution was adopted on the third day of July, 1776, one day before the immortal Declaration of Independence. Now, what do we find in this—and we have got to go by this light, by this torch, when we examine the statute.

I find in that constitution, in its Eighteenth Section, this: "No person shall ever in this State be deprived of the inestimable privilege of worshipping

God, in a manner agreeable to the dictates of his own conscience; nor under any pretence whatever be compelled to attend any place of worship contrary to his own faith and judgment; nor shall he be obliged to pay tithes, taxes, or any other rates for the purpose of building or repairing any church or churches, contrary to what he believes to be true." That was a very great and splendid step. It was the divorce of church and state. It no longer allowed the State to levy taxes for the support of a particular religion, and it said to every citizen of New Jersey: All that you give for that purpose must be voluntarily given, and the State will not compel you to pay for the maintenance of a church in which you do not believe. So far so good.

The next paragraph was not so good. "There shall be no establishment of any one religious sect in this State in preference to another, and no Protestant inhabitants of this State shall be denied the enjoyment of any civil right merely on account of his religious principles; but all persons professing a belief in the faith of any Protestant sect, who shall demean themselves peaceably, shall be capable of being elected to any office of profit or trust, and shall fully and freely enjoy every privilege and immunity enjoyed by other citizens."

What became of the Catholics under that clause, I do not know—whether they had any right to be elected to office or not under this Act. But in 1844, the State having grown civilized in the meantime, another constitution was adopted. The word Protestant was then left out. There was to be no establishment of one religion over another. But Protestantism did not render a man capable of being elected to office any more than Catholicism, and nothing is said about any religious belief whatever. So far, so good.

"No religious test shall be required as a qualification for any office of public trust. No person shall be denied the enjoyment of any civil right on account of his religious principles."

That is a very broad and splendid provision. "No person shall be denied any civil right on account of his religious principles." That was copied from the Virginia constitution, and that clause in the Virginia constitution was written by Thomas Jefferson, and under that clause men were entitled to give their testimony in the courts of Virginia whether they believed in any religion or not, in any bible or not, or in any god or not.

That same clause was afterward adopted by the State of Illinois, also by many other States, and wherever that clause is, no citizen can be denied any

civil right on account of his religious principles. It is a broad and generous clause. This statute, under which this indictment is drawn, is not in accordance with the spirit of that splendid sentiment. Under that clause, no man can be deprived of any civil right on account of his religious principles, or on account of his belief. And yet, on account of this miserable, this antiquated, this barbarous and savage statute, the same man who cannot be denied any political or civil right, can be sent to the penitentiary as a common felon for simply expressing his honest thought. And before I get through I hope to convince you that this statute is unconstitutional.

But we will go another step: "Every person may freely speak, write, or publish his sentiments on all subjects, being responsible for the abuse of that right."

That is in the constitution of nearly every State in the Union, and the intention of that is to cover slanderous words—to cover a case where a man under pretence of enjoying the freedom of speech falsely assails or accuses his neighbor. Of course he should be held responsible for that abuse.

Then follows the great clause in the constitution of 1844—more important than any other clause in that instrument—a clause that shines in that constitution like a star at night.—

"No law shall be passed to restrain or abridge the liberty of speech or of the press."

Can anything be plainer—anything be more forcibly stated?

"No law shall be passed to abridge the liberty of speech."

Now, while you are considering this statute, I want you to keep in mind this other statement:

"No law shall be passed to restrain or abridge the liberty of speech or of the press."

And right here there is another thing I want to call your attention to. There is a constitution higher than any statute. There is a law higher than any constitution. It is the law of the human conscience, and no man who is a man will defile and pollute his conscience at the bidding of any legislature. Above all things, one should maintain his self-respect, and there is but one way to do that, and that is to live in accordance with your highest ideal.

There is a law higher than men can make. The facts as they exist in this poor world—the absolute consequences of certain acts—they are above all. And this higher law is the breath of progress, the very outstretched wings of civilization, under which we enjoy the freedom we have. Keep that in your minds. There never was a legislature great enough—there never was a constitution sacred enough, to compel a civilized man to stand between a black man and his liberty. There never was a constitution great enough to make me stand between any human being and his right to express his honest thoughts. Such a constitution is an insult to the human soul, and I would care no more for it than I would for the growl of a wild beast. But we are not driven to that necessity here. This constitution is in accord with the highest and noblest aspirations of the heart—"No law shall be passed to restrain or abridge the liberty of speech."

Now let us come to this old law—this law that was asleep for a hundred years before this constitution was adopted—this law coiled like a snake beneath the foundations of the Government—this law, cowardly, dastardly—this law passed by wretches who were afraid: to discuss—this law passed by men who could not, and who knew they could not, defend their creed—and so they said: "Give us the sword of the State and we will cleave the heretic down." And this law was made to control the minority. When the Catholics were in power they visited that law upon their opponents. When the Episcopalians were in power, they tortured and burned the poor Catholic who had scoffed and who had denied the truth of their religion. Whoever was in power used that, and whoever was out of power cursed that—and yet, the moment he got in power he used it: The people became civilized—but that law was on the statute book. It simply remained. There it was, sound asleep—its lips drawn over its long and cruel teeth. Nobody savage enough to waken it. And it slept on, and New Jersey has flourished. Men have done well. You have had average health in this country. Nobody roused the statute until the defendant in this case went to Boonton, and there made a speech in which he gave his honest thought, and the people not having an argument handy, threw stones. Thereupon Mr. Reynolds, the defendant, published a pamphlet on Blasphemy and in it gave a photograph of the Boonton Christians. That is his offence. Now let us read this infamous statute:

"If any person shall willfully blaspheme the holy name of God by denying, cursing, or contumeliously reproaching his being"—

I want to say right here—many a man has cursed the God of another man. The Catholics have cursed the God of the Protestant. The Presbyterians have cursed the God of the Catholics—charged them with idolatry—cursed their images, laughed at their ceremonies. And these compliments have been interchanged between all the religions of the world. But I say here to-day that no man, unless a raving maniac, ever cursed the God in whom he believed. No man, no human being, has ever lived who cursed his own idea of God. He always curses the idea that somebody else entertains. No human being ever yet cursed what he believed to be infinite wisdom and infinite goodness—and you know it. Every man on this jury knows that. He feels that that must be an absolute certainty. Then what have they cursed? Some God they did not believe in—that is all. And has a man that right? I say, yes. He has a right to give his opinion of Jupiter, and there is nobody in Morristown who will deny him that right. But several thousands years ago it would have been very dangerous for him to have cursed Jupiter, and yet Jupiter is just as powerful now as he was then, but the Roman people are not powerful, and that is all there was to Jupiter—the Roman people.

So there was a time when you could have cursed Zeus, the god of the Greeks, and like Socrates, they would have compelled you to drink hemlock. Yet now everybody can curse this god. Why? Is the god dead? No. He is just as alive as he ever was. Then what has happened? The Greeks have passed away. That is all. So in all of our churches here. Whenever a church is in the minority it clamors for free speech. When it gets in the majority, no. I do not believe the history of the world will show that any orthodox church when in the majority ever had the courage to face the free lips of the world. It sends for a constable. And is it not wonderful that they should do this when they preach the gospel of universal forgiveness—when they say, "if a man strike you on one cheek turn to him the other also—but if he laughs at your religion, put him in the penitentiary"? Is that the doctrine? Is that the law?

Now, read this law. Do you know as I read it I can almost hear John Calvin laugh in his grave. That would have been a delight to him. It is written exactly as he would have written it. There never was an inquisitor who would not have read that law with a malicious smile. The Christians who brought the fagots and ran with all their might to be at the burning, would have enjoyed that law. You know that when they used to burn people

for having said something against religion, they used to cut their tongues out before they burned them. Why? For fear that if they did not, the poor, burning victims might say something that would scandalize the Christian gentlemen who were building the fire. All these persons would have been delighted with this law.

Let us read a little further:

"—*Or by cursing or contumeliously reproaching Jesus Christ.*"

Why, whoever did, since the poor man, or the poor God, was crucified? How did they come to crucify him? Because they did not believe in free speech in Jerusalem. How else? Because there was a law against blasphemy in Jerusalem—a law exactly like this. Just think of it. Oh, I tell you we have passed too many mile-stones on the shining road of human progress to turn back and wallow in that blood, in that mire.

No: Some men have said that he was simply a man. Some believed that he was actually a God. Others believed that he was not only a man, but that he stood as the representative of infinite love and wisdom. No man ever said one word against that Being for saying "Do unto others as ye would that others should do unto you." No man ever raised his voice against him because he said, "Blessed are the merciful, for they shall obtain mercy." And are they the "merciful" who when some man endeavors to answer their argument, put him in the penitentiary? No. The trouble is, the priests—the trouble is, the ministers—the trouble is, the people whose business it was to tell the meaning of these things, quarreled' with each other, and they put meanings upon human expressions by malice, meanings that the words will not bear. And let me be just to them. I believe that nearly all that has been done in this world has been honestly done. I believe that the poor savage who kneels down and prays to a stuffed snake—prays that his little children may recover from the fever—is honest, and it seems to me that a good God would answer his prayer if he could, if it was in accordance with wisdom, because the poor savage was doing the best he could, and no one can do any better than that.

So I believe that the Presbyterians who used to think that nearly everybody was going to hell, said exactly what they believed. They were honest about it, and I would not send one of them to jail—would never think of such a thing—even if he called the unbelievers of the world "wretches," "dogs," and "devils." What would I do? I would simply answer

him—that is all; answer him kindly. I might laugh at him a little, but I would answer him in kindness.

So these divisions of the human mind are natural. They are a necessity. Do you know that all the mechanics that ever lived—take the best ones—cannot make two clocks that will run exactly alike one hour, one minute? They cannot make two pendulums that will beat in exactly the same time, one beat. If you cannot do that, how are you going to make hundreds, thousands, billions of people, each with a different quality and quantity of brain, each clad in a robe of living, quivering flesh, and each driven by passion's storm over the wild sea of life—how are you going to make them all think alike? This is the impossible thing that Christian ignorance and bigotry and malice have been trying to do. This was the object of the Inquisition and of the foolish Legislature that passed this statute.

Let me read you another line from this ignorant statute:—

"Or the Christian religion."

Well, what is the Christian religion? "If you scoff at the Christian religion—if you curse the Christian religion." Well what is it? Gentlemen, you hear Presbyterians every day attack the Catholic Church. Is that the Christian religion? The Catholic believes it is the Christian religion, and you have to admit that it is the oldest one, and then the Catholics turn round and scoff at the Protestants. Is that the Christian religion? If so, every Christian religion has been cursed by every other Christian religion. Is not that an absurd and foolish statute?

I say that the Catholic has the right to attack the Presbyterian and tell him, "Your doctrine is all wrong." I think he has the right to say to him, "You are leading thousands to hell." If he believes it, he not only has the right to say it, but it is his duty to say it; and if the Presbyterian really believes the Catholics are all going to the devil, it is his duty to say so. Why not? I will never have any religion that I cannot defend—that is, that I do not believe I can defend. I may be mistaken, because no man is absolutely certain that he knows. We all understand that. Every one is liable to be mistaken. The horizon of each individual is very narrow, and in his poor sky the stars are few and very small.

"Or the Word of God—"

What is that?

"The canonical Scriptures contained in the books of the Old and New Testaments."

Now, what has a man the right to say about that? Has he the right to show that the book of Revelation got into the canon by one vote, and one only? Has he the right to show that they passed in convention upon what books they would put in and what they would not? Has he the right to show that there were twenty-eight books called "The Books of the Hebrew's"? Has he the right to show that? Has he the right to show that Martin Luther said he did not believe there was one solitary word of gospel in the Epistle to the Romans? Has he the right to show that some of these books were not written till nearly two hundred years afterward? Has he the right to say it, if he believes it? I do not say whether this is true or not, but has a man the right to say it if he believes it?

Suppose I should read the Bible all through right here in Morristown, and after I got through I should make up my mind that it is not a true book—what ought I to say? Ought I to clap my hand over my mouth and start for another State, and the minute I got over the line say, "It is not true, It is not true"? Or, ought I to have the right and privilege of saying right here in New Jersey, "My fellow-citizens, I have read the book—I do not believe that it is the word of God"? Suppose I read it and think it is true, then I am bound to say so. If I should go to Turkey and read the Koran and make up my mind that it is false, you would all say that I was a miserable poltroon if I did not say so.

By force you can make hypocrites—men who will agree with you from the teeth out, and in their hearts hate you. We want no more hypocrites. We have enough in every community. And how are you going to keep from having more? By having the air free,—by wiping from your statute books such miserable and infamous laws as this.

"The Holy Scriptures."

Are they holy? Must a man be honest? Has he the right to be sincere? There are thousands of things in the Scriptures that everybody believes. Everybody believes the Scriptures are right when they say, "Thou shalt not steal"—everybody. And when they say "Give good measure, heaped up and running over," everybody says, "Good!" So when they say "Love your neighbor," everybody applauds that. Suppose a man believes that, and practices it, does it make any difference whether he believes in the flood or

not? Is that of any importance? Whether a man built an ark or not—does that make the slightest difference? A man might deny it and yet be a very good man. Another might believe it and be a very mean man. Could it now, by any possibility, make a man a good father, a good husband, a good citizen? Does it make any difference whether you believe it or not? Does it make any difference whether or not you believe that a man was going through town, and his hair was a little short, like mine, and some little children laughed at him, and thereupon two bears from the woods came down and tore to pieces about forty of these children? Is it necessary to believe that? Suppose a man should say, "I guess that is a mistake; they did not copy that right; I guess the man that reported that was a little dull of hearing and did not get the story exactly right." Any harm in saying that? Is a man to be sent to the penitentiary for that? Can you imagine an infinitely good God sending a man to hell because he did not believe the bear story?

So I say if you believe the Bible, say so; if you do not believe it, say so. And here is the vital mistake, I might almost say, in Protestantism itself. The Protestants when they fought the Catholics said: "Read the Bible for yourselves—stop taking it from your priests—read the sacred volume with your own eyes; it is a revelation from God to his children, and you are the children." And then they said: "If after you read it you do not believe it, and you say anything against it, we will put you in jail, and God will put you in hell." That is a fine position to get a man in. It is like a man who invited his neighbor to come and look at his pictures, saying: "They are the finest in the place, and I want your candid opinion. A man who looked at them the other day said they were daubs, and I kicked him downstairs—now I want your candid judgment." So the Protestant Church says to a man, "This Bible is a message from your Father,—your Father in heaven. Read it. Judge for yourself. But if after you have read it you say it is not true, I will put you in the penitentiary for one year."

The Catholic Church has a little more sense about that—at least more logic. It says: "This Bible is not given to everybody. It is given to the world, to be sure, but it must be interpreted by the church. God would not give a Bible to the world unless he also appointed some one, some organization, to tell the world what it means." They said: "We do not want the world filled with interpretations, and all the interpreters fighting each other." And the Protestant has gone to the infinite absurdity of saying: "Judge for yourself,

but if you judge wrong you will go to the penitentiary here and to hell hereafter."

Now, let us see further:

"Or by profane scoffing expose them to ridicule"

Think of such a law as that, passed under a constitution that says, "No law shall abridge the liberty of speech." But you must not ridicule the Scriptures. Did anybody ever dream of passing a law to protect Shakespeare from being laughed at? Did anybody ever think of such a thing? Did anybody ever want any legislative enactment to keep people from holding Robert Burns in contempt? The songs of Burns will be sung as long as there is love in the human heart. Do we need to protect him from ridicule by a statute? Does he need assistance from New Jersey? Is any statute needed to keep Euclid from being laughed at in this neighborhood? And is it possible that a work written by an infinite Being has to be protected by a legislature? Is it possible that a book cannot be written by a God so that it will not excite the laughter of the human race?

Why, gentlemen, humor is one of the most valuable things in the human brain. It is the torch of the mind—it sheds light. Humor is the readiest test of truth—of the natural, of the sensible—and when you take from a man all sense of humor, there will only be enough left to make a bigot. Teach this man who has no humor—no sense of the absurd—the Presbyterian creed, fill his darkened brain with superstition and his heart with hatred—then frighten him with the threat of hell, and he will be ready to vote for that statute. Such men made that law.

Let us read another clause:—

"And every person so offending shall, on conviction, be fined nor exceeding two hundred dollars, or imprisoned at hard labor not exceeding twelve months, or both."

I want you to remember that this statute was passed in England hundreds of years ago—just in that language. The punishment, however, has been somewhat changed. In the good old days when the king sat on the throne—in the good old days when the altar was the right-bower of the throne—then, instead of saying: "Fined two hundred dollars and imprisoned one year," it was: "All his goods shall be confiscated; his tongue shall be bored with a hot iron, and upon his forehead he shall be branded with the letter B; and for the second offence he shall suffer death by burning." Those were the

good old days when people maintained the orthodox religion in all its purity and in all its ferocity.

The first question for you, gentlemen, to decide in this case is: Is this statute constitutional? Is this statute in harmony with, the part of the constitution of 1844 which says: "The liberty of speech shall not be abridged"? That is for you to say. Is this law constitutional, or is it simply an old statute that fell asleep, that was forgotten, that people simply failed to repeal? I believe I can convince you, if you will think a moment, that our fathers never intended to establish a government like that. When they fought for what they believed to be religious liberty—when they fought for what they believed to be liberty of speech, they believed that all such statutes would be wiped from the statute books of all the States.

Let me tell you another reason why I believe this. We have in this country naturalization laws. People may come here irrespective of their religion. They must simply swear allegiance to this country—they must forswear allegiance to every other potentate, prince and power—but they do not have to change their religion. A Hindoo may become a citizen of the United States, and the Constitution of the United States, like the constitution of New Jersey, guarantees religious liberty. That Hindoo believes in a God—in a God that no Christian does believe in. He believes in a sacred book that every Christian looks upon as a collection of falsehoods. He believes, too, in a Savior—in Buddha. Now, I ask you,—when that man comes here and becomes a citizen—when the Constitution is about him, above him—has he the right to give his ideas about his religion? Has he the right to say in New Jersey: "There is no God except the Supreme Brahm—there is no Savior except Buddha, the Illuminated, Buddha the Blest"? I say that he has that right—and you have no right, because in addition to that he says, "You are mistaken; your God is not God; your Bible is not true, and your religion is a mistake," to abridge his liberty of speech. He has the right to say it, and if he has the right to say it, I insist before this Court and before this jury, that he has the right to give his reasons for saying it; and in giving those reasons, in maintaining his side, he has the right, not simply to appeal to history, not simply to the masonry of logic, but he has the right to shoot the arrows of wit, and to use the smile of ridicule. Anything that can be laughed out of this world ought not to stay in it.

So the Persian—the believer in Zoroaster, in the spirits of Good and Evil, and that the spirit of Evil will finally triumph forever—if that is his religion—has the right to state it, and the right to give his reasons for his belief. How infinitely preposterous for you, one of the States of this Union, to invite a Persian or a Hindoo to come to your shores. You do not ask him to renounce his God. You ask him to renounce the Shah. Then when he becomes a citizen, having the rights of every other citizen, he has the right to defend his religion and to denounce yours.

There is another thing. What was the spirit of our Government at that time? You must look at the leading men. Who were they? What were their opinions? Were most of them as guilty of blasphemy as is the defendant in this case? Thomas Jefferson—and there is, in my judgment, only one name on the page of American history greater than his—only one name for which I have a greater and tenderer reverence—and that is Abraham Lincoln, because of all men who ever lived and had power, he was the most merciful. And that is the way to test a man. How does he use power? Does he want to crush his fellow citizens? Does he like to lock somebody up in the penitentiary because he has the power of the moment? Does he wish to use it as a despot, or as a philanthropist—like a devil, or like a man? Thomas Jefferson entertained about the same views entertained by the defendant in this case, and he was made President of the United States. He was the author of the Declaration of Independence, founder of the University of Virginia, writer of that clause in the constitution of that State, that made all the citizens equal before the law. And when I come to the very sentences here charged as blasphemy, I will show you that these were the common sentiments of thousands of very great, of very intellectual and admirable men.

I have no time, and it may be this is not the place and the occasion, to call your attention to the infinite harm that has been done in almost every religious nation by statutes such as this. Where that statute is, liberty can not be; and if this statute is enforced by this jury and by this Court, and if it is afterwards carried out, and if it could be carried out in the States of this Union, there would be an end of all intellectual progress. We would go back to the Dark Ages. Every man's mind, upon these subjects at least, would become a stagnant pool, covered with the scum of prejudice and meanness.

And wherever such laws have been enforced, have the people been friends? Here we are to-day in this blessed air—here amid these happy fields. Can we imagine, with these surroundings, that a man for having been found with a crucifix in his poor little home, had been taken from his wife and children and burned—burned by Protestants? You cannot conceive of such a thing now. Neither can you conceive that there was a time when Catholics found some poor Protestant contradicting one of the dogmas of the church, and took that poor honest wretch—while his wife wept—while his children clung to his hands—to the public square, drove a stake in the ground, put a chain or two about him, lighted the fagots, and let the wife whom he loved and his little children see the flames climb around his limbs—you cannot imagine that any such infamy was ever practiced. And yet I tell you that the same spirit made this detestable, infamous, devilish statute.

You can hardly imagine that there was a time when the same kind of men that made this law said to another man: "You say this world is round?" "Yes, sir; I think it is, because I have seen its shadow on the moon." "You have?"—Now, can you imagine a society, outside of hyenas and boa-constrictors, that would take that man, put him in the penitentiary, in a dungeon, turn the key upon him, and let his name be blotted from the book of human life? Years afterward some explorer amid ruins finds a few bones. The same spirit that did that, made this statute—the same spirit that did that, went before the grand jury in this case—exactly. Give the men that had this man indicted, the power, and I would not want to live in that particular part of the country. I would not willingly live with such men. I would go somewhere else, where the air is free, where I could speak my sentiments to my wife, to my children, and to my neighbors.

Now, this persecution differs only in degree from the infamies of the olden times. What does it mean? It means that the State of New Jersey has all the light it wants. And what does that mean? It means that the State of New Jersey is absolutely infallible—that it has got its growth and does not propose to grow any more. New Jersey knows enough, and it will send teachers to the penitentiary.

It is hardly possible that this State has accomplished all that it is ever going to accomplish. Religions are for a day. They are the clouds. Humanity is the eternal blue. Religions are the waves of the sea. These waves depend upon the force and direction of the wind—that is to say, of passion; but

Humanity is the great sea. And so our religions change from day to day, and it is a blessed thing that they do. Why? Because we grow, and we are getting a little more civilized every day,—and any man that is not willing to let another man express his opinion, is not a civilized man, and you know it. Any man that does not give to everybody else the rights he claims for himself, is not an honest man.

Here is a man who says, "I am going to join the Methodist Church." What right has he? Just the same right to join it that I have not to join it—no more, no less. But if you are a Methodist and I am not, it simply proves that you do not agree with me, and that I do not agree with you—that is all. Another man is a Catholic. He was born a Catholic, or is convinced that Catholicism is right. That is his business, and any man that would persecute him on that account, is a poor barbarian—a savage; any man that would abuse him on that account, is a barbarian—a savage.

Then I take the next step. A man does not wish to belong to any church. How are you going to judge him? Judge him by the way he treats his wife, his children, his neighbors. Does he pay his debts? Does he tell the truth? Does he help the poor? Has he got a heart that melts when he hears grief's story? That is the way to judge him. I do not care what he thinks about the bears, or the flood, about bibles or gods. When some poor mother is found wandering in the street with a babe at her breast, does he quote Scripture, or hunt for his pocket-book? That is the way to judge. And suppose he does not believe in any bible whatever? If Christianity is true, that is his misfortune, and everybody should pity the poor wretch that is going down the hill. Why kick him? You will get your revenge on him through all eternity—is not that enough?

So I say, let us judge each other by our actions, not by theories, not by what we happen to believe—because that depends very much on where we were born.

If you had been born in Turkey, you probably would have been a Mohammedan. If I had been born among the Hindoos, I might have been a Buddhist—I can't tell. If I had been raised in Scotland, on oatmeal, I might have been a Covenanter—nobody knows. If I had lived in Ireland, and seen my poor wife and children driven into the street, I think I might have been a Home-ruler—no doubt of it. You see it depends on where you were born—much depends on our surroundings.

Of course, there are men born in Turkey who are not Mohammedans, and there are men born in this country who are not Christians—Methodists, Unitarians, or Catholics, plenty of them, who are unbelievers—plenty of them who deny the truth of the Scriptures—plenty of them who say:

"I know not whether there be a God or not." Well, it is a thousand times better to say that honestly than to say dishonestly that you believe in God.

If you want to know the opinion of your neighbor, you want his honest opinion. You do not want to be deceived. You do not want to talk with a hypocrite. You want to get straight at his honest mind—and then you are going to judge him, not by what he says but by what he does. It is very easy to sail along with the majority—easy to sail the way the boats are going—easy to float with the stream; but when you come to swim against the tide, with the men on the shore throwing rocks at you, you will get a good deal of exercise in this world.

And do you know that we ought to feel under the greatest obligation to men who have fought the prevailing notions of their day? There is not a Presbyterian in Morristown that does not hold up for admiration the man that carried the flag of the Presbyterians when they were in the minority—not one. There is not a Methodist in this State who does not admire John and Charles Wesley and Whitefield, who carried the banner of that new and despised sect when it was in the minority. They glory in them because they braved public opinion, because they dared to oppose idiotic, barbarous and savage statutes like this. And there is not a Universalist that does not worship dear old Hosea Ballou—I love him myself—because he said to the Presbyterian minister: "You are going around trying to keep people out of hell, and I am going around trying to keep hell out of the people." Every Universalist admires him and loves him because when despised and railed at and spit upon, he stood firm, a patient witness for the eternal mercy of God. And there is not a solitary Protestant who does not honor Martin Luther—who does not honor the Covenanters in poor Scotland, and that poor girl who was tied out on the sand of the sea by Episcopalians, and kept there till the rising tide drowned her, and all she had to do to save her life was to say, "God save the king," but she would not say it without the addition of the words, "If it be God's will." No one, who is not a miserable, contemptible wretch, can fail to stand in admiration before such courage,

such self-denial—such heroism. No matter what the attitude of your body may be, your soul falls on its knees before such men and such women.

Let us take another step. Where would we have been if authority had always triumphed? Where would we have been if such statutes had always been carried out? We have now a science called astronomy. That science has done more to enlarge the horizon of human thought than all things else. We now live in an infinite universe. We know that the sun is a million times larger than our earth, and we know that there are other great luminaries millions of times larger than our sun. We know that there are planets so far away that light, traveling at the rate of one hundred and eighty-five thousand miles a second, requires fifteen thousand years to reach this grain of sand, this tear, we call the earth—and we now know that all the fields of space are sown thick with constellations. If that statute had been enforced, that science would not now be the property of the human mind. That science is contrary to the Bible, and for asserting the truth you become a criminal. For what sum of money, for what amount of wealth, would the world have the science of astronomy expunged from the brain of man? We learned the story of the stars in spite of that statute.

The first men who said the world was round were scourged for scoffing at the Scriptures. And even Martin Luther, speaking of one of the greatest men that ever lived, said: "Does he think with his little lever to overturn the Universe of God?" Martin Luther insisted that such men ought to be trampled under foot. If that statute had been carried into effect, Galileo would have been impossible. Kepler, the discoverer of the three laws, would have died with the great secret locked in his brain, and mankind would have been left ignorant, superstitious, and besotted. And what else? If that statute had been carried out, the world would have been deprived of the philosophy of Spinoza; of the philosophy, of the literature, of the wit and wisdom, the justice and mercy of Voltaire, the greatest Frenchman that ever drew the breath of life—the man who by his mighty pen abolished torture in a nation, and helped to civilize a world.

If that statute had been enforced, nearly all the books that enrich the libraries of the world could not have been written. If that statute had been enforced, Humboldt could not have delivered the lectures now known as "The Cosmos." If that statute had been enforced, Charles Darwin would not have been allowed to give to the world his discoveries that have been of

more benefit to mankind than all the sermons ever uttered. In England they have placed his sacred dust in the great Abbey. If he had lived in New Jersey, and this statute could have been enforced, he would have lived one year at least in your penitentiary. Why? That man went so far as not simply to deny the truth of your Bible, but absolutely to deny the existence of your God. Was he a good man? Yes, one of the noblest and greatest of men. Humboldt, the greatest German who ever lived, was of the same opinion.

And so I might go on with the great men of to-day. Who are the men who are leading the race upward and shedding light in the intellectual world? They are the men declared by that statute to be criminals. Mr. Spencer could not publish his books in the State of New Jersey. He would be arrested, tried, and imprisoned; and yet that man has added to the intellectual wealth of the world.

So with Huxley, so with Tyndall, so with Helmholtz—so with the greatest thinkers and greatest writers of modern times.

You may not agree with these men—and what does that prove? It simply proves that they do not agree with you—that is all. Who is to blame? I do not know. They may be wrong, and you may be right; but if they had the power, and put you in the penitentiary simply because you differed with them, they would be savages; and if you have the power and imprison men because they differ from you, why then, of course, you are savages.

No; I believe in intellectual hospitality. I love men that have a little horizon to their minds—a little sky, a little scope. I hate anything that is narrow and pinched and withered and mean and crawling, and that is willing to live on dust. I believe in creating such an atmosphere that things will burst into blossom. I believe in good will, good health, good fellowship, good feeling—and if there is any God on the earth, or in heaven, let us hope that he will be generous and grand. Do you not see what the effect will be? I am not cursing you because you are a Methodist, and not damning you because you are a Catholic, or because you are an Infidel—a good man is more than all of these. The grandest of all things is to be in the highest and noblest sense a man.

Now let us see the frightful things that this man, the defendant in this case, has done. Let me read the charges against him as set out in this indictment.

I shall insist that this statute does not cover any publication—that it covers simply speech—not in writing, not in book or pamphlet. Let us see:

"This Bible describes God as so loving that he drowned the whole world in his mad fury."

Well, the great question about that is, is it true? Does the Bible describe God as having drowned the whole world with the exception of eight people? Does it, or does it not? I do not know whether there is anybody in this county who has really read the Bible, but I believe the story of the flood is there. It does say that God destroyed all flesh, and that he did so because he was angry. He says so, himself, if the Bible be true.

The defendant has simply repeated what is in the Bible. The Bible says that God is loving, and says that he drowned the world, and that he was angry. Is it blasphemy to quote from the "Sacred Scriptures"?

"Because it was so much worse than he, knowing all things, ever supposed it could be."

Well, the Bible does say that he repented having made man. Now, is there any blasphemy in saying that the Bible is true? That is the only question. It is a fact that God, according to the Bible, did drown nearly everybody. If God knows all things, he must have known at the time he made them that he was going to drown them. Is it likely that a being of infinite wisdom would deliberately do what he knew he must undo? Is it blasphemy to ask that question? Have you a right to think about it at all? If you have, you have the right to tell somebody what you think—if not, you have no right to discuss it, no right to think about it. All you have to do is to read it and believe it—to open your mouth like a young robin, and swallow—worms or shingle nails—no matter which.

The defendant further blasphemed and said that:—

"An all-wise, unchangeable God, who got out of patience with a world which was just what his own stupid blundering had made it, knew no better way out of the muddle than to destroy it by drowning!"

Is that true? Was not the world exactly as God made it? Certainly. Did he not, if the Bible is true, drown the people? He did. Did he know he would drown them when he made them? He did. Did he know they ought to be drowned when they were made? He did. Where then, is the blasphemy in saying so? There is not a minister in this world who could explain it—who

would be permitted to explain it—under this statute. And yet you would arrest this man and put him in the penitentiary. But after you lock him in the cell, there remains the question still. Is it possible that a good and wise God, knowing that he was going to drown them, made millions of people? What did he make them for? I do not know. I do not pretend to be wise enough to answer that question. Of course, you cannot answer the question. Is there anything blasphemous in that? Would it be blasphemy in me to say I do not believe that any God ever made men, women and children—mothers, with babes clasped to their breasts, and then sent a flood to fill the world with death?

A rain lasting for forty days—the water rising hour by hour, and the poor wretched children of God climbing to the tops of their houses—then to the tops of the hills. The water still rising—no mercy. The people climbing higher and higher, looking to the mountains for salvation—the merciless rain still falling, the inexorable flood still rising. Children falling from the arms of mothers—no pity. The highest hills covered—infancy and old age mingling in death—the cries of women, the sobs and sighs lost in the roar of waves—the heavens still relentless. The mountains are covered—a shoreless sea rolls round the world, and on its billows are billions of corpses.

This is the greatest crime that man has imagined, and this crime is called a deed of infinite mercy.

Do you believe that? I do not believe one word of it, and I have the right to say to all the world that this is false.

If there be a good God, the story is not true. If there be a wise God, the story is not true. Ought an honest man to be sent to the penitentiary for simply telling the truth?

Suppose we had a statute that whoever scoffed at science—whoever by profane language should bring the rule of three into contempt, or whoever should attack the proposition that two parallel lines will never include a space, should be sent to the penitentiary—what would you think of it? It would be just as wise and just as idiotic as this.

And what else says the defendant?

"The Bible-God says that his people made him jealous." "Provoked him to anger."

Is that true? It is. If it is true, is it blasphemous?

Let us read another line—

"And now he will raise the mischief with them; that his anger burns like hell."

That is true. The Bible says of God—"My anger burns to the lowest hell." And that is all that the defendant says. Every word of it is in the Bible. He simply does not believe it—and for that reason is a "blasphemer."

I say to you now, gentlemen,—and I shall argue to the Court,—that there is not in what I have read a solitary blasphemous word—not a word that has not been said in hundreds of pulpits in the Christian world. Theodore Parker, a Unitarian, speaking of this Bible-God said: "Vishnu with a necklace of skulls, Vishnu with bracelets of living, hissing serpents, is a figure of Love and Mercy compared to the God of the Old Testament." That, we might call "blasphemy," but not what I have read.

Let us read on:—

"He would destroy them all were it not that he feared the wrath of the enemy."

That is in the Bible—word for word. Then the defendant in astonishment says:

"The Almighty God afraid of his enemies!"

That is what the Bible says. What does it mean? If the Bible is true, God was afraid.

"Can the mind conceive of more horrid blasphemy?"

Is not that true? If God be infinitely good and wise and powerful, is it possible he is afraid of anything? If the defendant had said that God was afraid of his enemies, that might have been blasphemy—but this man says the Bible says that, and you are asked to say that it is blasphemy. Now, up to this point there is no blasphemy, even if you were to enforce this infamous statute—this savage law.

"The Old Testament records for our instruction in morals, the most foul and bestial instances of fornication, incest, and polygamy, perpetrated by God's own saints, and the New Testament indorses these lecherous wretches as examples for all good Christians to follow."

Now, is it not a fact that the Old Testament does uphold polygamy? Abraham would have gotten into trouble in New Jersey—no doubt of that. Sarah could have obtained a divorce in this State—no doubt of that. What is the use of telling a falsehood about it? Let us tell the truth about the patriarchs.

Everybody knows that the same is true of Moses. We have all heard of Solomon—a gentleman with five or six hundred wives, and three or four hundred other ladies with whom he was acquainted. This is simply what the defendant says. Is there any blasphemy about that? It is only the truth. If Solomon were living in the United States to-day, we would put him in the penitentiary. You know that under the Edmunds Mormon law he would be locked up. If you should present a petition signed by his eleven hundred wives, you could not get him out.

So it was with David. There are some splendid things about David, of course. I admit that, and pay my tribute of respect to his courage—but he happened to have ten or twelve wives too many, so he shut them up, put them in a kind of penitentiary and kept them there till they died. That would not be considered good conduct even in Morristown. You know that. Is it any harm to speak of it? There are plenty of ministers here to set it right—thousands of them all over the country, every one with his chance to talk all day Sunday and nobody to say a word back. The pew cannot reply to the pulpit, you know; it has just to sit there and take it. If there is any harm in this, if it is not true, they ought to answer it. But it is here, and the only answer is an indictment.

I say that Lot was a bad man. So I say of Abraham, and of Jacob. Did you ever know of a more despicable fraud practiced by one brother on another than Jacob practiced on Esau? My sympathies have always been with Esau. He seemed to be a manly man. Is it blasphemy to say that you do not like a hypocrite, a murderer, or a thief, because his name is in the Bible? How do you know what such men are mentioned for? May be they are mentioned as examples, and you certainly ought not to be led away and induced to imagine that a man with seven hundred wives is a pattern of domestic propriety, one to be followed by yourself and your sons. I might go on and mention the names of hundreds of others who committed every conceivable crime, in the name of religion—who declared war, and on the field of battle killed men, women and babes, even children yet unborn, in the name of the

most merciful God. The Bible is filled with the names and crimes of these sacred savages, these inspired beasts. Any man who says that a God of love commanded the commission of these crimes is, to say the least of it, mistaken. If there be a God, then it is blasphemous to charge him with the commission of crime.

But let us read further from this indictment:

"The aforesaid printed document contains other scandalous, infamous and blasphemous matters and things, to the tenor and effect following, that is to say—"

Then comes this particularly blasphemous line:

"Now, reader, take time and calmly think it over ."

Gentlemen, there are many things I have read that I should not have expressed in exactly the same language used by the defendant, and many things that I am going to read I might not have said at all, but the defendant had the right to say every word with which he is charged in this indictment. He had the right to give his honest thought, no matter whether any human being agreed with what he said or not, and no matter whether any other man approved of the manner in which he said these things. I defend his right to speak, whether I believe in what he spoke or not, or in the propriety of saying what he did. I should defend a man just as cheerfully who had spoken against my doctrine, as one who had spoken against the popular superstitions of my time. It would make no difference to me how unjust the attack was upon my belief—how maliciously ingenious; and no matter how sacred the conviction that was attacked, I would defend the freedom of speech. And why? Because no attack can be answered by force, no argument can be refuted by a blow, or by imprisonment, or by fine. You may imprison the man, but the argument is free; you may fell the man to the earth, but the statement stands.

The defendant in this case has attacked certain beliefs, thought by the Christian world to be sacred. Yet, after all, nothing is sacred but the truth, and by truth I mean what a man sincerely and honestly believes. The defendant says:

"Take time to calmly think it over: Was a Jewish girl the mother of God, the mother of your God?"

The defendant probably asked this question, supposing that it must be answered by all sensible people in the negative. If the Christian religion is true, then a Jewish girl was the mother of Almighty God. Personally, if the doctrine is true, I have no fault to find with the statement that a Jewish maiden was the mother of God.—Millions believe, that this is true—I do not believe,—but who knows? If a God came from the throne of the universe, came to this world and became the child of a pure and loving woman, it would not lessen, in my eyes, the dignity or the greatness of that God.

There is no more perfect picture on the earth, or within the imagination of man, than a mother holding in her thrilled and happy arms a child, the fruit of love.

No matter how the statement is made, the fact remains the same. A Jewish girl became the mother of God. If the Bible is true, that is true, and to repeat it, even according to your law, is not blasphemous, and to doubt it, or to express the doubt, or to deny it, is not contrary to your constitution.

To this defendant it seemed improbable that God was ever born of woman, was ever held in the lap of a mother; and because he cannot believe this, he is charged with blasphemy. Could you pour contempt on Shakespeare by saying that his mother was a woman,—by saying that he was once a poor, crying, little, helpless child? Of course he was; and he afterwards became the greatest human being that ever touched the earth,—the only man whose intellectual wings have reached from sky to sky; and he was once a crying babe. What of it? Does that cast any scorn or contempt upon him? Does this take any of the music from "Midsummer Night's Dream"?—any of the passionate wealth from "Antony and Cleopatra," any philosophy from "Macbeth," any intellectual grandeur from "King Lear"? On the contrary, these great productions of the brain show the growth of the dimpled babe, give every mother a splendid dream and hope for her child, and cover every cradle with a sublime possibility.

The defendant is also charged with having said that: "*God cried and screamed.*"

Why not? If he was absolutely a child, he was like other children,—like yours, like mine. I have seen the time, when absent from home, that I would have given more to have heard my children cry, than to have heard the finest orchestra that ever made the air burst into flower. What if God did

cry? It simply shows that his humanity was real and not assumed, that it was a tragedy, real, and not a poor pretence. And the defendant also says that if the orthodox religion be true, that the

"God of the Universe kicked, and flung about his little arms, and made aimless dashes into space with his little fists."

Is there anything in this that is blasphemous? One of the best pictures I ever saw of the Virgin and Child was painted by the Spaniard, Murillo. Christ appears to be a truly natural, chubby, happy babe. Such a picture takes nothing from the majesty, the beauty, or the glory of the incarnation.

I think it is the best thing about the Catholic Church that it lifts up for adoration and admiration, a mother,—that it pays what it calls "Divine honors" to a woman. There is certainly goodness in that, and where a church has so few practices that are good, I am willing to point this one out. It is the one redeeming feature about Catholicism, that it teaches the worship of a woman.

The defendant says more about the childhood of Christ. He goes so far as to say, that:

"He was found staring foolishly at his own little toes."

And why not? The Bible says, that "he increased in wisdom and stature." The defendant might have referred to something far more improbable. In the same verse in which St. Luke says that Jesus increased in wisdom and stature, will be found the assertion that he increased in favor with God and man. The defendant might have asked how it was that the love of God for God increased.

But the defendant has simply stated that the child Jesus grew, as other children grow; that he acted like other children, and if he did, it is more than probable that he did stare at his own toes. I have laughed many a time to see little children astonished with the sight of their feet. They seem to wonder what on earth puts the little toes in motion. Certainly there is nothing blasphemous in supposing that the feet of Christ amused him, precisely as the feet of other children have amused them. There is nothing blasphemous about this; on the contrary, it is beautiful. If I believed in the existence of God, the Creator of this world, the Being who, with the hand of infinity, sowed the fields of space with stars, as a farmer sows his grain, I should like to think of him as a little, dimpled babe, overflowing with joy, sitting upon the knees of a loving mother. The ministers themselves might take a

lesson even from the man who is charged with blasphemy, and make an effort to bring an infinite God a little nearer to the human heart.

The defendant also says, speaking of the infant Christ, "*He was nursed at Mary's breast.*"

Yes, and if the story be true, that is the tenderest fact in it. Nursed at the breast of woman. No painting, no statue, no words can make a deeper and a tenderer impression upon the heart of man than this: The infinite God, a babe, nursed at the holy breast of woman.

You see these things do not strike all people the same. To a man that has been raised on the orthodox desert, these things are incomprehensible. He has been robbed of his humanity. He has no humor, nothing but the stupid and the solemn. His fancy sits with folded wings.

Imagination, like the atmosphere of spring, woos every seed of earth to seek the blue of heaven, and whispers of bud and flower and fruit. Imagination gathers from every field of thought and pours the wealth of many lives into the lap of one. To the contracted, to the cast-iron people who believe in heartless and inhuman creeds, the words of the defendant seem blasphemous, and to them the thought that God was a little child is monstrous.

They cannot bear to hear it said that he nursed at the breast of a maiden, that he was wrapped in swaddling clothes, that he had the joys and sorrows of other babes. I hope, gentlemen, that not only you, but the attorneys for the prosecution, have read what is known as the "Apocryphal New Testament," books that were once considered inspired, once admitted to be genuine, and that once formed a part of our New Testament. I hope you have read the books of Joseph and Mary, of the Shepherd of Hermes, of the Infancy and of Mary, in which many of the things done by the youthful Christ are described—books that were once the delight of the Christian world; books that gave joy to children, because in them they read that Christ made little birds of clay, that would at his command stretch out their wings and fly with joy above his head. If the defendant in this case had said anything like that, here in the State of New Jersey, he would have been indicted; the orthodox ministers would have shouted "blasphemy," and yet, these little stories made the name of Christ dearer to children.

The church of to-day lacks sympathy; the theologians are without affection. After all, sympathy is genius. A man who really sympathizes with

another understands him. A man who sympathizes with a religion, instantly sees the good that is in it, and the man who sympathizes with the right, sees the evil that a creed contains.

But the defendant, still speaking of the infant Christ, is charged with having said:

"God smiled when he was comfortable. He lay in a cradle and was rocked to sleep."

Yes, and there is no more beautiful picture than that. Let some great religious genius paint a picture of this kind—of a babe smiling with content, rocked in the cradle by the mother who bends tenderly and proudly above him. There could be no more beautiful, no more touching, picture than this. What would I not give for a picture of Shakespeare as a babe,—a picture that was a likeness,—rocked by his mother? I would give more for this than for any painting that now enriches the walls of the world.

The defendant also says, that:

"God was sick when cutting his teeth."

And what of that? We are told that he was tempted in all points, as we are. That is to say, he was afflicted, he was hungry, he was thirsty, he suffered the pains and miseries common to man. Otherwise, he was not flesh, he was not human.

"He caught the measles, the mumps, the scarlet fever and the whooping cough."

Certainly he was liable to have these diseases, for he was, in fact, a child. Other children have them. Other children, loved as dearly by their mothers as Christ could have been by his, and yet they are taken from the little family by fever; taken, it may be, and buried in the snow, while the poor mother goes sadly home, wishing that she was lying by its side. All that can be said of every word in this address, about Christ and about his childhood, amounts to this; that he lived the life of a child; that he acted like other children. I have read you substantially what he has said, and this is considered blasphemous.

He has said, that:

"According to the Old Testament, the God of the Christian world commanded people to destroy each other."

If the Bible is true, then the statement of the defendant is true. Is it calculated to bring God into contempt to deny that he upheld polygamy, that he ever commanded one of his generals to rip open with the sword of war, the woman with child? Is it blasphemy to deny that a God of infinite love gave such commandments? Is such a denial calculated to pour contempt and scorn upon the God of the orthodox?

Is it blasphemous to deny that God commanded his children to murder each other? Is it blasphemous to say that he was benevolent, merciful and just?

It is impossible to say that the Bible is true and that God is good. I do not believe that a God made this world, filled it with people and then drowned them. I do not believe that infinite wisdom ever made a mistake. If there be any God he was too good to commit such an infinite crime, too wise, to make such a mistake. Is this blasphemy? Is it blasphemy to say that Solomon was not a virtuous man, or that David was an adulterer?

Must we say when this ancient King had one of his best generals placed in the front of the battle—deserted him and had him murdered for the purpose of stealing his wife, that he was "a man after God's own heart"? Suppose the defendant in this case were guilty of something like that? Uriah was fighting for his country, fighting the battles of David, the King. David wanted to take from him his wife. He sent for Joab, his commander-in-chief, and said to him:

"Make a feint to attack a town. Put Uriah at the front of the attacking force, and when the people sally forth from the town to defend its gate, fall back so that this gallant, noble, patriotic man may be slain."

This was done and the widow was stolen by the King. Is it blasphemy to tell the truth and to say exactly what David was? Let us be honest with each other; let us be honest with this defendant.

For thousands of years men have taught that the ancient patriarchs were sacred, that they were far better than the men of modern times, that what was in them a virtue, is in us a crime. Children are taught in Sunday schools to admire and respect these criminals of the ancient days. The time has come to tell the truth about these men, to call things by their proper names, and above all, to stand by the right, by the truth, by mercy and by justice. If what the defendant has said is blasphemy under this statute then the question arises, is the statute in accordance with the constitution? If this

statute is constitutional, why has it been allowed to sleep for all these years? I take this position: Any law made for the preservation of a human right, made to guard a human being, cannot sleep long enough to die; but any law that deprives a human being of a natural right—if that law goes to sleep, it never wakes, it sleeps the sleep of death.

I call the attention of the Court to that remarkable case in England where, only a few years ago, a man appealed to trial by battle. The law allowing trial by battle had been asleep in the statute book of England for more than two hundred years, and yet the court held that, in spite of the fact that the law had been asleep—it being a law in favor of a defendant—he was entitled to trial by battle. And why? Because it was a statute at the time made in defence of a human right, and that statute could not sleep long enough or soundly enough to die. In consequence of this decision, the Parliament of England passed a special act, doing away forever with the trial by battle.

When a statute attacks an individual right, the State must never let it sleep. When it attacks the right of the public at large and is allowed to pass into a state of slumber, it cannot be raised for the purpose of punishing an individual.

Now, gentlemen, a few words more. I take an almost infinite interest in this trial, and before you decide, I am exceedingly anxious that you should understand with clearness the thoughts I have expressed upon this subject I want you to know how the civilized feel, and the position now taken by the leaders of the world.

A few years ago almost everything spoken against the grossest possible superstition was considered blasphemous. The altar hedged itself about with the sword; the Priest went in partnership with the King. In those days statutes were leveled against all human speech. Men were convicted of blasphemy because they believed in an actual personal God; because they insisted that God had body and parts. Men were convicted of blasphemy because they denied that God had form. They have been imprisoned for denying the doctrine of transubstantiation, and they have been torn in pieces for defending that doctrine. There are but few dogmas now believed by any Christian church that have not at some time been denounced as blasphemous.

When Henry VIII. put himself at the head of the Episcopal Church a creed was made, and in that creed there were five dogmas that must, of necessity, be believed. Anybody who denied any one, was to be punished—for the first offence, with fine, with imprisonment, or branding, and for the second offence, with death. Not one of these five dogmas is now a part of the creed of the Church of England.

So I could go on for days and weeks and months, showing that hundreds and hundreds of religious dogmas, to deny which was death, have been either changed or abandoned for others nearly as absurd as the old ones were. It may be, however, sufficient to say, that wherever the church has had power it has been a crime for any man to speak his honest thought. No church has ever been willing that any opponent should give a transcript of his mind. Every church in power has appealed to brute force, to the sword, for the purpose of sustaining its creed. Not one has had the courage to occupy the open field. The church has not been satisfied with calling Infidels and unbelievers blasphemers. Each church has accused nearly every other church of being a blasphemer. Every pioneer has been branded as a criminal. The Catholics called Martin Luther a blasphemer, and Martin Luther called Copernicus a blasphemer. Pious ignorance always regards intelligence as a kind of blasphemy. Some of the greatest men of the world, some of the best, have been put to death for the crime of blasphemy, that is to say, for the crime of endeavoring to benefit their fellow-men.

As long as the church has the power to close the lips of men, so long and no longer will superstition rule this world.

"Blasphemy is the word that the majority hisses into the ear of the few."

After every argument of the church has been answered, has been refuted, then the church cries, "blasphemy!"

Blasphemy is what an old mistake says of a newly discovered truth.

Blasphemy is what a withered last year's leaf says to a this year's bud.

Blasphemy is the bulwark of religious prejudice.

Blasphemy is the breastplate of the heartless.

And let me say now, that the crime of blasphemy, as set out in this statute, is impossible. No man can blaspheme a book. No man can commit blasphemy by telling his honest thought. No man can blaspheme a God, or a Holy Ghost, or a Son of God. The Infinite cannot be blasphemed.

In the olden time, in the days of savagery and superstition, when some poor man was struck by lightning, or when a blackened mark was left on the breast of a wife and mother, the poor savage supposed that some god, angered by something he had done, had taken his revenge. What else did the savage suppose? He believed that this god had the same feelings, with regard to the loyalty of his subjects, that an earthly chief had, or an earthly king had, with regard to the loyalty or treachery of members of his tribe, or citizens of his kingdom. So the savage said, when his country was visited by a calamity, when the flood swept the people away, or the storm scattered their poor houses in fragments: "We have allowed some Freethinker to live; some one is in our town or village who has not brought his gift to the priest, his incense to the altar; some man of our tribe or of our country does not respect our god." Then, for the purpose of appeasing the supposed god, for the purpose of again winning a smile from heaven, for the purpose of securing a little sunlight for their fields and homes, they drag the accused man from his home, from his wife and children, and with all the ceremonies of pious brutality, shed his blood. They did it in self-defence; they believed that they were saving their own lives and the lives of their children; they did it to appease their god. Most people are now beyond that point. Now when disease visits a community, the intelligent do not say the disease came because the people were wicked; when the cholera comes, it is not because of the Methodists, of the Catholics, of the Presbyterians, or of the Infidels. When the wind destroys a town in the far West, it is not because somebody there had spoken his honest thoughts. We are beginning to see that the wind blows and destroys without the slightest reference to man, without the slightest care whether it destroys the good or the bad, the irreligious or the religious. When the lightning leaps from the clouds it is just as likely to strike a good man as a bad man, and when the great serpents of flame climb around the houses of men, they burn just as gladly and just as joyously, the home of virtue, as they do the den and lair of vice.

Then the reason for all these laws has failed. The laws were made on account of a superstition. That superstition has faded from the minds of intelligent men, and, as a consequence, the laws based on the superstition ought to fail.

There is one splendid thing in nature, and that is that men and nations must reap the consequences of their acts—reap them in this world, if they live, and in another if there be one. The man who leaves this world a bad

man, a malicious man, will probably be the same man when he reaches another realm, and the man who leaves this shore good, charitable and honest, will be good, charitable and honest, no matter on what star he lives again. The world is growing sensible upon these subjects, and as we grow sensible, we grow charitable.

Another reason has been given for these laws against blasphemy, the most absurd reason that can by any possibility be given. It is this: There should be laws against blasphemy, because the man who utters blasphemy endangers the public peace.

Is it possible that Christians will break the peace? Is it possible that they will violate the law? Is it probable that Christians will congregate together and make a mob, simply because a man has given an opinion against their religion? What is their religion? They say, "If a man smites you on one cheek, turn the other also." They say, "We must love our neighbors as we love ourselves." Is it possible then, that you can make a mob out of Christians,—that these men, who love even their enemies, will attack others, and will destroy life, in the name of universal love? And yet, Christians themselves say that there ought to be laws against blasphemy, for fear that Christians, who are controlled by universal love, will become so outraged, when they hear an honest man express an honest thought, that they will leap upon him and tear him in pieces.

What is blasphemy? I will give you a definition; I will give you my thought upon this subject. What is real blasphemy?

To live on the unpaid labor of other men—that is blasphemy.

To enslave your fellow-man, to put chains upon his body—that is blasphemy.

To enslave the minds of men, to put manacles upon the brain, padlocks upon the lips—that is blasphemy.

To deny what you believe to be true, to admit to be true what you believe to be a lie—that is blasphemy.

To strike the weak and unprotected, in order that you may gain the applause of the ignorant and superstitious mob—that is blasphemy.

To persecute the intelligent few, at the command of the ignorant many—that is blasphemy.

To forge chains, to build dungeons, for your honest fellow-men—that is blasphemy.

To pollute the souls of children with the dogma of eternal pain—that is blasphemy.

To violate your conscience—that is blasphemy.

The jury that gives an unjust verdict, and the judge who pronounces an unjust sentence, are blasphemers.

The man who bows to public opinion against his better judgment and against his honest conviction, is a blasphemer.

Why should we fear our fellow-men? Why should not each human being have the right, so far as thought and its expression are concerned, of all the world? What harm can come from an honest interchange of thought?

I have been giving you my real ideas. I have spoken freely, and yet the sun rose this morning, just the same as it always has. There is no particular change visible in the world, and I do not see but that we are all as happy to-day as though we had spent yesterday in making somebody else miserable. I denounced on yesterday the superstitions of the Christian world, and yet, last night I slept the sleep of peace. You will pardon me for saying again that I feel the greatest possible interest in the result of this trial, in the principle at stake. This is my only apology, my only excuse, for taking your time. For years I have felt that the great battle for human liberty, the battle that has covered thousands of fields with heroic dead, had finally been won. When I read the history of this world, of what has been endured, of what has been suffered, of the heroism and infinite courage of the intellectual and honest few, battling with the countless serfs and slaves of kings and priests, of tyranny, of hypocrisy, of ignorance and prejudice, of faith and fear, there was in my heart the hope that the great battle had been fought, and that the human race, in its march towards the dawn, had passed midnight, and that the "great balance weighed up morning." This hope, this feeling, gave me the greatest possible joy. When I thought of the many who had been burnt, of how often the sons of liberty had perished in ashes, of how many o! the noblest and greatest had stood upon scaffolds, and of the countless hearts, the grandest that ever throbbed in human breasts, that had been broken by the tyranny of church and state, of how many of the noble and loving had sighed themselves away in dungeons, the only consolation was that the last bastille had fallen, that the dungeons of the Inquisition had been torn down

and that the scaffolds of the world could no longer be wet with heroic blood.

You know that sometimes, after a great battle has been fought, and one of the armies has been broken, and its fortifications carried, there are occasional stragglers beyond the great field, stragglers who know nothing of the fate of their army, know nothing of the victory, and for that reason, fight on. There are a few such stragglers in the State of New Jersey. They have never heard of the great victory. They do not know that in all civilized countries the hosts of superstition have been put to flight. They do not know that Freethinkers, Infidels, are to-day the leaders of the intellectual armies of the world.

One of the last trials of this character, tried in Great Britain,—and that is the country that our ancestors fought in the sacred name of liberty,—one of the last trials in that country, a country ruled by a state church, ruled by a woman who was born a queen, ruled by dukes and nobles and lords, children of ancient robbers—was in the year 1843. George Jacob Holyoake, one of the best of the human race, was imprisoned on a charge of Atheism, charged with having written a pamphlet and having made a speech in which he had denied the existence of the British God. The judge who tried him, who passed sentence upon him, went down to his grave with a stain upon his intellect and upon his honor. All the real intelligence of Great Britain rebelled against the outrage. There was a trial after that to which I will call your attention. Judge Coleridge, father of the present Chief Justice of England, presided at this trial. A poor man by the name of Thomas Pooley, a man who dug wells for a living, wrote on the gate of a priest, that, if people would burn their Bibles and scatter the ashes on the lands, the crops would be better, and that they would also save a good deal of money in tithes. He wrote several sentences of a kindred character. He was a curious man. He had an idea that the world was a living, breathing animal. He would not dig a well beyond a certain depth for fear he might inflict pain upon this animal, the earth. He was tried before Judge Coleridge, on that charge. An infinite God was about to be dethroned, because an honest well-digger had written his sentiments on the fence of a parson. He was indicted, tried, convicted and sentenced to prison. Afterward, many intelligent people asked for his pardon, on the ground that he was in danger of becoming insane. The judge refused to sign the petition. The pardon was refused. Long before his sentence expired, he became a raving maniac. He was removed to an

asylum and there died. Some of the greatest men in England attacked that judge, among these, Mr. Buckle, author of "The History of Civilization in England," one of the greatest books in this world. Mr. Buckle denounced Judge Coleridge. He brought him before the bar of English opinion, and there was not a man in England, whose opinion was worth anything, who did not agree with Mr. Buckle, and did not with him, declare the conviction of Thomas Pooley to be an infamous outrage. What were the reasons given? This, among others: The law was dead; it had been asleep for many years; it was a law passed during the ignorance of the Middle Ages, and a law that came out of the dungeon of religious persecution; a law that was appealed to by bigots and by hypocrites, to punish, to imprison an honest man.

In many parts of this country, people have entertained the idea that New England was still filled with the spirit of Puritanism, filled with the descendants of those who killed Quakers in the name of universal benevolence, and traded Quaker children in the Barbadoes for rum, for the purpose of establishing the fact that God is an infinite father.

Yet, the last trial in Massachusetts on a charge like this, was when Abner Kneeland was indicted on a charge of Atheism. He was tried for having written this sentence: "The Universalists believe in a God which I do not." He was convicted and imprisoned. Chief Justice Shaw upheld the decision, and upheld it because he was afraid of public opinion; upheld it, although he must have known that the statute under which Kneeland was indicted was clearly and plainly in violation of the Constitution. No man can read the decision of Justice Shaw without being convinced that he was absolutely dominated, either by bigotry, or hypocrisy. One of the judges of that court, a noble man, wrote a dissenting opinion, and in that dissenting opinion is the argument of a civilized, of an enlightened jurist. No man can answer the dissenting opinion of Justice Morton. The case against Kneeland was tried more than fifty years ago, and there has been none since in the New England States; and this case, that we are now trying, is the first ever tried in New Jersey. The fact that it is the first, certifies to my interpretation of this statute, and it also certifies to the toleration and to the civilization of the people of this State. The statute is upon your books. You inherited it from your ignorant ancestors, and they inherited it from their savage ancestors. The people of New Jersey were heirs of the mistakes and of the atrocities of ancient England.

It is too late to enforce a law like this. Why has it been allowed to slumber? Who obtained this indictment? Were they actuated by good and noble motives? Had they the public weal at heart, or were they simply endeavoring to be revenged upon this defendant? Were they willing to disgrace the State, in order that they might punish him?

I have given you my definition of blasphemy, and now the question arises, what is worship? Who is a worshiper? What is prayer? What is real religion? Let me answer these questions.

Good, honest, faithful work, is worship. The man who ploughs the fields and fells the forests; the man who works in mines, the man who battles with the winds and waves out on the wide sea, controlling the commerce of the world; these men are worshipers. The man who goes into the forest, leading his wife by the hand, who builds him a cabin, who makes a home in the wilderness, who helps to people and civilize and cultivate a continent, is a worshiper.

Labor is the only prayer that Nature answers; it is the only prayer that deserves an answer,—good, honest, noble work.

A woman whose husband has gone down to the gutter, gone down to degradation and filth; the woman who follows him and lifts him out of the mire and presses him to her noble heart, until he becomes a man once more, this woman is a worshiper. Her act is worship.

The poor man and the poor woman who work night and day, in order that they may give education to their children, so that they may have a better life than their father and mother had; the parents who deny themselves the comforts of life, that they may lay up something to help their children to a higher place—they are worshipers; and the children who, after they reap the benefit of this worship, become ashamed of their parents, are blasphemers.

The man who sits by the bed of his invalid wife,—a wife prematurely old and gray,—the husband who sits by her bed and holds, her thin, wan hand in his as lovingly, and kisses it as rapturously, as passionately, as when it was dimpled,—that is worship; that man is a worshiper; that is real religion.

Whoever increases the sum of human joy, is a worshiper. He who adds to the sum of human misery, is a blasphemer.

Gentlemen, you can never make me believe—no statute can ever convince me, that there is any infinite Being in this universe who hates an

honest man. It is impossible to satisfy me that there is any God, or can be any God, who holds in abhorrence a soul that has the courage to express his thought. Neither can the whole world convince me that any man should be punished, either in this world or in the next, for being candid with his fellow-men. If you send men to the penitentiary for speaking their thoughts, for endeavoring to enlighten their fellows, then the penitentiary will become a place of honor, and the victim will step from it—not stained, not disgraced, but clad in robes of glory.

Let us take one more step.

What is holy, what is sacred? I reply that human happiness is holy, human rights are holy. The body and soul of man—these are sacred. The liberty of man is of far more importance than any book; the rights of man more sacred than any religion—than any Scriptures, whether inspired or not.

What we want is the truth, and does any one suppose that all of the truth is confined in one book—that the mysteries of the whole world are explained by one volume?

All that is—all that conveys information to man—all that has been produced by the past—all that now exists—should be considered by an intelligent man. All the known truths of this world—all the philosophy, all the poems, all the pictures, all the statues, all the entrancing music—the prattle of babes, the lullaby of mothers, the words of honest men, the trumpet calls to duty—all these make up the bible of the world—everything that is noble and true and free, you will find in this great book.

If we wish to be true to ourselves,—if we wish to benefit our fellow-men—if we wish to live honorable lives—we will give to every other human being every right that we claim for ourselves.

There is another thing that should be remembered by you. You are the judges of the law, as well as the judges of the facts. In a case like this, you are the final judges as to what the law is; and if you acquit, no court can reverse your verdict. To prevent the least misconception, let me state to you again what I claim:

First. I claim that the constitution of New Jersey declares that:

"The liberty of speech shall not be abridged." Second. That this statute, under which this indictment is found, is unconstitutional, because it does

abridge the liberty of speech; it does exactly that which the constitution emphatically says shall not be done.

Third. I claim, also, that under this law—even if it be constitutional—the words charged in this indictment do not amount to blasphemy, read even in the light, or rather in the darkness, of this statute.

Do not, I pray you, forget this point. Do not forget, that, no matter what the Court may tell you about the law—how good it is, or how bad it is—no matter what the Court may instruct you on that subject—do not forget one thing, and that is: That the words charged in the indictment are the only words that you can take into consideration in this case. Remember that no matter what else may be in the pamphlet—no matter what pictures or cartoons there may be of the gentlemen in Boonton who mobbed this man in the name of universal liberty and love—do not forget that you have no right to take one word into account except the exact words set out in this indictment—that is to say, the words that I have read to you. Upon this point the Court will instruct you that you have nothing to do with any other line in that pamphlet; and I now claim, that should the Court instruct you that the statute is constitutional, still I insist that the words set out in this indictment do not amount to blasphemy.

There is still another point. This statute says: "Whoever shall *willfully* speak against." Now, in this case, you must find that the defendant "willfully" did so and so—that is to say, that he made the statements attributed to him knowing that they were not true. If you believe that he was honest in what he said, then this statute does not touch him. Even under this statute, a man may give his honest opinion. Certainly, there is no law that charges a man with "willfully" being honest—"willfully" telling his real opinion—"willfully" giving to his fellow-men his thought.

Where a man is charged with larceny, the indictment must set out that he took the goods or the property with the intention to steal—with what the law calls the *animus furandi*. If he took the goods with the intention to steal, then he is a thief; but if he took the goods believing them to be his own, then he is guilty of no offence. So in this case, whatever was said by the defendant must have been "willfully" said. And I claim that if you believe that what the man said was honestly said, you cannot find him guilty under this statute.

One more point: This statute has been allowed to slumber so long, that no man had the right to awaken it. For more than one hundred years it has slept; and so far as New Jersey is concerned, it has been sound asleep since 1664. For the first time it is dug out of its grave. The breath of life is sought to be breathed into it, to the end that some people may wreak their vengeance on an honest man.

Is there any evidence—has there been any—to show that the defendant was not absolutely candid in the expression of his opinions? Is there one particle of evidence tending, to show that he is not a perfectly honest and sincere man? Did the prosecution have the courage to attack his reputation? No. The State has simply proved to you that he circulated that pamphlet—that is all.

It was claimed, among other things, that the defendant circulated this pamphlet among children. There was no such evidence—not the slightest. The only evidence about schools, or school-children was, that when the defendant talked with the bill-poster,—whose business the defendant was interfering with,—he asked him something about the population of the town, and about the schools. But according to the evidence, and as a matter of fact, not a solitary pamphlet was ever given to any child, or to any youth. According to the testimony, the defendant went into two or three stores,—laid the pamphlets on a show case, or threw them upon a desk—put them upon a stand where papers were sold, and in one instance handed a pamphlet to a man. That is all.

In my judgment, however, there would have been no harm in giving this pamphlet to every citizen of your place.

Again I say, that a law that has been allowed to sleep for all these years—allowed to sleep by reason of the good sense and by reason of the tolerant spirit of the State of New Jersey, should not be allowed to leap into life because a few are intolerant, or because a few lacked good sense and judgment. This snake should not be warmed into vicious life by the blood of anger.

Probably not a man on this jury agrees with me about the subject of religion. Probably not a member of this jury thinks that I am right in the opinions that I have entertained and have so often expressed. Most of you belong to some church, and I presume that those who do, have the good of what they call Christianity at heart. There maybe among you some

Methodists. If so, they have read the history of their church, and they know that when it was in the minority, it was persecuted, and they know that they can not read the history of that persecution without becoming indignant. They know that the early Methodists were denounced as heretics, as ranters, as ignorant pretenders.

There are also on this jury, Catholics, and they know that there is a tendency in many parts of this country to persecute a man now because he is a Catholic. They also know that their church has persecuted in times past, whenever and wherever it had the power; and they know that Protestants, when in power, have always persecuted Catholics; and they know, in their hearts, that all persecution, whether in the name of law, or religion, is monstrous, savage, and fiendish.

I presume that each one of you has the good of what you call Christianity at heart. If you have, I beg of you to acquit this man. If you believe Christianity to be a good, it never can do any church any good to put a man in jail for the expression of opinion. Any church that imprisons a man because he has used an argument against its creed, will simply convince the world that it cannot answer the argument.

Christianity will never reap any honor, will never reap any profit, from persecution. It is a poor, cowardly, dastardly way of answering arguments. No gentleman will do it—no civilized man ever did do it—no decent human being ever did, or ever will.

I take it for granted that you have a certain regard, a certain affection, for the State in which you live—that you take a pride in the Commonwealth of New Jersey. If you do, I beg of you to keep the record of your State clean. Allow no verdict to be recorded against the freedom of speech. At present there is not to be found on the records of any inferior court, or on those of the Supreme tribunal—any case in which a man has been punished for speaking his sentiments. The records have not been stained—have not been polluted—with such a verdict.

Keep such a verdict from the Reports of your State—from the Records of your courts. No jury has yet, in the State of New Jersey, decided that the lips of honest men are not free—that there is a manacle upon the brain.

For the sake of your State—for the sake of her reputation throughout the world—for your own sakes—and those of your children, and their children yet to be—say to the world that New Jersey shares in the spirit of this age,

—that New Jersey is not a survival of the Dark Ages,—that New Jersey does not still regard the thumbscrew as an instrument of progress,—that New Jersey needs no dungeon to answer the arguments of a free man, and does not send to the penitentiary, men who think, and men who speak. Say to the world, that where arguments are without foundation, New Jersey has confidence enough in the brains of her people to feel that such arguments can be refuted by reason.

For the sake of your State, acquit this man. For the sake of something of far more value to this world than New Jersey—for the sake of something of more importance to mankind than this continent—for the sake of Human Liberty, for the sake of Free Speech, acquit this man.

What light is to the eyes, what love is to the heart, Liberty is to the soul of man. Without it, there come suffocation, degradation and death.

In the name of Liberty, I implore—and not only so, but I insist—that you shall find a verdict in favor of this defendant. Do not do the slightest thing to stay the march of human progress. Do not carry us back, even for a moment, to the darkness of that cruel night that good men hoped had passed away forever.

Liberty is the condition of progress. Without Liberty, there remains only barbarism. Without Liberty, there can be no civilization.

If another man has not the right to think, you have not even the right to think that he thinks wrong. If every man has not the right to think, the people of New Jersey had no right to make a statute, or to adopt a constitution—no jury has the right to render a verdict, and no court to pass its sentence.

In other words, without liberty of thought, no human being has the right to form a judgment. It is impossible that there should be such a thing as real religion without liberty. Without liberty there can be no such thing as conscience, no such word as justice. All human actions—all good, all bad—have for a foundation the idea of human liberty, and without Liberty there can be no vice, and there can be no virtue.

Without Liberty there can be no worship, no blasphemy—no love, no hatred, no justice, no progress.

Take the word Liberty from human speech and all the other words become poor, withered, meaningless sounds—but with that word realized—

with that word understood, the world becomes a paradise.

Understand me. I am not blaming the people. I am not blaming the prosecution, or the prosecuting attorney. The officers of the court are simply doing what they feel to be their duty. They did not find the indictment. That was found by the grand jury. The grand jury did not find the indictment of its own motion. Certain people came before the grand jury and made their complaint—gave their testimony, and upon that testimony, under this statute, the indictment was found.

While I do not blame these people—they not being on trial—I do ask you to stand on the side of right.

I cannot conceive of much greater happiness than to discharge a public duty, than to be absolutely true to conscience, true to judgment, no matter what authority may say, no matter what public opinion may demand. A man who stands by the right, against the world, cannot help applauding himself, and saying: "I am an honest man."

I want your verdict—a verdict born of manhood, of courage; and I want to send a dispatch to-day to a woman who is lying sick. I wish you to furnish the words of this dispatch—only two words—and these two words will fill an anxious heart with joy. They will fill a soul with light. It is a very short message—only two words—and I ask you to furnish them: "Not guilty."

You are expected to do this, because I believe you will be true to your consciences, true to your best judgment, true to the best interests of the people of New Jersey, true to the great cause of Liberty.

I sincerely hope that it will never be necessary again, under the flag of the United States—that flag for which has been shed the bravest and best blood of the world—under that flag maintained by Washington, by Jefferson, by Franklin and by Lincoln—under that flag in defence of which New Jersey poured out her best and bravest blood—I hope it will never be necessary again for a man to stand before a jury and plead for the Liberty of Speech.

Note: The jury in this case brought in a verdict of guilty. The Judge imposed a fine of twenty-five dollars and costs amounting in all to seventy-five dollars, which Colonel Ingersoll paid, giving his services free.—C. P. Farrell.

GOD IN THE CONSTITUTION.

"All governments derive their just powers from the consent of the governed."

IN this country it is admitted that the power to govern resides in the people themselves; that they are the only rightful source of authority. For many centuries before the formation of our Government, before the promulgation of the Declaration of Independence, the people had but little voice in the affairs of nations. The source of authority was not in this world; kings were not crowned by their subjects, and the sceptre was not held by the consent of the governed. The king sat on his throne by the will of God, and for that reason was not accountable to the people for the exercise of his power. He commanded, and the people obeyed. He was lord of their bodies, and his partner, the priest, was lord of their souls. The government of earth was patterned after the kingdom on high. God was a supreme autocrat in heaven, whose will was law, and the king was a supreme autocrat on earth whose will was law. The God in heaven had inferior beings to do his will, and the king on earth had certain favorites and officers to do his. These officers were accountable to him, and he was responsible to God.

The Feudal system was supposed to be in accordance with the divine plan. The people were not governed by intelligence, but by threats and promises, by rewards and punishments. No effort was made to enlighten the common people; no one thought of educating a peasant—of developing the mind of a laborer. The people were created to support thrones and altars. Their destiny was to toil and obey—to work and want. They were to be satisfied with huts and hovels, with ignorance and rags, and their children must expect no more. In the presence of the king they fell upon their knees, and before the priest they groveled in the very dust. The poor peasant divided his earnings with the state, because he imagined it protected his body; he divided his crust with the church, believing that it protected his soul. He was the prey of Throne and Altar—one deformed his body, the other his mind—and these two vultures fed upon his toil. He was taught by the king to hate the people of other nations, and by the priest to despise the believers in all other religions. He was made the enemy of all people except

his own. He had no sympathy with the peasants of other lands, enslaved and plundered like himself., He was kept in ignorance, because education is the enemy of superstition, and because education is the foe of that egotism often mistaken for patriotism.

The intelligent and good man holds in his affections the good and true of every land—the boundaries of countries are not the limitations of his sympathies. Caring nothing for race, or color, he loves those who speak other languages and worship other gods. Between him and those who suffer, there is no impassable gulf. He salutes the world, and extends the hand of friendship to the human race. He does not bow before a provincial and patriotic god—one who protects his tribe or nation, and abhors the rest of mankind.

Through all the ages of superstition, each nation has insisted that it was the peculiar care of the true God, and that it alone had the true religion—that the gods of other nations were false and fraudulent, and that other religions were wicked, ignorant and absurd. In this way the seeds of hatred had been sown, and in this way have been kindled the flames of war. Men have had no sympathy with those of a different complexion, with those who knelt at other altars and expressed their thoughts in other words—and even a difference in garments placed them beyond the sympathy of others. Every peculiarity was the food of prejudice and the excuse for hatred.

The boundaries of nations were at last crossed by commerce. People became somewhat acquainted, and they found that the virtues and vices were quite evenly distributed. At last, subjects became somewhat acquainted with kings—peasants had the pleasure of gazing at princes, and it was dimly perceived that the differences were mostly in rags and names.

In 1776 our fathers endeavored to retire the gods from politics. They declared that "all governments derive their just powers from the consent of the governed." This was a contradiction of the then political ideas of the world; it was, as many believed, an act of pure blasphemy—a renunciation of the Deity. It was in fact a declaration of the independence of the earth. It was a notice to all churches and priests that thereafter mankind would govern and protect themselves. Politically it tore down every altar and denied the authority of every "sacred book," and appealed from the Providence of God to the Providence of Man.

Those who promulgated the Declaration adopted a Constitution for the great Republic.

What was the office or purpose of that Constitution?

Admitting that all power came from the people, it was necessary, first, that certain means be adopted for the purpose of ascertaining the will of the people, and second, it was proper and convenient to designate certain departments that should exercise certain powers of the Government. There must be the legislative, the judicial and the executive departments. Those who make laws should not execute them. Those who execute laws should not have the power of absolutely determining their meaning or their constitutionality. For these reasons, among others, a Constitution was adopted.

This Constitution also contained a declaration of rights. It marked out the limitations of discretion, so that in the excitement of passion, men shall not go beyond the point designated in the calm moment of reason.

When man is unprejudiced, and his passions subject to reason, it is well he should define the limits of power, so that the waves driven by the storm of passion shall not overbear the shore.

A constitution is for the government of man in this world. It is the chain the people put upon their servants, as well as upon themselves. It defines the limit of power and the limit of obedience.

It follows, then, that nothing should be in a constitution that cannot be enforced by the power of the state—that is, by the army and navy. Behind every provision of the Constitution should stand the force of the nation. Every sword, every bayonet, every cannon should be there.

Suppose, then, that we amend the Constitution and acknowledge the existence and supremacy of God—what becomes of the supremacy of the people, and how is this amendment to be enforced? A constitution does not enforce itself. It must be carried out by appropriate legislation. Will it be a crime to deny the existence of this constitutional God? Can the offender be proceeded against in the criminal courts? Can his lips be closed by the power of the state? Would not this be the inauguration of religious persecution?

And if there is to be an acknowledgment of God in the Constitution, the question naturally arises as to which God is to have this honor. Shall we

select the God of the Catholics—he who has established an infallible church presided over by an infallible pope, and who is delighted with certain ceremonies and placated by prayers uttered in exceedingly common Latin? Is it the God of the Presbyterian with the Five Points of Calvinism, who is ingenious enough to harmonize necessity and responsibility, and who in some way justifies himself for damning most of his own children? Is it the God of the Puritan, the enemy of joy—of the Baptist, who is great enough to govern the universe, and small enough to allow the destiny of a soul to depend on whether the body it inhabited was immersed or sprinkled?

What God is it proposed to put in the Constitution? Is it the God of the Old Testament, who was a believer in slavery and who justified polygamy? If slavery was right then, it is right now; and if Jehovah was right then, the Mormons are right now. Are we to have the God who issued a commandment against all art—who was the enemy of investigation and of free speech? Is it the God who commanded the husband to stone his wife to death because she differed with him on the subject of religion? Are we to have a God who will re-enact the Mosaic code and punish hundreds of offences with death? What court, what tribunal of last resort, is to define this God, and who is to make known his will? In his presence, laws passed by men will be of no value. The decisions of courts will be as nothing. But who is to make known the will of this supreme God? Will there be a supreme tribunal composed of priests?

Of course all persons elected to office will either swear or affirm to support the Constitution. Men who do not believe in this God, cannot so swear or affirm. Such men will not be allowed to hold any office of trust or honor. A God in the Constitution will not interfere with the oaths or affirmations of hypocrites. Such a provision will only exclude honest and conscientious unbelievers. Intelligent people know that one knows whether there is a God or not. The existence of such a Being is merely a matter of opinion. Men who believe in the liberty of man, who are willing to die for the honor of their country, will be excluded from taking any part in the administration of its affairs. Such a provision would place the country under the feet of priests.

To recognize a Deity in the organic law of our country would be the destruction of religious liberty. The God in the Constitution would have to be protected. There would be laws against blasphemy, laws against the

publication of honest thoughts, laws against carrying books and papers in the mails in which this constitutional God should be attacked. Our land would be filled with theological spies, with religious eavesdroppers, and all the snakes and reptiles of the lowest natures, in this sunshine of religious authority, would uncoil and crawl.

It is proposed to acknowledge a God who is the lawful and rightful Governor of nations; the one who ordained the powers that be. If this God is really the Governor of nations, it is not necessary to acknowledge him in the Constitution. This would not add to his power. If he governs all nations now, he has always controlled the affairs of men. Having this control, why did he not see to it that he was recognized in the Constitution of the United States? If he had the supreme authority and neglected to put himself in the Constitution, is not this, at least, *prima facie* evidence that he did not desire to be there?

For one, I am not in favor of the God who has "ordained the powers that be." What have we to say of Russia—of Siberia? What can we say of the persecuted and enslaved? What of the kings and nobles who live on the stolen labor of others? What of the priest and cardinal and pope who wrest, even from the hand of poverty, the single coin thrice earned?

Is it possible to flatter the Infinite with a constitutional amendment? The Confederate States acknowledged God in their constitution, and yet they were overwhelmed by a people in whose organic law no reference to God is made. All the kings of the earth acknowledge the existence of God, and God is their ally; and this belief in God is used as a means to enslave and rob, to govern and degrade the people whom they call their subjects.

The Government of the United States is secular. It derives its power from the consent of man. It is a Government with which God has nothing whatever to do—and all forms and customs, inconsistent with the fundamental fact that the people are the source of authority, should be abandoned. In this country there should be no oaths—no man should be sworn to tell the truth, and in no court should there be any appeal to any supreme being. A rascal by taking the oath appears to go in partnership with God, and ignorant jurors credit the firm instead of the man. A witness should tell his story, and if he speaks falsely should be considered as guilty of perjury. Governors and Presidents should not issue religious proclamations. They should not call upon the people to thank God. It is no

part of their official duty. It is outside of and beyond the horizon of their authority. There is nothing in the Constitution of the United States to justify this religious impertinence.

For many years priests have attempted to give to our Government a religious form. Zealots have succeeded in putting the legend upon our money: "In God We Trust;" and we have chaplains in the army and navy, and legislative proceedings are usually opened with prayer. All this is contrary to the genius of the Republic, contrary to the Declaration of Independence, and contrary really to the Constitution of the United States. We have taken the ground that the people can govern themselves without the assistance of any supernatural power. We have taken the position that the people are the real and only rightful source of authority. We have solemnly declared that the people must determine what is politically right and what is wrong, and that their legally expressed will is the supreme law. This leaves no room for national superstition—no room for patriotic gods or supernatural beings—and this does away with the necessity for political prayers.

The government of God has been tried. It was tried in Palestine several thousand years ago, and the God of the Jews was a monster of cruelty and ignorance, and the people governed by this God lost their nationality. Theocracy was tried through the Middle Ages. God was the Governor—the pope was his agent, and every priest and bishop and cardinal was armed with credentials from the Most High—and the result was that the noblest and best were in prisons, the greatest and grandest perished at the stake. The result was that vices were crowned with honor, and virtues whipped naked through the streets. The result was that hypocrisy swayed the sceptre of authority, while honesty languished in the dungeons of the Inquisition.

The government of God was tried in Geneva when John Calvin was his representative; and under this government of God the flames climbed around the limbs and blinded the eyes of Michael Servetus, because he dared to express an honest thought. This government of God was tried in Scotland, and the seeds of theological hatred were sown, that bore, through hundreds of years, the fruit of massacre and assassination. This government of God was established in New England, and the result was that Quakers were hanged or burned—the laws of Moses re-enacted and the "witch was not suffered to live." The result was that investigation was a crime, and the

expression of an honest thought a capital offence. This government of God was established in Spain, and the Jews were expelled, the Moors were driven out, Moriscoes were exterminated, and nothing left but the ignorant and bankrupt worshipers of this monster. This government of God was tried in the United States when slavery was regarded as a divine institution, when men and women were regarded as criminals because they sought for liberty by flight, and when others were regarded as criminals because they gave them food and shelter. The pulpit of that day defended the buying and selling of women and babes, and the mouths of slave-traders were filled with passages of Scripture, defending and upholding the traffic in human flesh.

We have entered upon a new epoch. This is the century of man. Every effort to really better the condition of mankind has been opposed by the worshipers of some God. The church in all ages and among all peoples has been the consistent enemy of the human race. Everywhere and at all times, it has opposed the liberty of thought and expression. It has been the sworn enemy of investigation and of intellectual development. It has denied the existence of facts, the tendency of which was to undermine its power. It has always been carrying fagots to the feet of Philosophy. It has erected the gallows for Genius. It has built the dungeon for Thinkers. And to-day the orthodox church is as much opposed as it ever was to the mental freedom of the human race.

Of course, there is a distinction made between churches and individual members. There have been millions of Christians who have been believers in liberty and in the freedom of expression—millions who have fought for the rights of man—but churches as organizations, have been on the other side. It is true that churches have fought churches—that Protestants battled with the Catholics for what they were pleased to call the freedom of conscience; and it is also true that the moment these Protestants obtained the civil power, they denied this freedom of conscience to others.

'Let me show you the difference between the theological and the secular spirit. Nearly three hundred years ago, one of the noblest of the human race, Giordano Bruno, was burned at Rome by the Catholic Church—that is to say, by the "Triumphant Beast." This man had committed certain crimes—he had publicly stated that there were other worlds than this—other constellations than ours. He had ventured the supposition that other planets

might be peopled. More than this, and worse than this, he had asserted the heliocentric theory—that the earth made its annual journey about the sun. He had also given it as his opinion that matter is eternal. For these crimes he was found unworthy to live, and about his body were piled the fagots of the Catholic Church. This man, this genius, this pioneer of the science of the nineteenth century, perished as serenely as the sun sets. The Infidels of to-day find excuses for his murderers. They take into consideration the ignorance and brutality of the times. They remember that the world was governed by a God who was then the source of all authority. This is the charity of Infidelity,—of philosophy. But the church of to-day is so heartless, is still so cold and cruel, that it can find no excuse for the murdered.

This is the difference between Theocracy and Democracy—between God and man.

If God is allowed in the Constitution, man must abdicate. There is no room for both. If the people of the great Republic become superstitious enough and ignorant enough to put God in the Constitution of the United States, the experiment of self-government will have failed, and the great and splendid declaration that "all governments derive their just powers from the consent of the governed" will have been denied, and in its place will be found this: All power comes from God; priests are his agents, and the people are their slaves.

Religion is an individual matter, and each soul should be left entirely free to form its own opinions and to judge of its accountability to a supposed supreme being. With religion, government has nothing whatever to do. Government is founded upon force, and force should never interfere with the religious opinions of men. Laws should define the rights of men and their duties toward each other, and these laws should be for the benefit of man in this world.

A nation can neither be Christian nor Infidel—a nation is incapable of having opinions upon these subjects. If a nation is Christian, will all the citizens go to heaven? If it is not, will they all be damned? Of course it is admitted that the majority of citizens composing a nation may believe or disbelieve, and they may call the nation what they please. A nation is a corporation. To repeat a familiar saying, "it has no soul." There can be no such thing as a Christian corporation. Several Christians may form a

corporation, but it can hardly be said that the corporation thus formed was included in the atonement. For instance: Seven Christians form a corporation—that is to say, there are seven natural persons and one artificial—can it be said that there are eight souls to be saved?

No human being has brain enough, or knowledge enough, or experience enough, to say whether there is, or is not, a God. Into this darkness Science has not yet carried its torch. No human being has gone beyond the horizon of the natural. As to the existence of the supernatural, one man knows precisely as much, and exactly as little as another. Upon this question, chimpanzees and cardinals, apes and popes, are upon exact equality. The smallest insect discernible only by the most powerful microscope, is as familiar with this subject, as the greatest genius that has been produced by the human race.

Governments and laws are for the preservation of rights and the regulation of conduct. One man should not be allowed to interfere with the liberty of another. In the metaphysical world there should be no interference whatever, The same is true in the world of art. Laws cannot regulate what is or is not music, what is or what is not beautiful—and constitutions cannot definitely settle and determine the perfection of statues, the value of paintings, or the glory and subtlety of thought. In spite of laws and constitutions the brain will think. In every direction consistent with the well-being and peace of society, there should be freedom. No man should be compelled to adopt the theology of another; neither should a minority, however small, be forced to acquiesce in the opinions of a majority, however large.

If there be an infinite Being, he does not need our help—we need not waste our energies in his defence. It is enough for us to give to every other human being the liberty we claim for ourselves. There may or may not be a Supreme Ruler of the universe—but we are certain that man exists, and we believe that freedom is the condition of progress; that it is the sunshine of the mental and moral world, and that without it man will go back to the den of savagery, and will become the fit associate of wild and ferocious beasts.

We have tried the government of priests, and we know that such governments are without mercy. In the administration of theocracy, all the instruments of torture have been invented. If any man wishes to have God recognized in the Constitution of our country, let him read the history of the

Inquisition, and let him remember that hundreds of millions of men, women and children have been sacrificed to placate the wrath, or win the approbation of this God.

There has been in our country a divorce of church and state. This follows as a natural sequence of the declaration that "governments derive their just powers from the consent of the governed." The priest was no longer a necessity. His presence was a contradiction of the principle on which the Republic was founded. He represented, not the authority of the people, but of some "Power from on High," and to recognize this other Power was inconsistent with free government. The founders of the Republic at that time parted company with the priests, and said to them: "You may turn your attention to the other world—we will attend to the affairs of this." Equal liberty was given to all. But the ultra theologian is not satisfied with this—he wishes to destroy the liberty of the people—he wishes a recognition of his God as the source of authority, to the end that the church may become the supreme power.

But the sun will not be turned backward. The people of the United States are intelligent. They no longer believe implicitly in supernatural religion. They are losing confidence in the miracles and marvels of the Dark Ages. They know the value of the free school. They appreciate the benefits of science. They are believers in education, in the free play of thought, and there is a suspicion that the priest, the theologian, is destined to take his place with the necromancer, the astrologer, the worker of magic, and the professor of the black art.

We have already compared the benefits of theology and science. When the theologian governed the world, it was covered with huts and hovels for the many, palaces and cathedrals for the few. To nearly all the children of men, reading and writing were unknown arts. The poor were clad in rags and skins—they devoured crusts, and gnawed bones. The day of Science dawned, and the luxuries of a century ago are the necessities of to-day. Men in the middle ranks of life have more of the conveniences and elegancies than the princes and kings of the theological times. But above and over all this, is the development of mind. There is more of value in the brain of an average man of to-day—of a master-mechanic, of a chemist, of a naturalist, of an inventor, than there was in the brain of the world four hundred years ago.

These blessings did not fall from the skies, These benefits did not drop from the outstretched hands of priests. They were not found in cathedrals or behind altars—neither were they searched for with holy candles. They were not discovered by the closed eyes of prayer, nor did they come in answer to superstitious supplication. They are the children of freedom, the gifts of reason, observation and experience—and for them all, man is indebted to man.

Let us hold fast to the sublime declaration of Lincoln. Let us insist that this, the Republic, is "A government of the people, by the people, and for the people."—The Arena, Boston, Mass., January, 1890.

A REPLY TO BISHOP SPALDING.

** An unfinished reply to Bishop J. L. Spalding's article
"God in the Constitution," which appeared in the Arena.
Boston, Mass., April, 1890.*

BISHOP SPALDING admits that "The introduction of the question of religion would not only have brought discord into the Constitutional convention, but would have also engendered strife throughout the land." Undoubtedly this is true. I am compelled to admit this, for the reason that in all times and in all lands the introduction of the question of religion has brought discord and has engendered strife.

He also says: "In the presence of such danger, like wise men and patriots, they avoided irritating subjects"—the irritating subject being the question of religion. I admit that it always has been, and promises always to be, an "irritating subject," because it is not a subject decided by reason, but by ignorance, prejudice, arrogance and superstition. Consequently he says: "It was prudence, then, not skepticism, which induced them to leave the question of religion to the several States." The Bishop admits that it was prudent for the founders of this Government to leave the question of religion entirely to the States. It was prudent because the question of religion is irritating—because religious questions engender strife and hatred. Now, if it was prudent for the framers of the Constitution to leave religion out of the Constitution, and allow that question to be settled by the several States themselves under that clause preventing the establishment of religion or the free exercise thereof, why is it not wise still—why is it not prudent now?

My article was written against the introduction of religion into the Constitution of the United States. I am opposed to a recognition of God and of Jesus Christ in that instrument; and the reason I am opposed to it is, that: "The introduction of the question of religion would not only bring discord, but would engender strife throughout the land." I am opposed to it for the reason that religion is an "irritating subject," and also because if it was prudent when the Constitution was made, to leave God out, it is prudent now to keep him out.

The Bishop is mistaken—as bishops usually are—when he says: "Had our fathers been skeptics, or anti-theists, they would not have required the President and Vice-President, the Senators and Representatives in Congress, and all executive and judicial officers of the United States, to call God to witness that they intended to perform their duties under the Constitution like honest men and loyal citizens."

The framers of the Constitution did no such thing. They allowed every officer, from the President down, either to swear or to affirm, and those who affirmed did not call God to witness. In other words, our Constitution allowed every officer to abolish the oath and to leave God out of the question.

The Bishop informs us, however, that: "The causes which would have made it unwise to introduce any phase of religious controversy into the Constitutional convention have long since ceased to exist." Is there as much division now in the religious world as then? Has the Catholic Church thrown away the differences between it and the Protestants? Are we any better friends to-day than we were in 1789? As a matter of fact, is there not now a cause which did not to the same extent exist then? Have we not in the United States, millions of people who believe in no religion whatever, and who regard all creeds as the work of ignorance and superstition?

The trouble about putting God in the Constitution in 1789 was, that they could not agree on the God to go in; and the reason why our fathers did not unite church and state was, that they could not agree on which church was to be the bride. The Catholics of Maryland certainly would not have permitted the nation to take the Puritan Church, neither would the Presbyterians of Pennsylvania have agreed to this, nor would the Episcopalians of New York, or of any Southern State. Each church said: "Marry me, or die a bachelor."

The Bishop asks whether there are "still reasons why an express recognition of God's sovereignty and providence should not form part of the organic law of the land"? I ask, were there any reasons, in 1789, why an express recognition of God's sovereignty and providence should not form part of the organic law of the land? Did not the Bishop say, only a few lines back of that, "that the introduction of the question of religion into that body would have brought discord, and would have engendered strife throughout the land." What is the "question of religion" to which he referred? Certainly

"the recognition of God's sovereignty and providence," with the addition of describing the God as the author of the supposed providence. Thomas Jefferson would have insisted on having a God in the Constitution who was not the author of the Old and New Testaments. Benjamin Franklin would have asked for the same God; and on that question John Adams would have voted yes. Others would have voted for a Catholic God—others for an Episcopalian, and so on, until the representatives of the various creeds were exhausted.

I took the ground, and I still take the ground, that there is nothing in the Constitution that cannot on occasion be enforced by the army and navy—that is to say, that cannot be defended and enforced by the sword. Suppose God is acknowledged in the Constitution, and somebody denies the existence of this God—what are you to do with him? Every man elected to office must swear or affirm that he will support the Constitution. Can one who does not believe in this God, conscientiously take such oath, or make such affirmation?

The effect, then, of such a clause in the Constitution would be to drive from public life all except the believers in this God, and this providence. The Government would be in fact a theocracy and would resort for its preservation to one of the old forms of religious persecution.

I took the ground in my article, and still maintain it, that all intelligent people know that no one knows whether there is a God or not. This cannot be answered by saying, "that nearly all intelligent men in every age, including our own, have believed in God and have held that they had rational grounds for such faith." This is what is called a departure in pleading—it is a shifting of the issue. I did not say that intelligent people do not believe in the existence of God. What I did say is, that intelligent people know that no one knows whether there is a God or not.

It is not true that we know the conditions of thought. Neither is it true that we know that these conditions are unconditioned. There is no such thing as the unconditioned conditional. We might as well say that the relative is unrelated—that the unrelated is the absolute—and therefore that there is no difference between the absolute and the relative.

The Bishop says we cannot know the relative without knowing the absolute. The probability is that he means that we cannot know the relative without admitting the existence of the absolute, and that we cannot know

the phenomenal without taking the noumenal for granted. Still, we can neither know the absolute nor the noumenal for the reason that our mind is limited to relations.

CRIMES AGAINST CRIMINALS.

** "An Address delivered before the State Bar Association at Albany, N. Y., January 1, 1890."*

IN this brief address, the object is to suggest—there being no time to present arguments at length. The subject has been chosen for the reason that it is one that should interest the legal profession, because that profession to a certain extent controls and shapes the legislation of our country and fixes definitely the scope and meaning of all laws.

Lawyers ought to be foremost in legislative and judicial reform, and of all men they should understand the philosophy of mind, the causes of human action, and the real science of government.

It has been said that the three pests of a community are: A priest without charity; a doctor without knowledge, and, a lawyer without a sense of justice.

I.

All nations seem to have had supreme confidence in the deterrent power of threatened and inflicted pain. They have regarded punishment as the shortest road to reformation. Imprisonment, torture, death, constituted a trinity under whose protection society might feel secure.

In addition to these, nations have relied on confiscation and degradation, on maimings, whippings, brandings, and exposures to public ridicule and contempt. Connected with the court of justice was the chamber of torture. The ingenuity of man was exhausted in the construction of instruments that would surely reach the most sensitive nerve. All this was done in the interest of civilization—for the protection of virtue, and the well-being of states. Curiously it was found that the penalty of death made little difference. Thieves and highwaymen, heretics and blasphemers, went on their way. It was then thought necessary to add to this penalty of death, and consequently, the convicted were tortured in every conceivable way before execution. They were broken on the wheel—their joints dislocated on the rack. They were suspended by their legs and arms, while immense weights were placed upon their breasts. Their flesh was burned and torn with hot

irons. They were roasted at slow fires. They were buried alive—given to wild beasts—molten lead was poured in their ears—their eye-lids were cut off and, the wretches placed with their faces toward the sun—others were securely bound, so that they could move neither hand nor foot, and over their stomachs were placed inverted bowls; under these bowls rats were confined; on top of the bowls were heaped coals of fire, so that the rats in their efforts to escape would gnaw into the bowels of the victims. They were staked out on the sands of the sea, to be drowned by the slowly rising tide—and every means by which human nature can be overcome slowly, painfully and terribly, was conceived and carried into execution. And yet the number of so-called criminals increased. Enough, the fact is that, no matter how severe the punishments were, the crimes increased.

For petty offences men were degraded—given to the mercy of the rabble. Their ears were cut off, their nostrils slit, their foreheads branded. They were tied to the tails of carts and flogged from one town to another. And yet, in spite of all, the poor wretches obstinately refused to become good and useful citizens.

Degradation has been thoroughly tried, with its maimings and brandings, and the result was that those who inflicted the punishments became as degraded as their victims.

Only a few years ago there were more than two hundred offences in Great Britain punishable by death. The gallows-tree bore fruit through all the year, and the hangman was the busiest official in the kingdom—but the criminals increased.

Crimes were committed to punish crimes, and crimes were committed to prevent crimes. The world has been filled with prisons and dungeons, with chains and whips, with crosses and gibbets, with thumbscrews and racks, with hangmen and headsman—and yet these frightful means and instrumentalities and crimes have accomplished little for the preservation of property or life. It is safe to say that governments have committed far more crimes than they have prevented.

Why is it that men will suffer and risk so much for the sake of stealing? Why will they accept degradation and punishment and infamy as their portion? Some will answer this question by an appeal to the dogma of original sin; others by saying that millions of men and women are under the control of fiends—that they are actually possessed by devils; and others will

declare that all these people act from choice—that they are possessed of free wills, of intelligence—that they know and appreciate consequences, and that, in spite of all, they deliberately prefer a life of crime.

II.

Have we not advanced far enough intellectually to deny the existence of chance? Are we not satisfied now that back of every act and thought and dream and fancy is an efficient cause? Is anything, or can anything, be produced that is not necessarily produced? Can the fatherless and motherless exist? Is there not a connection between all events, and is not every act related to all other acts? Is it not possible, is it not probable, is it not true, that the actions of all men are determined by countless causes over which they have no positive control?

Certain it is that men do not prefer unhappiness to joy.

It can hardly be said that man intends permanently to injure himself, and that he does what he does in order that he may live a life of misery. On the other hand, we must take it for granted that man endeavors to better his own condition, and seeks, although by mistaken ways, his own well-being. The poorest man would like to be rich—the sick desire health—and no sane man wishes to win the contempt and hatred of his fellow-men. Every human being prefers liberty to imprisonment.

Are the brains of criminals exactly like the brains of honest men? Have criminals the same ambitions, the same standards of happiness or of well-being? If a difference exists in brain, will that in part account for the difference in character? Is there anything in heredity? Are vices as carefully transmitted by nature as virtues? Does each man in some degree bear burdens imposed by ancestors? We know that diseases of flesh and blood are transmitted—that the child is the heir of physical deformity. Are diseases of the brain—are deformities of the soul, of the mind, also transmitted?

We not only admit, but we assert, that in the physical world there are causes and effects. We insist that there is and can be no effect without an efficient cause. When anything happens in that world, we are satisfied that it was naturally and necessarily produced. The causes may be obscure, but we as implicitly believe in their existence as when we know positively what they are. In the physical world we have taken the ground that there is nothing miraculous—that everything is natural—and if we cannot explain

it, we account for our inability to explain, by our own ignorance. Is it not possible, is it not probable, that what is true in the physical world is equally true in the realm of mind—in that strange world of passion and desire? Is it possible that thoughts or desires or passions are the children of chance, born of nothing? Can we conceive of nothing as a force, or as a cause? If, then, there is behind every thought and desire and passion an efficient cause, we can, in part at least, account for the actions of men.

A certain man under certain conditions acts in a certain way. There are certain temptations that he, with his brain, with his experience, with his intelligence, with his surroundings cannot withstand. He is irresistibly led to do, or impelled to do, certain things; and there are other things that he can not do. If we change the conditions of this man, his actions will be changed. Develop his mind, give him new subjects of thought, and you change the man; and the man being Changed, it follows of necessity that his conduct will be different.

In civilized countries the struggle for existence is severe—the competition far sharper than in savage lands. The consequence is that there are many failures. These failures lack, it may be, opportunity or brain or moral force or industry, or something without which, under the circumstances, success is impossible. Certain lines of conduct are called legal, and certain others criminal, and the men who fail in one line may be driven to the other. How do we know that it is possible for all people to be honest? Are we certain that all people can tell the truth? Is it possible for all men to be generous or candid or courageous?

I am perfectly satisfied that there are millions of people incapable of committing certain crimes, and it may be true that there are millions of others incapable of practicing certain virtues. We do not blame a man because he is not a sculptor, a poet, a painter, or a statesman. We say he has not the genius. Are we certain that it does not require genius to be good? Where is the man with intelligence enough to take into consideration the circumstances of each individual case? Who has the mental balance with which to weigh the forces of heredity, of want, of temptation,—and who can analyze with certainty the mysterious motions of the brain? Where and what are the sources of vice and virtue? In what obscure and shadowy recesses of the brain are passions born? And what is it that for the moment destroys the sense of right and wrong?

Who knows to what extent reason becomes the prisoner of passion—of some strange and wild desire, the seeds of which were sown, it may be, thousands of years ago in the breast of some savage? To what extent do antecedents and surroundings affect the moral sense?

Is it not possible that the tyranny of governments, the injustice of nations, the fierceness of what is called the law, produce in the individual a tendency in the same direction? Is it not true that the citizen is apt to imitate his nation? Society degrades its enemies—the individual seeks to degrade his. Society plunders its enemies, and now and then the citizen has the desire to plunder his. Society kills its enemies, and possibly sows in the heart of some citizen the seeds of murder.

III.

Is it not true that the criminal is a natural product, and that society unconsciously produces these children of vice? Can we not safely take another step, and say that the criminal is a victim, as the diseased and insane and deformed are victims? We do not think of punishing a man because he is afflicted with disease—our desire is to find a cure. We send him, not to the penitentiary, but to the hospital, to an asylum. We do this because we recognize the fact that disease is naturally produced—that it is inherited from parents, or the result of unconscious negligence, or it may be of recklessness—but instead of punishing, we pity. If there are diseases of the mind, of the brain, as there are diseases of the body; and if these diseases of the mind, these deformities of the brain, produce, and necessarily produce, what we call vice, why should we punish the-criminal, and pity those who are physically diseased?

Socrates, in some respects at least one of the wisest of men, said: "It is strange that you should not be angry when you meet a man with an ill-conditioned body, and yet be vexed when you encounter one with an ill-conditioned soul."

We know that there are deformed bodies, and we are equally certain that there are deformed minds.

Of course, society has the right to protect itself, no matter whether the persons who attack its well-being are responsible or not, no matter whether they are sick in mind, or deformed in brain. The right of self-defence exists, not only in the individual, but in society. The great question is, How shall this right of self-defence be exercised? What spirit shall be in the nation, or

in society—the spirit of revenge, a desire to degrade and punish and destroy, or a spirit born of the recognition of the fact that criminals are victims?

The world has thoroughly tried confiscation, degradation, imprisonment, torture and death, and thus far the world has failed. In this connection I call your attention to the following statistics gathered in our own country:

In 1850, we had twenty-three millions of people, and between six and seven thousand prisoners.

In 1860—thirty-one millions of people, and nineteen thousand prisoners.

In 1870—thirty-eight millions of people, and thirty-two thousand prisoners.

In 1880—fifty millions of people, and fifty-eight thousand prisoners.

It may be curious to note the relation between insanity, pauperism and crime:

In 1850, there were fifteen thousand insane; in 1860, twenty-four thousand; in 1870, thirty-seven thousand; in 1880, ninety-one thousand.

In the light of these statistics, we are not succeeding in doing away with crime. There were in 1880, fifty-eight thousand prisoners, and in the same year fifty-seven thousand homeless children, and sixty-six thousand paupers in almshouses.

Is it possible that we must go to the same causes for these effects?

IV.

There is no reformation in degradation. To mutilate a criminal is to say to all the world that he is a criminal, and to render his reformation substantially impossible. Whoever is degraded by society becomes its enemy. The seeds of malice are sown in his heart, and to the day of his death he will hate the hand that sowed the seeds.

There is also another side to this question. A punishment that degrades the punished will degrade the man who inflicts the punishment, and will degrade the government that procures the infliction. The whipping-post pollutes, not only the whipped, but the whipper, and not only the whipper, but the community at large. Wherever its shadow falls it degrades.

If, then, there is no reforming power in degradation—no deterrent power—for the reason that the degradation of the criminal degrades the

community, and in this way produces more criminals, then the next question is, Whether there is any reforming power in torture? The trouble with this is that it hardens and degrades to the last degree the ministers of the law. Those who are not affected by the agonies of the bad will in a little time care nothing for the sufferings of the good. There seems to be a little of the wild beast in men—a something that is fascinated by suffering, and that delights in inflicting pain. When a government tortures, it is in the same state of mind that the criminal was when he committed his crime. It requires as much malice in those who execute the law, to torture a criminal, as it did in the criminal to torture and kill his victim. The one was a crime by a person, the other by a nation.

There is something in injustice, in cruelty, that tends to defeat itself. There were never as many traitors in England as when the traitor was drawn and quartered—when he was tortured in every possible way—when his limbs, torn and bleeding, were given to the fury of mobs or exhibited pierced by pikes or hung in chains. These frightful punishments produced intense hatred of the government, and traitors continued to increase until they became powerful enough to decide what treason was and who the traitors were, and to inflict the same torments on others.

Think for a moment of what man has suffered in the cause of crime. Think of the millions that have been imprisoned, impoverished and degraded because they were thieves and forgers, swindlers and cheats. Think for a moment of what they have endured—of the difficulties under which they have pursued their calling, and it will be exceedingly hard to believe that they were sane and natural people possessed of good brains, of minds well-poised, and that they did what they did from a choice unaffected by heredity and the countless circumstances that tend to determine the conduct of human beings.

The other day I was asked these questions: "Has there been as much heroism displayed for the right as for the wrong? Has virtue had as many martyrs as vice?"

For hundreds of years the world has endeavored to destroy the good by force. The expression of honest thought was regarded as the greatest of crimes. Dungeons were filled by the noblest and the best, and the blood of the bravest was shed by the sword or consumed by flame. It was impossible to destroy the longing in the heart of man for liberty and truth. Is it not

possible that brute force and cruelty and revenge, imprisonment, torture and death are as impotent to do away with vice as to destroy virtue?

In our country there has been for many years a growing feeling that convicts should neither be degraded nor tortured. It was provided in the Constitution of the United States that "cruel and unusual punishments should not be inflicted." Benjamin Franklin took great interest in the treatment of prisoners, being a thorough believer in the reforming influence of justice, having no confidence whatever in punishment for punishment's sake.

To me it has always been a mystery how the average man, knowing something of the weakness of human nature, something of the temptations to which he himself has been exposed—remembering the evil of his life, the things he would have done had there been opportunity, had he absolutely known that discovery would be impossible—should have feelings of hatred toward the imprisoned.

Is it possible that the average man assaults the criminal in a spirit of self-defence? Does he wish to convince his neighbors that the evil thought and impulse were never in his mind? Are his words a shield that he uses to protect himself from suspicion? For my part, I sympathize sincerely with all failures, with the victims of society, with those who have fallen, with the imprisoned, with the hopeless, with those who have been stained by verdicts of guilty, and with those who, in the moment of passion have destroyed, as with a blow, the future of their lives.

How perilous, after all, is the state of man. It is the work of a life to build a great and splendid character. It is the work of a moment to destroy it utterly, from turret to foundation stone. How cruel hypocrisy is!

Is there any remedy? Can anything be done for the reformation of the criminal?

He should be treated with kindness. Every right should be given him, consistent with the safety of society. He should neither be degraded nor robbed. The State should set the highest and noblest example. The powerful should never be cruel, and in the breast of the supreme there should be no desire for revenge.

A man in a moment of want steals the property of another, and he is sent to the penitentiary—first, as it is claimed, for the purpose of deterring others; and secondly, of reforming him. The circumstances of each

individual case are rarely inquired into. Investigation stops when the simple fact of the larceny has been ascertained. No distinctions are made except as between first and subsequent offences. Nothing is allowed for surroundings.

All will admit that the industrious must be protected. In this world it is necessary to work. Labor is the foundation of all prosperity. Larceny is the enemy of industry. Society has the right to protect itself. The question is, Has it the right to punish?—has it the right to degrade?—or should it endeavor to reform the convict?

A man is taken to the penitentiary. He is clad in the garments of a convict. He is degraded—he loses his name—he is designated by a number. He is no longer treated as a human being—he becomes the slave of the State. Nothing is done for his improvement—nothing for his reformation. He is driven like a beast of burden; robbed of his labor; leased, it may be, by the State to a contractor, who gets out of his hands, out of his muscles, out of his poor brain, all the toil that he can. He is not allowed to speak with a fellow-prisoner. At night he is alone in his cell. The relations that should exist between men are destroyed. He is a convict. He is no longer worthy to associate even with his keepers. The jailer is immensely his superior, and the man who turns the key upon him at night regards himself, in comparison, as a model of honesty, of virtue and manhood. The convict is pavement on which those who watch him walk. He remains for the time of his sentence, and when that expires he goes forth a branded man. He is given money enough to pay his fare back to the place from whence he came.

What is the condition of this man? Can he get employment? Not if he honestly states who he is and where he has been. The first thing he does is to deny his personality, to assume a name. He endeavors by telling falsehoods to lay the foundation for future good conduct. The average man does not wish to employ an ex-convict, because the average man has no confidence in the reforming power of the penitentiary. He believes that the convict who comes out is worse than the convict who went in. He knows that in the penitentiary the heart of this man has been hardened—that he has been subjected to the torture of perpetual humiliation—that he has been treated like a ferocious beast; and so he believes that this ex-convict has in his heart hatred for society, that he feels he has been degraded and robbed. Under these circumstances, what avenue is opened to the ex-convict? If he

changes his name, there will be some detective, some officer of the law, some meddling wretch, who will betray his secret. He is then discharged. He seeks employment again, and he must seek it by again telling what is not true. He is again detected and again discharged. And finally he becomes convinced that he cannot live as an honest man. He naturally drifts back into the society of those who have had a like experience; and the result is that in a little while he again stands in the dock, charged with the commission of another crime. Again he is sent to the penitentiary—and this is the end. He feels that his day is done, that the future has only degradation for him.

The men in the penitentiaries do not work for themselves. Their labor belongs to others. They have no interest in their toil—no reason for doing the best they can—and the result is that the product of their labor is poor. This product comes in competition with the work of mechanics, honest men, who have families to support, and the cry is that convict labor takes the bread from the mouths of virtuous people.

VI.

Why should the State take without compensation the labor of these men; and why should they, after having been imprisoned for years, be turned out without the means of support? Would it not be far better, far more economical, to pay these men for their labor, to lay aside their earnings from day to day, from month to month, and from year to year—to put this money at interest, so that when the convict is released after five years of imprisonment he will have several hundred dollars of his own—not merely money enough to pay his way back to the place from which he was sent, but enough to make it possible for him to commence business on his own account, enough to keep the wolf of crime from the door of his heart?

Suppose the convict comes out with five hundred dollars. This would be to most of that class a fortune. It would form a breastwork, a fortress, behind which the man could fight temptation. This would give him food and raiment, enable him to go to some other State or country where he could redeem himself. If this were done, thousands of convicts would feel under immense obligation to the Government. They would think of the penitentiary as the place in which they were saved—in which they were redeemed—and they would feel that the verdict of guilty rescued them from the abyss of crime. Under these circumstances, the law would appear

beneficent, and the heart of the poor convict, instead of being filled with malice, would overflow with gratitude. He would see the propriety of the course pursued by the Government. He would recognize and feel and experience the benefits of this course, and the result would be good, not only to him, but to the nation as well.

If the convict worked for himself, he would do the best he could, and the wares produced in the penitentiaries would not cheapen the labor of other men.

VII.

There are, however, men who pursue crime as a vocation—as a profession—men who have been convicted again and again, and who will persist in using the liberty of intervals to prey upon the rights of others. What shall be done with these men and women?

Put one thousand hardened thieves on an island—compel them to produce what they eat and use—and I am almost certain that a large majority would be opposed to theft. Those who worked would not permit those who did not, to steal the result of their labor. In other words, self-preservation would be the dominant idea, and these men would instantly look upon the idlers as the enemies of their society.

Such a community would be self-supporting. Let women of the same class be put by themselves. Keep the sexes absolutely apart. Those who are beyond the power of reformation should not have the liberty to reproduce themselves. Those who cannot be reached by kindness—by justice—those who under no circumstances are willing to do their share, should be separated. They should dwell apart, and dying, should leave no heirs.

What shall be done with the slayers of their fellow-men—with murderers? Shall the nation take life?

It has been contended that the death penalty deters others—that it has far more terror than imprisonment for life. What is the effect of the example set by a nation? Is not the tendency to harden and degrade not only those who inflict and those who witness, but the entire community as well?

A few years ago a man was hanged in Alexandria, Virginia. One who witnessed the execution, on that very day, murdered a peddler in the Smithsonian grounds at Washington. He was tried and executed, and one

who witnessed his hanging went home, and on the same day murdered his wife.

The tendency of the extreme penalty is to prevent conviction. In the presence of death it is easy for a jury to find a doubt. Technicalities become important, and absurdities, touched with mercy, have the appearance for a moment of being natural and logical. Honest and conscientious men dread a final and irrevocable step. If the penalty were imprisonment for life, the jury would feel that if any mistake were made it could be rectified; but where the penalty is death a mistake is fatal. A conscientious man takes into consideration the defects of human nature—the uncertainty of testimony, and the countless shadows that dim and darken the understanding, and refuses to find a verdict that, if wrong, cannot be righted.

The death penalty, inflicted by the Government, is a perpetual excuse for mobs.

The greatest danger in a Republic is a mob, and as long as States inflict the penalty of death, mobs will follow the example. If the State does not consider life sacred, the mob, with ready rope, will strangle the suspected. The mob will say: "The only difference is in the trial; the State does the same—we know the man is guilty—why should time be wasted in technicalities?" In other words, why may not the mob do quickly that which the State does slowly?

Every execution tends to harden the public heart—tends to lessen the sacredness of human life. In many States of this Union the mob is supreme. For certain offences the mob is expected to lynch the supposed criminal. It is the duty of every citizen—and as it seems to me especially of every lawyer—to do what he can to destroy the mob spirit. One would think that men would be afraid to commit any crime in a community where the mob is in the ascendency, and yet, such are the contradictions and subtleties of human nature, that it is exactly the opposite. And there is another thing in this connection—the men who constitute the mob are, as a rule, among the worst, the lowest, and the most depraved.

A few years ago, in Illinois, a man escaped from jail, and, in escaping, shot the sheriff. He was pursued, overtaken—lynched. The man who put the rope around his neck was then out on bail, having been indicted for an assault to murder. And after the poor wretch was dead, another man climbed

the tree from which he dangled and, in derision, put a cigar in the mouth of the dead; and this man was on bail, having been indicted for larceny.

Those who are the fiercest to destroy and hang their fellow-men for having committed crimes, are, for the most part, at heart, criminals themselves.

As long as nations meet on the fields of war—as long as they sustain the relations of savages to each other—as long as they put the laurel and the oak on the brows of those who kill—just so long will citizens resort to violence, and the quarrels of individuals be settled by dagger and revolver.

VIII.

If we are to change the conduct of men, we must change their conditions. Extreme poverty and crime go hand in hand. Destitution multiplies temptations and destroys the finer feelings. The bodies and souls of men are apt to be clad in like garments. If the body is covered with rags, the soul is generally in the same condition. Selfrespect is gone—the man looks down—he has neither hope nor courage. He becomes sinister—he envies the prosperous—hates the fortunate, and despises himself.

As long as children are raised in the tenement and gutter, the prisons will be full. The gulf between the rich and poor will grow wider and wider. One will depend on cunning, the other on force. It is a great question whether those who live in luxury can afford to allow others to exist in want. The value of property depends, not on the prosperity of the few, but on the prosperity of a very large majority. Life and property must be secure, or that subtle thing called "value" takes its leave. The poverty of the many is a perpetual menace. If we expect a prosperous and peaceful country, the citizens must have homes. The more homes, the more patriots, the more virtue, and the more security for all that gives worth to life.

We need not repeat the failures of the old world. To divide lands among successful generals, or among favorites of the crown, to give vast estates for services rendered in war, is no worse than to allow men of great wealth to purchase and hold vast tracts of land. The result is precisely the same—that is to say, a nation composed of a few landlords and of many tenants—the tenants resorting from time to time to mob violence, and the landlords depending upon a standing army. The property of no man, however, should be taken for either private or public use without just compensation and in accordance with law. There is in the State what is known as the right of

eminent domain. The State reserves to itself the power to take the land of any private citizen for a public use, paying to that private citizen a just compensation to be legally ascertained. When a corporation wishes to build a railway, it exercises this right of eminent domain, and where the owner of land refuses to sell a right of way, or land for the establishment of stations or shops, and the corporation proceeds to condemn the land to ascertain its value, and when the amount thus ascertained is paid, the property vests in the corporation. This power is exercised because in the estimation of the people the construction of a railway is a public good.

I believe that this power should be exercised in another direction. It would be well as it seems to me, for the Legislature to fix the amount of land that a private citizen may own, that will not be subject to be taken for the use of which I am about to speak. The amount to be thus held will depend upon many local circumstances, to be decided by each State for itself. Let me suppose that the amount of land that may be held for a farmer for cultivation has been fixed at one hundred and sixty acres—and suppose that A has several thousand acres. B wishes to buy one hundred and sixty acres or less of this land, for the purpose of making himself a home. A refuses to sell. Now, I believe that the law should be so that B can invoke this right of eminent domain, and file his petition, have the case brought before a jury, or before commissioners, who shall hear the evidence and determine the value, and on the payment of the amount the land shall belong to B.

I would extend the same law to lots and houses in cities and villages—the object being to fill our country with the owners of homes, so that every child shall have a fireside, every father and mother a roof, provided they have the intelligence, the energy and the industry to acquire the necessary means.

Tenements and flats and rented lands are, in my judgment, the enemies of civilization. They make the rich richer, and the poor poorer. They put a few in palaces, but they put many in prisons.

I would go a step further than this. I would exempt homes of a certain value not only from levy and sale, but from every kind of taxation, State and National—so that these poor people would feel that they were in partnership with nature—that some of the land was absolutely theirs, and that no one could drive them from their home—so that mothers could feel

secure. If the home increased in value, and exceeded the limit, then taxes could be paid on the excess; and if the home were sold, I would have the money realized exempt for a certain time in order that the family should have the privilege of buying another home.

The home, after all, is the unit of civilization, of good government; and to secure homes for a great majority of our citizens, would be to lay the foundation of our Government deeper and broader and stronger than that of any nation that has existed among men.

IX.

No one places a higher value upon the free school than I do; and no one takes greater pride in the prosperity of our colleges and universities. But at the same time, much that is called education simply unfits men successfully to fight the battle of life. Thousands are to-day studying things that will be of exceedingly little importance to them or to others. Much valuable time is wasted in studying languages that long ago were dead, and histories in which there is no truth.

There was an idea in the olden time—and it is not yet dead—that whoever was educated ought not to work; that he should use his head and not his hands. Graduates were ashamed to be found engaged in manual labor, in ploughing fields, in sowing or in gathering grain. To this manly kind of independence they preferred the garret and the precarious existence of an unappreciated poet, borrowing their money from their friends, and their ideas from the dead. The educated regarded the useful as degrading—they were willing to stain their souls to keep their hands white.

The object of all education should be to increase the usefulness of man—usefulness to himself and others. Every human being should be taught that his first duty is to take care of himself, and that to be self-respecting he must be self-supporting. To live on the labor of others, either by force which enslaves, or by cunning which robs, or by borrowing or begging, is wholly dishonorable. Every man should be taught some useful art. His hands should be educated as well as his head. He should be taught to deal with things as they are—with life as it is. This would give a feeling of independence, which is the firmest foundation of honor, of character. Every man knowing that he is useful, admires himself.

In all the schools children should be taught to work in wood and iron, to understand the construction and use of machinery, to become acquainted

with the great forces that man is using to do his work. The present system of education teaches names, not things. It is as though we should spend years in learning the names of cards, without playing a game.

In this way boys would learn their aptitudes—would ascertain what they were fitted for—what they could do. It would not be a guess, or an experiment, but a demonstration. Education should increase a boy's chances for getting a living. The real good of it is to get food and roof and raiment, opportunity to develop the mind and the body and live a full and ample life.

The more real education, the less crime—and the more homes, the fewer prisons.

X.

The fear of punishment may deter some, the fear of exposure others; but there is no real reforming power in fear or punishment. Men cannot be tortured into greatness, into goodness. All this, as I said before, has been thoroughly tried. The idea that punishment was the only relief, found its limit, its infinite, in the old doctrine of eternal pain; but the believers in that dogma stated distinctly that the victims never would be, and never could be, reformed.

As men become civilized they become capable of greater pain and of greater joy. To the extent that the average man is capable of enjoying or suffering, to that extent he has sympathy with others. The average man, the more enlightened he becomes, the more apt he is to put himself in the place of another. He thinks of his prisoner, of his employee, of his tenant—and he even thinks beyond these; he thinks of the community at large. As man becomes civilized he takes more and more into consideration circumstances and conditions. He gradually loses faith in the old ideas and theories that every man can do as he wills, and in the place of the word "wills," he puts the word "must." The time comes to the intelligent man when in the place of punishments he thinks of consequences, results—that is to say, not something inflicted by some other power, but something necessarily growing out of what is done. The clearer men perceive the consequences of actions, the better they will be. Behind consequences we place no personal will, and consequently do not regard them as inflictions, or punishments. Consequences, no matter how severe they may be, create in the mind no feeling of resentment, no desire for revenge.' We do not feel bitterly toward the fire because it burns, or the frost that freezes, or the flood that

overwhelms, or the sea that drowns—because we attribute to these things no motives, good or bad. So, when through the development of the intellect man perceives not only the nature, but the absolute certainty of consequences, he refrains from certain actions, and this may be called reformation through the intellect—and surely there is no better reformation than this. Some may be, and probably millions have been, reformed, through kindness, through gratitude—made better in the sunlight of charity. In the atmosphere of kindness the seeds of virtue burst into bud and flower. Cruelty, tyranny, brute force, do not and can not by any possibility better the heart of man. He who is forced upon his knees has the attitude, but never the feeling, of prayer.

I am satisfied that the discipline of the average prison hardens and degrades. It is for the most part a perpetual exhibition of arbitrary power. There is really no appeal. The cries of the convict are not heard beyond the walls. The protests die in cells, and the poor prisoner feels that the last tie between him and his fellow-men has been broken. He is kept in ignorance of the outer world. The prison is a cemetery, and his cell is a grave.

In many of the penitentiaries there are instruments of torture, and now and then a convict is murdered. Inspections and investigations go for naught, because the testimony of a convict goes for naught. He is generally prevented by fear from telling his wrongs; but if he speaks, he is not believed—he is regarded as less than a human being, and so the imprisoned remain without remedy. When the visitors are gone, the convict who has spoken is prevented from speaking again.

Every manly feeling, every effort toward real reformation, is trampled under foot, so that when the convict's time is out there is little left on which to build. He has been humiliated to the last degree, and his spirit has so long been bent by authority and fear that even the desire to stand erect has almost faded from the mind. The keepers feel that they are safe, because no matter what they do, the convict when released will not tell the story of his wrongs, for if he conceals his shame, he must also hide their guilt.

Every penitentiary should be a real reformatory. That should be the principal object for the establishment of the prison. The men in charge should be of the kindest and noblest. They should be filled with divine enthusiasm for humanity, and every means should be taken to convince the prisoner that his good is sought—that nothing is done for revenge—nothing

for a display of power, and nothing for the gratification of malice. He should feel that the warden is his unselfish friend. When a convict is charged with a violation of the rules—with insubordination, or with any offence, there should be an investigation in due and proper form, giving the convict an opportunity to be heard. He should not be for one moment the victim of irresponsible power. He would then feel that he had some rights, and that some little of the human remained in him still. They should be taught things of value—instructed by competent men. Pains should be taken, not to punish, not to degrade, but to benefit and ennoble.

We know, if we know anything, that men in the penitentiaries are not altogether bad, and that many out are not altogether good; and we feel that in the brain and heart of all, there are the seeds of good and bad. We know, too, that the best are liable to fall, and it may be that the worst, under certain conditions, may be capable of grand and heroic deeds. Of one thing we may be assured—and that is, that criminals will never be reformed by being robbed, humiliated and degraded.

Ignorance, filth, and poverty are the missionaries of crime. As long as dishonorable success outranks honest effort—as long as society bows and cringes before the great thieves, there will be little ones enough to fill the jails.

XI.

All the penalties, all the punishments, are inflicted under a belief that man can do right under all circumstances—that his conduct is absolutely under his control, and that his will is a pilot that can, in spite of winds and tides, reach any port desired. All this is, in my judgment, a mistake. It is a denial of the integrity of nature. It is based upon the supernatural and miraculous, and as long as this mistake remains the corner-stone of criminal jurisprudence, reformation will be impossible.

We must take into consideration the nature of man—the facts of mind—the power of temptation—the limitations of the intellect—the force of habit—the result of heredity—the power of passion—the domination of want—the diseases of the brain—the tyranny of appetite—the cruelty of conditions—the results of association—the effects of poverty and wealth, of helplessness and power.

Until these subtle things are understood—until we know that man, in spite of all, can certainly pursue the highway of the right, society should not

impoverish and degrade, should not chain and kill those who, after all, may be the helpless victims of unknown causes that are deaf and blind.

We know something of ourselves—of the average man—of his thoughts, passions, fears and aspirations—something of his sorrows and his joys, his weakness, his liability to fall—something of what he resists—the struggles, the victories and the failures of his life. We know something of the tides and currents of the mysterious sea—something of the circuits of the wayward winds—but we do not know where the wild storms are born that wreck and rend. Neither do we know in what strange realm the mists and clouds are formed that darken all the heaven of the mind, nor from whence comes the tempest of the brain in which the will to do, sudden as the lightning's flash, seizes and holds the man until the dreadful deed is done that leaves a curse upon the soul.

We do not know. Our ignorance should make us hesitate. Our weakness should make us merciful.

I cannot more fittingly close this address than by quoting the prayer of the Buddhist: "I pray thee to have pity on the vicious—thou hast already had pity on the virtuous by making them so."

A WOODEN GOD.

To the Editor:

To-day Messrs. Wright, Dickey, O'Connor, and Murch, of the select committee on the causes of the present depression of labor, presented the majority special report upon Chinese immigration.

These gentlemen are in great fear for the future of our most holy and perfectly authenticated religion, and have, like faithful watchmen, from the walls and towers of Zion, hastened to give the alarm. They have informed Congress that "Joss has his temple of worship in the Chinese quarters, in San Francisco. Within the walls of a dilapidated structure is exposed to the view of the faithful the god of the Chinaman, and here are his altars of worship. Here he tears up his pieces of paper; here he offers up his prayers; here he receives his religious consolations, and here is his road to the celestial land;" that "Joss is located in a long, narrow room in a building in a back alley, upon a kind of altar;" that "he is a wooden image, looking as much like an alligator as like a human being;" that the Chinese "think there is such a place as heaven;" that "all classes of Chinamen worship idols;" that "the temple is open every day at all hours;" that "the Chinese have no Sunday;" that this heathen god has "huge jaws, a big red tongue, large white teeth, a half-dozen arms, and big, fiery eyeballs. About him are placed offerings of meat and other eatables—a sacrificial offering."

*A letter to the Chicago Times, written at Washington, D. C., March 27, 1880.

No wonder that these members of the committee were shocked at such an image of God, knowing as they did that the only true God was correctly described by the inspired lunatic of Patmos in the following words:

"And there sat in the midst of the seven golden candlesticks one like unto the Son of man, clothed with a garment down to the foot, and girt about the paps with a golden girdle. His head and his hairs were white like wool, as white as snow; and his eyes were as a flame of fire; and his feet like unto fine brass, as if they burned in a furnace; and his voice as the sound of

many waters. And he had in his right hand seven stars: and out of his mouth went a sharp, two-edged sword: and his countenance was as the sun shineth in his strength."

Certainly a large mouth filled with white teeth is preferable to one used as the scabbard of a sharp, two-edged sword. Why should these gentlemen object to a god with big, fiery eyeballs, when their own Deity has eyes like a flame of fire?

Is it not a little late in the day to object to people because they sacrifice meat and other eatables to their god? We all know that for thousands of years the "real" God was exceedingly fond of roasted meat; that he loved the savor of burning flesh, and delighted in the perfume of fresh, warm blood.

The following account of the manner in which the "living God" desired that his chosen people should sacrifice, tends to show the degradation and religious blindness of the Chinese:

"Aaron therefore went unto the altar, and slew the calf of the sin offering, which was for himself. And the sons of Aaron brought the blood unto him: and he dipped his finger in the blood, and put it upon the horns of the altar, and poured out the blood at the bottom of the altar: But the fat, and the kidneys, and the caul above the liver of the sin offering, he burnt upon the altar; as the Lord commanded Moses. And the flesh and the hide he burnt with fire without the camp. And he slew the burnt offering; and Aaron's sons presented unto him the blood, which he sprinkled round about upon the altar. * * * And he brought the meat offering, and took a handful thereof, and burnt it upon the altar. * * * He slew also the bullock and the ram for a sacrifice of peace offering, which was for the people: and Aaron's sons presented unto him the blood, which he sprinkled upon the altar round about, and the fat of the bullock and of the ram, the rump, and that which covereth the inwards and the kidneys, and the caul above the liver, and they put the fat upon the breasts, and he burnt the fat upon the altar. And the breast and the right shoulder Aaron waved for a wave offering before the Lord, as Moses commanded."

If the Chinese only did something like this, we would know that they worshiped the "living" God. The idea that the supreme head of the "American system of religion" can be placated with a little meat and "ordinary eatables" is simply preposterous. He has always asked for blood,

and has always asserted that without the shedding of blood there is no remission of sin.

The world is also informed by these gentlemen that "the idolatry of the Chinese produces a demoralizing effect upon our American youth by bringing sacred things into disrespect, and making religion a theme of disgust and contempt."

In San Francisco there are some three hundred thousand people. Is it possible that a few Chinese can bring our "holy religion" into disgust and contempt? In that city there are fifty times as many churches as joss-houses. Scores of sermons are uttered every week; religious books and papers are plentiful as leaves in autumn, and somewhat dryer; thousands of Bibles are within the reach of all. And there, too, is the example of a Christian city.

Why should we send missionaries to China if we can not convert the heathen when they come here? When missionaries go to a foreign land, the poor, benighted people have to take their word for the blessings showered upon a Christian people; but when the heathen come here they can see for themselves. What was simply a story becomes a demonstrated fact. They come in contact with people who love their enemies. They see that in a Christian land men tell the truth; that they will not take advantage of strangers; that they are just and patient, kind and tender; that they never resort to force; that they have no prejudice on account of color, race, or religion; that they look upon mankind as brethren; that they speak of God as a universal Father, and are willing to work, and even to suffer, for the good not only of their own countrymen, but of the heathen as well. All this the Chinese see and know, and why they still cling to the religion of their country is to me a matter of amazement.

We all know that the disciples of Jesus do unto others as they would that others should do unto them, and that those of Confucius do not unto others anything that they would not that others should do unto them. Surely, such peoples ought to live together in perfect peace.

Rising with the subject, growing heated with a kind of holy indignation, these Christian representatives of a Christian people most solemnly declare that:

"Anyone who is really endowed with a correct knowledge of our religious system, which acknowledges the existence of a living God and an accountability to him, and a future state of reward and punishment, who

feels that he has an apology for this abominable pagan worship is not a fit person to be ranked as a good citizen of the American Union. It is absurd to make any apology for its toleration. It must be abolished, and the sooner the decree goes forth by the power of this Government the better it will be for the interests of this land."

I take this, the earliest opportunity, to inform these gentlemen composing a majority of the committee, that we have in the United States no "religious system"; that this is a secular Government. That it has no religious creed; that it does not believe or disbelieve in a future state of reward and punishment; that it neither affirms nor denies the existence of a "living God"; and that the only god, so far as this Government is concerned, is the legally expressed will of a majority of the people. Under our flag the Chinese have the same right to worship a wooden god that you have to worship any other. The Constitution protects equally the church of Jehovah and the house of Joss. Whatever their relative positions may be in heaven, they stand upon a perfect equality in the United States.

This Government is an Infidel Government. We have a Constitution with man put in and God left out; and it is the glory of this country that we have such a Constitution.

It may be surprising to you that I have an apology for pagan worship, yet I have. And it is the same one that I have for the writers of this report. I account for both by the word *superstition*. Why should we object to their worshipping God as they please? If the worship is improper, the protestation should come not from a committee of Congress, but from God himself. If he is satisfied that is sufficient.

Our religion can only be brought into contempt by the actions of those who profess to be governed by its teachings. This report will do more in that direction than millions of Chinese could do by burning pieces of paper before a wooden image. If you wish to impress the Chinese with the value of your religion, of what you are pleased to call "The American system," show them that Christians are better than heathens. Prove to them that what you are pleased to call the "living God" teaches higher and holier things, a grander and purer code of morals than can be found upon pagan pages. Excel these wretches in industry, in honesty, in reverence for parents, in cleanliness, in frugality; and above all by advocating the absolute liberty of human thought.

Do not trample upon these people because they have a different conception of things about which even this committee knows nothing.

Give them the same privilege you enjoy of making a God after their own fashion. And let them describe him as they will. Would you be willing to have them remain, if one of their race, thousands of years ago, had pretended to have seen God, and had written of him as follows:

"There went up a smoke out of his nostrils, and fire out of his mouth devoured: coals were kindled by it, * * * and he rode upon a cherub and did fly."

Why should you object to these people on account of their religion? Your objection has in it the spirit of hate and intolerance. Of that spirit the Inquisition was born. That spirit lighted the fagot, made the thumbscrew, put chains upon the limbs, and lashes upon the backs of men. The same spirit bought and sold, captured and kidnapped human beings; sold babes, and justified all the horrors of slavery.

Congress has nothing to do with the religion of the people. Its members are not responsible to God for the opinions of their constituents, and it may tend to the happiness of the constituents for me to state that they are in no way responsible for the religion of the members. Religion is an individual, not a national, matter. And where the nation interferes with the right of conscience, the liberties of the people are devoured by the monster superstition.

If you wish to drive out the Chinese, do not make a pretext of religion. Do not pretend that you are trying to do God a favor. Injustice in his name is doubly detestable. The assassin can not sanctify his dagger by falling on his knees, and it does not help a falsehood if it be uttered as a prayer. Religion, used to intensify the hatred of men toward men under the pretence of pleasing God, has cursed this world.

A portion of this most remarkable report is intensely religious. There is in it almost the odor of sanctity; and when reading it, one is impressed with the living piety of its authors. But on the twenty-fifth page there are a few passages that must pain the hearts of true believers.

Leaving their religious views, the members immediately betake themselves to philosophy and prediction. Listen:

"The Chinese race and the American citizen, whether native-born or one who is eligible to our naturalization laws and becomes a citizen, are in a state of antagonism. They cannot, or will not, ever meet upon common ground, and occupy together the same social level. This is impossible. The pagan and the Christian travel different paths. This one believes in a living God; and that one in a type of monsters and the worship of wood and stone. Thus in the religion of the two races of men they are as wide apart as the poles of the two hemispheres. They cannot now and never will approach the same religious altar. The Christian will not recede to barbarism, nor will the Chinese advance to the enlightened belt (whatever it is) of civilization. * *

* He cannot be converted to those modern ideas of religious worship which have been accepted by Europe and which crown the American system."

Christians used to believe that through their religion all the nations of the earth were finally to be blest. In accordance with that belief missionaries have been sent to every land, and untold wealth has been expended for what has been called the spread of the gospel.

I am almost sure that I have read somewhere that "Christ died for *all* men," and that "God is no respecter of persons." It was once taught that it was the duty of Christians to tell all people the "tidings of great joy." I have never believed these things myself, but have always contended that an honest merchant was the best missionary. Commerce makes friends, religion makes enemies; the one enriches and the other impoverishes; the one thrives best where the truth is told, the other where falsehoods are believed. For myself, I have but little confidence in any business or enterprise or investment that promises dividends only after the death of the stockholders.

But I am astonished that four Christian statesmen, four members of Congress, in the last quarter of the nineteenth century, who seriously object to people on account of their religious convictions, should still assert that the very religion in which they believe—and the only religion established by the "living God," head of the American system—is not adapted to the spiritual needs of one-third of the human race. It is amazing that these four gentlemen have, in the defence of the Christian religion, announced the discovery that it is wholly inadequate for the civilization of mankind; that the light of the cross can never penetrate the darkness of China; "that all the labors of the missionary, the example of the good, the exalted character of

our civilization, make no impression upon the pagan life of the Chinese;" and that even the report of this committee will not tend to elevate, refine, and Christianize the yellow heathen of the Pacific coast. In the name of religion these gentlemen have denied its power, and mocked at the enthusiasm of its founder. Worse than this, they have predicted for the Chinese a future of ignorance and idolatry in this world, and, if the "American system" of religion is true, hell-fire in the next.

For the benefit of these four philosophers and prophets I will give a few extracts from the writings of Confucius, that will, in my judgment, compare favorably with the best passages of their report:

"My doctrine is that man must be true to the principles of his nature, and the benevolent exercise of them toward others.

With coarse rice to eat, with water to drink, and with my bended arm for a pillow, I still have joy.

Riches and honor acquired by injustice are to me but floating clouds.

The man who, in view of gain, thinks of righteousness; who, in view of danger, forgets life, and who remembers an old agreement, however far back it extends, such a man may be reckoned a complete man.

Recompense injury with justice, and kindness with kindness.

There is one word which may serve as a rule of practice for all one's life: Reciprocity is that word."

When the ancestors of the four Christian Congressmen were barbarians, when they lived in caves, gnawed bones, and worshiped dried snakes, the infamous Chinese were reading these sublime sentences of Confucius. When the forefathers of these Christian statesmen were hunting toads to get the jewels out of their heads, to be used as charms, the wretched Chinese were calculating eclipses, and measuring the circumference of the earth. When the progenitors of these representatives of the "American system of religion" were burning women charged with nursing devils, the people "incapable of being influenced by the exalted character of our civilization," were building asylums for the insane.

Neither should it be forgotten that, for thousands of years, the Chinese have honestly practiced the great principle known as Civil Service Reform—a something that even the administration of Mr. Hayes has reached only through the proxy of promise.

If we wish to prevent the immigration of the Chinese, let us reform our treaties with the vast empire from whence they came. For thousands of years the Chinese secluded themselves from the rest of the world. They did not deem the Christian nations fit to associate with. We forced ourselves upon them. We called, not with cards, but with cannon. The English battered down the door in the names of opium and Christ. This infamy was regarded as another triumph for the gospel. At last, in self-defence, the Chinese allowed Christians to touch their shores. Their wise men, their philosophers, protested, and prophesied that time would show that Christians could not be trusted. This report proves that the wise men were not only philosophers, but prophets.

Treat China as you would England. Keep a treaty while it is in force. Change it if you will, according to the laws of nations, but on no account excuse a breach of national faith by pretending that we are dishonest for God's sake.

SOME INTERROGATION POINTS.

A NEW party is struggling for recognition—a party with leaders who are not politicians, with followers who are not seekers after place. Some of those who suffer and some of those who sympathize, have combined. Those who feel that they are oppressed are organized for the purpose of redressing their wrongs. The workers for wages, and the seekers for work have uttered a protest. This party is an instrumentality for the accomplishment of certain things that are very near and very dear to the hearts of many millions.

The object to be attained is a fairer division of profits between employers and employed. There is a feeling that in some way the workers should not want—that the industrious should not be the indigent. There is a hope that men and women and children are not forever to be the victims of ignorance and want—that the tenement house is not always to be the home of the poor, or the gutter the nursery of their babes.

As yet, the methods for the accomplishment of these aims have not been agreed upon. Many theories have been advanced and none has been adopted. The question is so vast, so complex, touching human interests in so many ways, that no one has yet been great enough to furnish a solution, or, if any one has furnished a solution, no one else has been wise enough to understand it.

'The hope of the future is that this question will finally be understood. It must not be discussed in anger. If a broad and comprehensive view is to be taken, there is no place for hatred or for prejudice. Capital is not to blame. Labor is not to blame. Both have been caught in the net of circumstances. The rich are as generous as the poor would be if they should change places. Men acquire through the noblest and the tenderest instincts. They work and save not only for themselves, but for their wives and for their children. There is but little confidence in the charity of the world. The prudent man in his youth makes preparation for his age. The loving father, having struggled himself, hopes to save his children from drudgery and toil.

In every country there are classes—that is to say, the spirit of caste, and this spirit will exist until the world is truly civilized. Persons in most

communities are judged not as individuals, but as members of a class. Nothing is more natural, and nothing more heartless. These lines that divide hearts on account of clothes or titles, are growing more and more indistinct, and the philanthropists, the lovers of the human race, believe that the time is coming when they will be obliterated. We may do away with kings and peasants, and yet there may still be the rich and poor, the intelligent and foolish, the beautiful and deformed, the industrious and idle, and it may be, the honest and vicious. These classifications are in the nature of things. They are produced for the most part by forces that are now beyond the control of man—but the old rule, that men are disreputable in the proportion that they are useful, will certainly be reversed. The idle lord was always held to be the superior of the industrious peasant, the devourer better than the producer, and the waster superior to the worker.

While in this country we have no titles of nobility, we have the rich and the poor—no princes, no peasants, but millionaires and mendicants. The individuals composing these classes are continually changing. The rich of to-day may be the poor of to-morrow, and the children of the poor may take their places. In this country, the children of the poor are educated substantially in the same schools with those of the rich. All read the same papers, many of the same books, and all for many years hear the same questions discussed. They are continually being educated, not only at schools, but by the press, by political campaigns, by perpetual discussions on public questions, and the result is that those who are rich in gold are often poor in thought, and many who have not whereon to lay their heads have within those heads a part of the intellectual wealth of the world.

Years ago the men of wealth were forced to contribute toward the education of the children of the poor. The support of schools by general taxation was defended on the ground that it was a means of providing for the public welfare, of perpetuating the institutions of a free country by making better men and women. This policy has been pursued until at last the schoolhouse is larger than the church, and the common people through education have become uncommon. They now know how little is really known by what are called the upper classes—how little after all is understood by kings, presidents, legislators, and men of culture. They are capable not only of understanding a few questions, but they have acquired the art of discussing those that no one understands. With the facility of politicians they can hide behind phrases, make barricades of statistics, and

chevaux-de-frise of inferences and assertions. They understand the sophistries of those who have governed.

In some respects these common people are the superiors of the so-called aristocracy. While the educated have been turning their attention to the classics, to the dead languages, and the dead ideas and mistakes that they contain—while they have been giving their attention to ceramics, artistic decorations, and compulsory prayers, the common people have been compelled to learn the practical things—to become acquainted with facts—by doing the work of the world. The professor of a college is no longer a match for a master mechanic. The master mechanic not only understands principles, but their application. He knows things as they are. He has come in contact with the actual, with realities. He knows something of the adaptation of means to ends, and this is the highest and most valuable form of education. The men who make locomotives, who construct the vast engines that propel ships, necessarily know more than those who have spent their lives in conjugating Greek verbs, looking for Hebrew roots, and discussing the origin and destiny of the universe.

Intelligence increases wants. By education the necessities of the people become increased. The old wages will not supply the new wants. Man longs for a harmony between the thought within and the things without. When the soul lives in a palace the body is not satisfied with rags and patches. The glaring inequalities among men, the differences in condition, the suffering and the poverty, have appealed to the good and great of every age, and there has been in the brain of the philanthropist a dream—a hope, a prophecy, of a better day.

It was believed that tyranny was the foundation and cause of the differences between men—that the rich were all robbers and the poor all victims, and that if a society or government could be founded on equal rights and privileges, the inequalities would disappear, that all would have food and clothes and reasonable work and reasonable leisure, and that content would be found by every hearth.

There was a reliance on nature—an idea that men had interfered with the harmonious action of great principles which if left to themselves would work out universal wellbeing for the human race. Others imagined that the inequalities between men were necessary—that they were part of a divine plan, and that all would be adjusted in some other world—that the poor here

would be the rich there, and the rich here might be in torture there. Heaven became the reward of the poor, of the slave, and hell their revenge.

When our Government was established it was declared that all men are endowed by their Creator with certain inalienable rights, among which were life, liberty, and the pursuit of happiness. It was then believed that if all men had an equal opportunity, if they were allowed to make and execute their own laws, to levy their own taxes, the frightful inequalities seen in the despotisms and monarchies of the old world would entirely disappear. This was the dream of 1776. The founders of the Government knew how kings and princes and dukes and lords and barons had lived upon the labor of the peasants. They knew the history of those ages of want and crime, of luxury and suffering. But in spite of our Declaration, in spite of our Constitution, in spite of universal suffrage, the inequalities still exist. We have the kings and princes, the lords and peasants, in fact, if not in name. Monopolists, corporations, capitalists, workers for wages, have taken their places, and we are forced to admit that even universal suffrage cannot clothe and feed the world.

For thousands of years men have been talking and writing about the great law of supply and demand—and insisting that in some way this mysterious law has governed and will continue to govern the activities of the human race. It is admitted that this law is merciless—that when the demand fails, the producer, the laborer, must suffer, must perish—that the law feels neither pity nor malice—it simply acts, regardless of consequences. Under this law capital will employ the cheapest. The single man can work for less than the married. Wife and children are luxuries not to be enjoyed under this law. The ignorant have fewer wants than the educated, and for this reason can afford to work for less. The great law will give employment to the single and to the ignorant in preference to the married and intelligent. The great law has nothing to do with food or clothes, with filth or crime. It cares nothing for homes, for penitentiaries, or asylums. It simply acts—and some men triumph, some succeed, some fail, and some perish.

Others insist that the curse of the world is monopoly. And yet, as long as some men are stronger than others, as long as some are more intelligent than others, they must be, to the extent of such advantage, monopolists. Every man of genius is a monopolist.

We are told that the great remedy against monopoly—that is to say, against extortion, is free and unrestricted competition. But after all, the history of this world shows that the brutalities of competition are equaled only by those of monopoly. The successful competitor becomes a monopolist, and if competitors fail to destroy each other, the instinct of self-preservation suggests a combination. In other words, competition is a struggle between two or more persons or corporations for the purpose of determining which shall have the uninterrupted privilege of extortion.

In this country the people have had the greatest reliance on competition. If a railway company charged too much a rival road was built. As a matter of fact, we are indebted for half the railroads of the United States to the extortion of the other half, and the same may truthfully be said of telegraph lines. As a rule, while the exactions of monopoly constructed new roads and new lines, competition has either destroyed the weaker, or produced the pool which is a means of keeping both monopolies alive, or of producing a new monopoly with greater needs, supplied by methods more heartless than the old. When a rival road is built the people support the rival because the fares and freights are somewhat less. Then the old and richer monopoly inaugurates war, and the people, glorying in the benefits of competition, are absurd enough to support the old. In a little while the new company, unable to maintain the contest, left by the people at the mercy of the stronger, goes to the wall, and the triumphant monopoly proceeds to make the intelligent people pay not only the old price, but enough in addition to make up for the expenses of the contest.

Is there any remedy for this? None, except with the people themselves. When the people become intelligent enough to support the rival at a reasonable price; when they know enough to allow both roads to live; when they are intelligent enough to recognize a friend and to stand by that friend as against a known enemy, this question will be at least on the edge of a solution.

So far as I know, this course has never been pursued except in one instance, and that is the present war between the Gould and Mackay cables. The Gould system had been charging from sixty to eighty cents a word, and the Mackay system charged forty. Then the old monopoly tried to induce the rival to put the prices back to sixty. The rival refused, and thereupon the Gould combination dropped to twelve and a half, for the purpose of

destroying the rival. The Mackay cable fixed the tariff at twenty-five cents, saying to its customers, "You are intelligent enough to understand what this war means. If our cables are defeated, the Gould system will go back not only to the old price, but will add enough to reimburse itself for the cost of destroying us. If you really wish for competition, if you desire a reasonable service at a reasonable rate, you will support us." Fortunately an exceedingly intelligent class of people does business by the cables. They are merchants, bankers, and brokers, dealing with large amounts, with intricate, complicated, and international questions. Of necessity, they are used to thinking for themselves. They are not dazzled into blindness by the glare of the present. They see the future. They are not duped by the sunshine of a moment or the promise of an hour. They see beyond the horizon of a penny saved. These people had intelligence enough to say, "The rival who stands between us and extortion is our friend, and our friend shall not be allowed to die."

Does not this tend to show that people must depend upon themselves, and that some questions can be settled by the intelligence of those who buy, of those who use, and that customers are not entirely helpless?

Another thing should not be forgotten, and that is this: there is the same war between monopolies that there is between individuals, and the monopolies for many years have been trying to destroy each other. They have unconsciously been working for the extinction of monopolies. These monopolies differ as individuals do. You find among them the rich and the poor, the lucky and the unfortunate, millionaires and tramps. The great monopolies have been devouring the little ones.

Only a few years ago, the railways in this country were controlled by local directors and local managers. The people along the lines were interested in the stock. As a consequence, whenever any legislation was threatened hostile to the interests of these railways, they had local friends who used their influence with legislators, governors and juries. During this time they were protected, but when the hard times came many of these companies were unable to pay their interest. They suddenly became Socialists. They cried out against their prosperous rivals. They felt like joining the Knights of Labor. They began to talk about rights and wrongs. But in spite of their cries, they have passed into the hands of the richer roads—they were seized by the great monopolies. Now the important

railways are owned by persons living in large cities or in foreign countries. They have no local friends, and when the time comes, and it may come, for the General Government to say how much these companies shall charge for passengers and freight, they will have no local friends. It may be that the great mass of the people will then be on the other side. So that after all, the great corporations have been busy settling the question against themselves.

Possibly a majority of the American people believe to-day that in some way all these questions between capital and labor can be settled by constitutions, laws, and judicial decisions. Most people imagine that a statute is a sovereign specific for any evil. But while the theory has all been one way, the actual experience has been the other—just as the free traders have all the arguments and the protectionists most of the facts.

The truth is, as Mr. Buckle says, that for five hundred years all real advance in legislation has been made by repealing laws. Of one thing we must be satisfied, and that is that real monopolies have never been controlled by law, but the fact that such monopolies exist, is a demonstration that the law has been controlled. In our country, legislators are for the most part controlled by those who, by their wealth and influence, elect them. The few, in reality, cast the votes of the many, and the few influence the ones voted for by the many. Special interests, being active, secure special legislation, and the object of special legislation is to create a kind of monopoly—that is to say, to get some advantage. Chiefs, barons, priests, and kings ruled, robbed, destroyed, and duped, and their places have been taken by corporations, monopolists, and politicians. The large fish still live on the little ones, and the fine theories have as yet failed to change the condition of mankind.

Law in this country is effective only when it is the recorded will of a majority. When the zealous few get control of the Legislature, and laws are passed to prevent Sabbath-breaking, or wine-drinking, they succeed only in putting their opinions and provincial prejudices in legal phrase. There was a time when men worked from fourteen to sixteen hours a day. These hours have not been lessened, they have not been shortened by law. The law has followed and recorded, but the law is not a leader and not a prophet. It appears to be impossible to fix wages—just as impossible as to fix the values of all manufactured things, including works of art. The field is too great, the problem too complicated, for the human mind to grasp.

To fix the value of labor is to fix all values—labor being the foundation of all values. The value of labor cannot be fixed unless we understand the relations that all things bear to each other and to man. If labor were a legal tender—if a judgment for so many dollars could be discharged by so many days of labor,—and the law was that twelve hours of work should be reckoned as one day, then the law could change the hours to ten or eight, and the judgments could be paid in the shortened days. But it is easy to see that in all contracts made after the passage of such a law, the difference in hours would be taken into consideration.

We must remember that law is not a creative force. It produces nothing. It raises neither corn nor wine. The legitimate object of law is to protect the weak, to prevent violence and fraud, and to enforce honest contracts, to the end that each person may be free to do as he desires, provided only that he does not interfere with the rights of others. Our fathers tried to make people religious by law. They failed. Thousands are now trying to make people temperate in the same manner. Such efforts always have been and probably always will be failures. People who believe that an infinite God gave to the Hebrews a perfect code of laws, must admit that even this code failed to civilize the inhabitants of Palestine.

It seems impossible to make people just or charitable or industrious or agreeable or successful, by law, any more than you can make them physically perfect or mentally sound. Of course we admit that good people intend to make good laws, and that good laws faithfully and honestly executed, tend to the preservation of human rights and to the elevation of the race, but the enactment of a law not in accordance with a sentiment already existing in the minds and hearts of the people—the very people who are depended upon to enforce this law—is not a help, but a hindrance. A real law is but the expression, in an authoritative and accurate form, of the judgment and desire of the majority. As we become intelligent and kind, this intelligence and kindness find expression in law.

But how is it possible to fix the wages of every man? To fix wages is to fix prices, and a government to do this intelligently, would necessarily have to have the wisdom generally attributed to an infinite Being. It would have to supervise and fix the conditions of every exchange of commodities and the value of every conceivable thing. Many things can be accomplished by law, employers may be held responsible for injuries to the employed. The

mines can be ventilated. Children can be rescued from the deformities of toil—burdens taken from the backs of wives and mothers—houses made wholesome, food healthful—that is to say, the weak can be protected from the strong, the honest from the vicious, honest contracts can be enforced, and many rights protected.

The men who have simply strength, muscle, endurance, compete not only with other men of strength, but with the inventions of genius. What would doctors say if physicians of iron could be invented with curious cogs and wheels, so that when a certain button was touched the proper prescription would be written? How would lawyers feel if a lawyer could be invented in such a way that questions of law, being put in a kind of hopper and a crank being turned, decisions of the highest court could be prophesied without failure? And how would the ministers feel if somebody should invent a clergyman of wood that would to all intents and purposes answer the purpose?

Invention has filled the world with the competitors not only of laborers, but of mechanics—mechanics of the highest skill. To-day the ordinary laborer is for the most part a cog in a wheel. He works with the tireless—he feeds the insatiable. When the monster stops, the man is out of employment, out of bread; He has not saved anything. The machine that he fed was not feeding him, was not working for him—the invention was not for his benefit. The other day I heard a man say that it was almost impossible for thousands of good mechanics to get employment, and that, in his judgment, the Government ought to furnish work for the people. A few minutes after, I heard another say that he was selling a patent for cutting out clothes, that one of his machines could do the work of twenty tailors, and that only the week before he had sold two to a great house in New York, and that over forty cutters had been discharged.

On every side men are being discharged and machines are being invented to take their places. When the great factory shuts down, the workers who inhabited it and gave it life, as thoughts do the brain, go away and it stands there like an empty skull. A few workmen, by the force of habit, gather about the closed doors and broken windows and talk about distress, the price of food and the coming winter. They are convinced that they have not had their share of what their labor created. They feel certain that the machines inside were not their friends. They look at the mansion of the

employeer and think of the places where they live. They have saved nothing—nothing but themselves. The employeer seems to have enough. Even when employeers fail, when they become bankrupt, they are far better off than the laborers ever were. Their worst is better than the toilers' best.

The capitalist comes forward with his specific. He tells the workingman that he must be economical—and yet, under the present system, economy would only lessen wages. Under the great law of supply and demand every saving, frugal, self-denying workingman is unconsciously doing what little he can to reduce the compensation of himself and his fellows. The slaves who did not wish to run away helped fasten chains on those who did. So the saving mechanic is a certificate that wages are high enough. Does the great law demand that every worker live on the least possible amount of bread? Is it his fate to work one day, that he may get enough food to be able to work another? Is that to be his only hope—that and death?

Capital has always claimed and still claims the right to combine. Manufacturers meet and determine upon prices, even in spite of the great law of supply and demand. Have the laborers the same right to consult and combine? The rich meet in the bank, the clubhouse, or parlor. Workingmen, when they combine, gather in the street. All the organized forces of society are against them. Capital has the army and the navy, the legislative, the judicial, and the executive departments. When the rich combine, it is for the purpose of "exchanging ideas." When the poor combine, it is a "conspiracy." If they act in concert, if they really do something, it is a "mob." If they defend themselves, it is "treason." How is it that the rich control the departments of government? In this country the political power is equally divided among the men. There are certainly more poor than there are rich. Why should the rich control? Why should not the laborers combine for the purpose of controlling the executive, legislative, and judicial departments? Will they ever find how powerful they are?

In every country there is a satisfied class—too satisfied to care. They are like the angels in heaven, who are never disturbed by the miseries of earth. They are too happy to be generous. This satisfied class asks no questions and answers none. They believe the world is as it should be. All reformers are simply disturbers of the peace. When they talk low, they should not be listened to; when they talk loud, they should be suppressed.

The truth is to-day what it always has been—what it always will be—those who feel are the only ones who think. A cry comes from the oppressed, from the hungry, from the down-trodden, from the unfortunate, from men who despair and from women who weep. There are times when mendicants become revolutionists—when a rag becomes a banner, under which the noblest and bravest battle for the right.

How are we to settle the unequal contest between men and machines? Will the machine finally go into partnership with the laborer? Can these forces of nature be controlled for the benefit of her suffering children? Will extravagance keep pace with ingenuity? Will the workers become intelligent enough and strong enough to be the owners of the machines? Will these giants, these Titans, shorten or lengthen the hours of labor? Will they give leisure to the industrious, or will they make the rich richer, and the poor poorer?

Is man involved in the "general scheme of things"? Is there no pity, no mercy? Can man become intelligent enough to be generous, to be just; or does the same law or fact control him that controls the animal and vegetable world? The great oak steals the sunlight from the smaller trees. The strong animals devour the weak—everything eating something else—everything at the mercy of beak and claw and hoof and tooth—of hand and club, of brain and greed—inequality, injustice, everywhere.

The poor horse standing in the street with his dray, overworked, over-whipped, and under-fed, when he sees other horses groomed to mirrors, glittering with gold and silver, scorning with proud feet the very earth, probably indulges in the usual socialistic reflections, and this same horse, worn out and old, deserted by his master, turned into the dusty road, leans his head on the topmost rail, looks at donkeys in a field of clover, and feels like a Nihilist.

In the days of savagery the strong devoured the weak—actually ate their flesh. In spite of all the laws that man has made, in spite of all advance in science, literature and art, the strong, the cunning, the heartless still live on the weak, the unfortunate, and foolish. True, they do not eat their flesh, they do not drink their blood, but they live on their labor, on their self-denial, their weariness and want. The poor man who deforms himself by toil, who labors for wife and child through all his anxious, barren, wasted life—who goes to the grave without even having had one luxury—has been the food

of others. He has been devoured by his fellow-men. The poor woman living in the bare and lonely room, cheerless and fireless, sewing night and day to keep starvation from a child, is slowly being eaten by her fellow-men. When I take into consideration the agony of civilized life—the number of failures, the poverty, the anxiety, the tears, the withered hopes, the bitter realities, the hunger, the crime, the humiliation, the shame—I am almost forced to say that cannibalism, after all, is the most merciful form in which man has ever lived upon his fellow-man.

Some of the best and purest of our race have advocated what is known as Socialism. They have not only taught, but, what is much more to the purpose, have believed that a nation should be a family; that the government should take care of all its children; that it should provide work and food and clothes and education for all, and that it should divide the results of all labor equitably with all.

Seeing the inequalities among men, knowing of the destitution and crime, these men were willing to sacrifice, not only their own liberties, but the liberties of all.

Socialism seems to be one of the worst possible forms of slavery. Nothing, in my judgment, would so utterly paralyze all the forces, all the splendid ambitions and aspirations that now tend to the civilization of man. In ordinary systems of slavery there are some masters, a few are supposed to be free; but in a socialistic state all would be slaves.

If the government is to provide work it must decide for the worker what he must do. It must say who shall chisel statues, who shall paint pictures, who shall compose music, and who shall practice the professions. Is any government, or can any government, be capable of intelligently performing these countless duties? It must not only control work, it must not only decide what each shall do, but it must control expenses, because expenses bear a direct relation to products. Therefore the government must decide what the worker shall eat and wherewithal he shall be clothed; the kind of house in which he shall live; the manner in which it shall be furnished, and, if this government furnishes the work, it must decide on the days or the hours of leisure. More than this, it must fix values; it must decide not only who shall sell, but who shall buy, and the price that must be paid—and it must fix this value not simply upon the labor, but on everything that can be produced, that can be exchanged or sold.

Is it possible to conceive of a despotism beyond this?

The present condition of the world is bad enough, with its poverty and ignorance, but it is far better than it could by any possibility be under any government like the one described. There would be less hunger of the body, but not of the mind. Each man would simply be a citizen of a large penitentiary, and, as in every well regulated prison, somebody would decide what each should do. The inmates of a prison retire early; they rise with the sun; they have something to eat; they are not dissipated; they have clothes; they attend divine service; they have but little to say about their neighbors; they do not suffer from cold; their habits are excellent, and yet, no one envies their condition. Socialism destroys the family. The children belong to the state. Certain officers take the places of parents. Individuality is lost.

The human race cannot afford to exchange its liberty for any possible comfort. You remember the old fable of the fat dog that met the lean wolf in the forest. The wolf, astonished to see so prosperous an animal, inquired of the dog where he got his food, and the dog told him that there was a man who took care of him, gave him his breakfast, his dinner, and his supper with the utmost regularity, and that he had all that he could eat and very little to do. The wolf said, "Do you think this man would treat me as he does you?" The dog replied, "Yes, come along with me." So they jogged on together toward the dog's home. On the way the wolf happened to notice that some hair was worn off the dog's neck, and he said, "How did the hair become worn?" "That is," said the dog, "the mark of the collar—my master ties me at night." "Oh," said the wolf, "Are you chained? Are you deprived of your liberty? I believe I will go back. I prefer hunger."

It is impossible for any man with a good heart to be satisfied with this world as it now is. No one can truly enjoy even what he earns—what he knows to be his own, knowing that millions of his fellow-men are in misery and want. When we think of the famished we feel that it is almost heartless to eat. To meet the ragged and shivering makes one almost ashamed to be well dressed and warm—one feels as though his heart was as cold as their bodies.

In a world filled with millions and millions of acres of land waiting to be tilled, where one man can raise the food for hundreds, millions are on the edge of famine. Who can comprehend the stupidity at the bottom of this truth?

Is there to be no change? Are "the law of supply and demand," invention and science, monopoly and competition, capital and legislation always to be the enemies of those who toil?

Will the workers always be ignorant enough and stupid enough to give their earnings for the useless? Will they support millions of soldiers to kill the sons of other workingmen? Will they always build temples for ghosts and phantoms, and live in huts and dens themselves? Will they forever allow parasites with crowns, and vampires with mitres, to live upon their blood? Will they remain the slaves of the beggars they support? How long will they be controlled by friends who seek favors, and by reformers who want office? Will they always prefer famine in the city to a feast in the fields? Will they ever feel and know that they have no right to bring children into this world that they cannot support? Will they use their intelligence for themselves, or for others? Will they become wise enough to know that they cannot obtain their own liberty by destroying that of others? Will they finally see that every man has a right to choose his trade, his profession, his employment, and has the right to work when, and for whom, and for what he will? Will they finally say that the man who has had equal privileges with all others has no right to complain, or will they follow the example that has been set by their oppressors? Will they learn that force, to succeed, must have a thought behind it, and that anything done, in order that it may endure, must rest upon the corner-stone of justice?

Will they, at the command of priests, forever extinguish the spark that sheds a little light in every brain? Will they ever recognize the fact that labor, above all things, is honorable—that it is the foundation of virtue? Will they understand that beggars cannot be generous, and that every healthy man must earn the right to live? Will honest men stop taking off their hats to successful fraud? Will industry, in the presence of crowned idleness, forever fall upon its knees, and will the lips unstained by lies forever kiss the robed impostor's hand?—North American Review, March, 1887.

ART AND MORALITY.

ART is the highest form of expression, and exists for the sake of expression. Through art thoughts become visible. Back of forms are the desire, the longing, the brooding creative instinct, the maternity of mind and the passion that give pose and swell, outline and color.

Of course there is no such thing as absolute beauty or absolute morality. We now clearly perceive that beauty and conduct are relative. We have outgrown the provincialism that thought is back of substance, as well as the old Platonic absurdity, that ideas existed before the subjects of thought. So far, at least, as man is concerned, his thoughts have been produced by his surroundings, by the action and interaction of things upon his mind; and so far as man is concerned, things have preceded thoughts. The impressions that these things make upon us are what we know of them. The absolute is beyond the human mind. Our knowledge is confined to the relations that exist between the totality of things that we call the universe, and the effect upon ourselves.

Actions are deemed right or wrong, according to experience and the conclusions of reason. Things are beautiful by the relation that certain forms, colors, and modes of expression bear to us. At the foundation of the beautiful will be found the fact of happiness, the gratification of the senses, the delight of intellectual discovery and the surprise and thrill of appreciation. That which we call the beautiful, wakens into life through the association of ideas, of memories, of experiences, of suggestions of pleasure past and the perception that the prophecies of the ideal have been and will be fulfilled.

Art cultivates and kindles the imagination, and quickens the conscience. It is by imagination that we put ourselves in the place of another. When the wings of that faculty are folded, the master does not put himself in the place of the slave; the tyrant is not locked in the dungeon, chained with his victim. The inquisitor did not feel the flames that devoured the martyr. The imaginative man, giving to the beggar, gives to himself. Those who feel indignant at the perpetration of wrong, feel for the instant that they are the

victims; and when they attack the aggressor they feel that they are defending themselves. Love and pity are the children of the imagination.

Our fathers read with great approbation the mechanical sermons in rhyme written by Milton, Young and Pollok. Those theological poets wrote for the purpose of convincing their readers that the mind of man is diseased, filled with infirmities, and that poetic poultices and plasters tend to purify and strengthen the moral nature of the human race. Nothing to the true artist, to the real genius, is so contemptible as the "medicinal view."

Poems were written to prove that the practice of virtue was an investment for another world, and that whoever followed the advice found in those solemn, insincere and lugubrious rhymes, although he might be exceedingly unhappy in this world, would with great certainty be rewarded in the next. These writers assumed that there was a kind of relation between rhyme and religion, between verse and virtue; and that it was their duty to call the attention of the world to all the snares and pitfalls of pleasure. They wrote with a purpose. They had a distinct moral end in view. They had a plan. They were missionaries, and their object was to show the world how wicked it was and how good they, the writers, were. They could not conceive of a man being so happy that everything in nature partook of his feeling; that all the birds were singing for him, and singing by reason of his joy; that everything sparkled and shone and moved in the glad rhythm of his heart. They could not appreciate this feeling. They could not think of this joy guiding the artist's hand, seeking expression in form and color. They did not look upon poems, pictures, and statues as results, as children of the brain fathered by sea and sky, by flower and star, by love and light. They were not moved by gladness. They felt the responsibility of perpetual duty. They had a desire to teach, to sermonize, to point out and exaggerate the faults of others and to describe the virtues practiced by themselves. Art became a colporteur, a distributor of tracts, a mendicant missionary whose highest ambition was to suppress all heathen joy.

Happy people were supposed to have forgotten, in a reckless moment, duty and responsibility. True poetry would call them back to a realization of their meanness and their misery. It was the skeleton at the feast, the rattle of whose bones had a rhythmic sound. It was the forefinger of warning and doom held up in the presence of a smile.

These moral poets taught the "unwelcome truths," and by the paths of life put posts on which they painted hands pointing at graves. They loved to see the pallor on the cheek of youth, while they talked, in solemn tones, of age, decrepitude and lifeless clay.

Before the eyes of love they thrust, with eager hands, the skull of death. They crushed the flowers beneath their feet and plaited crowns of thorns for every brow.

According to these poets, happiness was inconsistent with virtue. The sense of infinite obligation should be perpetually present. They assumed an attitude of superiority. They denounced and calumniated the reader. They enjoyed his confusion when charged with total depravity. They loved to paint the sufferings of the lost, the worthlessness of human life, the littleness of mankind, and the beauties of an unknown world. They knew but little of the heart. They did not know that without passion there is no virtue, and that the really passionate are the virtuous.

Art has nothing to do directly with morality or immorality. It is its own excuse for being; it exists for itself.

The artist who endeavors to enforce a lesson, becomes a preacher; and the artist who tries by hint and suggestion to enforce the immoral, becomes a pander.

There is an infinite difference between the nude and the naked, between the natural and the undressed. In the presence of the pure, unconscious nude, nothing can be more contemptible than those forms in which are the hints and suggestions of drapery, the pretence of exposure, and the failure to conceal. The undressed is vulgar—the nude is pure.

The old Greek statues, frankly, proudly nude, whose free and perfect limbs have never known the sacrilege of clothes, were and are as free from taint, as pure, as stainless, as the image of the morning star trembling in a drop of perfumed dew.

Morality is the harmony between act and circumstance. It is the melody of conduct. A wonderful statue is the melody of proportion. A great picture is the melody of form and color. A great statue does not suggest labor; it seems to have been created as a joy. A great painting suggests no weariness and no effort; the greater, the easier it seems. So a great and splendid life seems to have been without effort. There is in it no idea of obligation, no

idea of responsibility or of duty. The idea of duty changes to a kind of drudgery that which should be, in the perfect man, a perfect pleasure.

The artist, working simply for the sake of enforcing a moral, becomes a laborer. The freedom of genius is lost, and the artist is absorbed in the citizen. The soul of the real artist should be moved by this melody of proportion as the body is unconsciously swayed by the rhythm of a symphony. No one can imagine that the great men who chiseled the statues of antiquity intended to teach the youth of Greece to be obedient to their parents. We cannot believe that Michael Angelo painted his grotesque and somewhat vulgar "Day of Judgment" for the purpose of reforming Italian thieves. The subject was in all probability selected by his employer, and the treatment was a question of art, without the slightest reference to the moral effect, even upon priests. We are perfectly certain that Corot painted those infinitely poetic landscapes, those cottages, those sad poplars, those leafless vines on weather-tinted walls, those quiet pools, those contented cattle, those fields flecked with light, over which bend the skies, tender as the breast of a mother, without once thinking of the ten commandments. There is the same difference between moral art and the product of true genius, that there is between prudery and virtue.

The novelists who endeavor to enforce what they are pleased to call "moral truths," cease to be artists. They create two kinds of characters—types and caricatures. The first never has lived, and the second never will. The real artist produces neither. In his pages you will find individuals, natural people, who have the contradictions and inconsistencies inseparable from humanity. The great artists "hold the mirror up to nature," and this mirror reflects with absolute accuracy. The moral and the immoral writers—that is to say, those who have some object besides that of art—use convex or concave mirrors, or those with uneven surfaces, and the result is that the images are monstrous and deformed. The little novelist and the little artist deal either in the impossible or the exceptional. The men of genius touch the universal. Their words and works throb in unison with the great ebb and flow of things. They write and work for all races and for all time.

It has been the object of thousands of reformers to destroy the passions, to do away with desires; and could this object be accomplished, life would become a burden, with but one desire—that is to say, the desire for extinction. Art in its highest forms increases passion, gives tone and color

and zest to life. But while it increases passion, it refines. It extends the horizon. The bare necessities of life constitute a prison, a dungeon. Under the influence of art the walls expand, the roof rises, and it becomes a temple.

Art is not a sermon, and the artist is not a preacher. Art accomplishes by indirection. The beautiful refines. The perfect in art suggests the perfect in conduct. The harmony in music teaches, without intention, the lesson of proportion in life. The bird in his song has no moral purpose, and yet the influence is humanizing. The beautiful in nature acts through appreciation and sympathy. It does not browbeat, neither does it humiliate. It is beautiful without regard to you. Roses would be unbearable if in their red and perfumed hearts were mottoes to the effect that bears eat bad boys and that honesty is the best policy.

Art creates an atmosphere in which the proprieties, the amenities, and the virtues unconsciously grow. The rain does not lecture the seed. The light does not make rules for the vine and flower.

The heart is softened by the pathos of the perfect.

The world is a dictionary of the mind, and in this dictionary of things genius discovers analogies, resemblances, and parallels amid opposites, likeness in difference, and corroboration in contradiction. Language is but a multitude of pictures. Nearly every word is a work of art, a picture represented by a sound, and this sound represented by a mark, and this mark gives not only the sound, but the picture of something in the outward world and the picture of something within the mind, and with these words which were once pictures, other pictures are made.

The greatest pictures and the greatest statues, the most wonderful and marvelous groups, have been painted and chiseled with words. They are as fresh to-day as when they fell from human lips. Penelope still ravel, weaves, and waits; Ulysses' bow is bent, and through the level rings the eager arrow flies. Cordelia's tears are falling now. The greatest gallery of the world is found in Shakespeare's book. The pictures and the marbles of the Vatican and Louvre are faded, crumbling things, compared with his, in which perfect color gives to perfect form the glow and movement of passion's highest life.

Everything except the truth wears, and needs to wear, a mask. Little souls are ashamed of nature. Prudery pretends to have only those passions that it

cannot feel. Moral poetry is like a respectable canal that never overflows its banks. It has weirs through which slowly and without damage any excess of feeling is allowed to flow. It makes excuses for nature, and regards love as an interesting convict. Moral art paints or chisels feet, faces, and rags. It regards the body as obscene. It hides with drapery that which it has not the genius purely to portray. Mediocrity becomes moral from a necessity which it has the impudence to call virtue. It pretends to regard ignorance as the foundation of purity and insists that virtue seeks the companionship of the blind.

Art creates, combines, and reveals. It is the highest manifestation of thought, of passion, of love, of intuition. It is the highest form of expression, of history and prophecy. It allows us to look at an unmasked soul, to fathom the abysses of passion, to understand the heights and depths of love.

Compared with what is in the mind of man, the outward world almost ceases to excite our wonder. The impression produced by mountains, seas, and stars is not so great, so thrilling, as the music of Wagner. The constellations themselves grow small when we read "Troilus and Cressida," "Hamlet," or "Lear." What are seas and stars in the presence of a heroism that holds pain and death as naught? What are seas and stars compared with human hearts? What is the quarry compared with the statue?

Art civilizes because it enlightens, develops, strengthens, ennobles. It deals with the beautiful, with the passionate, with the ideal. It is the child of the heart. To be great, it must deal with the human. It must be in accordance with the experience, with the hopes, with the fears, and with the possibilities of man. No one cares to paint a palace, because there is nothing in such a picture to touch the heart. It tells of responsibility, of the prison, of the conventional. It suggests a load—it tells of apprehension, of weariness and ennui. The picture of a cottage, over which runs a vine, a little home thatched with content, with its simple life, its natural sunshine and shadow, its trees bending with fruit, its hollyhocks and pinks, its happy children, its hum of bees, is a poem—a smile in the desert of this world.

The great lady, in velvet and jewels, makes but a poor picture. There is not freedom enough in her life. She is constrained. She is too far away from the simplicity of happiness. In her thought there is too much of the

mathematical. In all art you will find a touch of chaos, of liberty; and there is in all artists a little of the vagabond—that is to say, genius.

The nude in art has rendered holy the beauty of woman. Every Greek statue pleads for mothers and sisters. From these marbles come strains of music. They have filled the heart of man with tenderness and worship. They have kindled reverence, admiration and love. The Venus de Milo, that even mutilation cannot mar, tends only to the elevation of our race. It is a miracle of majesty and beauty, the supreme idea of the supreme woman. It is a melody in marble. All the lines meet in a kind of voluptuous and glad content. The pose is rest itself. The eyes are filled with thoughts of love. The breast seems dreaming of a child.

The prudent is not the poetic; it is the mathematical. Genius is the spirit of abandon; it is joyous, irresponsible. It moves in the swell and curve of billows; it is careless of conduct and consequence. For a moment, the chain of cause and effect seems broken; the soul is free. It gives an account not even to itself. Limitations are forgotten; nature seems obedient to the will; the ideal alone exists; the universe is a symphony.

Every brain is a gallery of art, and every soul is, to a greater or less degree, an artist. The pictures and statues that now enrich and adorn the walls and niches of the world, as well as those that illuminate the pages of its literature, were taken originally from the private galleries of the brain.

The soul—that is to say the artist—compares the pictures in its own brain with the pictures that have been taken from the galleries of others and made visible. This soul, this artist, selects that which is nearest perfection in each, takes such parts as it deems perfect, puts them together, forms new pictures, new statues, and in this way creates the ideal.

To express desires, longings, ecstasies, prophecies and passions in form and color; to put love, hope, heroism and triumph in marble; to paint dreams and memories with words; to portray the purity of dawn, the intensity and glory of noon, the tenderness of twilight, the splendor and mystery of night, with sounds; to give the invisible to sight and touch, and to enrich the common things of earth with gems and jewels of the mind—this is Art.—North American Review, March, 1888.

THE DIVIDED HOUSEHOLD OF FAITH.

"Let determined things to destiny hold unbewailed their way." THERE is a continual effort in the mind of man to find the harmony that he knows must exist between all known facts. It is hard for the scientist to implicitly believe anything that he suspects to be inconsistent with a known fact. He feels that every fact is a key to many mysteries—that every fact is a detective, not only, but a perpetual witness. He knows that a fact has a countless number of sides, and that all these sides will match all other facts, and he also suspects that to understand one fact perfectly—like the fact of the attraction of gravitation—would involve a knowledge of the universe.

It requires not only candor, but courage, to accept a fact. When a new fact is found it is generally denied, resisted, and calumniated by the conservatives until denial becomes absurd, and then they accept it with the statement that they always supposed it was true.

The old is the ignorant enemy of the new. The old has pedigree and respectability; it is filled with the spirit of caste; it is associated with great events, and with great names; it is intrenched; it has an income—it represents property. Besides, it has parasites, and the parasites always defend themselves.

Long ago frightened wretches who had by tyranny or piracy amassed great fortunes, were induced in the moment of death to compromise with God and to let their money fall from their stiffening hands into the greedy palms of priests. In this way many theological seminaries were endowed, and in this way prejudices, mistakes, absurdities, known as religious truths, have been perpetuated. In this way the dead hypocrites have propagated and supported their kind.

Most religions—no matter how honestly they originated—have been established by brute force. Kings and nobles have used them as a means to enslave, to degrade and rob. The priest, consciously and unconsciously, has been the betrayer of his followers.

Near Chicago there is an ox that betrays his fellows. Cattle—twenty or thirty at a time—are driven to the place of slaughter. This ox leads the way

—the others follow. When the place is reached, this Bishop Dupanloup turns and goes back for other victims.

This is the worst side: There is a better.

Honest men, believing that they have found the whole truth—the real and only faith—filled with enthusiasm, give all for the purpose of propagating the "divine creed." They found colleges and universities, and in perfect, pious, ignorant sincerity, provide that the creed, and nothing but the creed, must be taught, and that if any professor teaches anything contrary to that, he must be instantly dismissed—that is to say, the children must be beaten with the bones of the dead.

These good religious souls erect guide-boards with a provision to the effect that the guide-boards must remain, whether the roads are changed or not, and with the further provision that the professors who keep and repair the guide-boards must always insist that the roads have not been changed.

There is still another side.

Professors do not wish to lose their salaries. They love their families and have some regard for themselves. There is a compromise between their bread and their brain. On pay-day they believe—at other times they have their doubts. They settle with their own consciences by giving old words new meanings. They take refuge in allegory, hide behind parables, and barricade themselves with oriental imagery. They give to the most frightful passages a spiritual meaning—and while they teach the old creed to their followers, they speak a new philosophy to their equals.

There is still another side.

A vast number of clergymen and laymen are perfectly satisfied. They have no doubts. They believe as their fathers and mothers did. The "scheme of salvation" suits them because they are satisfied that they are embraced within its terms. They give themselves no trouble. They believe because they do not understand. They have no doubts because they do not think. They regard doubt as a thorn in the pillow of orthodox slumber. Their souls are asleep, and they hate only those who disturb their dreams. These people keep their creeds for future use. They intend to have them ready at the moment of dissolution. They sustain about the same relation to daily life that the small-boats carried by steamers do to ordinary navigation—they are for the moment of shipwreck. Creeds, like life-preservers, are to be used in disaster.

We must also remember that everything in nature—bad as well as good—has the instinct of self-preservation. All lies go armed, and all mistakes carry concealed weapons. Driven to the last corner, even non-resistance appeals to the dagger.

Vast interests—political, social, artistic, and individual—are interwoven with all creeds. Thousands of millions of dollars have been invested; many millions of people obtain their bread by the propagation and support of certain religious doctrines, and many millions have been educated for that purpose and for that alone. Nothing is more natural than that they should defend themselves—that they should cling to a creed that gives them roof and raiment.

Only a few years ago Christianity was a complete system. It included and accounted for all phenomena; it was a philosophy satisfactory to the ignorant world; it had an astronomy and geology of its own; it answered all questions with the same readiness and the same inaccuracy; it had within its sacred volumes the history of the past, and the prophecies of all the future; it pretended to know all that was, is, or ever will be necessary for the well-being of the human race, here and hereafter.

When a religion has been founded, the founder admitted the truth of everything that was generally believed that did not interfere with his system. Imposture always has a definite end in view, and for the sake of the accomplishment of that end, it will admit the truth of anything and everything that does not endanger its success.

The writers of all sacred books—the inspired prophets—had no reason for disagreeing with the common people about the origin of things, the creation of the world, the rising and setting of the sun, and the uses of the stars, and consequently the sacred books of all ages have indorsed the belief general at the time. You will find in our sacred books the astronomy, the geology, the philosophy and the morality of the ancient barbarians. The religionist takes these general ideas as his foundation, and upon them builds the supernatural structure. For many centuries the astronomy, geology, philosophy and morality of our Bible were accepted. They were not questioned, for the reason that the world was too ignorant to question.

A few centuries ago the art of printing was invented. A new world was discovered. There was a complete revolution in commerce. The arts were born again. The world was filled with adventure; millions became self-

reliant; old ideas were abandoned—old theories were put aside—and suddenly, the old leaders of thought were found to be ignorant, shallow and dishonest. The literature of the classic world was discovered and translated into modern languages. The world was circumnavigated; Copernicus discovered the true relation sustained by our earth to the solar system, and about the beginning of the seventeenth century many other wonderful discoveries were made. In 1609, a Hollander found that two lenses placed in a certain relation to each other magnified objects seen through them. This discovery was the foundation of astronomy. In a little while it came to the knowledge of Galileo; the result was a telescope, with which man has read the volume of the skies.

On the 8th day of May, 1618, Kepler discovered the greatest of his three laws. These were the first great blows struck for the enfranchisement of the human mind. A few began to suspect that the ancient Hebrews were not astronomers. From that moment the church became the enemy of science. In every possible way the inspired ignorance was defended—the lash, the sword, the chain, the fagot and the dungeon were the arguments used by the infuriated church.

To such an extent was the church prejudiced against the new philosophy, against the new facts, that priests refused to look through the telescope of Galileo.

At last it became evident to the intelligent world that the inspired writings, literally translated, did not contain the truth—the Bible was in danger of being driven from the heavens.

The church also had its geology. The time when the earth was created had been definitely fixed and was certainly known. This fact had not only been stated by inspired writers, but their statement had been indorsed by priests, by bishops, cardinals, popes and ecumenical councils; that was settled.

But a few men had learned the art of seeing. There were some eyes not always closed in prayer. They looked at the things about them; they observed channels that had been worn in solid rock by streams; they saw the vast territories that had been deposited by rivers; their attention was called to the slow inroads upon continents by seas—to the deposits by volcanoes—to the sedimentary rocks—to the vast reefs that had been built by the coral, and to the countless evidences of age, of the lapse of time—

and finally it was demonstrated that this earth had been pursuing its course about the sun for millions and millions of ages.

The church disputed every step, denied every fact, resorted to every device that cunning could suggest or ingenuity execute, but the conflict could not be maintained. The Bible, so far as geology was concerned, was in danger of being driven from the earth.

Beaten in the open field, the church began to equivocate, to evade, and to give new meanings to inspired words. Finally, falsehood having failed to harmonize the guesses of barbarians with the discoveries of genius, the leading churchmen suggested that the Bible was not written to teach astronomy, was not written to teach geology, and that it was not a scientific book, but that it was written in the language of the people, and that as to unimportant things it contained the general beliefs of its time.

The ground was then taken that, while it was not inspired in its science, it was inspired in its morality, in its prophecy, in its account of the miraculous, in the scheme of salvation, and in all that it had to say on the subject of religion.

The moment it was suggested that the Bible was not inspired in everything within its lids, the seeds of suspicion were sown. The priest became less arrogant. The church was forced to explain. The pulpit had one language for the faithful and another for the philosophical, i. e., it became dishonest with both.

The next question that arose was as to the origin of man.

The Bible was being driven from the skies. The testimony of the stars was against the sacred volume. The church had also been forced to admit that the world was not created at the time mentioned in the Bible—so that the very stones of the earth rose and united with the stars in giving testimony against the sacred volume.

As to the creation of the world, the church resorted to the artifice of saying that "days" in reality meant long periods of time; so that no matter how old the earth was, the time could be spanned by six periods—in other words, that the years could not be too numerous to be divided by six.

But when it came to the creation of man, this evasion, or artifice, was impossible. The Bible gives the date of the creation of man, because it gives the age at which the first man died, and then it gives the generations from

Adam to the flood, and from the flood to the birth of Christ, and in many instances the actual age of the principal ancestor is given. So that, according to this account—according to the inspired figures—man has existed upon the earth only about six thousand years. There is no room left for any people beyond Adam.

If the Bible is true, certainly Adam was the first man; consequently, we know, if the sacred volume be true, just how long man has lived and labored and suffered on this earth.

The church cannot and dare not give up the account of the creation of Adam from the dust of the earth, and of Eve from the rib of the man. The church cannot give up the story of the Garden of Eden—the serpent—the fall and the expulsion; these must be defended because they are vital. Without these absurdities, the system known as Christianity cannot exist. Without the fall, the atonement is a *non sequitur*. Facts bearing upon these questions were discovered and discussed by the greatest and most thoughtful of men. Lamarck, Humboldt, Haeckel, and above all, Darwin, not only asserted, but demonstrated, that man is not a special creation. If anything can be established by observation, by reason, then the fact has been established that man is related to all life below him—that he has been slowly produced through countless years—that the story of Eden is a childish myth—that the fall of man is an infinite absurdity.

If anything can be established by analogy and reason, man has existed upon the earth for many millions of ages. We know now, if we know anything, that people not only existed before Adam, but that they existed in a highly civilized state; that thousands of years before the Garden of Eden was planted men communicated to each other their ideas by language, and that artists clothed the marble with thoughts and passions.

This is a demonstration that the origin of man given in the Old Testament is untrue—that the account was written by the ignorance, the prejudice and the egotism of the olden time.

So, if anything outside of the senses can be known, we do know that civilization is a growth—that man did not commence a perfect being, and then degenerate, but that from small beginnings he has slowly risen, to the intellectual height he now occupies.

The church, however, has not been willing to accept these truths, because they contradict the sacred word. Some of the most ingenious of the clergy

have been endeavoring for years to show that there is no conflict—that the account in Genesis is in perfect harmony with the theories of Charles Darwin, and these clergymen in some way manage to retain their creed and to accept a philosophy that utterly destroys it.

But in a few years the Christian world will be forced to admit that the Bible is not inspired in its astronomy, in its geology, or in its anthropology—that is to say, that the inspired writers knew nothing of the sciences, knew nothing of the origin of the earth, nothing of the origin of man—in other words, nothing of any particular value to the human race.

It is, however, still insisted that the Bible is inspired in its morality. Let us examine this question.

We must admit, if we know anything, if we feel anything, if conscience is more than a word, if there is such a thing as right and such a thing as wrong beneath the dome of heaven—we must admit that slavery is immoral. If we are honest, we must also admit that the Old Testament upholds slavery. It will be cheerfully admitted that Jehovah was opposed to the enslavement of one Hebrew by another. Christians may quote the commandment "Thou shalt not steal" as being opposed to human slavery, but after that commandment was given, Jehovah himself told his chosen people that they might "buy their bondmen and bondwomen of the heathen round about, and that they should be their bondmen and their bondwomen forever." So all that Jehovah meant by the commandment "Thou shalt not steal" was that one Hebrew should not steal from another Hebrew, but that all Hebrews might steal from the people of any other race or creed.

It is perfectly apparent that the Ten Commandments were made only for the Jews, not for the world, because the author of these commandments commanded the people to whom they were given to violate them nearly all as against the surrounding people.

A few years ago it did not occur to the Christian world that slavery was wrong. It was upheld by the church. Ministers bought and sold the very people for whom they declared that Christ had died. Clergymen of the English church owned stock in slave-ships, and the man who denounced slavery was regarded as the enemy of morality, and thereupon was duly mobbed by the followers of Jesus Christ. Churches were built with the results of labor stolen from colored Christians. Babies were sold from mothers and a part of the money given to send missionaries from America

to heathen lands with the tidings of great joy. Now every intelligent man on the earth, every decent man, holds in abhorrence the institution of human slavery.

So with the institution of polygamy. If anything on the earth is immoral, that is. If there is anything calculated to destroy home, to do away with human love, to blot out the idea of family life, to cover the hearthstone with serpents, it is the institution of polygamy. The Jehovah of the Old Testament was a believer in that institution.

Can we now say that the Bible is inspired in its morality? Consider for a moment the manner in which, under the direction of Jehovah, wars were waged. Remember the atrocities that were committed. Think of a war where everything was the food of the sword. Think for a moment of a deity capable of committing the crimes that are described and gloated over in the Old Testament. The civilized man has outgrown the sacred cruelties and absurdities.

There is still another side to this question.

A few centuries ago nothing was more natural than the unnatural. Miracles were as plentiful as actual events. In those blessed days, that which actually occurred was not regarded of sufficient importance to be recorded. A religion without miracles would have excited derision. A creed that did not fill the horizon—that did not account for everything—that could not answer every question, would have been regarded as worthless.

After the birth of Protestantism, it could not be admitted by the leaders of the Reformation that the Catholic Church still had the power of working miracles. If the Catholic Church was still in partnership with God, what excuse could have been made for the Reformation? The Protestants took the ground that the age of miracles had passed. This was to justify the new faith. But Protestants could not say that miracles had never been performed, because that would take the foundation not only from the Catholics but from themselves; consequently they were compelled to admit that miracles were performed in the apostolic days, but to insist that, in their time, man must rely upon the facts in nature. Protestants were compelled to carry on two kinds of war; they had to contend with those who insisted that miracles had never been performed; and in that argument they were forced to insist upon the necessity for miracles, on the probability that they were performed, and upon the truthfulness of the apostles. A moment afterward,

they had to answer those who contended that miracles were performed at that time; then they brought forward against the Catholics the same arguments that their first opponents had brought against them.

This has made every Protestant brain "a house divided against itself." This planted in the Reformation the "irrepressible conflict."

But we have learned more and more about what we call Nature—about what we call facts. Slowly it dawned upon the mind that force is indestructible—that we cannot imagine force as existing apart from matter—that we cannot even think of matter existing apart from force—that we cannot by any possibility conceive of a cause without an effect, of an effect without a cause, of an effect that is not also a cause. We find no room between the links of cause and effect for a miracle. We now perceive that a miracle must be outside of Nature—that it can have no father, no mother—that is to say, that it is an impossibility.

The intellectual world has abandoned the miraculous.

Most ministers are now ashamed to defend a miracle. Some try to explain miracles, and yet, if a miracle is explained, it ceases to exist. Few congregations could keep from smiling were the minister to seriously assert the truth of the Old Testament miracles.

Miracles must be given up. That field must be abandoned by the religious world. The evidence accumulates every day, in every possible direction in which the human mind can investigate, that the miraculous is simply the impossible.

Confidence in the eternal constancy of Nature increases day by day. The scientist has perfect confidence in the attraction of gravitation—in chemical affinities—in the great fact of evolution, and feels absolutely certain that the nature of things will remain forever the same.

We have at last ascertained that miracles can be perfectly understood; that there is nothing mysterious about them; that they are simply transparent falsehoods.

The real miracles are the facts in nature. No one can explain the attraction of gravitation. No one knows why soil and rain and light become the womb of life. No one knows why grass grows, why water runs, or why the magnetic needle points to the north. The facts in nature are the eternal and the only mysteries. There is nothing strange about the miracles of

superstition. They are nothing but the mistakes of ignorance and fear, or falsehoods framed by those who wished to live on the labor of others.

In our time the champions of Christianity, for the most part, take the exact ground occupied by the Deists. They dare not defend in the open field the mistakes, the cruelties, the immoralities and the absurdities of the Bible. They shun the Garden of Eden as though the serpent was still there. They have nothing to say about the fall of man. They are silent as to the laws upholding slavery and polygamy. They are ashamed to defend the miraculous. They talk about these things to Sunday schools and to the elderly members of their congregations; but when doing battle for the faith, they misstate the position of their opponents and then insist that there must be a God, and that the soul is immortal.

We may admit the existence of an infinite Being; we may admit the immortality of the soul, and yet deny the inspiration of the Scriptures and the divine origin of the Christian religion. These doctrines, or these dogmas, have nothing in common. The pagan world believed in God and taught the dogma of immortality. These ideas are far older than Christianity, and they have been almost universal.

Christianity asserts more than this. It is based upon the inspiration of the Bible, on the fall of man, on the atonement, on the dogma of the Trinity, on the divinity of Jesus Christ, on his resurrection from the dead, on his ascension into heaven.

Christianity teaches not simply the immortality of the soul—not simply the immortality of joy—but it teaches the immortality of pain, the eternity of sorrow. It insists that evil, that wickedness, that immorality and that every form of vice are and must be perpetuated forever. It believes in immortal convicts, in eternal imprisonment and in a world of unending pain. It has a serpent for every breast and a curse for nearly every soul. This doctrine is called the dearest hope of the human heart, and he who attacks it is denounced as the most infamous of men.

Let us see what the church, within a few years, has been compelled substantially to abandon,—that is to say, what it is now almost ashamed to defend.

First, the astronomy of the sacred Scriptures; second, the geology; third, the account given of the origin of man; fourth, the doctrine of original sin, the fall of the human race; fifth, the mathematical contradiction known as

the Trinity; sixth, the atonement—because it was only on the ground that man is accountable for the sin of another, that he could be justified by reason of the righteousness of another; seventh, that the miraculous is either the misunderstood or the impossible; eighth, that the Bible is not inspired in its morality, for the reason that slavery is not moral, that polygamy is not good, that wars of extermination are not merciful, and that nothing can be more immoral than to punish the innocent on account of the sins of the guilty; and ninth, the divinity of Christ.

All this must be given up by the really intelligent, by those not afraid to think, by those who have the courage of their convictions and the candor to express their thoughts. What then is left?

Let me tell you. Everything in the Bible that is true, is left; it still remains and is still of value. It cannot be said too often that the truth needs no inspiration; neither can it be said too often that inspiration cannot help falsehood. Every good and noble sentiment uttered in the Bible is still good and noble. Every fact remains. All that is good in the Sermon on the Mount is retained. The Lord's Prayer is not affected. The grandeur of self-denial, the nobility of forgiveness, and the ineffable splendor of mercy are with us still. And besides, there remains the great hope for all the human race.

What is lost? All the mistakes, all the falsehoods, all the absurdities, all the cruelties and all the curses contained in the Scriptures. We have almost lost the "hope" of eternal pain—the "consolation" of perdition; and in time we shall lose the frightful shadow that has fallen upon so many hearts, that has darkened so many lives.

The great trouble for many years has been, and still is, that the clergy are not quite candid. They are disposed to defend the old creed. They have been educated in the universities of the Sacred Mistake—universities that Bruno would call "the widows of true learning." They have been taught to measure with a false standard; they have weighed with inaccurate scales. In youth, they became convinced of the truth of the creed. This was impressed upon them by the solemnity of professors who spoke in tones of awe. The enthusiasm of life's morning was misdirected. They went out into the world knowing nothing of value. They preached a creed outgrown. Having been for so many years entirely certain of their position, they met doubt with a spirit of irritation—afterward with hatred. They are hardly courageous enough to admit that they are wrong.

Once the pulpit was the leader—it spoke with authority. By its side was the sword of the state, with the hilt toward its hand. Now it is apologized for—it carries a weight. It is now like a living man to whom has been chained a corpse. It cannot defend the old, and it has not accepted the new. In some strange way it imagines that morality cannot live except in partnership with the sanctified follies and falsehoods of the past.

The old creeds cannot be defended by argument. They are not within the circumference of reason—they are not embraced in any of the facts within the experience of man. All the subterfuges have been exposed; all the excuses have been shown to be shallow, and at last the church must meet, and fairly meet, the objections of our time.

Solemnity is no longer an argument. Falsehood is no longer sacred. People are not willing to admit that mistakes are divine. Truth is more important than belief—far better than creeds, vastly more useful than superstitions. The church must accept the truths of the present, must admit the demonstrations of science, or take its place in the mental museums with the fossils and monstrosities of the past.

The time for personalities has passed; these questions cannot be determined by ascertaining the character of the disputants; epithets are no longer regarded as arguments; the curse of the church produces laughter; theological slander is no longer a weapon; argument must be answered with argument, and the church must appeal to reason, and by that standard it must stand or fall. The theories and discoveries of Darwin cannot be answered by the resolutions of synods, or by quotations from the Old Testament.

The world has advanced. The Bible has remained the same. We must go back to the book—it cannot come to us—or we must leave it forever. In order to remain orthodox we must forget the discoveries, the inventions, the intellectual efforts of many centuries; we must go back until our knowledge—or rather our ignorance—will harmonize with the barbaric creeds.

It is not pretended that all the creeds have not been naturally produced. It is admitted that under the same circumstances the same religions would again ensnare the human race. It is also admitted that under the same circumstances the same efforts would be made by the great and intellectual of every age to break the chains of superstition.

There is no necessity of attacking people—we should combat error. We should hate hypocrisy, but not the hypocrite—larceny, but not the thief—superstition, but not its victim. We should do all within our power to inform, to educate, and to benefit our fellow-men.

There is no elevating power in hatred. There is no reformation in punishment. The soul grows greater and grander in the air of kindness, in the sunlight of intelligence.

We must rely upon the evidence of our senses, upon the conclusions of our reason.

For many centuries the church has insisted that man is totally depraved, that he is naturally wicked, that all of his natural desires are contrary to the will of God. Only a few years ago it was solemnly asserted that our senses were originally honest, true and faithful, but having been debauched by original sin, were now cheats and liars; that they constantly deceived and misled the soul; that they were traps and snares; that no man could be safe who relied upon his senses, or upon his reason;—he must simply rely upon faith; in other words, that the only way for man to really see was to put out his eyes.

There has been a rapid improvement in the intellectual world. The improvement has been slow in the realm of religion, for the reason that religion was hedged about, defended and barricaded by fear, by prejudice and by law. It was considered sacred. It was illegal to call its truth in question. Whoever disputed the priest became a criminal; whoever demanded a reason, or an explanation, became a blasphemer, a scoffer, a moral leper.

The church defended its mistakes by every means within its power.

But in spite of all this there has been advancement, and there are enough of the orthodox clergy left to make it possible for us to measure the distance that has been traveled by sensible people.

The world is beginning to see that a minister should be a teacher, and that "he should not endeavor to inculcate a particular system of dogmas, but to prepare his hearers for exercising their own judgments."

As a last resource, the orthodox tell the thoughtful that they are not "spiritual"—that they are "of the earth, earthy"—that they cannot perceive

that which is spiritual. They insist that "God is a spirit, and must be worshiped in spirit."

But let me ask, What is it to be spiritual? In order to be really spiritual, must a man sacrifice this world for the sake of another? Were the selfish hermits, who deserted their wives and children for the miserable purpose of saving their own little souls, spiritual? Were those who put their fellow-men in dungeons, or burned them at the state* on account of a difference of opinion, all spiritual people? Did John Calvin give evidence of his spirituality by burning Servetus? Were they spiritual people who invented and used instruments of torture—who denied the liberty of thought and expression—who waged wars for the propagation of the faith? Were they spiritual people who insisted that Infinite Love could punish his poor, ignorant children forever? Is it necessary to believe in eternal torment to understand the meaning of the word spiritual? Is it necessary to hate those who disagree with you, and to calumniate those whose argument you cannot answer, in order to be spiritual? Must you hold a demonstrated fact in contempt; must you deny or avoid what you know to be true, in order to substantiate the fact that you are spiritual?

What is it to be spiritual? Is the man spiritual who searches for the truth—who lives in accordance with his highest ideal—who loves his wife and children—who discharges his obligations—who makes a happy fireside for the ones he loves—who succors the oppressed—who gives his honest opinions—who is guided by principle—who is merciful and just?

Is the man spiritual who loves the beautiful—who is thrilled by music, and touched to tears in the presence of the sublime, the heroic and the self-denying? Is the man spiritual who endeavors by thought and deed to ennoble the human race?

The defenders of the orthodox faith, by this time, should know that the foundations are insecure.

They should have the courage to defend, or the candor to abandon. If the Bible is an inspired book, it ought to be true. Its defenders must admit that Jehovah knew the facts not only about the earth, but about the stars, and that the Creator of the universe knew all about geology and astronomy even four thousand years ago.

The champions of Christianity must show that the Bible tells the truth about the creation of man, the Garden of Eden, the temptation, the fall and

the flood. They must take the ground that the sacred book is historically correct; that the events related really happened; that the miracles were actually performed; that the laws promulgated from Sinai were and are wise and just, and that nothing is upheld, commanded, indorsed, or in any way approved or sustained that is not absolutely right. In other words, if they insist that a being of infinite goodness and intelligence is the author of the Bible, they must be ready to show that it is absolutely perfect. They must defend its astronomy, geology, history, miracle and morality.

If the Bible is true, man is a special creation, and if man is a special creation, millions of facts must have conspired, millions of ages ago, to deceive the scientific world of to-day.

If the Bible is true, slavery is right, and the world should go back to the barbarism of the lash and chain. If the Bible is true, polygamy is the highest form of virtue. If the Bible is true, nature has a master, and the miraculous is independent of and superior to cause and effect. If the Bible is true, most of the children of men are destined to suffer eternal pain. If the Bible is true, the science known as astronomy is a collection of mistakes—the telescope is a false witness, and light is a luminous liar. If the Bible is true, the science known as geology is false and every fossil is a petrified perjurer.

The defenders of orthodox creeds should have the courage to candidly answer at least two questions: First, Is the Bible inspired? Second, Is the Bible true? And when they answer these questions, they should remember that if the Bible is true, it needs no inspiration, and that if not true, inspiration can do it no good.—North American Review, August, 1888.

WHY AM I AN AGNOSTIC?

I.

"With thoughts beyond the reaches of our souls."

THE same rules or laws of probability must govern in religious questions as in others. There is no subject—and can be none—concerning which any human being is under any obligation to believe without evidence. Neither is there any intelligent being who can, by any possibility, be flattered by the exercise of ignorant credulity. The man who, without prejudice, reads and understands the Old and New Testaments will cease to be an orthodox Christian. The intelligent man who investigates the religion of any country without fear and without prejudice will not and cannot be a believer.

Most people, after arriving at the conclusion that Jehovah is not God, that the Bible is not an inspired book, and that the Christian religion, like other religions, is the creation of man, usually say: "There must be a Supreme Being, but Jehovah is not his name, and the Bible is not his word. There must be somewhere an over-ruling Providence or Power."

This position is just as untenable as the other. He who cannot harmonize the cruelties of the Bible with the goodness of Jehovah, cannot harmonize the cruelties of Nature with the goodness and wisdom of a supposed Deity. He will find it impossible to account for pestilence and famine, for earthquake and storm, for slavery, for the triumph of the strong over the weak, for the countless victories of injustice. He will find it impossible to account for martyrs—for the burning of the good, the noble, the loving, by the ignorant, the malicious, and the infamous.

How can the Deist satisfactorily account for the sufferings of women and children? In what way will he justify religious persecution—the flame and sword of religious hatred? Why did his God sit idly on his throne and allow his enemies to wet their swords in the blood of his friends? Why did he not answer the prayers of the imprisoned, of the helpless? And when he heard the lash upon the naked back of the slave, why did he not also hear the

prayer of the slave? And when children were sold from the breasts of mothers, why was he deaf to the mother's cry?

It seems to me that the man who knows the limitations of the mind, who gives the proper value to human testimony, is necessarily an Agnostic. He gives up the hope of ascertaining first or final causes, of comprehending the supernatural, or of conceiving of an infinite personality. From out the words Creator, Preserver, and Providence, all meaning falls.

The mind of man pursues the path of least resistance, and the conclusions arrived at by the individual depend upon the nature and structure of his mind, on his experience, on hereditary drifts and tendencies, and on the countless things that constitute the difference in minds. One man, finding himself in the midst of mysterious phenomena, comes to the conclusion that all is the result of design; that back of all things is an infinite personality—that is to say, an infinite man; and he accounts for all that is by simply saying that the universe was created and set in motion by this infinite personality, and that it is miraculously and supernaturally governed and preserved. This man sees with perfect clearness that matter could not create itself, and therefore he imagines a creator of matter. He is perfectly satisfied that there is design in the world, and that consequently there must have been a designer. It does not occur to him that it is necessary to account for the existence of an infinite personality. He is perfectly certain that there can be no design without a designer, and he is equally certain that there can be a designer who was not designed. The absurdity becomes so great that it takes the place of a demonstration. He takes it for granted that matter was created and that its creator was not. He assumes that a creator existed from eternity, without cause, and created what is called matter out of nothing; or, whereas there was nothing, this creator made the something that we call substance.

Is it possible for the human mind to conceive of an infinite personality? Can it imagine a beginningless being, infinitely powerful and intelligent? If such a being existed, then there must have been an eternity during which nothing did exist except this being; because, if the Universe was created, there must have been a time when it was not, and back of that there must have been an eternity during which nothing but an infinite personality existed. Is it possible to imagine an infinite intelligence dwelling for an eternity in infinite nothing? How could such a being be intelligent? What was there to be intelligent about? There was but one thing to know, namely,

that there was nothing except this being. How could such a being be powerful? There was nothing to exercise force upon. There was nothing in the universe to suggest an idea. Relations could not exist—except the relation between infinite intelligence and infinite nothing.

The next great difficulty is the act of creation. My mind is so that I cannot conceive of something being created out of nothing. Neither can I conceive of anything being created without a cause. Let me go one step further. It is just as difficult to imagine something being created with, as without, a cause. To postulate a cause does not in the least lessen the difficulty. In spite of all, this lever remains without a fulcrum.

We cannot conceive of the destruction of substance. The stone can be crushed to powder, and the powder can be ground to such a fineness that the atoms can only be distinguished by the most powerful microscope, and we can then imagine these atoms being divided and subdivided again and again and again; but it is impossible for us to conceive of the annihilation of the least possible imaginable fragment of the least atom of which we can think. Consequently the mind can imagine neither creation nor destruction. From this point it is very easy to reach the generalization that the indestructible could not have been created.

These questions, however, will be answered by each individual according to the structure of his mind, according to his experience, according to his habits of thought, and according to his intelligence or his ignorance, his prejudice or his genius.

Probably a very large majority of mankind believe in the existence of supernatural beings, and a majority of what are known as the civilized nations, in an infinite personality. In the realm of thought majorities do not determine. Each brain is a kingdom, each mind is a sovereign.

The universality of a belief does not even tend to prove its truth. A large majority of mankind have believed in what is known as God, and an equally large majority have as implicitly believed in what is known as the Devil. These beings have been inferred from phenomena. They were produced for the most part by ignorance, by fear, and by selfishness. Man in all ages has endeavored to account for the mysteries of life and death, of substance, of force, for the ebb and flow of things, for earth and star. The savage, dwelling in his cave, subsisting on roots and reptiles, or on beasts that could be slain with club and stone, surrounded by countless objects of terror,

standing by rivers, so far as he knew, without source or end, by seas with but one shore, the prey of beasts mightier than himself, of diseases strange and fierce, trembling at the voice of thunder, blinded by the lightning, feeling the earth shake beneath him, seeing the sky lurid with the volcano's glare,—fell prostrate and begged for the protection of the Unknown.

In the long night of savagery, in the midst of pestilence and famine, through the long and dreary winters, crouched in dens of darkness, the seeds of superstition were sown in the brain of man. The savage believed, and thoroughly believed, that everything happened in reference to him; that he by his actions could excite the anger, or by his worship placate the wrath, of the Unseen. He resorted to flattery and prayer. To the best of his ability he put in stone, or rudely carved in wood, his idea of this god. For this idol he built a hut, a hovel, and at last a cathedral. Before these images he bowed, and at these shrines, whereon he lavished his wealth, he sought protection for himself and for the ones he loved. The few took advantage of the ignorant many. They pretended to have received messages from the Unknown. They stood between the helpless multitude and the gods. They were the carriers of flags of truce. At the court of heaven they presented the cause of man, and upon the labor of the deceived they lived.

The Christian of to-day wonders at the savage who bowed before his idol; and yet it must be confessed that the god of stone answered prayer and protected his worshipers precisely as the Christian's God answers prayer and protects his worshipers to-day.

My mind is so that it is forced to the conclusion that substance is eternal; that the universe was without beginning and will be without end; that it is the one eternal existence; that relations are transient and evanescent; that organisms are produced and vanish; that forms change,—but that the substance of things is from eternity to eternity. It may be that planets are born and die, that constellations will fade from the infinite spaces, that countless suns will be quenched,—but the substance will remain.

The questions of origin and destiny seem to be beyond the powers of the human mind.

Heredity is on the side of superstition. All our ignorance pleads for the old. In most men there is a feeling that their ancestors were exceedingly good and brave and wise, and that in all things pertaining to religion their conclusions should be followed. They believe that their fathers and mothers

were of the best, and that that which satisfied them should satisfy their children. With a feeling of reverence they say that the religion of their mother is good enough and pure enough and reasonable enough for them. In this way the love of parents and the reverence for ancestors have unconsciously bribed the reason and put out, or rendered exceedingly dim, the eyes of the mind.

There is a kind of longing in the heart of the old to live and die where their parents lived and died—a tendency to go back to the homes of their youth. Around the old oak of manhood grow and cling these vines. Yet it will hardly do to say that the religion of my mother is good enough for me, any more than to say the geology or the astronomy or the philosophy of my mother is good enough for me. Every human being is entitled to the best he can obtain; and if there has been the slightest improvement on the religion of the mother, the son is entitled to that improvement, and he should not deprive himself of that advantage by the mistaken idea that he owes it to his mother to perpetuate, in a reverential way, her ignorant mistakes.

If we are to follow the religion of our fathers and mothers, our fathers and mothers should have followed the religion of theirs. Had this been done, there could have been no improvement in the world of thought. The first religion would have been the last, and the child would have died as ignorant as the mother. Progress would have been impossible, and on the graves of ancestors would have been sacrificed the intelligence of mankind.

We know, too, that there has been the religion of the tribe, of the community, and of the nation, and that there has been a feeling that it was the duty of every member of the tribe or community, and of every citizen of the nation, to insist upon it that the religion of that tribe, of that community, of that nation, was better than that of any other. We know that all the prejudices against other religions, and all the egotism of nation and tribe, were in favor of the local superstition. Each citizen was patriotic enough to denounce the religions of other nations and to stand firmly by his own. And there is this peculiarity about man: he can see the absurdities of other religions while blinded to those of his own. The Christian can see clearly enough that Mohammed was an impostor. He is sure of it, because the people of Mecca who were acquainted with him declared that he was no prophet; and this declaration is received by Christians as a demonstration that Mohammed was not inspired. Yet these same Christians admit that the

people of Jerusalem who were acquainted with Christ rejected him; and this rejection they take as proof positive that Christ was the Son of God.

The average man adopts the religion of his country, or, rather, the religion of his country adopts him. He is dominated by the egotism of race, the arrogance of nation, and the prejudice called patriotism. He does not reason—he feels. He does not investigate—he believes. To him the religions of other nations are absurd and infamous, and their gods monsters of ignorance and cruelty. In every country this average man is taught, first, that there is a supreme being; second, that he has made known his will; third, that he will reward the true believer; fourth, that he will punish the unbeliever, the scoffer, and the blasphemer; fifth, that certain ceremonies are pleasing to this god; sixth, that he has established a church; and seventh, that priests are his representatives on earth. And the average man has no difficulty in determining that the God of his nation is the true God; that the will of this true God is contained in the sacred scriptures of his nation; that he is one of the true believers, and that the people of other nations—that is, believing other religions—are scoffers; that the only true church is the one to which he belongs; and that the priests of his country are the only ones who have had or ever will have the slightest influence with this true God. All these absurdities to the average man seem self-evident propositions; and so he holds all other creeds in scorn, and congratulates himself that he is a favorite of the one true God.

If the average Christian had been born in Turkey, he would have been a Mohammedan; and if the average Mohammedan had been born in New England and educated at Andover, he would have regarded the damnation of the heathen as the "tidings of great joy."

Nations have eccentricities, peculiarities, and hallucinations, and these find expression in their laws, customs, ceremonies, morals, and religions. And these are in great part determined by soil, climate, and the countless circumstances that mould and dominate the lives and habits of insects, individuals, and nations. The average man believes implicitly in the religion of his country, because he knows nothing of any other and has no desire to know. It fits him because he has been deformed to fit it, and he regards this fact of fit as an evidence of its inspired truth.

Has a man the right to examine, to investigate, the religion of his own country—the religion of his father and mother? Christians admit that the

citizens of all countries not Christian have not only this right, but that it is their solemn duty. Thousands of missionaries are sent to heathen countries to persuade the believers in other religions not only to examine their superstitions, but to renounce them, and to adopt those of the missionaries. It is the duty of a heathen to disregard the religion of his country and to hold in contempt the creed of his father and of his mother. If the citizens of heathen nations have the right to examine the foundations of their religion, it would seem that the citizens of Christian nations have the same right. Christians, however, go further than this; they say to the heathen: You must examine your religion, and not only so, but you must reject it; and, unless you do reject it, and, in addition to such rejection, adopt ours, you will be eternally damned. Then these same Christians say to the inhabitants of a Christian country: You must not examine; you must not investigate; but whether you examine or not, you must believe, or you will be eternally damned.

If there be one true religion, how is it possible to ascertain which of all the religions the true one is? There is but one way. We must impartially examine the claims of all. The right to examine involves the necessity to accept or reject. Understand me, not the right to accept or reject, but the necessity. From this conclusion there is no possible escape. If, then, we have the right to examine, we have the right to tell the conclusion reached. Christians have examined other religions somewhat, and they have expressed their opinion with the utmost freedom—that is to say, they have denounced them all as false and fraudulent; have called their gods idols and myths, and their priests impostors.

The Christian does not deem it worth while to read the Koran. Probably not one Christian in a thousand ever saw a copy of that book. And yet all Christians are perfectly satisfied that the Koran is the work of an impostor, No Presbyterian thinks it is worth his while to examine the religious systems of India; he knows that the Brahmins are mistaken, and that all their miracles are falsehoods. No Methodist cares to read the life of Buddha, and no Baptist will waste his time studying the ethics of Confucius. Christians of every sort and kind take it for granted that there is only one true religion, and that all except Christianity are absolutely without foundation. The Christian world believes that all the prayers of India are unanswered; that all the sacrifices upon the countless altars of Egypt, of Greece, and of Rome were without effect. They believe that all

these mighty nations worshiped their gods in vain; that their priests were deceivers or deceived; that their ceremonies were wicked or meaningless; that their temples were built by ignorance and fraud, and that no God heard their songs of praise, their cries of despair, their words of thankfulness; that on account of their religion no pestilence was stayed; that the earthquake and volcano, the flood and storm went on their ways of death—while the real God looked on and laughed at their calamities and mocked at their fears.

We find now that the prosperity of nations has depended, not upon their religion, not upon the goodness or providence of some god, but on soil and climate and commerce, upon the ingenuity, industry, and courage of the people, upon the development of the mind, on the spread of education, on the liberty of thought and action; and that in this mighty panorama of national life, reason has built and superstition has destroyed.

Being satisfied that all believe precisely as they must, and that religions have been naturally produced, I have neither praise nor blame for any man. Good men have had bad creeds, and bad men have had good ones. Some of the noblest of the human race have fought and died for the wrong. The brain of man has been the trysting-place of contradictions.

Passion often masters reason, and "the state of man, like to a little kingdom, suffers then the nature of an insurrection."

In the discussion of theological or religious questions, we have almost passed the personal phase, and we are now weighing arguments instead of exchanging epithets and curses. They who really seek for truth must be the best of friends. Each knows that his desire can never take the place of fact, and that, next to finding truth, the greatest honor must be won in honest search.

We see that many ships are driven in many ways by the same wind. So men, reading the same book, write many creeds and lay out many roads to heaven. To the best of my ability, I have examined the religions of many countries and the creeds of many sects. They are much alike, and the testimony by which they are substantiated is of such a character that to those who believe is promised an eternal reward. In all the sacred books there are some truths, some rays of light, some words of love and hope. The face of savagery is sometimes softened by a smile—the human triumphs, and the heart breaks into song. But in these books are also found the words

of fear and hate, and from their pages crawl serpents that coil and hiss in all the paths of men.

For my part, I prefer the books that inspiration has not claimed. Such is the nature of my brain that Shakespeare gives me greater joy than all the prophets of the ancient world. There are thoughts that satisfy the hunger of the mind. I am convinced that Humboldt knew more of geology than the author of Genesis; that Darwin was a greater naturalist than he who told the story of the flood; that Laplace was better acquainted with the habits of the sun and moon than Joshua could have been, and that Haeckel, Huxley, and Tyndall know more about the earth and stars, about the history of man, the philosophy of life—more that is of use, ten thousand times—than all the writers of the sacred books.

I believe in the religion of reason—the gospel of this world; in the development of the mind, in the accumulation of intellectual wealth, to the end that man may free himself from superstitious fear, to the end that he may take advantage of the forces of nature to feed and clothe the world.

Let us be honest with ourselves. In the presence of countless mysteries; standing beneath the boundless heaven sown thick with constellations; knowing that each grain of sand, each leaf, each blade of grass, asks of every mind the answer-less question; knowing that the simplest thing defies solution; feeling that we deal with the superficial and the relative, and that we are forever eluded by the real, the absolute,—let us admit the limitations of our minds, and let us have the courage and the candor to say: We do not know.

North American Review, December, 1889.

II.

THE Christian religion rests on miracles. There are no miracles in the realm of science. The real philosopher does not seek to excite wonder, but to make that plain which was wonderful. He does not endeavor to astonish, but to enlighten. He is perfectly confident that there are no miracles in nature. He knows that the mathematical expression of the same relations, contents, areas, numbers and proportions must forever remain the same. He knows that there are no miracles in chemistry; that the attractions and repulsions, the loves and hatreds, of atoms are constant. Under like conditions, he is certain that like will always happen; that the product ever has been and forever will be the same; that the atoms or particles unite in

definite, unvarying proportions,—so many of one kind mix, mingle, and harmonize with just so many of another, and the surplus will be forever cast out. There are no exceptions. Substances are always true to their natures. They have no caprices, no prejudices, that can vary or control their action. They are "the same yesterday, to-day, and forever."

In this fixedness, this constancy, this eternal integrity, the intelligent man has absolute confidence. It is useless to tell him that there was a time when fire would not consume the combustible, when water would not flow in obedience to the attraction of gravitation, or that there ever was a fragment of a moment during which substance had no weight.

Credulity should be the servant of intelligence. The ignorant have not credulity enough to believe the actual, because the actual appears to be contrary to the evidence of their senses. To them it is plain that the sun rises and sets, and they have not credulity enough to believe in the rotary motion of the earth—that is to say, they have not intelligence enough to comprehend the absurdities involved in their belief, and the perfect harmony between the rotation of the earth and all known facts. They trust their eyes, not their reason. Ignorance has always been and always will be at the mercy of appearance. Credulity, as a rule, believes everything except the truth. The semi-civilized believe in astrology, but who could convince them of the vastness of astronomical spaces, the speed of light, or the magnitude and number of suns and constellations? If Hermann, the magician, and Humboldt, the philosopher, could have appeared before savages, which would have been regarded as a god?

When men knew nothing of mechanics, nothing of the correlation of force, and of its indestructibility, they were believers in perpetual motion. So when chemistry was a kind of sleight-of-hand, or necromancy, something accomplished by the aid of the supernatural, people talked about the transmutation of metals, the universal solvent, and the philosopher's stone. Perpetual motion would be a mechanical miracle; and the transmutation of metals would be a miracle in chemistry; and if we could make the result of multiplying two by two five, that would be a miracle in mathematics. No one expects to find a circle the diameter of which is just one fourth of the circumference. If one could find such a circle, then there would be a miracle in geometry.

In other words, there are no miracles in any science. The moment we understand a question or subject, the miraculous necessarily disappears. If anything actually happens in the chemical world, it will, under like conditions, happen again.

No one need take an account of this result from the mouths of others: all can try the experiment for themselves. There is no caprice, and no accident.

It is admitted, at least by the Protestant world, that the age of miracles has passed away, and, consequently, miracles cannot at present be established by miracles; they must be substantiated by the testimony of witnesses who are said by certain writers—or, rather, by uncertain writers—to have lived several centuries ago; and this testimony is given to us, not by the witnesses themselves, not by persons who say that they talked with those witnesses, but by unknown persons who did not give the sources of their information.

The question is: Can miracles be established except by miracles? We know that the writers may have been mistaken. It is possible that they may have manufactured these accounts themselves. The witnesses may have told what they knew to be untrue, or they may have been honestly deceived, or the stories may have been true as at first told. Imagination may have added greatly to them, so that after several centuries of accretion a very simple truth was changed to a miracle.

We must admit that all probabilities must be against miracles, for the reason that that which is probable cannot by any possibility be a miracle. Neither the probable nor the possible, so far as man is concerned, can be miraculous. The probability therefore says that the writers and witnesses were either mistaken or dishonest.

We must admit that we have never seen a miracle ourselves, and we must admit that, according to our experience, there are no miracles. If we have mingled with the world, we are compelled to say that we have known a vast number of persons—including ourselves—to be mistaken, and many others who have failed to tell the exact truth. The probabilities are on the side of our experience, and, consequently, against the miraculous; and it is a necessity that the free mind moves along the path of least resistance.

The effect of testimony depends on the intelligence and honesty of the witness and the intelligence of him who weighs. A man living in a community where the supernatural is expected, where the miraculous is

supposed to be of almost daily occurrence, will, as a rule, believe that all wonderful things are the result of supernatural agencies. He will expect providential interference, and, as a consequence, his mind will pursue the path of least resistance, and will account for all phenomena by what to him is the easiest method. Such people, with the best intentions, honestly bear false witness. They have been imposed upon by appearances, and are victims of delusion and illusion.

In an age when reading and writing were substantially unknown, and when history itself was but the vaguest hearsay handed down from dotage to infancy, nothing was rescued from oblivion except the wonderful, the miraculous. The more marvelous the story, the greater the interest excited. Narrators and hearers were alike ignorant and alike honest. At that time nothing was known, nothing suspected, of the orderly course of nature—of the unbroken and unbreakable chain of causes and effects. The world was governed by caprice. Everything was at the mercy of a being, or beings, who were themselves controlled by the same passions that dominated man. Fragments of facts were taken for the whole, and the deductions drawn were honest and monstrous.

It is probably certain that all of the religions of the world have been believed, and that all the miracles have found credence in countless brains; otherwise they could not have been perpetuated. They were not all born of cunning. Those who told were as honest as those who heard. This being so, nothing has been too absurd for human credence.

All religions, so far as I know, claim to have been miraculously founded, miraculously preserved, and miraculously propagated. The priests of all claimed to have messages from God, and claimed to have a certain authority, and the miraculous has always been appealed to for the purpose of substantiating the message and the authority.

If men believe in the supernatural, they will account for all phenomena by an appeal to supernatural means or power. We know that formerly everything was accounted for in this way except some few simple things with which man thought he was perfectly acquainted. After a time men found that under like conditions like would happen, and as to those things the supposition of supernatural interference was abandoned; but that interference was still active as to all the unknown world. In other words, as

the circle of man's knowledge grew, supernatural interference withdrew and was active only just beyond the horizon of the known.

Now, there are some believers in universal special providence—that is, men who believe in perpetual interference by a supernatural power, this interference being for the purpose of punishing or rewarding, of destroying or preserving, individuals and nations.

Others have abandoned the idea of providence in ordinary matters, but still believe that God interferes on great occasions and at critical moments, especially in the affairs of nations, and that his presence is manifest in great disasters. This is the compromise position. These people believe that an infinite being made the universe and impressed upon it what they are pleased to call "laws," and then left it to run in accordance with those laws and forces; that as a rule it works well, and that the divine maker interferes only in cases of accident, or at moments when the machine fails to accomplish the original design.

There are others who take the ground that all is natural; that there never has been, never will be, never can be any interference from without, for the reason that nature embraces all, and that there can be no without or beyond.

The first class are Theists pure and simple; the second are Theists as to the unknown, Naturalists as to the known; and the third are Naturalists without a touch or taint of superstition.

What can the evidence of the first class be worth? This question is answered by reading the history of those nations that believed thoroughly and implicitly in the supernatural. There is no conceivable absurdity that was not established by their testimony. Every law or every fact in nature was violated. Children were born without parents; men lived for thousands of years; others subsisted without food, without sleep; thousands and thousands were possessed with evil spirits controlled by ghosts and ghouls; thousands confessed themselves guilty of impossible offences, and in courts, with the most solemn forms, impossibilities were substantiated by the oaths, affirmations, and confessions of men, women, and children.

These delusions were not confined to ascetics and peasants, but they took possession of nobles and kings; of people who were at that time called intelligent; of the then educated. No one denied these wonders, for the reason that denial was a crime punishable generally with death. Societies, nations, became insane—victims of ignorance, of dreams, and, above all, of

fears. Under these conditions human testimony is not and cannot be of the slightest value. We now know that nearly all of the history of the world is false, and we know this because we have arrived at that phase or point of intellectual development where and when we know that effects must have causes, that everything is naturally produced, and that, consequently, no nation could ever have been great, powerful, and rich unless it had the soil, the people, the intelligence, and the commerce. Weighed in these scales, nearly all histories are found to be fictions.

The same is true of religions. Every intelligent American is satisfied that the religions of India, of Egypt, of Greece and Rome, of the Aztecs, were and are false, and that all the miracles on which they rest are mistakes. Our religion alone is excepted. Every intelligent Hindoo discards all religions and all miracles except his own. The question is: When will people see the defects in their own theology as clearly as they perceive the same defects in every other?

All the so-called false religions were substantiated by miracles, by signs and wonders, by prophets and martyrs, precisely as our own. Our witnesses are no better than theirs, and our success is no greater. If their miracles were false, ours cannot be true. Nature was the same in India and in Palestine.

One of the corner-stones of Christianity is the miracle of inspiration, and this same miracle lies at the foundation of all religions. How can the fact of inspiration be established? How could even the inspired man know that he was inspired? If he was influenced to write, and did write, and did express thoughts and facts that to him were absolutely new, on subjects about which he had previously known nothing, how could he know that he had been influenced by an infinite being? And if he could know, how could he convince others?

What is meant by inspiration? Did the one inspired set down only the thoughts of a supernatural being? Was he simply an instrument, or did his personality color the message received and given? Did he mix his ignorance with the divine information, his prejudices and hatreds with the love and justice of the Deity? If God told him not to eat the flesh of any beast that dieth of itself, did the same infinite being also tell him to sell this meat to the stranger within his gates?

A man says that he is inspired—that God appeared to him in a dream, and told him certain things. Now, the things said to have been communicated

may have been good and wise; but will the fact that the communication is good or wise establish the inspiration? If, on the other hand, the communication is absurd or wicked, will that conclusively show that the man was not inspired? Must we judge from the communication? In other words, is our reason to be the final standard?

How could the inspired man know that the communication was received from God? If God in reality should appear to a human being, how could this human being know who had appeared? By what standard would he judge? Upon this question man has no experience; he is not familiar enough with the supernatural to know gods even if they exist. Although thousands have pretended to receive messages, there has been no message in which there was, or is, anything above the invention of man. There are just as wonderful things in the uninspired as in the inspired books, and the prophecies of the heathen have been fulfilled equally with those of the Judean prophets. If, then, even the inspired man cannot certainly know that he is inspired, how is it possible for him to demonstrate his inspiration to others? The last solution of this question is that inspiration is a miracle about which only the inspired can have the least knowledge, or the least evidence, and this knowledge and this evidence not of a character to absolutely convince even the inspired.

There is certainly nothing in the Old or the New Testament that could not have been written by uninspired human beings. To me there is nothing of any particular value in the Pentateuch. I do not know of a solitary scientific truth contained in the five books commonly attributed to Moses. There is not, as far as I know, a line in the book of Genesis calculated to make a human being better. The laws contained in Exodus, Leviticus, Numbers, and Deuteronomy are for the most part puerile and cruel. Surely there is nothing in any of these books that could not have been produced by uninspired men. Certainly there is nothing calculated to excite intellectual admiration in the book of Judges or in the wars of Joshua; and the same may be said of Samuel, Chronicles, and Kings. The history is extremely childish, full of repetitions of useless details, without the slightest philosophy, without a generalization born of a wide survey. Nothing is known of other nations; nothing imparted of the slightest value; nothing about education, discovery, or invention. And these idle and stupid annals are interspersed with myth and miracle, with flattery for kings who supported priests, and with curses and denunciations for those who would not hearken to the voice of the

prophets. If all the historic books of the Bible were blotted from the memory of mankind, nothing of value would be lost.

Is it possible that the writer or writers of First and Second Kings were inspired, and that Gibbon wrote "The Decline and Fall of the Roman Empire" without supernatural assistance? Is it possible that the author of Judges was simply the instrument of an infinite God, while John W. Draper wrote "The Intellectual Development of Europe" without one ray of light from the other world? Can we believe that the author of Genesis had to be inspired, while Darwin experimented, ascertained, and reached conclusions for himself.

Ought not the work of a God to be vastly superior to that of a man? And if the writers of the Bible were in reality inspired, ought not that book to be the greatest of books? For instance, if it were contended that certain statues had been chiselled by inspired men, such statues should be superior to any that uninspired man has made. As long as it is admitted that the Venus de Milo is the work of man, no one will believe in inspired sculptors—at least until a superior statue has been found. So in the world of painting. We admit that Corot was uninspired. Nobody claims that Angelo had supernatural assistance. Now, if some one should claim that a certain painter was simply the instrumentality of God, certainly the pictures produced by that painter should be superior to all others.

I do not see how it is possible for an intelligent human being to conclude that the Song of Solomon is the work of God, and that the tragedy of Lear was the work of an uninspired man. We are all liable to be mistaken, but the Iliad seems to me a greater work than the Book of Esther, and I prefer it to the writings of Haggai and Hosea. ❖?schylus is superior to Jeremiah, and Shakespeare rises immeasurably above all the sacred books of the world.

It does not seem possible that any human being ever tried to establish a truth—anything that really happened—by what is called a miracle. It is easy to understand how that which was common became wonderful by accretion,—by things added, and by things forgotten,—and it is easy to conceive how that which was wonderful became by accretion what was called supernatural. But it does not seem possible that any intelligent, honest man ever endeavored to prove anything by a miracle.

As a matter of fact, miracles could only satisfy people who demanded no evidence; else how could they have believed the miracle? It also appears to

be certain that, even if miracles had been performed, it would be impossible to establish that fact by human testimony. In other words, miracles can only be established by miracles, and in no event could miracles be evidence except to those who were actually present; and in order for miracles to be of any value, they would have to be perpetual. It must also be remembered that a miracle actually performed could by no possibility shed any light on any moral truth, or add to any human obligation.

If any man has, ever been inspired, this is a secret miracle, known to no person, and suspected only by the man claiming to be inspired. It would not be in the power of the inspired to give satisfactory evidence of that fact to anybody else.

The testimony of man is insufficient to establish the supernatural. Neither the evidence of one man nor of twelve can stand when contradicted by the experience of the intelligent world. If a book sought to be proved by miracles is true, then it makes no difference whether it was inspired or not; and if it is not true, inspiration cannot add to its value.

The truth is that the church has always—unconsciously, perhaps—offered rewards for falsehood. It was founded upon the supernatural, the miraculous, and it welcomed all statements calculated to support the foundation. It rewarded the traveller who found evidences of the miraculous, who had seen the pillar of salt into which the wife of Lot had been changed, and the tracks of Pharaoh's chariots on the sands of the Red Sea. It heaped honors on the historian who filled his pages with the absurd and impossible. It had geologists and astronomers of its own who constructed the earth and the constellations in accordance with the Bible. With sword and flame it destroyed the brave and thoughtful men who told the truth. It was the enemy of investigation and of reason. Faith and fiction were in partnership.

To-day the intelligence of the world denies the miraculous. Ignorance is the soil of the supernatural. The foundation of Christianity has crumbled, has disappeared, and the entire fabric must fall. The natural is true. The miraculous is false.

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HUXLEY AND AGNOSTICISM.

PROFESSOR HUXLEY AND AGNOSTICISM.

IN the February number of the Nineteenth Century, 1889, is an article by Professor Huxley, entitled "Agnosticism." It seems that a church congress was held at Manchester in October, 1888, and that the Principal of King's College brought the topic of Agnosticism before the assembly and made the following statement:

"But if this be so, for a man to urge as an escape from this article of belief that he has no means of a scientific knowledge of an unseen world, or of the future, is irrelevant. His difference from Christians lies, not in the fact that he has no knowledge of these things, but that he does not believe the authority on which they are stated. He may prefer to call himself an Agnostic, but his real name is an older one—he is an infidel; that is to say, an unbeliever. The word infidel, perhaps, carries an unpleasant significance. Perhaps it is right that it should. It is, and it ought to be, an unpleasant thing for a man to have to say plainly that he does not believe in Jesus Christ."

Let us examine this statement, putting it in language that is easily understood; and for that purpose we will divide it into several paragraphs.

First.—"For a man to urge that he has no means of a scientific knowledge of the unseen world, or of the future, is irrelevant."

Is there any other knowledge than a scientific knowledge? Are there several kinds of knowing? Is there such a thing as scientific ignorance? If a man says, "I know nothing of the unseen world because I have no knowledge upon that subject," is the fact that he has no knowledge absolutely irrelevant? Will the Principal of King's College say that having no knowledge is the reason he knows? When asked to give your opinion upon any subject, can it be said that your ignorance of that subject is irrelevant? If this be true, then your knowledge of the subject is also irrelevant?

Is it possible to put in ordinary English a more perfect absurdity? How can a man obtain any knowledge of the unseen world? He certainly cannot obtain it through the medium of the senses. It is not a world that he can

visit. He cannot stand upon its shores, nor can he view them from the ocean of imagination. The Principal of King's College, however, insists that these impossibilities are irrelevant.

No person has come back from the unseen world. No authentic message has been delivered. Through all the centuries, not one whisper has broken the silence that lies beyond the grave. Countless millions have sought for some evidence, have listened in vain for some word.

It is most cheerfully admitted that all this does not prove the non-existence of another world—all this does not demonstrate that death ends all. But it is the justification of the Agnostic, who candidly says, "I do not know."

Second.—The Principal of King's College states that the difference between an Agnostic and a Christian "lies, not in the fact that he has no knowledge of these things, but that he does not believe the authority on which they are stated."

Is this a difference in knowledge, or a difference in belief—that is to say, a difference in credulity?

The Christian believes the Mosaic account. He reverently hears and admits the truth of all that he finds within the Scriptures. Is this knowledge? How is it possible to know whether the reputed authors of the books of the Old Testament were the real ones? The witnesses are dead. The lips that could testify are dust. Between these shores roll the waves of many centuries. Who knows whether such a man as Moses existed or not? Who knows the author of Kings and Chronicles? By what testimony can we substantiate the authenticity of the prophets, or of the prophecies, or of the fulfillments? Is there any difference between the knowledge of the Christian and of the Agnostic? Does the Principal of King's College know any more as to the truth of the Old Testament than the man who modestly calls for evidence? Has not a mistake been made? Is not the difference one of belief instead of knowledge? And is not this difference founded on the difference in credulity? Would not an infinitely wise and good being—where belief is a condition to salvation—supply the evidence? Certainly the Creator of man—if such exist—knows the exact nature of the human mind—knows the evidence necessary to convince; and, consequently, such a being would act in accordance with such conditions.

There is a relation between evidence and belief. The mind is so constituted that certain things, being in accordance with its nature, are regarded as reasonable, as probable.

There is also this fact that must not be overlooked: that is, that just in the proportion that the brain is developed it requires more evidence, and becomes less and less credulous. Ignorance and credulity go hand in hand. Intelligence understands something of the law of average, has an idea of probability. It is not swayed by prejudice, neither is it driven to extremes by suspicion. It takes into consideration personal motives. It examines the character of the witnesses, makes allowance for the ignorance of the time,—for enthusiasm, for fear,—and comes to its conclusion without fear and without passion.

What knowledge has the Christian of another world? The senses of the Christian are the same as those of the Agnostic.

He hears, sees, and feels substantially the same. His vision is limited. He sees no other shore and hears nothing from another world.

Knowledge is something that can be imparted. It has a foundation in fact. It comes within the domain of the senses. It can be told, described, analyzed, and, in addition to all this, it can be classified. Whenever a fact becomes the property of one mind, it can become the property of the intellectual world. There are words in which the knowledge can be conveyed.

The Christian is not a supernatural person, filled with supernatural truths. He is a natural person, and all that he knows of value can be naturally imparted. It is within his power to give all that he has to the Agnostic.

The Principal of King's College is mistaken when he says that the difference between the Agnostic and the Christian does not lie in the fact that the Agnostic has no knowledge, "but that he does not believe the authority on which these things are stated."

The real difference is this: the Christian says that he has knowledge; the Agnostic admits that he has none; and yet the Christian accuses the Agnostic of arrogance, and asks him how he has the impudence to admit the limitations of his mind. To the Agnostic every fact is a torch, and by this light, and this light only, he walks.

It is also true that the Agnostic does not believe the authority relied on by the Christian. What is the authority of the Christian? Thousands of years ago it is supposed that certain men, or, rather, uncertain men, wrote certain things. It is alleged by the Christian that these men were divinely inspired, and that the words of these men are to be taken as absolutely true, no matter whether or not they are verified by modern discovery and demonstration.

How can we know that any human being was divinely inspired? There has been no personal revelation to us to the effect that certain people were inspired—it is only claimed that the revelation was to them. For this we have only their word, and about that there is this difficulty: we know nothing of them, and, consequently, cannot, if we desire, rely upon their character for truth. This evidence is not simply hearsay—it is far weaker than that. We have only been told that they said these things; we do not know whether the persons claiming to be inspired wrote these things or not; neither are we certain that such persons ever existed. We know now that the greatest men with whom we are acquainted are often mistaken about the simplest matters. We also know that men saying something like the same things, in other countries and in ancient days, must have been impostors. The Christian has no confidence in the words of Mohammed; the Mohammedan cares nothing about the declarations of Buddha; and the Agnostic gives to the words of the Christian the value only of the truth that is in them. He knows that these sayings get neither truth nor worth from the person who uttered them. He knows that the sayings themselves get their entire value from the truth they express. So that the real difference between the Christian and the Agnostic does not lie in their knowledge,—for neither of them has any knowledge on this subject,—but the difference does lie in credulity, and in nothing else. The Agnostic does not rely on the authority of Moses and the prophets. He finds that they were mistaken in most matters capable of demonstration. He finds that their mistakes multiply in the proportion that human knowledge increases. He is satisfied that the religion of the ancient Jews is, in most things, as ignorant and cruel as other religions of the ancient world. He concludes that the efforts, in all ages, to answer the questions of origin and destiny, and to account for the phenomena of life, have all been substantial failures.

In the presence of demonstration there is no opportunity for the exercise of faith. Truth does not appeal to credulity—it appeals to evidence, to established facts, to the constitution of the mind. It endeavors to harmonize

the new fact with all that we know, and to bring it within the circumference of human experience.

The church has never cultivated investigation. It has never said: Let him who has a mind to think, think; but its cry from the first until now has been: Let him who has ears to hear, hear.

The pulpit does not appeal to the reason of the pew; it speaks by authority and it commands the pew to believe, and it not only commands, but it threatens.

The Agnostic knows that the testimony of man is not sufficient to establish what is known as the miraculous. We would not believe to-day the testimony of millions to the effect that the dead had been raised. The church itself would be the first to attack such testimony. If we cannot believe those whom we know, why should we believe witnesses who have been dead thousands of years, and about whom we know nothing?

Third.—The Principal of King's College, growing somewhat severe, declares that "he may prefer to call himself an Agnostic, but his real name is an older one—he is an infidel; that is to say, an unbeliever."

This is spoken in a kind of holy scorn. According to this gentleman, an unbeliever is, to a certain extent, a disreputable person.

In this sense, what is an unbeliever? He is one whose mind is so constituted that what the Christian calls evidence is not satisfactory to him. Is a person accountable for the constitution of his mind, for the formation of his brain? Is any human being responsible for the weight that evidence has upon him? Can he believe without evidence? Is the weight of evidence a question of choice? Is there such a thing as honestly weighing testimony? Is the result of such weighing necessary? Does it involve moral responsibility? If the Mosaic account does not convince a man that it is true, is he a wretch because he is candid enough to tell the truth? Can he preserve his manhood only by making a false statement?

The Mohammedan would call the Principal of King's College an unbeliever,—so would the tribes of Central Africa,—and he would return the compliment, and all would be equally justified. Has the Principal of King's College any knowledge that he keeps from the rest of the world? Has he the confidence of the Infinite? Is there anything praiseworthy in believing where the evidence is sufficient, or is one to be praised for believing only where the evidence is insufficient? Is a man to be blamed for

not agreeing with his fellow-citizen? Were the unbelievers in the pagan world better or worse than their neighbors? It is probably true that some of the greatest Greeks believed in the gods of that nation, and it is equally true that some of the greatest denied their existence. If credulity is a virtue now, it must have been in the days of Athens. If to believe without evidence entitles one to eternal reward in this century, certainly the same must have been true in the days of the Pharaohs.

An infidel is one who does not believe in the prevailing religion. We now admit that the infidels of Greece and Rome were right. The gods that they refused to believe in are dead. Their thrones are empty, and long ago the sceptres dropped from their nerveless hands. To-day the world honors the men who denied and derided these gods.

Fourth.—The Principal of King's College ventures to suggest that "the word infidel, perhaps, carries an unpleasant significance; perhaps it is right that it should."

A few years ago the word infidel did carry "an unpleasant significance." A few years ago its significance was so unpleasant that the man to whom the word was applied found himself in prison or at the stake. In particularly kind communities he was put in the stocks, pelted with offal, derided by hypocrites, scorned by ignorance, jeered by cowardice, and all the priests passed by on the other side.

There was a time when Episcopalians were regarded as infidels; when a true Catholic looked upon a follower of Henry VIII. as an infidel, as an unbeliever; when a true Catholic held in detestation the man who preferred a murderer and adulterer—a man who swapped religions for the sake of exchanging wives—to the Pope, the head of the universal church.

It is easy enough to conceive of an honest man denying the claims of a church based on the caprice of an English king. The word infidel "carries an unpleasant significance" only where the Christians are exceedingly ignorant, intolerant, bigoted, cruel, and unmannerly.

The real gentleman gives to others the rights that he claims for himself. The civilized man rises far above the bigotry of one who has been "born again." Good breeding is far gentler than "universal love."

It is natural for the church to hate an unbeliever—natural for the pulpit to despise one who refuses to subscribe, who refuses to give. It is a question of revenue instead of religion. The Episcopal Church has the instinct of self-

preservation. It uses its power, its influence, to compel contribution. It forgives the giver.

Fifth.—The Principal of King's College insists that "it is, and it ought to be, an unpleasant thing for a man to have to say plainly that he does not believe in Jesus Christ."

Should it be an unpleasant thing for a man to say plainly what he believes? Can this be unpleasant except in an uncivilized community—a community in which an uncivilized church has authority?

Why should not a man be as free to say that he does not believe as to say that he does believe? Perhaps the real question is whether all men have an equal right to express their opinions. Is it the duty of the minority to keep silent? Are majorities always right? If the minority had never spoken, what to-day would have been the condition of this world? Are the majority the pioneers of progress, or does the pioneer, as a rule, walk alone? Is it his duty to close his lips? Must the inventor allow his inventions to die in the brain? Must the discoverer of new truths make of his mind a tomb? Is man under any obligation to his fellows? Was the Episcopal religion always in the majority? Was it at any time in the history of the world an unpleasant thing to be called a Protestant? Did the word Protestant "carry an unpleasant significance"? Was it "perhaps right that it should"? Was Luther a misfortune to the human race?

If a community is thoroughly civilized, why should it be an unpleasant thing for a man to express his belief in respectful language? If the argument is against him, it might be unpleasant; but why should simple numbers be the foundation of unpleasantness? If the majority have the facts,—if they have the argument,—why should they fear the mistakes of the minority? Does any theologian hate the man he can answer?

It is claimed by the Episcopal Church that Christ was in fact God; and it is further claimed that the New Testament is an inspired account of what that being and his disciples did and said. Is there any obligation resting on any human being to believe this account? Is it within the power of man to determine the influence that testimony shall have upon his mind?

If one denies the existence of devils, does he, for that reason, cease to believe in Jesus Christ? Is it not possible to imagine that a great and tender soul living in Palestine nearly twenty centuries ago was misunderstood? Is it not within the realm of the possible that his words have been inaccurately

reported? Is it not within the range of the probable that legend and rumor and ignorance and zeal have deformed his life and belittled his character?

If the man Christ lived and taught and suffered, if he was, in reality, great and noble, who is his friend—the one who attributes to him feats of jugglery, or he who maintains that these stories were invented by zealous ignorance and believed by enthusiastic credulity?

If he claimed to have wrought miracles, he must have been either dishonest or insane; consequently, he who denies miracles does what little he can to rescue the reputation of a great and splendid man.

The Agnostic accepts the good he did, the truth he said, and rejects only that which, according to his judgment, is inconsistent with truth and goodness.

The Principal of King's College evidently believes in the necessity of belief. He puts conviction or creed or credulity in place of character. According to his idea, it is impossible to win the approbation of God by intelligent investigation and by the expression of honest conclusions. He imagines that the Infinite is delighted with credulity, with belief without evidence, faith without question.

Man has but little reason, at best; but this little should be used. No matter how small the taper is, how feeble the ray of light it casts, it is better than darkness, and no man should be rewarded for extinguishing the light he has.

We know now, if we know anything, that man in this, the nineteenth century, is better capable of judging as to the happening of any event, than he ever was before. We know that the standard is higher to-day—we know that the intellectual light is greater—we know that the human mind is better equipped to deal with all questions of human interest, than at any other time within the known history of the human race.

It will not do to say that "our Lord and his apostles must at least be regarded as honest men." Let this be admitted, and what does it prove? Honesty is not enough. Intelligence and honesty must go hand in hand. We may admit now that "our Lord and his apostles" were perfectly honest men; yet it does not follow that we have a truthful account of what they said and of what they did. It is not pretended that "our Lord" wrote anything, and it is not known that one of the apostles ever wrote a word. Consequently, the most that we can say is that somebody has written something about "our Lord and his apostles." Whether that somebody knew or did not know is

unknown to us. As to whether what is written is true or false, we must judge by that which is written.

First of all, is it probable? is it within the experience of mankind? We should judge of the gospels as we judge of other histories, of other biographies. We know that many biographies written by perfectly honest men are not correct. We know, if we know anything, that honest men can be mistaken, and it is not necessary to believe everything that a man writes because we believe he was honest. Dishonest men may write the truth.

At last the standard or criterion is for each man to judge according to what he believes to be human experience. We are satisfied that nothing more wonderful has happened than is now happening. We believe that the present is as wonderful as the past, and just as miraculous as the future. If we are to believe in the truth of the Old Testament, the word evidence loses its meaning; there ceases to be any standard of probability, and the mind simply accepts or denies without reason.

We are told that certain miracles were performed for the purpose of attesting the mission and character of Christ. How can these miracles be verified? The miracles of the Middle Ages rest upon substantially the same evidence. The same may be said of the wonders of all countries and of all ages. How is it a virtue to deny the miracles of Mohammed and to believe those attributed to Christ?

You may say of St. Augustine that what he said was true or false. We know that much of it was false; and yet we are not justified in saying that he was dishonest. Thousands of errors have been propagated by honest men. As a rule, mistakes get their wings from honest people. The testimony of a witness to the happening of the impossible gets no weight from the honesty of the witness. The fact that falsehoods are in the New Testament does not tend to prove that the writers were knowingly untruthful. No man can be honest enough to substantiate, to the satisfaction of reasonable men, the happening of a miracle.

For this reason it makes not the slightest difference whether the writers of the New Testament were honest or not. Their character is not involved. Whenever a man rises above his contemporaries, whenever he excites the wonder of his fellows, his biographers always endeavor to bridge over the chasm between the people and this man, and for that purpose attribute to him the qualities which in the eyes of the multitude are desirable.

Miracles are demanded by savages, and, consequently, the savage biographer attributes miracles to his hero. What would we think now of a man who, in writing the life of Charles Darwin, should attribute to him supernatural powers? What would we say of an admirer of Humboldt who should claim that the great German could cast out devils? We would feel that Darwin and Humboldt had been belittled; that the biographies were written for children and by men who had not outgrown the nursery.

If the reputation of "our Lord" is to be preserved—if he is to stand with the great and splendid of the earth—if he is to continue a constellation in the intellectual heavens, all claim to the miraculous, to the supernatural, must be abandoned.

No one can overestimate the evils that have been endured by the human race by reason of a departure from the standard of the natural. The world has been governed by jugglery, by sleight-of-hand. Miracles, wonders, tricks, have been regarded as of far greater importance than the steady, the sublime and unbroken march of cause and effect. The improbable has been established by the impossible. Falsehood has furnished the foundation for faith.

Is the human body at present the residence of evil spirits, or have these imps of darkness perished from the world? Where are they? If the New Testament establishes anything, it is the existence of innumerable devils, and that these satanic beings absolutely took possession of the human mind. Is this true? Can anything be more absurd? Does any intellectual man who has examined the question believe that depraved demons live in the bodies of men? Do they occupy space? Do they live upon some kind of food? Of what shape are they? Could they be classified by a naturalist? Do they run or float or fly? If to deny the existence of these supposed beings is to be an infidel, how can the word infidel "carry an unpleasant significance"?

Of course it is the business of the principals of most colleges, as well as of bishops, cardinals, popes, priests, and clergymen to insist upon the existence of evil spirits. All these gentlemen are employed to counteract the influence of these supposed demons. Why should they take the bread out of their own mouths? Is it to be expected that they will unfrock themselves?

The church, like any other corporation, has the instinct of self-preservation. It will defend itself; it will fight as long as it has the power to

change a hand into a fist.

The Agnostic takes the ground that human experience is the basis of morality. Consequently, it is of no importance who wrote the gospels, or who vouched or vouches for the genuineness of the miracles. In his scheme of life these things are utterly unimportant. He is satisfied that "the miraculous" is the impossible. He knows that the witnesses were wholly incapable of examining the questions involved, that credulity had possession of their minds, that "the miraculous" was expected, that it was their daily food.

All this is very clearly and delightfully stated by Professor Huxley, and it hardly seems possible that any intelligent man can read what he says without feeling that the foundation of all superstition has been weakened. The article is as remarkable for its candor as for its clearness. Nothing is avoided—everything is met. No excuses are given.. He has left all apologies for the other side. When you have finished what Professor Huxley has written, you feel that your mind has been in actual contact with the mind of another, that nothing has been concealed; and not only so, but you feel that this mind is not only willing, but anxious, to know the actual truth.

To me, the highest uses of philosophy are, first, to free the mind of fear, and, second, to avert all the evil that can be averted, through intelligence—that is to say, through a knowledge of the conditions of well-being.

We are satisfied that the absolute is beyond our vision, beneath our touch, above our reach. We are now convinced that we can deal only with phenomena, with relations, with appearances, with things that impress the senses, that can be reached by reason, by the exercise of our faculties. We are satisfied that the reasonable road is "the straight road," the only "sacred way."

Of course there is faith in the world—faith in this world—and always will be, unless superstition succeeds in every land. But the faith of the wise man is based upon facts. His faith is a reasonable conclusion drawn from the known. He has faith in the progress of the race, in the triumph of intelligence, in the coming sovereignty of science. He has faith in the development of the brain, in the gradual enlightenment of the mind. And so he works for the accomplishment of great ends, having faith in the final victory of the race.

He has honesty enough to say that he does not know. He perceives and admits that the mind has limitations. He doubts the so-called wisdom of the past. He looks for evidence, and he endeavors to keep his mind free from prejudice. He believes in the manly virtues, in the judicial spirit, and in his obligation to tell his honest thoughts.

It is useless to talk about a destruction of consolations. That which is suspected to be untrue loses its power to console. A man should be brave enough to bear the truth.

Professor Huxley has stated with great clearness the attitude of the Agnostic. It seems that he is somewhat severe on the Positive Philosophy. While it is hard to see the propriety of worshiping Humanity as a being, it is easy to understand the splendid dream of August Comte. Is the human race worthy to be worshiped by itself—that is to say, should the individual worship himself? Certainly the religion of humanity is better than the religion of the inhuman. The Positive Philosophy is better far than Catholicism. It does not fill the heavens with monsters, nor the future with pain.

It may be said that Luther and Comte endeavored to reform the Catholic Church. Both were mistaken, because the only reformation of which that church is capable is destruction. It is a mass of superstition.

The mission of Positivism is, in the language of its founder, "to generalize science and to systematize sociality." It seems to me that Comte stated with great force and with absolute truth the three phases of intellectual evolution or progress.

First.—"In the supernatural phase the mind seeks causes—aspires to know the essence of things, and the How and Why of their operation. In this phase, all facts are regarded as the productions of supernatural agents, and unusual phenomena are interpreted as the signs of the pleasure or displeasure of some god."

Here at this point is the orthodox world of to-day. The church still imagines that phenomena should be interpreted as the signs of the pleasure or displeasure of God. Nearly every history is deformed with this childish and barbaric view.

Second.—The next phase or modification, according to Comte, is the metaphysical. "The supernatural agents are dispensed with, and in their

places we find abstract forces or entities supposed to inhere in substances and capable of engendering phenomena."

In this phase people talk about laws and principles as though laws and principles were forces capable of producing phenomena.

Third.—"The last stage is the Positive. The mind, convinced of the futility of all enquiry into causes and essences, restricts itself to the observation and classification of phenomena, and to the discovery of the invariable relations of succession and similitude—in a word, to the discovery of the relations of phenomena."

Why is not the Positive stage the point reached by the Agnostic? He has ceased to inquire into the origin of things. He has perceived the limitations of the mind. He is thoroughly convinced of the uselessness and futility and absurdity of theological methods, and restricts himself to the examination of phenomena, to their relations, to their effects, and endeavors to find in the complexity of things the true conditions of human happiness.

Although I am not a believer in the philosophy of Auguste Comte, I cannot shut my eyes to the value of his thought; neither is it possible for me not to applaud his candor, his intelligence, and the courage it required even to attempt to lay the foundation of the Positive Philosophy.

Professor Huxley and Frederic Harrison are splendid soldiers in the army of Progress. They have attacked with signal success the sacred and solemn stupidities of superstition. Both have appealed to that which is highest and noblest in man. Both have been the destroyers of prejudice. Both have shed light, and both have won great victories on the fields of intellectual conflict. They cannot afford to waste time in attacking each other.

After all, the Agnostic and the Positivist have the same end in view—both believe in living for this world.

The theologians, finding themselves unable to answer the arguments that have been urged, resort to the old subterfuge—to the old cry that Agnosticism takes something of value from the life of man. Does the Agnostic take any consolation from the world? Does he blot out, or dim, one star in the heaven of hope? Can there be anything more consoling than to feel, to know, that Jehovah is not God—that the message of the Old Testament is not from the infinite?

Is it not enough to fill the brain with a happiness unspeakable to know that the words, "Depart from me, ye cursed, into everlasting fire," will never be spoken to one of the children of men?

Is it a small thing to lift from the shoulders of industry the burdens of superstition? Is it a little thing to drive the monster of fear from the hearts of men?—North American Review, April, 1889.

ERNEST RENAN.

*"Blessed are those
Whose blood and judgment are so well co-mingled
That they are not a pipe for fortune's finger
To sound what stop she please."*

ERNEST RENAN is dead. Another source of light; another force of civilization; another charming personality; another brave soul, graceful in thought, generous in deed; a sculptor in speech, a colorist in words—clothing all in the poetry born of a delightful union of heart and brain—has passed to the realm of rest.

Reared under the influences of Catholicism, educated for the priesthood, yet by reason of his natural genius, he began to think. Forces that utterly subjugate and enslave the mind of mediocrity sometimes rouse to thought and action the superior soul.

Renan began to think—a dangerous thing for a Catholic to do. Thought leads to doubt, doubt to investigation, investigation to truth—the enemy of all superstition.

He lifted the Catholic extinguisher from the light and flame of reason. He found that his mental vision was improved. He read the Scriptures for himself, examined them as he did other books not claiming to be inspired. He found the same mistakes, the same prejudices, the same miraculous impossibilities in the book attributed to God that he found in those known to have been written by men.

Into the path of reason, or rather into the highway, Renan was led by Henriette, his sister, to whom he pays a tribute that has the perfume of a perfect flower.

"I was," writes Renan, "brought up by women and priests, and therein lies the whole explanation of my good qualities and of my defects." In most that he wrote is the tenderness of woman, only now and then a little touch of the priest showing itself, mostly in a reluctance to spoil the ivy by tearing down some prison built by superstition.

In spite of the heartless "scheme" of things he still found it in his heart to say, "When God shall be complete, He will be just," at the same time saying that "nothing proves to us that there exists in the world a central consciousness—a soul of the universe—and nothing proves the contrary." So, whatever was the verdict of his brain, his heart asked for immortality. He wanted his dream, and he was willing that others should have theirs. Such is the wish and will of all great souls.

He knew the church thoroughly and anticipated what would finally be written about him by churchmen: "Having some experience of ecclesiastical writers I can sketch out in advance the way my biography will be written in Spanish in some Catholic review, of Santa Fé, in the year 2,000. Heavens! how black I shall be! I shall be so all the more, because the church when she feels that she is lost will end with malice. She will bite like a mad dog."

He anticipated such a biography because he had thought for himself, and because he had expressed his thoughts—because he had declared that "our universe, within the reach of our experience, is not governed by any intelligent reason. God, as the common herd understand him, the living God, the acting God—the God-Providence, does not show himself in the universe"—because he attacked the mythical and the miraculous in the life of Christ and sought to rescue from the calumnies of ignorance and faith a serene and lofty soul.

The time has arrived when Jesus must become a myth or a man. The idea that he was the infinite God must be abandoned by all who are not religiously insane. Those who have given up the claim that he was God, insist that he was divinely appointed and illuminated; that he was a perfect man—the highest possible type of the human race and, consequently, a perfect example for all the world.

As time goes on, as men get wider or grander or more complex ideas of life, as the intellectual horizon broadens, the idea that Christ was perfect may be modified.

The New Testament seems to describe several individuals under the same name, or at least one individual who passed through several stages or phases of religious development. Christ is described as a devout Jew, as one who endeavored to comply in all respects with the old law. Many sayings are attributed to him consistent with this idea. He certainly was a Hebrew in belief and feeling when he said, "Swear not by Heaven, because it is God's

throne, nor by earth, for it is his footstool; nor by Jerusalem, for it is his holy city." These reasons were in exact accordance with the mythology of the Jews. God was regarded simply as an enormous man, as one who walked in the garden in the cool of the evening, as one who had met man face to face, who had conversed with Moses for forty days upon Mount Sinai, as a great king, with a throne in the heavens, using the earth to rest his feet upon, and regarding Jerusalem as his holy city.

Then we find plenty of evidence that he wished to reform the religion of the Jews; to fulfill the law, not to abrogate it. Then there is still another change: he has ceased his efforts to reform that religion and has become a destroyer. He holds the Temple in contempt and repudiates the idea that Jerusalem is the holy city. He concludes that it is unnecessary to go to some mountain or some building to worship or to find God, and insists that the heart is the true temple, that ceremonies are useless, that all pomp and pride and show are needless, and that it is enough to worship God under heaven's dome, in spirit and in truth.

It is impossible to harmonize these views unless we admit that Christ was the subject of growth and change; that in consequence of growth and change he modified his views; that, from wanting to preserve Judaism as it was, he became convinced that it ought to be reformed. That he then abandoned the idea of reformation, and made up his mind that the only reformation of which the Jewish religion was capable was destruction. If he was in fact a man, then the course he pursued was natural; but if he was God, it is perfectly absurd. If we give to him perfect knowledge, then it is impossible to account for change or growth. If, on the other hand, the ground is taken that he was a perfect man, then, it might be asked, Was he perfect when he wished to preserve, or when he wished to reform, or when he resolved to destroy, the religion of the Jews? If he is to be regarded as perfect, although not divine, when did he reach perfection?

It is perfectly evident that Christ, or the character that bears that name, imagined that the world was about to be destroyed, or at least purified by fire, and that, on account of this curious belief, he became the enemy of marriage, of all earthly ambition and of all enterprise. With that view in his mind, he said to himself, "Why should we waste our energies in producing food for destruction? Why should we endeavor to beautify a world that is so soon to perish?" Filled with the thought of coming change, he insisted that

there was but one important thing, and that was for each man to save his soul. He should care nothing for the ties of kindred, nothing for wife or child or property, in the shadow of the coming disaster. He should take care of himself. He endeavored, as it is said, to induce men to desert all they had, to let the dead, bury the dead, and follow him. He told his disciples, or those he wished to make his disciples, according to the Testament, that it was their duty to desert wife and child and property, and if they would so desert kindred and wealth, he would reward them here and hereafter.

We know now—if we know anything—that Jesus was mistaken about the coming of the end, and we know now that he was greatly controlled in his ideas of life, by that mistake. Believing that the end was near, he said, "Take no thought for the morrow, what ye shall eat or what ye shall drink or wherewithal ye shall be clothed." It was in view of the destruction of the world that he called the attention of his disciples to the lily that toiled not and yet excelled Solomon in the glory of its raiment. Having made this mistake, having acted upon it, certainly we cannot now say that he was perfect in knowledge.

He is regarded by many millions as the impersonation of patience, of forbearance, of meekness and mercy, and yet, according to the account, he said many extremely bitter words, and threatened eternal pain.

We also know, if the account be true, that he claimed to have supernatural power, to work miracles, to cure the blind and to raise the dead, and we know that he did nothing of the kind. So if the writers of the New Testament tell the truth as to what Christ claimed, it is absurd to say that he was a perfect man. If honest, he was deceived, and those who are deceived are not perfect.

There is nothing in the New Testament, so far as we know, that touches on the duties of nation to nation, or of nation to its citizens; nothing of human liberty; not one word about education; not the faintest hint that there is such a thing as science; nothing calculated to stimulate industry, commerce, or invention; not one word in favor of art, of music or anything calculated to feed or clothe the body, nothing to develop the brain of man.

When it is assumed that the life of Christ, as described in the New Testament, is perfect, we at least take upon ourselves the burden of deciding what perfection is. People who asserted that Christ was divine, that he was actually God, reached the conclusion, without any laborious course of

reasoning, that all he said and did was absolute perfection. They said this because they had first been convinced that he was divine. The moment his divinity is given up and the assertion is made that he was perfect, we are not permitted to reason in that way. They said he was God, therefore perfect. Now, if it is admitted that he was human, the conclusion that he was perfect does not follow. We then take the burden upon ourselves of deciding what perfection is. To decide what is perfect is beyond the powers of the human mind.

Renan, in spite of his education, regarded Christ as a man, and did the best he could to account for the miracles that had been attributed to him, for the legends that had gathered about his name, and the impossibilities connected with his career, and also tried to account for the origin or birth of these miracles, of these legends, of these myths, including the resurrection and ascension. I am not satisfied with all the conclusions he reached or with all the paths he traveled. The refraction of light caused by passing through a woman's tears is hardly a sufficient foundation for a belief in so miraculous a miracle as the bodily ascension of Jesus Christ.

There is another thing attributed to Christ that seems to me conclusive evidence against the claim of perfection. Christ is reported to have said that all sins could be forgiven except the sin against the Holy Ghost. This sin, however, is not defined. Although Christ died for the whole world, that through him all might be saved, there is this one terrible exception: There is no salvation for those who have sinned, or who may hereafter sin, against the Holy Ghost. Thousands of persons are now in asylums, having lost their reason because of their fear that they had committed this unknown, this undefined, this unpardonable sin.

It is said that a Roman Emperor went through a form of publishing his laws or proclamations, posting them so high on pillars that they could not be read, and then took the lives of those who ignorantly violated these unknown laws. He was regarded as a tyrant, as a murderer. And yet, what shall we say of one who declared that the sin against the Holy Ghost was the only one that could not be forgiven, and then left an ignorant world to guess what that sin is? Undoubtedly this horror is an interpolation.

There is something like it in the Old Testament. It is asserted by Christians that the Ten Commandments are the foundation of all law and of all civilization, and you will find lawyers insisting that the Mosaic Code

was the first information that man received on the subject of law; that before that time the world was without any knowledge of justice or mercy. If this be true the Jews had no divine laws, no real instruction on any legal subject until the Ten Commandments were given. Consequently, before that time there had been proclaimed or published no law against the worship of other gods or of idols. Moses had been on Mount Sinai talking with Jehovah. At the end of the dialogue he received the Tables of Stone and started down the mountain for the purpose of imparting this information to his followers. When he reached the camp he heard music. He saw people dancing, and he found that in his absence Aaron and the rest of the people had cast a molten calf which they were then worshipping. This so enraged Moses that he broke the Tables of Stone and made preparations for the punishment of the Jews. Remember that they knew nothing about this law, and, according to the modern Christian claims, could not have known that it was wrong to melt gold and silver and mould it in the form of a calf. And yet Moses killed about thirty thousand of these people for having violated a law of which they had never heard; a law known only to one man and one God. Nothing could be more unjust, more ferocious, than this; and yet it can hardly be said to exceed in cruelty the announcement that a certain sin was unpardonable and then fail to define the sin. Possibly, to inquire what the sin is, is the sin.

Renan regards Jesus as a man, and his work gets its value from the fact that it is written from a human standpoint. At the same time he, consciously or unconsciously, or may be for the purpose of sprinkling a little holy water on the heat of religious indignation, now and then seems to speak of him as more than human, or as having accomplished something that man could not.

He asserts that "the Gospels are in part legendary; that they contain many things not true; that they are full of miracles and of the supernatural." At the same time he insists that these legends, these miracles, these supernatural things do not affect the truth of the probable things contained in these writings. He sees, and sees clearly, that there is no evidence that Matthew or Mark or Luke or John wrote the books attributed to them; that, as a matter of fact, the mere title of "according to Matthew," "according to Mark," shows that they were written by others who claimed them to be in accordance with the stories that had been told by Matthew or by Mark. So Renan takes the ground that the Gospel of Luke is founded on anterior

documents and "is the work of a man who selected, pruned and combined, and that the same man wrote the Acts of the Apostles and in the same way."

The gospels were certainly written long after the events described, and Renan finds the reason for this in the fact that the Christians believed that the world was about to end; that, consequently, there was no need of composing books; it was only necessary for them to preserve in their hearts during the little margin of time that remained a lively image of Him whom they soon expected to meet in the clouds. For this reason the gospels themselves had but little authority for 150 years, the Christians relying on oral traditions. Renan shows that there was not the slightest scruple about inserting additions in the gospels, variously combining them, and in completing some by taking parts from others; that the books passed from hand to hand, and that each one transcribed in the margin of his copy the words and parables he had found elsewhere which touched him; that it was not until human tradition became weakened that the text bearing the names of the apostles became authoritative.

Renan has criticised the gospels somewhat in the same spirit that he would criticise a modern work. He saw clearly that the metaphysics filling the discourses of John were deformities and distortions, full of mysticism, having nothing to do really with the character of Jesus. He shows too "that the simple idea of the Kingdom of God, at the time the Gospel according to St. John was written, had faded away; that the hope of the advent of Christ was growing dim, and that from belief the disciples passed into discussion, from discussion to dogma, from dogma to ceremony," and, finding that the new Heaven and the new Earth were not coming as expected, they turned their attention to governing the old Heaven and the old Earth. The disciples were willing to be humble for a few days, with the expectation of wearing crowns forever. They were satisfied with poverty, believing that the wealth of the world was to be theirs. The coming of Christ, however, being for some unaccountable reason delayed, poverty and humility grew irksome, and human nature began to assert itself.

In the Gospel of John you will find the metaphysics of the church. There you find the Second Birth. There you find the doctrine of the atonement clearly set forth. There you find that God died for the whole world, and that whosoever believeth not in him is to be damned. There is nothing of the kind in Matthew. Matthew makes Christ say that, if you will forgive others,

God will forgive you. The Gospel "according to Mark" is the same. So is the Gospel "according to Luke." There is nothing about salvation through belief, nothing about the atonement. In Mark, in the last chapter, the apostles are told to go into all the world and preach the gospel, with the statement that whoever believed and was baptised should be saved, and whoever failed to believe should be damned. But we now know that that is an interpolation. Consequently, Matthew, Mark and Luke never had the faintest conception of the "Christian religion." They knew nothing of the atonement, nothing of salvation by faith—nothing. So that if a man had read only Matthew, Mark and Luke, and had strictly followed what he found, he would have found himself, after death, in perdition.

Renan finds that certain portions of the Gospel "according to John" were added later; that the entire twenty-first chapter is an interpolation; also, that many places bear the traces of erasures and corrections. So he says that it would be "impossible for any one to compose a life of Jesus, with any meaning in it, from the discourses which John attributes to him, and he holds that this Gospel of John is full of preaching, Christ demonstrating himself; full of argumentation, full of stage effect, devoid of simplicity, with long arguments after each miracle, stiff and awkward discourses, the tone of which is often false and unequal." He also insists that there are evidently "artificial portions, variations like that of a musician improvising on a given theme."

In spite of all this, Renan, willing to soothe the prejudice of his time, takes the ground that the four canonical gospels are authentic, that they date from the first century, that the authors were, generally speaking, those to whom they are attributed; but he insists that their historic value is very diverse. This is a back-handed stroke. Admitting, first, that they are authentic; second, that they were written about the end of the first century; third, that they are not of equal value, disposes, so far as he is concerned, of the dogma of inspiration.

One is at a loss to understand why four gospels should have been written. As a matter of fact there can be only one true account of any occurrence, or of any number of occurrences. Now, it must be taken for granted, that an inspired account is true. Why then should there be four inspired accounts? It may be answered that all were not to write the entire story. To this the reply is that all attempted to cover substantially the same ground.

Many years ago the early fathers thought it necessary to say why there were four inspired books, and some of them said, because there were four cardinal directions and the gospels fitted the north, south, east and west. Others said that there were four principal winds—a gospel for each wind. They might have added that some animals have four legs.

Renan admits that the narrative portions have not the same authority; "that many legends proceeded from the zeal of the second Christian generation; that the narrative of Luke is historically weak; that sentences attributed to Jesus have been distorted and exaggerated; that the book was written outside of Palestine and after the siege of Jerusalem; that Luke endeavors to make the different narratives agree, changing them for that purpose; that he softens the passages which had become embarrassing; that he exaggerated the marvelous, omitted errors in chronology; that he was a compiler, a man who had not been an eye-witness himself, and who had not seen eye-witnesses, but who labors at texts and wrests their sense to make them agree." This certainly is very far from inspiration. So "Luke interprets the documents according to his own idea; being a kind of anarchist, opposed to property, and persuaded that the triumph of the poor was approaching; that he was especially fond of the anecdotes showing the conversion of sinners, the exaltation of the humble, and that he modified ancient traditions to give them this meaning."

Renan reached the conclusion that the gospels are neither biographies after the manner of Suetonius nor fictitious legends in the style of Philostratus, but that they are legendary biographies like the legends of the saints, the lives of Plotinus and Isidore, in which historical truth and the desire to present models of virtue are combined in various degrees; that they are "inexact" that they "contain numerous errors and discordances." So he takes the ground that twenty or thirty years after Christ, his reputation had greatly increased, that "legends had begun to gather about Him like clouds," that "death added to His perfection, freeing Him from all defects in the eyes of those who had loved Him, that His followers wrested the prophecies so that they might fit Him. They said, 'He is the Messiah.' The Messiah was to do certain things; therefore Jesus did certain things. Then an account would be given of the doing." All of which of course shows that there can be maintained no theory of inspiration.

It is admitted that where individuals are witnesses of the same transaction, and where they agree upon the vital points and disagree upon details, the disagreement may be consistent with their honesty, as tending to show that they have not agreed upon a story; but if the witnesses are inspired of God then there is no reason for their disagreeing on anything, and if they do disagree it is a demonstration that they were not inspired, but it is not a demonstration that they are not honest. While perfect agreement may be evidence of rehearsal, a failure to perfectly agree is not a demonstration of the truth or falsity of a story; but if the witnesses claim to be inspired, the slightest disagreement is a demonstration that they were not inspired.

Renan reaches the conclusion, proving every step that he takes, that the four principal documents—that is to say, the four gospels—are in "flagrant contradiction one with another." He attacks, and with perfect success, the miracles of the Scriptures, and upon this subject says: "Observation, which has never once been falsified, teaches us that miracles never happen, but in times and countries in which they are believed and before persons disposed to believe them. No miracle ever occurred in the presence of men capable of testing its miraculous character." He further takes the ground that no contemporary miracle will bear inquiry, and that consequently it is probable that the miracles of antiquity which have been performed in popular gatherings would be shown to be simple illusion, were it possible to criticise them in detail. In the name of universal experience he banishes miracles from history. These were brave things to do, things that will bear good fruit. As long as men believe in miracles, past or present they remain the prey of superstition. The Catholic is taught that miracles were performed anciently not only, but that they are still being performed. This is consistent inconsistency. Protestants teach a double doctrine: That miracles used to be performed, that the laws of nature used to be violated, but that no miracle is performed now. No Protestant will admit that any miracle was performed by the Catholic Church. Otherwise, Protestants could not be justified in leaving a church with whom the God of miracles dwelt. So every Protestant has to adopt two kinds of reasoning: that the laws of Nature used to be violated and that miracles used to be performed, but that since the apostolic age Nature has had her way and the Lord has allowed facts to exist and to hold the field. A supernatural account, according to Renan, "always implies credulity or imposture,"—probably both.

It does not seem possible to me that Christ claimed for himself what the Testament claims for him. These claims were made by admirers, by followers, by missionaries.

When the early Christians went to Rome they found plenty of demigods. It was hard to set aside the religion of a demigod by telling the story of a man from Nazareth. These missionaries, not to be outdone in ancestry, insisted—and this was after the Gospel "according to St. John" had been written—that Christ was the Son of God. Matthew believed that he was the son of David, and the Messiah, and gave the genealogy of Joseph, his father, to support that claim.

In the time of Christ no one imagined that he was of divine origin. This was an after-growth. In order to place themselves on an equality with Pagans they started the claim of divinity, and also took the second step requisite in that country: First, a god for his father, and second, a virgin for his mother. This was the Pagan combination of greatness, and the Christians added to this that Christ was God.

It is hard to agree with the conclusion reached by Renan, that Christ formed and intended to form a church. Such evidence, it seems to me, is hard to find in the Testament. Christ seemed to satisfy himself, according to the Testament, with a few statements, some of them exceedingly wise and tender, some utterly impracticable and some intolerant.

If we accept the conclusions reached by Renan we will throw away, the legends without foundation; the miraculous legends; and everything inconsistent with what we know of Nature. Very little will be left—a few sayings to be found among those attributed to Confucius, to Buddha, to Krishna, to Epictetus, to Zeno, and to many others. Some of these sayings are full of wisdom, full of kindness, and others rush to such extremes that they touch the borders of insanity. When struck on one cheek to turn the other, is really joining a conspiracy to secure the triumph of brutality. To agree not to resist evil is to become an accomplice of all injustice. We must not take from industry, from patriotism, from virtue, the right of self-defence.

Undoubtedly Renan gave an honest transcript of his mind, the road his thought had followed, the reasons in their order that had occurred to him, the criticisms born of thought, and the qualifications, softening phrases, children of old sentiments and emotions that had not entirely passed away.

He started, one might say, from the altar and, during a considerable part of the journey, carried the incense with him. The farther he got away, the greater was his clearness of vision and the more thoroughly he was convinced that Christ was merely a man, an idealist. But, remembering the altar, he excused exaggeration in the "inspired" books, not because it was from heaven, not because it was in harmony with our ideas of veracity, but because the writers of the gospel were imbued with the Oriental spirit of exaggeration, a spirit perfectly understood by the people who first read the gospels, because the readers knew the habits of the writers.

It had been contended for many years that no one could pass judgment on the veracity of the Scriptures who did not understand Hebrew. This position was perfectly absurd. No man needs to be a student of Hebrew to know that the shadow on the dial did not go back several degrees to convince a petty king that a boil was not to be fatal. Renan, however, filled the requirement. He was an excellent Hebrew scholar. This was a fortunate circumstance, because it answered a very old objection.

The founder of Christianity was, for his own sake, taken from the divine pedestal and allowed to stand like other men on the earth, to be judged by what he said and did, by his theories, by his philosophy, by his spirit.

No matter whether Renan came to a correct conclusion or not, his work did a vast deal of good. He convinced many that implicit reliance could not be placed upon the gospels, that the gospels themselves are of unequal worth; that they were deformed by ignorance and falsehood, or, at least, by mistake; that if they wished to save the reputation of Christ they must not rely wholly on the gospels, or on what is found in the New Testament, but they must go farther and examine all legends touching him. Not only so, but they must throw away the miraculous, the impossible and the absurd.

He also has shown that the early followers of Christ endeavored to add to the reputation of their Master by attributing to him the miraculous and the foolish; that while these stories added to his reputation at that time, since the world has advanced they must be cast aside or the reputation of the Master must suffer.

It will not do now to say that Christ himself pretended to do miracles. This would establish the fact at least that he was mistaken. But we are compelled to say that his disciples insisted that he was a worker of miracles. This shows, either that they were mistaken or untruthful.

We all know that a sleight-of-hand performer could gain a greater reputation among savages than Darwin or Humboldt; and we know that the world in the time of Christ was filled with barbarians, with people who demanded the miraculous, who expected it; with people, in fact, who had a stronger belief in the supernatural than in the natural; people who never thought it worth while to record facts. The hero of such people, the Christ of such people, with his miracles, cannot be the Christ of the thoughtful and scientific.

Renan was a man of most excellent temper; candid; not striving for victory, but for truth; conquering, as far as he could, the old superstitions; not entirely free, it may be, but believing himself to be so. He did great good. He has helped to destroy the fictions of faith. He has helped to rescue man from the prison of superstition, and this is the greatest benefit that man can bestow on man.

He did another great service, not only to Jews, but to Christendom, by writing the history of "The People of Israel." Christians for many centuries have persecuted the Jews. They have charged them with the greatest conceivable crime—with having crucified an infinite God. This absurdity has hardened the hearts of men and poisoned the minds of children. The persecution of the Jews is the meanest, the most senseless and cruel page in history. Every civilized Christian should feel on his cheeks the red spots of shame as he reads the wretched and infamous story.

The flame of this prejudice is fanned and fed in the Sunday schools of our day, and the orthodox minister points proudly to the atrocities perpetrated against the Jews by the barbarians of Russia as evidences of the truth of the inspired Scriptures. In every wound God puts a tongue to proclaim the truth of his book.

If the charge that the Jews killed God were true, it is hardly reasonable to hold those who are now living responsible for what their ancestors did nearly nineteen centuries ago.

But there is another point in connection with this matter: If Christ was God, then the Jews could not have killed him without his consent; and, according to the orthodox creed, if he had not been sacrificed, the whole world would have suffered eternal pain. Nothing can exceed the meanness of the prejudice of Christians against the Jewish people. They should not be held responsible for their savage ancestors, or for their belief that Jehovah

was an intelligent and merciful God, superior to all other gods. Even Christians do not wish to be held responsible for the Inquisition, for the Torquemadas and the John Calvins, for the witch-burners and the Quaker-whippers, for the slave-traders and child-stealers, the most of whom were believers in our "glorious gospel," and many of whom had been bom the second time.

Renan did much to civilize the Christians by telling the truth in a charming and convincing way about the "People of Israel." Both sides are greatly indebted to him: one he has ably defended, and the other greatly enlightened.

Having done what good he could in giving what he believed was light to his fellow-men, he had no fear of becoming a victim of God's wrath, and so he laughingly said: "For my part I imagine that if the Eternal in his severity were to send me to hell I should succeed in escaping from it. I would send up to my Creator a supplication that would make him smile. The course of reasoning by which I would prove to him that it was through his fault that I was damned would be so subtle that he would find some difficulty in replying. The fate which would suit me best is Purgatory—a charming place, where many delightful romances begun on earth must be continued."

Such cheerfulness, such good philosophy, with cap and bells, such banter and blasphemy, such sound and solid sense drive to madness the priest who thinks the curse of Rome can fright the world. How the snake of superstition writhes when he finds that his fangs have lost their poison.

He was one of the gentlest of men—one of the fairest in discussion, dissenting from the views of others with modesty, presenting his own with clearness and candor. His mental manners were excellent. He was not positive as to the "unknowable." He said "Perhaps." He knew that knowledge is good if it increases the happiness of man; and he felt that superstition is the assassin of liberty and civilization. He lived a life of cheerfulness, of industry, devoted to the welfare of mankind.

He was a seeker of happiness by the highway of the natural, a destroyer of the dogmas of mental deformity, a worshiper of Liberty and the Ideal. As he lived, he died—hopeful and serene—and now, standing in imagination by his grave, we ask: Will the night be eternal? The brain says, Perhaps; while the heart hopes for the Dawn.—North American Review, November, 1892.

TOLSTOÏ AND "THE KREUTZER SONATA."

COUNT TOLSTOÏ is a man of genius. He is acquainted with Russian life from the highest to the lowest—that is to say, from the worst to the best. He knows the vices of the rich and the virtues of the poor. He is a Christian, a real believer in the Old and New Testaments, an honest follower of the Peasant of Palestine. He denounces luxury and ease, art and music; he regards a flower with suspicion, believing that beneath every blossom lies a coiled serpent. He agrees with Lazarus and denounces Dives and the tax-gatherers. He is opposed, not only to doctors of divinity, but of medicine.

From the Mount of Olives he surveys the world.

He is not a Christian like the Pope in the Vatican, or a cardinal in a palace, or a bishop with revenues and retainers, or a millionaire who hires preachers to point out the wickedness of the poor, or the director of a museum who closes the doors on Sunday. He is a Christian something like Christ.

To him this life is but a breathing-spell between the verdict and the execution; the sciences are simply sowers of the seeds of pride, of arrogance and vice. Shocked by the cruelties and unspeakable horrors of war, he became a non-resistant and averred that he would not defend his own body or that of his daughter from insult and outrage. In this he followed the command of his Master: "Resist not evil." He passed, not simply from war to peace, but from one extreme to the other, and advocated a doctrine that would leave the basest of mankind the rulers of the world. This was and is the error of a great and tender soul.

He did not accept all the teachings of Christ at once. His progress has been, judging from his writings, somewhat gradual; but by accepting one proposition he prepared himself for the acceptance of another. He is not only a Christian, but has the courage of his convictions, and goes without hesitation to the logical conclusion. He has another exceedingly rare quality; he acts in accordance with his belief. His creed is translated into deed. He opposes the doctors of divinity, because they darken and deform the teachings of the Master. He denounces the doctors of medicine, because

he depends on Providence and the promises of Jesus Christ. To him that which is called progress is, in fact, a profanation, and property is a something that the organized few have stolen from the unorganized many. He believes in universal labor, which is good, each working for himself. He also believes that each should have only the necessities of life—which is bad. According to his idea, the world ought to be filled with peasants. There should be only arts enough to plough and sow and gather the harvest, to build huts, to weave coarse cloth, to fashion clumsy and useful garments, and to cook the simplest food. Men and women should not adorn their bodies. They should not make themselves desirable or beautiful.

But even under such circumstances they might, like the Quakers, be proud of humility and become arrogantly meek.

Tolstoi would change the entire order of human development. As a matter of fact, the savage who adorns himself or herself with strings of shells, or with feathers, has taken the first step towards civilization. The tattooed is somewhat in advance of the unfrescoed. At the bottom of all this is the love of approbation, of the admiration of their fellows, and this feeling, this love, cannot be torn from the human heart.

In spite of ourselves we are attracted by what to us is beautiful, because beauty is associated with pleasure, with enjoyment. The love of the well-formed, of the beautiful, is prophetic of the perfection of the human race. It is impossible to admire the deformed. They may be loved for their goodness or genius, but never because of their deformity. There is within us the love of proportion. There is a physical basis for the appreciation of harmony, which is also a kind of proportion.

The love of the beautiful is shared with man by most animals. The wings of the moth are painted by love, by desire. This is the foundation of the bird's song. This love of approbation, this desire to please, to be admired, to be loved, is in some way the cause of all heroic, self-denying, and sublime actions.

Count Tolstoi, following parts of the New Testament, regards love as essentially impure. He seems really to think that there is a love superior to human love; that the love of man for woman, of woman for man, is, after all, a kind of glittering degradation; that it is better to love God than woman; better to love the invisible phantoms of the skies than the children upon our knees—in other words, that it is far better to love a heaven

somewhere else than to make one here. He seems to think that women adorn themselves simply for the purpose of getting in their power the innocent and unsuspecting men. He forgets that the best and purest of human beings are controlled, for the most part unconsciously, by the hidden, subtle tendencies of nature. He seems to forget the great fact of "natural selection," and that the choice of one in preference to all others is the result of forces beyond the control of the individual. To him there seems to be no purity in love, because men are influenced by forms, by the beauty of women; and women, knowing this fact, according to him, act, and consequently both are equally guilty. He endeavors to show that love is a delusion; that at best it can last but for a few days; that it must of necessity be succeeded by indifference, then by disgust, lastly by hatred; that in every Garden of Eden is a serpent of jealousy, and that the brightest days end with the yawn of ennui.

Of course he is driven to the conclusion that life in this world is without value, that the race can be perpetuated only by vice, and that the practice of the highest virtue would leave the world without the form of man. Strange as it may sound to some, this is the same conclusion reached by his Divine Master: "They did eat, they drank, they married, they were given in marriage, until the day that Noe entered the ark and the flood came and destroyed them all." "Every one that hath forsaken houses, or brethren, or sisters, or father, or mother, or wife, or children, or lands, for my name's sake, shall receive an hundredfold, and shall inherit everlasting life."

According to Christianity, as it really is and really was, the Christian should have no home in this world—at least none until the earth has been purified by fire. His affections should be given to God; not to wife and children, not to friends or country. He is here but for a time on a journey, waiting for the summons. This life is a kind of dock running out into the sea of eternity, on which he waits for transportation. Nothing here is of any importance; the joys of life are frivolous and corrupting, and by losing these few gleams of happiness in this world he will bask forever in the unclouded rays of infinite joy. Why should a man risk an eternity of perfect happiness for the sake of enjoying himself a few days with his wife and children? Why should he become an eternal outcast for the sake of having a home and fireside here?

The "Fathers" of the church had the same opinion of marriage. They agreed with Saint Paul, and Tolstoï agrees with them. They had the same contempt for wives and mothers, and uttered the same blasphemies against that divine passion that has filled the world with art and song.

All this is to my mind a kind of insanity; nature soured or withered—deformed so that celibacy is mistaken for virtue. The imagination becomes polluted, and the poor wretch believes that he is purer than his thoughts, holier than his desires, and that to outrage nature is the highest form of religion. But nature imprisoned, obstructed, tormented, always has sought for and has always found revenge. Some of these victims, regarding the passions as low and corrupting, feeling humiliated by hunger and thirst, sought through maimings and mutilations the purification of the soul.

Count Tolstoi in "The Kreutzer Sonata," has drawn, with a free hand, one of the vilest and basest of men for his hero. He is suspicious, jealous, cruel, infamous. The wife is infinitely too good for such a wild unreasoning beast, and yet the writer of this insane story seems to justify the assassin. If this is a true picture of wedded life in Russia, no wonder that Count Tolstoï looks forward with pleasure to the extinction of the human race.

Of all passions that can take possession of the heart or brain jealousy is the worst. For many generations the chemists sought for the secret by which all metals could be changed to gold, and through which the basest could become the best. Jealousy seeks exactly the opposite. It endeavors to transmute the very gold of love into the dross of shame and crime.

The story of "The Kreutzer Sonata" seems to have been written for the purpose of showing that woman is at fault; that she has no right to be attractive, no right to be beautiful; and that she is morally responsible for the contour of her throat, for the pose of her body, for the symmetry of her limbs, for the red of her lips, and for the dimples in her cheeks.

The opposite of this doctrine is nearer true. It would be far better to hold people responsible for their ugliness than for their beauty. It may be true that the soul, the mind, in some wondrous way fashions the body, and that to that extent every individual is responsible for his looks. It may be that the man or woman thinking high thoughts will give, necessarily, a nobility to expression and a beauty to outline.

It is not true that the sins of man can be laid justly at the feet of woman. Women are better than men; they have greater responsibilities; they bear

even the burdens of joy. This is the real reason why their faults are considered greater.

Men and women desire each other, and this desire is a condition of civilization, progress, and happiness, and of everything of real value. But there is this profound difference in the sexes: in man this desire is the foundation of love, while in woman love is the foundation of this desire.

Tolstoï seems to be a stranger to the heart of woman.

Is it not wonderful that one who holds self-denial in such high esteem should say, "That life is embittered by the fear of one's children, and not only on account of their real or imaginary illnesses, but even by their very presence"?

Has the father no real love for the children? Is he not paid a thousand times through their caresses, their sympathy, their love? Is there no joy in seeing their minds unfold, their affections develop? Of course, love and anxiety go together. That which we love we wish to protect. The perpetual fear of death gives love intensity and sacredness. Yet Count Tolstoï gives us the feelings of a father incapable of natural affection; of one who hates to have his children sick because the orderly course of his wretched life is disturbed. So, too, we are told that modern mothers think too much of their children, care too much for their health, and refuse to be comforted when they die. Lest these words may be thought libellous, the following extract is given;

"In old times women consoled themselves with the belief, The Lord hath given, and the Lord hath taken away. Blessed be the name of the Lord. They consoled themselves with the thought that the soul of the departed had returned to him who gave it; that it was better to die innocent than to live in sin. If women nowadays had such a comfortable faith to support them, they might take their misfortunes less hard."

The conclusion reached by the writer is that without faith in God, woman's love grovels in the mire.

In this case the mire is made by the tears of mothers falling on the clay that hides their babes.

The one thing constant, the one peak that rises above all clouds, the one window in which the light forever burns, the one star that darkness cannot quench, is woman's love.

This one fact justifies the existence and the perpetuation of the human race. Again I say that women are better than men; their hearts are more unreservedly given; in the web of their lives sorrow is inextricably woven with the greatest joys; self-sacrifice is a part of their nature, and at the behest of love and maternity they walk willingly and joyously down to the very gates of death.

Is there nothing in this to excite the admiration, the adoration, of a modern reformer? Are the monk and nun superior to the father and mother?

The author of "The Kreutzer Sonata" is unconsciously the enemy of mankind. He is filled with what might be called a merciless pity, a sympathy almost malicious. Had he lived a few centuries ago, he might have founded a religion; but the most he can now do is, perhaps, to create the necessity for another asylum.

Count Tolstoi objects to music—not the ordinary kind, but to great music, the music that arouses the emotions, that apparently carries us beyond the limitations of life, that for the moment seems to break the great chain of cause and effect, and leaves the soul soaring and free. "Emotion and duty," he declares, "do not go hand in hand." All art touches and arouses the emotional nature. The painter, the poet, the sculptor, the composer, the orator, appeal to the emotions, to the passions, to the hopes and fears. The commonplace is transfigured; the cold and angular facts of existence take form and color; the blood quickens; the fancies spread their wings; the intellect grows sympathetic; the river of life flows full and free; and man becomes capable of the noblest deeds. Take emotion from the heart of man and the idea of obligation would be lost; right and wrong would lose their meaning, and the word "ought" would never again be spoken. We are subject to conditions, liable to disease, pain, and death. We are capable of ecstasy. Of these conditions, of these possibilities, the emotions are born.

Only the conditionless can be the emotionless.

We are conditioned beings; and if the conditions are changed, the result may be pain or death or greater joy. We can only live within certain degrees of heat. If the weather were a few degrees hotter or a few degrees colder, we could not exist. We need food and roof and raiment. Life and happiness depend on these conditions. We do not certainly know what is to happen, and consequently our hopes and fears are constantly active—that is to say,

we are emotional beings. The generalization of Tolstoï, that emotion never goes hand in hand with duty, is almost the opposite of the truth. The idea of duty could not exist without emotion. Think of men and women without love, without desires, without passions? Think of a world without art or music—a world without beauty, without emotion.

And yet there are many writers busy pointing out the loathsomeness of love and their own virtues. Only a little while ago an article appeared in one of the magazines in which all women who did not dress according to the provincial prudery of the writer were denounced as impure. Millions of refined and virtuous wives and mothers were described as dripping with pollution because they enjoyed dancing and were so well formed that they were not obliged to cover their arms and throats to avoid the pity of their associates. And yet the article itself is far more indelicate than any dance or any dress, or even lack of dress. What a curious opinion dried apples have of fruit upon the tree!

Count Tolstoï is also the enemy of wealth, of luxury. In this he follows the New Testament. "It is easier for a camel to go through the eye of a needle than for a rich man to enter the Kingdom of Heaven." He gathers his inspiration from the commandment, "Sell all that thou hast and give to the poor."

Wealth is not a crime any more than health or bodily or intellectual strength. The weak might denounce the strong, the sickly might envy the healthy, just as the poor may denounce or envy the rich. A man is not necessarily a criminal because he is wealthy. He is to be judged, not by his wealth, but by the way he uses his wealth. The strong man can use his strength, not only for the benefit of himself, but for the good of others. So a man of intelligence can be a benefactor of the human race. Intelligence is often used to entrap the simple and to prey upon the unthinking, but we do not wish to do away with intelligence. So strength is often used to tyrannize over the weak, and in the same way wealth may be used to the injury of mankind. To sell all that you have and give to the poor is not a panacea for poverty. The man of wealth should help the poor man to help himself. Men cannot receive without giving some consideration, and if they have not labor or property to give, they give their manhood, their self-respect. Besides, if all should obey this injunction, "Sell what thou hast and give to the poor," who would buy? We know that thousands and millions of rich

men lack generosity and have but little feeling for their fellows. The fault is not in the money, not in the wealth, but in the individuals. They would be just as bad were they poor. The only difference is that they would have less power. The good man should regard wealth as an instrumentality, as an opportunity, and he should endeavor to benefit his fellow-men, not by making them the recipients of his charity, but by assisting them to assist themselves. The desire to clothe and feed, to educate and protect, wives and children, is the principal reason for making money—one of the great springs of industry, prudence, and economy.

Those who labor have a right to live. They have a right to what they earn. He who works has a right to home and fireside and to the comforts of life. Those who waste the spring, the summer, and the autumn of their lives must bear the winter when it comes. Many of our institutions are absurdly unjust. Giving the land to the few, making tenants of the many, is the worst possible form of socialism—of paternal government. In most of the nations of our day the idlers and non-producers are either beggars or aristocrats, paupers or princes, and the great middle laboring class support them both. Rags and robes have a liking for each other. Beggars and kings are in accord; they are all parasites, living on the same blood, stealing the same labor—one by beggary, the other by force. And yet in all this there can be found no reason for denouncing the man who has accumulated. One who wishes to tear down his bams and build greater has laid aside something to keep the wolf of want from the door of home when he is dead.

Even the beggars see the necessity of others working, and the nobility see the same necessity with equal clearness. But it is hardly reasonable to say that all should do the same kind of work, for the reason that all have not the same aptitudes, the same talents. Some can plough, others can paint; some can reap and mow, while others can invent the instruments that save labor; some navigate the seas; some work in mines; while others compose music that elevates and refines the heart of the world.

But the worst thing in "The Kreutzer Sonata" is the declaration that a husband can by force compel the wife to love and obey him. Love is not the child of fear; it is not the result of force. No one can love on compulsion. Even Jehovah found that it was impossible to compel the Jews to love him. He issued his command to that effect, coupled with threats of pain and death, but his chosen people failed to respond.

Love is the perfume of the heart; it is not subject to the will of husbands or kings or God.

Count Tolstoï would establish slavery in every house; he would make every husband a tyrant and every wife a trembling serf. No wonder that he regards such marriage as a failure. He is in exact harmony with the curse of Jehovah when he said unto the woman: "I will greatly multiply thy sorrow and thy conception; in sorrow thou shalt bring forth children, and thy desire shall be unto thy husband, and he shall rule over thee."

This is the destruction of the family, the pollution of home, the crucifixion of love.

Those who are truly married are neither masters nor servants. The idea of obedience is lost in the desire for the happiness of each. Love is not a convict, to be detained with bolts and chains. Love is the highest expression of liberty. Love neither commands nor obeys.

The curious thing is that the orthodox world insists that all men and women should obey the injunctions of Christ; that they should take him as the supreme example, and in all things follow his teachings. This is preached from countless pulpits, and has been for many centuries. And yet the man who does follow the Savior, who insists that he will not resist evil, who sells what he has and gives to the poor, who deserts his wife and children for the love of God, is regarded as insane.

Tolstoï, on most subjects, appears to be in accord with the founder of Christianity, with the apostles, with the writers of the New Testament, and with the Fathers of the church; and yet a Christian teacher of a Sabbath school decides, in the capacity of Postmaster-General, that "The Kreutzer Sonata" is unfit to be carried in the mails.

Although I disagree with nearly every sentence in this book, regard the story as brutal and absurd, the view of life presented as cruel, vile, and false, yet I recognize the right of Count Tolstoï to express his opinions on all subjects, and the right of the men and women of America to read for themselves.

As to the sincerity of the author, there is not the slightest doubt. He is willing to give all that he has for the good of his fellow-men. He is a soldier in what he believes to be a sacred cause, and he has the courage of his convictions. He is endeavoring to organize society in accordance with the most radical utterances that have been attributed to Jesus Christ. The

philosophy of Palestine is not adapted to an industrial and commercial age. Christianity was born when the nation that produced it was dying. It was a requiem—a declaration that life was a failure, that the world was about to end, and that the hopes of mankind should be lifted to another sphere. Tolstoï stands with his back to the sunrise and looks mournfully upon the shadow. He has uttered many tender, noble, and inspiring words. There are many passages in his works that must have been written when his eyes were filled with tears. He has fixed his gaze so intently on the miseries and agonies of life that he has been driven to the conclusion that nothing could be better than the effacement of the human race.

Some men, looking only at the faults and tyrannies of government, have said: "Anarchy is better." Others, looking at the misfortunes, the poverty, the crimes, of men, have, in a kind of pitying despair, reached the conclusion that the best of all is death. These are the opinions of those who have dwelt in gloom—of the self-imprisoned.

By comparing long periods of time, we see that, on the whole, the race is advancing; that the world is growing steadily, and surely, better; that each generation enjoys more and suffers less than its predecessor. We find that our institutions have the faults of individuals. Nations must be composed of men and women; and as they have their faults, nations cannot be perfect. The institution of marriage is a failure to the extent, and only to the extent, that the human race is a failure. Undoubtedly it is the best and the most important institution that has been established by the civilized world. If there is unhappiness in that relation, if there is tyranny upon one side and misery upon the other, it is not the fault of marriage. Take homes from the world and only wild beasts are left.

We cannot cure the evils of our day and time by a return to savagery. It is not necessary to become ignorant to increase our happiness. The highway of civilization leads to the light. The time will come when the human race will be truly enlightened, when labor will receive its due reward, when the last institution begotten of ignorance and savagery will disappear. The time will come when the whole world will say that the love of man for woman, of woman for man, of mother for child, is the highest, the noblest, the purest, of which the heart is capable.

Love, human love, love of men and women, love of mothers fathers, and babes, is the perpetual and beneficent force. Not the love of phantoms, the

love that builds cathedrals and dungeons, that trembles and prays, that kneels and curses; but the real love, the love that felled the forests, navigated the seas, subdued the earth, explored continents, built countless homes, and founded nations—the love that kindled the creative flame and wrought the miracles of art, that gave us all there is of music, from the cradle-song that gives to infancy its smiling sleep to the great symphony that bears the soul away with wings of fire—the real love, mother of every virtue and of every joy.—North American Review, September, 1890.

THOMAS PAINE.

A MAGAZINE ARTICLE.

*"A great man's memory may outlive his life half a year,
But, by'r lady, he must build churches then."*

EIGHTY-THREE years ago Thomas Paine ceased to defend himself. The moment he became dumb all his enemies found a tongue. He was attacked on every hand. The Tories of England had been waiting for their revenge. The believers in kings, in hereditary government, the nobility of every land, execrated his memory. Their greatest enemy was dead. The believers in human slavery, and all who clamored for the rights of the States as against the sovereignty of a Nation, joined in the chorus of denunciation. In addition to this, the believers in the inspiration of the Scriptures, the occupants of orthodox pulpits, the professors in Christian colleges, and the religious historians, were his sworn and implacable foes.

This man had gratified no ambition at the expense of his fellow-men; he had desolated no country with the flame and sword of war; he had not wrung millions from the poor and unfortunate; he had betrayed no trust, and yet he was almost universally despised. He gave his life for the benefit of mankind. Day and night for many, many weary years, he labored for the good of others, and gave himself body and soul to the great cause of human liberty. And yet he won the hatred of the people for whose benefit, for whose emancipation, for whose civilization, for whose exaltation he gave his life.

Against him every slander that malignity could coin and hypocrisy pass was gladly and joyously taken as genuine, and every truth with regard to his career was believed to be counterfeit. He was attacked by thousands where he was defended by one, and the one who defended him was instantly attacked, silenced, or destroyed.

At last his life has been written by Moncure D. Conway, and the real history of Thomas Paine, of what he attempted and accomplished, of what

he taught and suffered, has been intelligently, truthfully and candidly given to the world. Henceforth the slanderer will be without excuse.

He who reads Mr. Conway's pages will find that Thomas Paine was more than a patriot—that he was a philanthropist—a lover not only of his country, but of all mankind. He will find that his sympathies were with those who suffered, without regard to religion or race, country or complexion. He will find that this great man did not hesitate to attack the governing class of his native land—to commit what was called treason against the king, that he might do battle for the rights of men; that in spite of the prejudices of birth, he took the side of the American Colonies; that he gladly attacked the political abuses and absurdities that had been fostered by altars and thrones for many centuries; that he was for the people against nobles and kings, and that he put his life in pawn for the good of others.

In the winter of 1774, Thomas Paine came to America. After a time he was employed as one of the writers on the *Pennsylvania Magazine*.

Let us see what he did, calculated to excite the hatred of his fellow-men.

The first article he ever wrote in America, and the first ever published by him anywhere, appeared in that magazine on the 8th of 'March, 1775. It was an attack on American slavery—a plea for the rights of the negro. In that article will be found substantially all the arguments that can be urged against that most infamous of all institutions. Every is full of humanity, pity, tenderness, and love of justice.

Five days after this article appeared the American Anti-Slavery Society was formed. Certainly this should not excite our hatred. To-day the civilized world agrees with the essay written by Thomas Paine in 1775.

At that time great interests were against him. The owners of slaves became his enemies, and the pulpits, supported by slave labor, denounced this abolitionist.

The next article published by Thomas Paine, in the same magazine, and for the next month, was an attack on the practice of dueling, showing that it was barbarous, that it did not even tend to settle the right or wrong of a dispute, that it could not be defended on any just grounds, and that its influence was degrading and cruel. The civilized world now agrees with the opinions of Thomas Paine upon that barbarous practice.

In May, 1775, appeared in the same magazine another article written by Thomas Paine, a Protest Against Cruelty to Animals. He began the work that was so successfully and gloriously carried out by Henry Bergh, one of the noblest, one of the grandest, men that this continent has produced.

The good people of this world agree with Thomas Paine.

In August of the same year he wrote a plea for the Rights of Woman, the first ever published in the New World. Certainly he should not be hated for that.

He was the first to suggest a union of the colonies. Before the Declaration of Independence was issued, Paine had written of and about the Free and Independent States of America. He had also spoken of the United Colonies as the "Glorious Union," and he was the first to write these words: "The United States of America."

In May, 1775, Washington said: "If you ever hear of me joining in any such measure (as separation from Great Britain) you have my leave to set me down for everything wicked." He had also said; "It is not the wish or interest of the government (meaning Massachusetts), or of any other upon this continent, separately or collectively, to set up for independence." And in the same year Benjamin Franklin assured Chatham that no one in America was in favor of separation. As a matter of fact, the people of the colonies wanted a redress of their grievances—they were not dreaming of separation, of independence.

In 1775 Paine wrote the pamphlet known as "Common Sense." This was published on the 10th of January, 1776. It was the first appeal for independence, the first cry for national life, for absolute separation. No pamphlet, no book, ever kindled such a sudden conflagration,—a purifying flame, in which the prejudices and fears of millions were consumed. To read it now, after the lapse of more than a hundred years, hastens the blood. It is but the meagre truth to say that Thomas Paine did more for the cause of separation, to sow the seeds of independence, than any other man of his time. Certainly we should not despise him for this. The Declaration of Independence followed, and in that declaration will be found not only the thoughts, but some of the expressions of Thomas Paine.

During the war, and in the very darkest hours, Paine wrote what is called "The Crisis," a series of pamphlets giving from time to time his opinion of events, and his prophecies. These marvelous publications produced an

effect nearly as great as the pamphlet "Common Sense." These strophes, written by the bivouac fires, had in them the soul of battle.

In all he wrote, Paine was direct and natural. He touched the very heart of the subject. He was not awed by names or titles, by place or power. He never lost his regard for truth, for principle—never wavered in his allegiance to reason, to what he believed to be right. His arguments were so lucid, so unanswerable, his comparisons and analogies so apt, so unexpected, that they excited the passionate admiration of friends and the unquenchable hatred of enemies. So great were these appeals to patriotism, to the love of liberty, the pride of independence, the glory of success, that it was said by some of the best and greatest of that time that the American cause owed as much to the pen of Paine as to the sword of Washington.

On the 2d day of November, 1779, there was introduced into the Assembly of Pennsylvania an act for the abolition of slavery. The preamble was written by Thomas Paine. To him belongs the honor and glory of having written the first Proclamation of Emancipation in America—Paine the first, Lincoln the last.

Paine, of all others, succeeded in getting aid for the struggling colonies from France. "According to Lamartine, the King, Louis XVI., loaded Paine with favors, and a gift of six millions was confided into the hands of Franklin and Paine. On the 25th of August, 1781, Paine reached Boston bringing two million five hundred thousand livres in silver, and in convoy a ship laden with clothing and military stores."

"In November, 1779, Paine was elected clerk to the General Assembly of Pennsylvania. In 1780, the Assembly received a letter from General Washington in the field, saying that he feared the distresses in the army would lead to mutiny in the ranks. This letter was read by Paine to the Assembly. He immediately wrote to Blair McClenaghan, a Philadelphia merchant, explaining the urgency, and inclosing five hundred dollars, the amount of salary due him as clerk, as his contribution towards a relief fund. The merchant called a meeting the next day, and read Paine's letter. A subscription list was immediately circulated, and in a short time about one million five hundred thousand dollars was raised. With this capital the Pennsylvania bank—afterwards the bank of North America—was established for the relief of the army."

In 1783 "Paine wrote a memorial to Chancellor Livingston, Secretary of Foreign Affairs, Robert Morris, Minister of Finance, and his assistant, urging the necessity of adding a Continental Legislature to Congress, to be elected by the several States. Robert Morris invited the Chancellor and a number of eminent men to meet Paine at dinner, where his plea for a stronger Union was discussed and approved. This was probably the earliest of a series of consultations preliminary to the Constitutional Convention."

"On the 19th of April, 1783, it being the eighth anniversary of the Battle of Lexington, Paine printed a little pamphlet entitled 'Thoughts on Peace and the Probable Advantages Thereof.'" In this pamphlet he pleads for "a supreme Nationality absorbing all cherished sovereignties." Mr. Conway calls this pamphlet Paine's "Farewell Address," and gives the following extract:

"It was the cause of America that made me an author. The force with which it struck my mind, and the dangerous condition in which the country was in, by courting an impossible and an unnatural reconciliation with those who were determined to reduce her, instead of striking out into the only line that could save her,—a Declaration of Independence.—made it impossible for me, feeling as I did, to be silent; and if, in the course of more than seven years, I have rendered her any service, I have likewise added something to the reputation of literature, by freely and disinterestedly employing it in the great cause of mankind.... But as the scenes of war are closed, and every man preparing for home and happier times, I therefore take leave of the subject. I have most sincerely followed it from beginning to end, and through all its turns and windings; and whatever country I may hereafter be in, I shall always feel an honest pride at the part I have taken and acted, and a gratitude to nature and providence for putting it in my power to be of some use to mankind."

Paine had made some enemies, first, by attacking African slavery, and, second, by insisting upon the sovereignty of the Nation.

During the Revolution our forefathers, in order to justify making war on Great Britain, were compelled to take the ground that all men are entitled to life, liberty and the pursuit of happiness. In no other way could they justify their action. After the war, the meaner instincts began to take possession of the mind, and those who had fought for their own liberty were perfectly willing to enslave others. We must also remember that the Revolution was

begun and carried on by a noble minority—that the majority were really in favor of Great Britain and did what they dared to prevent the success of the American cause. The minority, however, had control of affairs. They were active, energetic, enthusiastic, and courageous, and the majority were overawed, shamed, and suppressed. But when peace came, the majority asserted themselves and the interests of trade and commerce were consulted. Enthusiasm slowly died, and patriotism was mingled with the selfishness of traffic.

But, after all, the enemies of Paine were few, the friends were many. He had the respect and admiration of the greatest and the best, and was enjoying the fruits of his labor.

The Revolution was ended, the colonies were free. They had been united, they formed a Nation, and the United States of America had a place on the map of the world.

Paine was not a politician. He had not labored for seven years to get an office. His services were no longer needed in America. He concluded to educate the English people, to inform them of their rights, to expose the pretences, follies and fallacies, the crimes and cruelties of nobles, kings, and parliaments. In the brain and heart of this man were the dream and hope of the universal republic. He had confidence in the people. He hated tyranny and war, despised the senseless pomp and vain show of crowned robbers, laughed at titles, and the "honorable" badges worn by the obsequious and servile, by fawners and followers; loved liberty with all his heart, and bravely fought against those who could give the rewards of place and gold, and for those who could pay only with thanks.

Hoping to hasten the day of freedom, he wrote the "Rights of Man"—a book that laid the foundation for all the real liberty that the English now enjoy—a book that made known to Englishmen the Declaration of Nature, and convinced millions that all are children of the same mother, entitled to share equally in her gifts. Every Englishman who has outgrown the ideas of 1688 should remember Paine with love and reverence. Every Englishman who has sought to destroy abuses, to lessen or limit the prerogatives of the crown, to extend the suffrage, to do away with "rotten boroughs," to take taxes from knowledge, to increase and protect the freedom of speech and the press, to do away with bribes under the name of pensions, and to make England a government of principles rather than of persons, has been

compelled to adopt the creed and use the arguments of Thomas Paine. In England every step toward freedom has been a triumph of Paine over Burke and Pitt. No man ever rendered a greater service to his native land.

The book called the "Rights of Man" was the greatest contribution that literature had given to liberty. It rests on the bed-rock. No attention is paid to precedents except to show that they are wrong. Paine was not misled by the proverbs that wolves had written for sheep. He had the intelligence to examine for himself, and the courage to publish his conclusions. As soon as the "Rights of Man" was published the Government was alarmed. Every effort was made to suppress it. The author was indicted; those who published, and those who sold, were arrested and imprisoned. But the new gospel had been preached—a great man had shed light—a new force had been born, and it was beyond the power of nobles and kings to undo what the author-hero had done.

To avoid arrest and probable death, Paine left England. He had sown with brave hand the seeds of thought, and he knew that he had lighted a fire that nothing could extinguish until England should be free.

The fame of Thomas Paine had reached France in many ways—principally through Lafayette. His services in America were well known. The pamphlet "Common Sense" had been published in French, and its effect had been immense. "The Rights of Man" that had created, and was then creating, such a stir in England, was also known to the French. The lovers of liberty everywhere were the friends and admirers of Thomas Paine. In America, England, Scotland, Ireland, and France he was known as the defender of popular rights. He had preached a new gospel. He had given a new Magna Charta to the people.

So popular was Paine in France that he was elected by three constituencies to the National Convention. He chose to represent Calais. From the moment he entered French territory he was received with almost royal honors. He at once stood with the foremost, and was welcomed by all enlightened patriots. As in America, so in France, he knew no idleness—he was an organizer and worker. The first thing he did was to found the first Republican Society, and the next to write its Manifesto, in which the ground was taken that France did not need a king; that the people should govern themselves. In this Manifesto was this argument:

"What kind of office must that be in a government which requires neither experience nor ability to execute? that may be abandoned to the desperate chance of birth; that may be filled with an idiot, a madman, a tyrant, with equal effect as with the good, the virtuous, the wise? An office of this nature is a mere nonentity; it is a place of show, not of use."

He said:

"I am not the personal enemy of kings. Quite the contrary. No man wishes more heartily than myself to see them all in the happy and honorable state of private individuals; but I am the avowed, open and intrepid enemy of what is called monarchy; and I am such by principles which nothing can either alter or corrupt, by my attachment to humanity, by the anxiety which I feel within myself for the dignity and honor of the human race."

One of the grandest things done by Thomas Paine was his effort to save the life of Louis XVI. The Convention was in favor of death. Paine was a foreigner. His career had caused some jealousies. He knew the danger he was in—that the tiger was already crouching for a spring—but he was true to his principles. He was opposed to the death penalty. He remembered that Louis XVI. had been the friend of America, and he very cheerfully risked his life, not only for the good of France, not only to save the king, but to pay a debt of gratitude. He asked the Convention to exile the king to the United States. He asked this as a member of the Convention and as a citizen of the United States. As an American he felt grateful not only to the king, but to every Frenchman. He, the adversary of all kings, asked the Convention to remember that kings were men, and subject to human frailties. He took still another step, and said: "As France has been the first of European nations to abolish royalty, let us also be the first to abolish the punishment of death."

Even after the death of Louis had been voted, Paine made another appeal. With a courage born of the highest possible sense of duty he said:

"France has but one ally—the United States of America. That is the only nation that can furnish France with naval provisions, for the kingdoms of Northern Europe are, or soon will be, at war with her. It happens that the person now under discussion is regarded in America as a deliverer of their country. I can assure you that his execution will there spread universal sorrow, and it is in your power not thus to wound the feelings of your ally. Could I speak the French language I would descend to your bar, and in their

name become your petitioner to respite the execution of your sentence on Louis. Ah, citizens, give not the tyrant of England the triumph of seeing the man perish on the scaffold who helped my dear brothers of America to break his chains."

This was worthy of the man who had said: "Where Liberty is *not*, there is my country."

Paine was second on the committee to prepare the draft of a constitution for France to be submitted to the Convention. He was the real author, not only of the draft of the Constitution, but of the Declaration of Rights.

In France, as in America, he took the lead. His first thoughts seemed to be first principles. He was clear because he was profound. People without ideas experience great difficulty in finding words to express them.

From the moment that Paine cast his vote in favor of mercy—in favor of life—the shadow of the guillotine was upon him. He knew that when he voted for the King's life, he voted for his own death. Paine remembered that the king had been the friend of America, and to him ingratitude seemed the worst of crimes. He worked to destroy the monarch, not the man; the king, not the friend. He discharged his duty and accepted death. This was the heroism of goodness—the sublimity of devotion.

Believing that his life was near its close, he made up his mind to give to the world his thoughts concerning "revealed religion." This he had for some time intended to do, but other matters had claimed his attention. Feeling that there was no time to be lost, he wrote the first part of the "Age of Reason," and gave the manuscript to Joel Barlow. Six hours after, he was arrested. The second part was written in prison while he was waiting for death.

Paine clearly saw that men could not be really free, or defend the freedom they had, unless they were free to think and speak. He knew that the church was the enemy of liberty, that the altar and throne were in partnership, that they helped each other and divided the spoils.

He felt that, being a man, he had the right to examine the creeds and the Scriptures for himself, and that, being an honest man, it was his duty and his privilege to tell his fellow-men the conclusions at which he arrived.

He found that the creeds of all orthodox churches were absurd and cruel, and that the Bible was no better. Of course he found that there were some

good things in the creeds and in the Bible. These he defended, but the infamous, the inhuman, he attacked.

In matters of religion he pursued the same course that he had in things political. He depended upon experience, and above all on reason. He refused to extinguish the light in his own soul. He was true to himself, and gave to others his honest thoughts. He did not seek wealth, or place, or fame. He sought the truth.

He had felt it to be his duty to attack the institution of slavery in America, to raise his voice against dueling, to plead for the rights of woman, to excite pity for the sufferings of domestic animals, the speechless friends of man; to plead the cause of separation, of independence, of American nationality, to attack the abuses and crimes of monarchs, to do what he could to give freedom to the world.

He thought it his duty to take another step. Kings asserted that they derived their power, their right to govern, from God. To this assertion Paine replied with the "Rights of Man." Priests pretended that they were the authorized agents of God. Paine replied with the "Age of Reason."

This book is still a power, and will be as long as the absurdities and cruelties of the creeds and the Bible have defenders. The "Age of Reason" affected the priests just as the "Rights of Man" affected nobles and kings. The kings answered the arguments of Paine with laws, the priests with lies. Kings appealed to force, priests to fraud. Mr. Conway has written in regard to the "Age of Reason" the most impressive and the most interesting chapter in his book.

Paine contended for the rights of the individual,—for the jurisdiction of the soul. Above all religions he placed Reason, above all kings, Men, and above all men, Law.

The first part of the "Age of Reason" was written in the shadow of a prison, the second part in the gloom of death. From that shadow, from that gloom, came a flood of light. This testament, by which the wealth of a marvelous brain, the love of a great and heroic heart were given to the world, was written in the presence of the scaffold, when the writer believed he was giving his last message to his fellow-men.

The "Age of Reason" was his crime.

Franklin, Jefferson, Sumner and Lincoln, the four greatest statesmen that America has produced, were believers in the creed of Thomas Paine.

The Universalists and Unitarians have found their best weapons, their best arguments, in the "Age of Reason."

Slowly, but surely, the churches are adopting not only the arguments, but the opinions of the great Reformer.

Theodore Parker attacked the Old Testament and Calvinistic theology with the same weapons and with a bitterness excelled by no man who has expressed his thoughts in our language.

Paine was a century in advance of his time. If he were living now his sympathy would be with Savage, Chadwick, Professor Briggs and the "advanced theologians." He, too, would talk about the "higher criticism" and the latest definition of "inspiration." These advanced thinkers substantially are repeating the "Age of Reason." They still wear the old uniform—clinging to the togger of theology—but inside of their religious rags they agree with Thomas Paine.

Not one argument that Paine urged against the inspiration of the Bible, against the truth of miracles, against the barbarities and infamies of the Old Testament, against the pretensions of priests and the claims of kings, has ever been answered.

His arguments in favor of the existence of what he was pleased to call the God of Nature were as weak as those of all Theists have been. But in all the affairs of this world, his clearness of vision, lucidity of expression, cogency of argument, aptness of comparison, power of statement and comprehension of the subject in hand, with all its bearings and consequences, have rarely, if ever, been excelled.

He had no reverence for mistakes because they were old. He did not admire the castles of Feudalism even when they were covered with ivy. He not only said that the Bible was not inspired, but he demonstrated that it could not all be true. This was "brutal." He presented arguments so strong, so clear, so convincing, that they could not be answered. This was "vulgar."

He stood for liberty against kings, for humanity against creeds and gods. This was "cowardly and low." He gave his life to free and civilize his fellow-men. This was "infamous."

Paine was arrested and imprisoned in December, 1793. He was, to say the least, neglected by Gouverneur Morris and Washington. He was released through the efforts of James Monroe, in November, 1794. He was called back to the Convention, but too late to be of use. As most of the actors had suffered death, the tragedy was about over and the curtain was falling. Paine remained in Paris until the "Reign of Terror" was ended and that of the Corsican tyrant had commenced.

Paine came back to America hoping to spend the remainder of his life surrounded by those for whose happiness and freedom he had labored so many years. He expected to be rewarded with the love and reverence of the American people.

In 1794 James Monroe had written to Paine these words:

"It is unnecessary for me to tell you how much all your countrymen, I speak of the great mass of the people, are interested in your welfare. They have not forgot the history of their own Revolution and the difficult scenes through which they passed; nor do they review its several stages without reviving in their bosoms a due sensibility of the merits of those who served them in that great and arduous conflict. The crime of ingratitude has not yet stained, and I hope never will stain, our national character. You are considered by them as not only having rendered important services in our own Revolution, but as being on a more extensive scale the friend of human rights and a distinguished and able advocate of public liberty. To the welfare of Thomas Paine we are not and cannot be indifferent."

In the same year Mr. Monroe wrote a letter to the Committee of General Safety, asking for the release of Mr. Paine, in which, among other things, he said:

"The services Thomas Paine rendered to his country in its struggle for freedom have implanted in the hearts of his countrymen a sense of gratitude never to be effaced as long as they shall deserve the title of a just and generous people."

On reaching America, Paine found that the sense of gratitude had been effaced. He found that the Federalists hated him with all their hearts because he believed in the rights of the people and was still true to the splendid principles advocated during the darkest days of the Revolution. In almost every pulpit he found a malignant and implacable foe, and the pews were filled with his enemies. The slaveholders hated him. He was held

responsible even for the crimes of the French Revolution. He was regarded as a blasphemer, an Atheist, an enemy of God and man. The ignorant citizens of Bordentown, as cowardly as orthodox, longed to mob the author of "Common Sense" and "The Crisis." They thought he had sold himself to the Devil because he had defended God against the slanderous charges that he had inspired the writers of the Bible—because he had said that a being of infinite goodness and purity did not establish slavery and polygamy.

Paine had insisted that men had the right to think for themselves. This so enraged the average American citizen that he longed for revenge.

In 1802 the people of the United States had exceedingly crude ideas about the liberty of thought and expression. Neither had they any conception of religious freedom. Their highest thought on that subject was expressed by the word "toleration," and even this toleration extended only to the various Christian sects. Even the vaunted religious liberty of colonial Maryland was only to the effect that one kind of Christian should not fine, imprison and kill another kind of Christian, but all kinds of Christians had the right, and it was their duty, to brand, imprison and kill Infidels of every kind.

Paine had been guilty of thinking for himself and giving his conclusions to the world without having asked the consent of a priest—just as he had published his political opinions without leave of the king. He had published his thoughts on religion and had appealed to reason—to the light in every mind, to the humanity, the pity, the goodness which he believed to be in every heart. He denied the right of kings to make laws and of priests to make creeds. He insisted that the people should make laws, and that every human being should think for himself. While some believed in the freedom of religion, he believed in the religion of freedom.

If Paine had been a hypocrite, if he had concealed his opinions, if he had defended slavery with quotations from the "sacred Scriptures"—if he had cared nothing for the liberties of men in other lands—if he had said that the state could not live without the church—if he had sought for place instead of truth, he would have won wealth and power, and his brow would have been crowned with the laurel of fame.

He made what the pious call the "mistake" of being true to himself—of living with an unstained soul. He had lived and labored for the people. The people were untrue to him. They returned evil for good, hatred for benefits.

received, and yet this great chivalric soul remembered their ignorance and loved them with all his heart, and fought their oppressors with all his strength.

We must remember what the churches and creeds were in that day, what the theologians really taught, and what the people believed. To save a few in spite of their vices, and to damn the many without regard to their virtues, and all for the glory of the Damner:—*this was Calvinism*. "He that hath ears to hear, let him hear," but he that hath a brain to think must not think. He that believeth without evidence is good, and he that believeth in spite of evidence is a saint. Only the wicked doubt, only the blasphemer denies. *This was orthodox Christianity*.

Thomas Paine had the courage, the sense, the heart, to denounce these horrors, these absurdities, these infinite infamies. He did what he could to drive these theological vipers, these Calvinistic cobras, these fanged and hissing serpents of superstition from the heart of man.

A few civilized men agreed with him then, and the world has progressed since 1809. Intellectual wealth has accumulated; vast mental estates have been left to the world. Geologists have forced secrets from the rocks, astronomers from the stars, historians from old records and lost languages. In every direction the thinker and the investigator have ventured and explored, and even the pews have begun to ask questions of the pulpits. Humboldt has lived, and Darwin and Haeckel and Huxley, and the armies led by them, have changed the thought of the world.

The churches of 1809 could not be the friends of Thomas Paine. No church asserting that belief is necessary to salvation ever was, or ever will be, the champion of true liberty. A church founded on slavery—that is to say, on blind obedience, worshiping irresponsible and arbitrary power, must of necessity be the enemy of human freedom.

The orthodox churches are now anxious to save the little that Paine left of their creed. If one now believes in God, and lends a little financial aid, he is considered a good and desirable member. He need not define God after the manner of the catechism. He may talk about a "Power that works for righteousness," or the tortoise Truth that beats the rabbit Lie in the long run, or the "Unknowable," or the "Unconditioned," or the "Cosmic Force," or the "Ultimate Atom," or "Protoplasm," or the "What"—provided he begins this word with a capital.

We must also remember that there is a difference between independence and liberty. Millions have fought for independence—to throw off some foreign yoke—and yet were at heart the enemies of true liberty. A man in jail, sighing to be free, may be said to be in favor of liberty, but not from principle; but a man who, being free, risks or gives his life to free the enslaved, is a true soldier of liberty.

Thomas Paine had passed the legendary limit of life. One by one most of his old friends and acquaintances had deserted him. Maligned on every side, execrated, shunned and abhorred—his virtues denounced as vices—his services forgotten—his character blackened, he preserved the poise and balance of his soul. He was a victim of the people, but his convictions remained unshaken. He was still a soldier in the army of freedom, and still tried to enlighten and civilize those who were impatiently waiting for his death. Even those who loved their enemies hated him, their friend—the friend of the whole world—with all their hearts.

On the 8th of June, 1809, death came—Death, almost his only friend.

At his funeral no pomp, no pageantry, no civic procession, no military display. In a carriage, a woman and her son who had lived on the bounty of the dead—On horseback, a Quaker, the humanity of whose heart dominated the creed of his head—and, following on foot, two negroes filled with gratitude—constituted the funeral cortege of Thomas Paine.

He who had received the gratitude of many millions, the thanks of generals and statesmen—he who had been the friend and companion of the wisest and best—he who had taught a people to be free, and whose words had inspired armies and enlightened nations, was thus given back to Nature, the mother of us all.

If the people of the great Republic knew the life of this generous, this chivalric man, the real story of his services, his sufferings and his triumphs—of what he did to compel the robed and crowned, the priests and kings, to give back to the people liberty, the jewel of the soul; if they knew that he was the first to write, "The Religion of Humanity"; if they knew that he, above all others, planted and watered the seeds of independence, of union, of nationality, in the hearts of our forefathers—that his words were gladly repeated by the best and bravest in many lands; if they knew that he attempted, by the purest means, to attain the noblest and loftiest ends—that he was original, sincere, intrepid, and that he could truthfully say: "The

world is my country, to do good my religion"—if the people only knew all this—the truth—they would repeat the words of Andrew Jackson: "Thomas Paine needs no monument made with hands; he has erected a monument in the hearts of all lovers of liberty."—North American Review, August, 1893.

THE THREE PHILANTHROPISTS.

*"Well, while I am a beggar, I will rail,
And say there is no sin but to be rich."*

MR. A. lived in the kingdom of———. He was a sincere professional philanthropist. He was absolutely certain that he loved his fellow-men, and that his views were humane and scientific. He concluded to turn his attention to taking care of people less fortunate than himself.

With this object in view he investigated the common people that lived about him, and he found that they were extremely ignorant, that many of them seemed to take no particular interest in life or in business, that few of them had any theories of their own, and that, while many had muscle, there was only now and then one who had any mind worth speaking of. Nearly all of them were destitute of ambition. They were satisfied if they got something to eat, a place to sleep, and could now and then indulge in some form of dissipation. They seemed to have great confidence in to-morrow—trusted to luck, and took no thought for the future. Many of them were extravagant, most of them dissipated, and a good many dishonest.

Mr. A. found that many of the husbands not only failed to support their families, but that some of them lived on the labor of their wives; that many of the wives were careless of their obligations, knew nothing about the art of cooking; nothing about keeping house; and that parents, as a general thing, neglected their children or treated them with cruelty. He also found that many of the people were so shiftless that they died of want and exposure.

After having obtained this information Mr. A. made up his mind to do what little he could to better their condition. He petitioned the king to assist him, and asked that he be allowed to take control of five hundred people in consideration that he would pay a certain amount into the treasury of the kingdom. The king being satisfied that Mr. A. could take care of these people better than they were taking care of themselves, granted the petition.

Mr. A., with the assistance of a few soldiers, took these people from their old homes and haunts to a plantation of his own. He divided them into

groups, and over each group placed a superintendent. He made certain rules and regulations for their conduct. They were only compelled to work from twelve to fourteen hours a day, leaving ten hours for sleep and recreation. Good and substantial food was provided. Their houses were comfortable and their clothing sufficient. Their work was laid out from day to day and from month to month, so that they knew exactly what they were to do in each hour of every day. These rules were made for the good of the people, to the end that they might not interfere with each other, that they might attend to their duties, and enjoy themselves in a reasonable way. They were not allowed to waste their time, or to use stimulants or profane language. They were told to be respectful to the superintendents, and especially to Mr. A.; to be obedient, and, above all, to accept the position in which Providence had placed them, without complaining, and to cheerfully perform their tasks.

Mr. A. had found out all that the five hundred persons had earned the year before they were taken control of by him—just how much they had added to the wealth of the world. He had statistics taken for the year before with great care showing the number of deaths, the cases of sickness and of destitution, the number who had committed suicide, how many had been convicted of crimes and misdemeanors, how many days they had been idle, and how much time and money they had spent in drink and for worthless amusements.

During the first year of their enslavement he kept like statistics. He found that they had earned several times as much; that there had been no cases of destitution, no drunkenness; that no crimes had been committed; that there had been but little sickness, owing to the regular course of their lives; that few had been guilty of misdemeanors, owing to the certainty of punishment; and that they had been so watched and superintended that for the most part they had traveled the highway of virtue and industry.

Mr. A. was delighted, and with a vast deal of pride showed these statistics to his friends. He not only demonstrated that the five hundred people were better off than they had been before, but that his own income was very largely increased. He congratulated himself that he had added to the well-being of these people not only, but had laid the foundation of a great fortune for himself. On these facts and these figures he claimed not only to be a

philanthropist, but a philosopher; and all the people who had a mind to go into the same business agreed with him.

Some denounced the entire proceeding as unwarranted, as contrary to reason and justice. These insisted that the five hundred people had a right to live in their own way provided they did not interfere with others; that they had the right to go through the world with little food and with poor clothes, and to live in huts, if such was their choice. But Mr. A. had no trouble in answering these objectors. He insisted that well-being is the only good, and that every human being is under obligation, not only to take care of himself, but to do what little he can towards taking care of others; that where five hundred people neglect to take care of themselves, it is the duty of somebody else, who has more intelligence and more means, to take care of them; that the man who takes five hundred people and improves their condition, gives them on the average better food, better clothes, and keeps them out of mischief, is a benefactor.

"These people," said Mr. A., "were tried. They were found incapable of taking care of themselves. They lacked intelligence or will or honesty or industry or ambition or something, so that in the struggle for existence they fell behind, became stragglers, dropped by the wayside, died in gutters; while many were destined to end their days either in dungeons or on scaffolds. Besides all this, they were a nuisance to their prosperous fellow-citizens, a perpetual menace to the peace of society. They increased the burden of taxation; they filled the ranks of the criminal classes, they made it necessary to build more jails, to employ more policemen and judges; so that I, by enslaving them, not only assisted them, not only protected them against themselves, not only bettered their condition, not only added to the well-being of society at large, but greatly increased my own fortune."

Mr. A. also took the ground that Providence, by giving him superior intelligence, the genius of command, the aptitude for taking charge of others, had made it his duty to exercise these faculties for the well-being of the people and for the glory of God. Mr. A. frequently declared that he was God's steward. He often said he thanked God that he was not governed by a sickly sentiment, but that he was a man of sense, of judgment, of force of character, and that the means employed by him were in accordance with the logic of facts.

Some of the people thus enslaved objected, saying that they had the same right to control themselves that Mr. A. had to control himself. But it only required a little discipline to satisfy them that they were wrong. Some of the people were quite happy, and declared that nothing gave them such perfect contentment as the absence of all responsibility. Mr. A. insisted that all men had not been endowed with the same capacity; that the weak ought to be cared for by the strong; that such was evidently the design of the Creator, and that he intended to do what little he could to carry that design into effect.

Mr. A. was very successful. In a few years he had several thousands of men, women, and children working for him. He amassed a large fortune. He felt that he had been intrusted with this money by Providence. He therefore built several churches, and once in a while gave large sums to societies for the spread of civilization. He passed away regretted by a great many people—not including those who had lived under his immediate administration. He was buried with great pomp, the king being one of the pall-bearers, and on his tomb was this:

HE WAS THE PROVIDENCE OF THE POOR. II.

*"And, being rich, my virtue then shall be
To say there is no vice but beggary."*

Mr. B. did not believe in slavery. He despised the institution with every drop of his blood, and was an advocate of universal freedom. He held all the ideas of Mr. A. in supreme contempt, and frequently spent whole evenings in denouncing the inhumanity and injustice of the whole business. He even went so far as to contend that many of A.'s slaves had more intelligence than A. himself, and that, whether they had intelligence or not, they had the right to be free. He insisted that Mr. A.'s philanthropy was a sham; that he never bought a human being for the purpose of bettering that being's condition; that he went into the business simply to make money for himself; and that his talk about his slaves committing less crime than when they were free was simply to justify the crime committed by himself in enslaving his fellow-men.

Mr. B. was a manufacturer, and he employed some five or six thousand men. He used to say that these men were not forced to work for him; that they were at perfect liberty to accept or reject the terms; that, so far as he was concerned, he would just as soon commit larceny or robbery as to force

a man to work for him. "Every laborer under my roof," he used to say, "is as free to choose as I am."

Mr B. believed in absolutely free trade; thought it an outrage to interfere with the free interplay of forces; said that every man should buy, or at least have the privilege of buying, where he could buy cheapest, and should have the privilege of selling where he could get the most. He insisted that a man who has labor to sell has the right to sell it to the best advantage, and that the purchaser has the right to buy it at the lowest price. He did not enslave men—he hired them. Some said that he took advantage of their necessities; but he answered that he created no necessities, that he was not responsible for their condition, that he did not make them poor, that he found them poor and gave them work, and gave them the same wages that he could employ others for. He insisted that he was absolutely just to all; he did not give one man more than another, and he never refused to employ a man on account of the man's religion or politics; all that he did was simply to employ that man if the man wished to be employed, and give him the wages, no more and no less, that some other man of like capacity was willing to work for.

Mr. B. also said that the price of the article manufactured by him fixed the wages of the persons employed, and that he, Mr. B., was not responsible for the price of the article he manufactured; consequently he was not responsible for the wages of the workmen. He agreed to pay them a certain price, he taking the risk of selling his articles, and he paid them regularly just on the day he agreed to pay them, and if they were not satisfied with the wages, they were at perfect liberty to leave. One of his private sayings was: "The poor ye have always with you." And from this he argued that some men were made poor so that others could be generous. "Take poverty and suffering from the world," he said, "and you destroy sympathy and generosity."

Mr. B. made a large amount of money. Many of his workmen complained that their wages did not allow them to live in comfort. Many had large families, and therefore but little to eat. Some of them lived in crowded rooms. Many of the children were carried off by disease; but Mr. B. took the ground that all these people had the right to go, that he did not force them to remain, that if they were not healthy it was not his fault, and that whenever it pleased Providence to remove a child, or one of the parents, he, Mr. B., was not responsible.

Mr. B. insisted that many of his workmen were extravagant; that they bought things that they did not need; that they wasted in beer and tobacco, money that they should save for funerals; that many of them visited places of amusement when they should have been thinking about death, and that others bought toys to please the children when they hardly had bread enough to eat. He felt that he was in no way accountable for this extravagance, nor for the fact that their wages did not give them the necessities of life, because he not only gave them the same wages that other manufacturers gave, but the same wages that other workmen were willing to work for.

Mr. B. said,—and he always said this as though it ended the argument,—and he generally stood up to say it: "The great law of supply and demand is of divine origin; it is the only law that will work in all possible or conceivable cases; and this law fixes the price of all labor, and from it there is no appeal. If people are not satisfied with the operation of the law, then let them make a new world for themselves."

Some of Mr. B.'s friends reported that on several occasions, forgetting what he had said on others, he did declare that his confidence was somewhat weakened in the law of supply and demand; but this was only when there seemed to be an over-production of the things he was engaged in manufacturing, and at such times he seemed to doubt the absolute equity of the great law.

Mr. B. made even a larger fortune than Mr. A., because when his workmen got old he did not have to care for them, when they were sick he paid no doctors, and when their children died he bought no coffins. In this way he was relieved of a large part of the expenses that had to be borne by Mr. A. When his workmen became too old, they were sent to the poorhouse; when they were sick, they were assisted by charitable societies; and when they died, they were buried by pity.

In a few years Mr. B. was the owner of many millions. He also considered himself as one of God's stewards; felt that Providence had given him the intelligence to combine interests, to carry out great schemes, and that he was specially raised up to give employment to many thousands of people. He often regretted that he could do no more for his laborers without lessening his own profits, or, rather, without lessening his fund for the blessing of mankind—the blessing to begin immediately after his death. He

was so anxious to be the providence of posterity that he was sometimes almost heartless in his dealings with contemporaries. He felt that it was necessary for him to be economical, to save every dollar that he could, because in this way he could increase the fund that was finally to bless mankind. He also felt that in this way he could lay the foundations of a permanent fame—that he could build, through his executors, an asylum to be called the "B. Asylum," that he could fill a building with books to be called the "B. Library," and that he could also build and endow an institution of learning to be called the "B. College," and that, in addition, a large amount of money could be given for the purpose of civilizing the citizens of less fortunate countries, to the end that they might become imbued with that spirit of combination and manufacture that results in putting large fortunes in the hands of those who have been selected by Providence, on account of their talents, to make a better distribution of wealth than those who earned it could have done.

Mr. B. spent many thousands of dollars to procure such legislation as would protect him from foreign competition. He did not believe the law of supply and demand would work when interfered with by manufacturers living in other countries.

Mr. B., like Mr. A., was a man of judgment. He had what is called a level head, was not easily turned aside from his purpose, and felt that he was in accord with the general sentiment of his time. By his own exertions he rose from poverty to wealth. He was born in a hut and died in a palace. He was a patron of art and enriched his walls with the works of the masters. He insisted that others could and should follow his example. For those who failed or refused he had no sympathy. He accounted for their poverty and wretchedness by saying: "These paupers have only themselves to blame." He died without ever having lost a dollar. His funeral was magnificent, and clergymen vied with each other in laudations of the dead. Over his dust rises a monument of marble with the words:

HE LIVED FOR OTHERS. III

*"But there are men who steal, and vainly try
To gild the crime with pompous charity."*

There was another man, Mr. C., who also had the genius for combination. He understood the value of capital, the value of labor; knew exactly how much could be done with machinery; understood the economy of things;

knew how to do everything in the easiest and shortest way. And he, too, was a manufacturer and had in his employ many thousands of men, women, and children. He was what is called a visionary, a sentimentalist, rather weak in his will, not very obstinate, had but little egotism; and it never occurred to him that he had been selected by Providence, or any supernatural power, to divide the property of others. It did not seem to him that he had any right to take from other men their labor without giving them a full equivalent. He felt that if he had more intelligence than his fellow-men he ought to use that intelligence not only for his own good but for theirs; that he certainly ought not to use it for the purpose of gaining an advantage over those who were his intellectual inferiors. He used to say that a man strong intellectually had no more right to take advantage of a man weak intellectually than the physically strong had to rob the physically weak.

He also insisted that we should not take advantage of each other's necessities; that you should not ask a drowning man a greater price for lumber than you would if he stood on the shore; that if you took into consideration the necessities of your fellow-man, it should be only to lessen the price of that which you would sell to him, not to increase it. He insisted that honest men do not take advantage of their fellows. He was so weak that he had not perfect confidence in the great law of supply and demand as applied to flesh and blood. He took into consideration another law of supply and demand; he knew that the workingman had to be supplied with food, and that his nature demanded something to eat, a house to live in, clothes to wear.

Mr. C. used to think about this law of supply and demand as applicable to individuals. He found that men would work for exceedingly small wages when pressed for the necessities of life; that under some circumstances they would give their labor for half of what it was worth to the employer, because they were in a position where they must do something for wife or child. He concluded that he had no right to take advantage of the necessities of others, and that he should in the first place honestly find what the work was worth to him, and then give to the man who did the work that amount.

Other manufacturers regarded Mr. C. as substantially insane, while most of his workmen looked upon him as an exceedingly good-natured man, without any particular genius for business. Mr. C., however, cared little

about the opinions of others, so long as he maintained his respect for himself.

At the end of the first year he found that he had made a large profit, and thereupon he divided this profit with the people who had earned it. Some of his friends said to him that he ought to endow some public institution; that there should be a college in his native town; but Mr. C. was of such a peculiar turn of mind that he thought justice ought to go before charity, and a little in front of egotism, and a desire to immortalize one's self. He said that it seemed to him that of all persons in the world entitled to this profit were the men who had earned it, the men who had made it by their labor, by days of actual toil. He insisted that, as they had earned it, it was really theirs, and if it was theirs, they should have it and should spend it in their own way. Mr. C. was told that he would make the workmen in other factories dissatisfied, that other manufacturers would become his enemies, and that his course would scandalize some of the greatest men who had done so much for the civilization of the world and for the spread of intelligence. Mr. C. became extremely unpopular with men of talent, with those who had a genius for business. He, however, pursued his way, and carried on his business with the idea that the men who did the work were entitled to a fair share of the profits; that, after all, money was not as sacred as men, and that the law of supply and demand, as understood, did not apply to flesh and blood.

Mr. C. said: "I cannot be happy if those who work for me are defrauded. If I feel I am taking what belongs to them, then my life becomes miserable. To feel that I have done justice is one of the necessities of my nature. I do not wish to establish colleges. I wish to establish no public institution. My desire is to enable those who work for me to establish a few thousand homes for themselves. My ambition is to enable them to buy the books they really want to read. I do not wish to establish a hospital, but I want to make it possible for my workmen to have the services of the best physicians—physicians of their own choice.

"It is not for me to take their money and use it for the good of others or for my own glory. It is for me to give what they have earned to them. After I have given them the money that belongs to them, I can give them my advice—I can tell them how I hope they will use it; and after I have advised them, they will use it as they please. You cannot make great men and great women

by suppression. Slavery is not the school in which genius is born. Every human being must make his own mistakes for himself, must learn for himself, must have his own experience; and if the world improves, it must be from choice, not from force; and every man who does justice, who sets the example of fair dealing, hastens the coming of universal honesty, of universal civilization."

Mr. C. carried his doctrine out to the fullest extent, honestly and faithfully. When he died, there were at the funeral those who had worked for him, their wives and their children. Their tears fell upon his grave. They planted flowers and paid to him the tribute of their love. Above his silent dust they erected a monument with this inscription:

HE ALLOWED OTHERS TO LIVE FOR THEMSELVES.

North American Review, December, 1831.

SHOULD THE CHINESE BE EXCLUDED?

THE average American, like the average man of any country, has but little imagination. People who speak a different language, or worship some other god, or wear clothing unlike his own, are beyond the horizon of his sympathy. He cares but little or nothing for the sufferings or misfortunes of those who are of a different complexion or of another race. His imagination is not powerful enough to recognize the human being, in spite of peculiarities. Instead of this he looks upon every difference as an evidence of inferiority, and for the inferior he has but little if any feeling. If these "inferior people" claim equal rights he feels insulted, and for the purpose of establishing his own superiority tramples on the rights of the so-called inferior.

In our own country the native has always considered himself as much better than the immigrant, and as far superior to all people of a different complexion. At one time our people hated the Irish, then the Germans, then the Italians, and now the Chinese. The Irish and Germans, however, became numerous. They became citizens, and, most important of all, they had votes. They combined, became powerful, and the political parties sought their aid. They had something to give in exchange for protection—in exchange for political rights. In consequence of this they were flattered by candidates, praised by the political press, and became powerful enough not only to protect themselves, but at last to govern the principal cities in the United States. As a matter of fact the Irish and the Germans drove the native Americans out of the trades and from the lower forms of labor. They built the railways and canals. They became servants. Afterward the Irish and the Germans were driven from the canals and railways by the Italians.

The Irish and Germans improved their condition. They went into other businesses, into the higher and more lucrative trades. They entered the professions, turned their attention to politics, became merchants, brokers, and professors in colleges. They are not now building railroads or digging on public works. They are contractors, legislators, holders of office, and the Italians and Chinese are doing the old work.

If matters had been allowed to work in a natural way, without the interference of mobs or legislators, the Chinese would have driven the Italians to better employments, and all menial labor would, in time, be done by the Mongolians.

In olden times each nation hated all others. This was considered natural and patriotic. Spain, after many centuries of war, expelled the Moors, then the Moriscoes, and then the Jews. And Spain, in the name of religion and patriotism, succeeded in driving from its territory its industry, its taste and its intelligence, and by these mistakes became poor, ignorant and weak. France started on the same path when the Huguenots were expelled, and even England at one time deported the Jews. In those days a difference of race or religion was sufficient to justify any absurdity and any cruelty.

In our country, as a matter of fact, there is but little prejudice against emigrants coming from Europe, except among naturalized citizens; but nearly all foreign-born citizens are united in their prejudice against the Chinese.

The truth is that the Chinese came to this country by invitation. Under the Burlingame Treaty, China and the United States recognized:

"The inherent and inalienable right of man to change his home and allegiance, and also the mutual advantage of free migration and emigration of their citizens and subjects respectively from one country to the other for purposes of curiosity, of trade, or as permanent residents."

And it was provided:

"That the citizens of the United States visiting or residing in China and Chinese subjects visiting or residing in the United States should reciprocally enjoy the same privileges, immunities and exemptions, in respect to travel or residence, as shall be enjoyed by the citizens or subjects of the most favored nation, in the country in which they shall respectively be visiting or residing."

So, by the treaty of 1880, providing for the limitation or suspension of emigration of Chinese labor, it was declared:

"That the limitation or suspension should apply only to Chinese who emigrated to the United States as laborers; but that Chinese laborers who were then in the United States should be allowed to go and come of their own free will and should be accorded all the rights, privileges, immunities

and exemptions, which were accorded to the citizens and subjects of the most favored nations."

It will thus be seen that all Chinese laborers who came to this country prior to the treaty of 1880 were to be treated the same as the citizens and subjects of the most favored nation; that is to say, they were to be protected by our laws the same as we protect our own citizens.

These Chinese laborers are inoffensive, peaceable and law-abiding. They are honest, keeping their contracts, doing as they agree. They are exceedingly industrious, always ready to work and always giving satisfaction to their employers. They do not interfere with other people. They cannot become citizens. They have no voice in the making or the execution of the laws. They attend to their own business. They have their own ideas, customs, religion and ceremonies—about as foolish as our own; but they do not try to make converts or to force their dogmas on others. They are patient, uncomplaining, stoical and philosophical. They earn what they can, giving reasonable value for the money they receive, and as a rule, when they have amassed a few thousand dollars, they go back to their own country. They do not interfere with our ideas, our ways or customs. They are silent workers, toiling without any object, except to do their work and get their pay. They do not establish saloons and run for Congress. Neither do they combine for the purpose of governing others. Of all the people on our soil they are the least meddlesome. Some of them smoke opium, but the opium-smoker does not beat his wife. Some of them play games of chance, but they are not members of the Stock Exchange. They eat the bread that they earn; they neither beg nor steal, but they are of no use to parties or politicians except as they become fuel to supply the flame of prejudice. They are not citizens and they cannot vote. Their employers are about the only friends they have.

In the Pacific States the lowest became their enemies and asked for their expulsion. They denounced the Chinese and those who gave them work. The patient followers of Confucius were treated as outcasts—stoned by boys in the streets and mobbed by the fathers. Few seemed to have any respect for their rights or their feelings. They were unlike us. They wore different clothes. They dressed their hair in a peculiar way, and therefore they were beyond our sympathies. These ideas, these practices, demoralized

many communities; the laboring people became cruel and the small politicians infamous.

When the rights of even one human being are held in contempt the rights of all are in danger. We cannot destroy the liberties of others without losing our own. By exciting the prejudices of the ignorant we at last produce a contempt for law and justice, and sow the seeds of violence and crime.

Both of the great political parties pandered to the leaders of the crusade against the Chinese for the sake of electoral votes, and in the Pacific States the friends of the Chinese were forced to keep still or to publicly speak contrary to their convictions. The orators of the "Sand Lots" were in power, and the policy of the whole country was dictated by the most ignorant and prejudiced of our citizens. Both of the great parties ratified the outrages committed by the mobs, and proceeded with alacrity to violate the treaties and solemn obligations of the Government. These treaties were violated, these obligations were denied, and thousands of Chinamen were deprived of their rights, of their property, and hundreds were maimed or murdered. They were driven from their homes. They were hunted like wild beasts. All this was done in a country that sends missionaries to China to tell the benighted savages of the blessed religion of the United States.

At first a demand was made that the Chinese should be driven out, then that no others should be allowed to come, and laws with these objects in view were passed, in spite of the treaties, preventing the coming of any more. For a time that satisfied the haters of the Mongolian. Then came a demand for more stringent legislation, so that many of the Chinese already here could be compelled to leave. The answer or response to this demand is what is known as the Geary Law.

By this act it is provided, among other things, that any Chinaman convicted of not being lawfully in the country shall be removed to China, after having been imprisoned at hard labor for not exceeding one year. This law also does away with bail on *habeas corpus*, proceedings where the right to land has been denied to a Chinaman. It also compels all Chinese laborers to obtain, within one year after the passage of the law, certificates of residence from the revenue collectors, and if found without such certificate they shall be held to be unlawfully in the United States.

It is further provided that if a Chinaman claims that he failed to get such certificate by "accident, sickness or other unavoidable cause," then he must

clearly establish such claim to the satisfaction of the judge "by at least one credible white witness."

If we were at war with China then we might legally consider every Chinaman as an enemy, but we were and are at peace with that country. The Geary Act was passed by Congress and signed by the President simply for the sake of votes. The Democrats in Congress voted for it to save the Pacific States to the Democratic column; and a Republican President signed it so that the Pacific States should vote the Republican ticket. Principle was forgotten, or rather it was sacrificed, in the hope of political success. It was then known, as now, that China is a peaceful nation, that it does not believe in war as a remedy, that it relies on negotiation and treaty. It is also known that the Chinese in this country were helpless, without friends, without power to defend themselves. It is possible that many members of Congress voted in favor of the Act believing that the Supreme Court would hold it unconstitutional, and that in the meantime it might be politically useful.

The idea of imprisoning a man at hard labor for a year, and this man a citizen of a friendly nation, for the crime of being found in this country without a certificate of residence, must be abhorrent to the mind of every enlightened man. Such punishment for such an "offence" is barbarous and belongs to the earliest times of which we know. This law makes industry a crime and puts one who works for his bread on a level with thieves and the lowest criminals, treats him as a felon, and clothes him in the stripes of a convict,—and all this is done at the demand of the ignorant, of the prejudiced, of the heartless, and because the Chinese are not voters and have no political power.

The Chinese are not driven away because there is no room for them. Our country is not crowded. There are many millions of acres waiting for the plow. There is plenty of room here under our flag for five hundred millions of people. These Chinese that we wish to oppress and imprison are people who understand the art of irrigation. They can redeem the deserts. They are the best of gardeners. They are modest and willing to occupy the lowest seats. They only ask to be day-laborers, washers and ironers. They are willing to sweep and scrub. They are good cooks. They can clear lands and build railroads. They do not ask to be masters—they wish only to serve. In every capacity they are faithful; but in this country their virtues have made

enemies, and they are hated because of their patience, their honesty and their industry.

The Geary Law, however, failed to provide the ways and means for carrying it into effect, so that the probability is it will remain a dead letter upon the statute book. The sum of money required to carry it out is too large, and the law fails to create the machinery and name the persons authorized to deport the Chinese. Neither is there any mode of trial pointed out. According to the law there need be no indictment by a grand jury, no trial by a jury, and the person found guilty of being here without a certificate of residence can be imprisoned and treated as a felon without the ordinary forms of trial.

This law is contrary to the laws and customs of nations. The punishment is unusual, severe, and contrary to our Constitution, and under its provisions aliens—citizens of a friendly nation—can be imprisoned without due process of law. The law is barbarous, contrary to the spirit and genius of American institutions, and was passed in violation of solemn treaty stipulations.

The Congress—that passed it is the same that closed the gates of the World's Fair on the "blessed Sabbath," thinking it wicked to look at statues and pictures on that day. These representatives of the people seem to have had more piety than principle.

After the passage of such a law by the United States is it not indecent for us to send missionaries to China? Is there not work enough for them at home? We send ministers to China to convert the heathen; but when we find a Chinaman on our soil, where he can be saved by our example, we treat him as a criminal.

It is to the interest of this country to maintain friendly relations with China. We want the trade of nearly one-fourth of the human race. We want to pay for all we get from that country in articles of our own manufacture. We lost the trade of Mexico and the South American Republics because of slavery, because we hated people in whose veins was found a drop of African blood, and now we are losing the trade of China by pandering to the prejudices of the ignorant and cruel.

After all, it pays to do right. This is a hard truth to learn—especially for a nation. A great nation should be bound by the highest conception of justice and honor. Above all things it should be true to its treaties, its contracts, its

obligations. It should remember that its responsibilities are in accordance with its power and intelligence.

Our Government is founded on the equality of human rights—on the idea, the sacred truth, that all are entitled to life, liberty and the pursuit of happiness. Our country is an asylum for the oppressed of all nations—of all races. Here, the Government gets its power from the consent of the governed. After the abolition of slavery these great truths were not only admitted, but they found expression in our Constitution and laws.

Shall we now go back to barbarism?

Russia is earning the hatred of the civilized world by driving the Jews from their homes. But what can the United States say? Our mouths are closed by the Geary Law. We are in the same business. Our law is as inhuman as the order or ukase of the Czar.

Let us retrace our steps, repeal the law and accomplish what we justly desire by civilized means. Let us treat China as we would England; and, above all, let us respect the rights of men,—North American Review, July, 1893.

A WORD ABOUT EDUCATION.

THE end of life—the object of life—is happiness. Nothing can be better than that—nothing higher. In order to be really happy, man must be in harmony with his surroundings, with the conditions of well-being. In order to know these surroundings, he must be educated, and education is of value only as it contributes to the wellbeing of man, and only that is education which increases the power of man to gratify his real wants—wants of body and of mind.

The educated man knows the necessity of finding out the facts in nature, the relations between himself and his fellow-men, between himself and the world, to the end that he may take advantage of these facts and relations for the benefit of himself and others. He knows that a man may understand Latin and Greek, Hebrew and Sanscrit, and be as ignorant of the great facts and forces in nature as a native of Central Africa.

The educated man knows something that he can use, not only for the benefit of himself, but for the benefit of others. Every skilled mechanic, every good farmer, every man who knows some of the real facts in nature that touch him, is to that extent an educated man. The skilled mechanic and the intelligent farmer may not be what we call "scholars," and what we call scholars may not be educated men.

Man is in constant need. He must protect himself from cold and heat, from sun and storm. He needs food and raiment for the body, and he needs what we call art for the development and gratification of his brain. Beginning with what are called the necessities of life, he rises to what are known as the luxuries, and the luxuries become necessities, and above luxuries he rises to the highest wants of the soul.

The man who is fitted to take care of himself, in the conditions he may be placed, is, in a very important sense, an educated man. The savage who understands the habits of animals, who is a good hunter and fisher, is a man of education, taking into consideration his circumstances. The graduate of a university who cannot take care of himself—no matter how much he may have studied—is not an educated man.

In our time, an educated man, whether a mechanic, a farmer, or one who follows a profession, should know something about what the world has discovered. He should have an idea of the outlines of the sciences. He should have read a little, at least, of the best that has been written. He should know something of mechanics, a little about politics, commerce, and metaphysics; and in addition to all this, he should know how to make something. His hands should be educated, so that he can, if necessary, supply his own wants by supplying the wants of others.

There are mental misers—men who gather learning all their lives and keep it to themselves. They are worse than hoarders of gold, because when they die their learning dies with them, while the metal miser is compelled to leave his gold for others.

The first duty of man is to support himself—to see to it that he does not become a burden. His next duty is to help others if he has a surplus, and if he really believes they deserve to be helped.

It is not necessary to have what is called a university education in order to be useful or to be happy, any more than it is necessary to be rich, to be happy. Great wealth is a great burden, and to have more than you can use, is to care for more than you want. The happiest are those who are prosperous, and who by reasonable endeavor can supply their reasonable wants and have a little surplus year by year for the winter of their lives.

So, it is no use to learn thousands and thousands of useless facts, or to fill the brain with unspoken tongues. This is burdening yourself with more than you can use. The best way is to learn the useful.

We all know that men in moderate circumstances can have just as comfortable houses as the richest, just as comfortable clothing, just as good food. They can see just as fine paintings, just as marvelous statues, and they can hear just as good music. They can attend the same theatres and the same operas. They can enjoy the same sunshine, and above all, can love and be loved just as well as kings and millionaires.

So the conclusion of the whole matter is, that he is educated who knows how to take care of himself; and that the happy man is the successful man, and that it is only a burden to have more than you want, or to learn those things that you cannot use.—The High School Register, Omaha, Nebraska, January. 1891.

WHAT I WANT FOR CHRISTMAS.

IF I had the power to produce exactly what I want for next Christmas, I would have all the kings and emperors resign and allow the people to govern themselves.

I would have all the nobility drop their titles and give their lands back to the people. I would have the Pope throw away his tiara, take off his sacred vestments, and admit that he is not acting for God—is not infallible—but is just an ordinary Italian. I would have all the cardinals, archbishops, bishops, priests and clergymen admit that they know nothing about theology, nothing about hell or heaven, nothing about the destiny of the human race, nothing about devils or ghosts, gods or angels. I would have them tell all their "flocks" to think for themselves, to be manly men and womanly women, and to do all in their power to increase the sum of human happiness.

I would have all the professors in colleges, all the teachers in schools of every kind, including those in Sunday schools, agree that they would teach only what they know, that they would not palm off guesses as demonstrated truths.

I would like to see all the politicians changed to statesmen,—to men who long to make their country great and free,—to men who care more for public good than private gain—men who long to be of use.

I would like to see all the editors of papers and magazines agree to print the truth and nothing but the truth, to avoid all slander and misrepresentation, and to let the private affairs of the people alone.

I would like to see drunkenness and prohibition both abolished.

I would like to see corporal punishment done away with in every home, in every school, in every asylum, reformatory, and prison. Cruelty hardens and degrades, kindness reforms and ennobles.

I would like to see the millionaires unite and form a trust for the public good.

I would like to see a fair division of profits between capital and labor, so that the toiler could save enough to mingle a little June with the December of his life.

I would like to see an international court established in which to settle disputes between nations, so that armies could be disbanded and the great navies allowed to rust and rot in perfect peace.

I would like to see the whole world free—free from injustice—free from superstition.

This will do for next Christmas. The following Christmas, I may want more.—The Arena, Boston, December, 1897.

FOOL FRIENDS.

**NOTHING hurts a man, nothing hurts a party so terribly as
fool friends.**

A fool friend is the sewer of bad news, of slander and all base and unpleasant things.

A fool friend always knows every mean thing that has been said against you and against the party.

He always knows where your party is losing, and the other is making large gains.

He always tells you of the good luck your enemy has had.

He implicitly believes every story against you, and kindly suspects your defence.

A fool friend is always full of a kind of stupid candor.

He is so candid that he always believes the statement of an enemy.

He never suspects anything on your side.

Nothing pleases him like being shocked by horrible news concerning some good man.

He never denies a lie unless it is in your favor.

He is always finding fault with his party, and is continually begging pardon for not belonging to the other side.

He is frightfully anxious that all his candidates should stand well with the opposition.

He is forever seeing the faults of his party and the virtues of the other.

He generally shows his candor by scratching the ticket.

He always searches every nook and corner of his conscience to find a reason for deserting a friend or a principle.

In the moment of victory he is magnanimously on your side.

In defeat he consoles you by repeating prophecies made after the event.

The fool friend regards your reputation as common prey for all the vultures, hyenas and jackals.

He takes a sad pleasure in your misfortunes.

He forgets his principles to gratify your enemies.

He forgives your maligner, and slanders you with all his heart.

He is so friendly that you cannot kick him.

He generally talks for you but always bets the other way.

INSPIRATION

WE are told that we have in our possession the inspired will of God. What is meant by the word "inspired" is not exactly known; but whatever else it may mean, certainly it means that the "inspired" must be the true. If it is true, there is in fact no need of its being inspired—the truth will take care of itself.

The church is forced to say that the Bible differs from all other books; it is forced to say that it contains the actual will of God. Let us then see what inspiration really is. A man looks at the sea, and the sea says something to him. It makes an impression upon his mind. It awakens memory, and this impression depends upon the man's experience—upon his intellectual capacity. Another looks upon the same sea. He has a different brain; he has had a different experience. The sea may speak to him of joy; to the other of grief and tears. The sea cannot tell the same thing to any two human beings, because no two human beings have had the same experience.

Another, standing upon the shore, listening to what the great Greek tragedian called "The multitudinous laughter of the sea," may say: Every drop has visited all the shores of the earth; every one has been frozen in the vast and icy North; every one has fallen in snow, has been whirled by storms around mountain peaks; every one has been kissed to vapor by the sun; every one has worn the seven-hued garment of light; every one has fallen in pleasant rain, gurgled from springs and laughed in brooks while lovers wooed upon the banks, and every one has rushed with mighty rivers back to the sea's embrace. Everything in Nature tells a different story to all eyes that see, and to all ears that hear.

Once in my life, and once only, I heard Horace Greeley deliver a lecture. I think the title was "Across the Continent." At last he reached the mammoth trees of California, and I thought, "Here is an opportunity for the old man to indulge his fancy. Here are trees that have outlived a thousand human governments. There are limbs above his head older than the pyramids. While man was emerging from barbarism to something like civilization, these trees were growing. Older than history, every one appeared to be a memory, a witness, and a prophecy. The same wind that

filled the sails of the Argonauts had swayed these trees." But these trees said nothing of this kind to Mr. Greeley. Upon these subjects not a word was told him. Instead, he took his pencil, and after figuring awhile, remarked: "One of these trees, sawed into inch boards, would make more than three hundred thousand feet of lumber."

I was once riding in the cars in Illinois. There had been a violent thunder storm. The rain had ceased, the sun was going down. The great clouds had floated toward the west, and there they assumed most wonderful architectural shapes. There were temples and palaces domed and turreted, and they were touched with silver, with amethyst and gold. They looked like the homes of the Titans, or the palaces of the gods. A man was sitting near me. I touched him and said, "Did you ever see anything so beautiful?" He looked out. He saw nothing of the cloud, nothing of the sun, nothing of the color; he saw only the country, and replied, "Yes, it is beautiful; I always did like rolling land."

On another occasion I was riding in a stage. There had been a snow, and after the snow a sleet, and all the trees were bent, and all the boughs were arched. Every fence, every log cabin, had been transfigured, touched with a glory almost beyond this world. The great fields were a pure and perfect white; the forests, drooping beneath their load of gems, made wonderful caves, from which one almost expected to see troops of fairies come. The whole world looked like a bride, jeweled from head to foot. A German on the back seat, hearing our talk, and our exclamations of wonder, leaned forward, looked out of the stage window, and said, "Y-a-a-s; it looks like a clean table cloth!"

So, when we look upon a flower, a painting, a statue, a star, or a violet, the more we know, the more we have experienced, the more we have thought, the more we remember,—the more the statue, the star, the painting, the violet, has to tell. Nature says to me all that I am capable of understanding—gives all that I can receive.

As with star or flower or sea, so with a book. A man reads Shakespeare. What does he get from him? All that he has the mind to understand. He gets his little cup full. Let another read him who knows nothing of the drama, nothing of the impersonations of passion, and what does he get? Almost nothing. Shakespeare has a different story for each reader. He is a world in

which each recognizes his acquaintances—he may know a few—he may know all.

The impression that Nature makes upon the mind, the stories told by sea and star and flower, must be the natural food of thought. Leaving out for the moment the impression gained from ancestors, the hereditary fears and drifts and trends—the natural food of thought must be the impression made upon the brain by coming in contact, through the medium of the five senses, with what we call the outward world. The brain is natural. Its food is natural. The result—thought—must be natural. The supernatural can be constructed with no material except the natural. Of the supernatural we can have no conception.

"Thought" may be deformed, and the thought of one may be strange to, and denominated as unnatural by, another; but it cannot be supernatural. It may be weak, it may be insane, but it is not supernatural. Above the natural, man cannot rise. There can be deformed ideas, as there are deformed persons. There can be religious monstrosities and misshapen, but they must be naturally produced. Some people have ideas about what they are pleased to call the supernatural; what they call the supernatural is simply the deformed. The world is to each man according to each man. It takes the world as it really is, and that man to make that man's world, and that man's world cannot exist without that man.

You may ask, and what of all this? I reply: As with everything in Nature, so with the Bible. It has a different story for each reader. Is then, the Bible a different book to every human being who reads it? It is. Can God, then, through the Bible, make the same revelation to two persons? He cannot. Why? Because the man who reads it is the man who inspires. Inspiration is in the man, as well as in the book. God should have "inspired" readers as well as writers.

You may reply, God knew that his book would be understood differently by each one; really intended that it should be understood as it is understood by each. If this is so, then my understanding of the Bible is the real revelation to me. If this is so, I have no right to take the understanding of another. I must take the revelation made to me through my understanding, and by that revelation I must stand. Suppose, then, that I do read this Bible honestly, carefully, and when I get through I am compelled to say, "The book is not true!"

If this is the honest result, then you are compelled to say, either that God has made no revelation to me, or that the revelation that it is not true is the revelation made to me, and by which I am bound. If the book and my brain are both the work of the same infinite God, whose fault is it that the book and the brain do not agree? Either God should have written a book to fit my brain, or should have made my brain to fit his book.

The inspiration of the Bible depends upon the ignorance of him who reads.—The Truth Seeker Annual, New York, 1885.

THE TRUTH OF HISTORY.

THOUSANDS of Christians have asked: How was it possible for Christ and his apostles to deceive the people of Jerusalem? How came the miracles to be believed? Who had the impudence to say that lepers had been cleansed, and that the dead had been raised? How could such impostors have escaped exposure?

I ask: How did Mohammed deceive the people of Mecca? How has the Catholic Church imposed upon millions of people? Who can account for the success of falsehood?

Millions of people are directly interested in the false. They live by lying. To deceive is the business of their lives. Truth is a cripple; lies have wings. It is almost impossible to overtake and kill and bury a lie. If you do, some one will erect a monument over the grave, and the lie is born again as an epitaph. Let me give you a case in point.

A few days ago the *Matlock Register*, a paper published in England, printed the following:

CONVERSION OF THE ARCH ATHEIST.

"Mr. Isaac Loveland, of Shoreham, desires us to insert the following:—

"November 27, 1886.

"Dear Mr. Loveland.—A day or two since, I received from Mr. Hine the exhilarating intelligence that through his lectures on the 'Identity of the British Nation with Lost Israel,' in Canada and the United States, that Col. Bob Ingersoll, the arch Atheist, has been converted to Christianity, and has joined the Episcopal Church. Praise the Lord!!! 5,000 of his followers *have been won for Christ* through Mr. Hine's grand mission work, the other side of the Atlantic. The Colonel's cousin, the Rev. Mr. Ingersoll, wrote to Mr. Hine soon after he began lecturing in America, informing him that his lectures had made a great impression on the Colonel and other Atheists. I noted it at the time in the *Messenger*. Bradlaugh will yet be converted; his brother has been, and has joined a British Israel Identity Association. This is progress, and shows what an energetic, determined man (like Mr. Hine), who is earnest in his faith, can do.

"Very faithfully yours,

"H. HODSON RUGG.

"Grove-road, St. John's Wood, London."

How can we account for an article like that? Who made up this story? Who had the impudence to publish it?

As a matter of fact, I never saw Mr. Hine, never heard of him until this extract was received by me in the month of December. I never read a word about the "Identity of Lost Israel with the British Nation." It is a question in which I never had, and never expect to have, the slightest possible interest.

Nothing can be more preposterous than that the Englishman in whose veins can be found the blood of the Saxon, the Dane, the Norman, the Piet, the Scot and the Celt, is the descendant of "Abraham, Isaac and Jacob." The English language does not bear the remotest resemblance to the Hebrew, and yet it is claimed by the Reverend Hod-son Rugg that not only myself, but five thousand other Atheists, were converted by the Rev. Mr. Hine, because of his theory that Englishmen and Americans are simply Jews in disguise.

This letter, in my judgment, was published to be used by missionaries in China, Japan, India and Africa.

If stories like this can be circulated about a living man, what may we not expect concerning the dead who have opposed the church?

Countless falsehoods have been circulated about all the opponents of superstition. Whoever attacks the popular falsehoods of his time will find that a lie defends itself by telling other lies. Nothing is so prolific, nothing can so multiply itself, nothing can lay and hatch as many eggs, as a good, healthy, religious lie.

And nothing is more wonderful than the credulity of the believers in the supernatural. They feel under a kind of obligation to believe everything in favor of their religion, or against any form of what they are pleased to call "Infidelity."

The old falsehoods about Voltaire, Paine, Hume, Julian, Diderot and hundreds of others, grow green every spring. They are answered; they are demonstrated to be without the slightest foundation; but they rarely die. And when one does die there seems to be a kind of Cæsarian operation, so

that in each instance although the mother dies the child lives to undergo, if necessary, a like operation, leaving another child, and sometimes two.

There are thousands and thousands of tongues ready to repeat what the owners know to be false, and these lies are a part of the stock in trade, the valuable assets, of superstition. No church can afford to throw its property away. To admit that these stories are false now, is to admit that the church has been busy lying for hundreds of years, and it is also to admit that the word of the church is not and cannot be taken as evidence of any fact.

A few years ago, I had a little controversy with the editor of the *New York Observer*, the Rev. Irenaeus Prime, (who is now supposed to be in heaven enjoying the bliss of seeing Infidels in hell), as to whether Thomas Paine recanted his religious opinions. I offered to deposit a thousand dollars for the benefit of a charity, if the reverend doctor would substantiate the charge that Paine recanted. I forced the *New York Observer* to admit that Paine did not recant, and compelled that paper to say that "Thomas Paine died a blaspheming Infidel."

A few months afterward an English paper was sent to me—a religious paper—and in that paper was a statement to the effect that the editor of the *New York Observer* had claimed that Paine recanted; that I had offered to give a thousand dollars to any charity that Mr. Prime might select, if he would establish the fact that Paine did recant; and that so overwhelming was the testimony brought forward by Mr. Prime, that I admitted that Paine did recant, and paid the thousand dollars.

This is another instance of what might be called the truth of history.

I wrote to the editor of that paper, telling the exact facts, and offering him advertising rates to publish the denial, and in addition, stated that if he would send me a copy of his paper with the denial, I would send him twenty-five dollars for his trouble. I received no reply, and the lie is in all probability still on its travels, going from Sunday school to Sunday school, from pulpit to pulpit, from hypocrite to savage,—that is to say, from missionary to Hottentot—without the slightest evidence of fatigue—fresh and strong, and in its cheeks the roses and lilies of perfect health.

Some person, expecting to add another gem to his crown of glory, put in circulation the story that one of my daughters had joined the Presbyterian Church,—a story without the slightest foundation—and although denied a hundred times, it is still being printed and circulated for the edification of

the faithful. Every few days I receive some letter of inquiry as to this charge, and I have industriously denied it for years, but up to the present time, it shows no signs of death—not even of weakness.

Another religious gentleman put in print the charge that my son, having been raised in the atmosphere of Infidelity, had become insane and died in an asylum. Notwithstanding the fact that I never had a son, the story still goes right on, and is repeated day after day without the semblance of a blush.

Now, if all this is done while I am alive and well, and while I have all the facilities of our century for spreading the denials, what will be done after my lips are closed?

The mendacity of superstition is almost enough to make a man believe in the supernatural.

And so I might go on for a hundred columns. Billions of falsehoods have been told and there are trillions yet to come. The doctrines of Malthus have nothing to do with this particular kind of reproduction.

"And there are also many other falsehoods which the church has told, the which if they should be written every one, I suppose that even the world itself could not contain the books that should be written."—The Truth Seeker, New York, February, 19, 1887.

HOW TO EDIT A LIBERAL PAPER.

A LIBERAL paper should be edited by a Liberal man.

And by the word Liberal I mean, not only free, not only one who thinks for himself, not only one who has escaped from the prisons of customs and creed, but one who is candid, intelligent and kind.

This Liberal editor should not forever play upon one string, no matter how wonderful the music. He should not have his attention forever fixed upon one question—that is to say, he should not look through a reversed telescope and narrow his horizon to that degree that he sees only one thing.

To know that the Bible is the literature of a barbarous people, to know that it is uninspired, to be certain that the supernatural does not and cannot exist—all this is but the beginning of wisdom. This only lays the foundation for unprejudiced observation. To kill weeds, to fell forests, to drive away or exterminate wild beasts—this is preparatory to doing something of greater value. Of course the weeds must be killed, the forests must be felled, and the beasts must be destroyed before the building of homes and the cultivation of fields.

A Liberal paper should not discuss theological questions alone. Intelligent people everywhere have given up most of the old superstitions. They have pretty well made up their minds what is false, and they want to know some others.

That is to say, liberal toward everything that is true. For this reason, a Liberal paper should keep abreast of the discoveries of the human mind. No science should be neglected; no fact should be overlooked. Inventions should be described and understood. And not only this, but the beautiful in thought, in form and color, should be preserved. The paper should be filled with things calculated to interest thoughtful, intelligent and serious people. There should be a column for children as well as for men.

Above all, it should be perfectly kind and candid. In discussion there is no place for hatred, no opportunity for slander. A personality is always out of place. An angry man can neither reason himself, nor perceive the reason

of what another says. The orthodox world has always dealt in personalities. Every minister can answer the argument of an opponent by attacking the character of the opponent. This example should never be followed by a Liberal man. Nobody can be bad enough to prove that the Bible is uninspired, and nobody can be good enough to prove that it is the word of God. These facts have no relation. They neither stand nor fall together.

Nothing should be asserted that is not known. Nothing should be denied, the falsity of which has not been, or cannot be, demonstrated. Opinions are simply given for what they are worth. They are guesses, and one guesser should give to another guesser all the right of guessing that he claims for himself. Upon the great questions of origin, of destiny, of immortality, of punishment and reward in other worlds, every honest man must say, "I do not know." Upon these questions, this is the creed of intelligence. Nothing is harder to bear than the egotism of ignorance and the arrogance of superstition. The man who has some knowledge of the difficulties surrounding these subjects, who knows something of the limitations of the human mind, must, of necessity, be mentally modest. And this condition of mental modesty is the only one consistent with individual progress.

Above all, and over all, a Liberal paper should teach the absolute freedom of the mind, the utter independence of the individual, the perfect liberty of speech. We should remember that the world is as it must be; that the present is the necessary offspring of the past; that the future must be what the present makes it, and that the real work of the reformer, of the philanthropist, is to change the conditions of the present, to the end that the future may be better.

Secular Thought, Toronto, January 8, 1887.

SECULARISM.

SEVERAL people have asked me the meaning of this term.

Secularism is the religion of humanity; it embraces the affairs of this world; it is interested in everything that touches the welfare of a sentient being; it advocates attention to the particular planet in which we happen to live; it means that each individual counts for something; it is a declaration of intellectual independence; it means that the pew is superior to the pulpit, that those who bear the burdens shall have the profits and that they who fill the purse shall hold the strings. It is a protest against theological oppression, against ecclesiastical tyranny, against being the serf, subject or slave of any phantom, or of the priest of any phantom. It is a protest against wasting this life for the sake of one that we know not of. It proposes to let the gods take care of themselves. It is another name for common sense; that is to say, the adaptation of means to such ends as are desired and understood.

Secularism believes in building a home here, in this world. It trusts to individual effort, to energy, to intelligence, to observation and experience rather than to the unknown and the supernatural. It desires to be happy on this side of the grave.

Secularism means food and fireside, roof and raiment, reasonable work and reasonable leisure, the cultivation of the tastes, the acquisition of knowledge, the enjoyment of the arts, and it promises for the human race comfort, independence, intelligence, and above all, liberty. It means the abolition of sectarian feuds, of theological hatreds. It means the cultivation of friendship and intellectual hospitality. It means the living for ourselves and each other; for the present instead of the past, for this world rather than for another. It means the right to express your thought in spite of popes, priests, and gods. It means that impudent idleness shall no longer live upon the labor of honest men. It means the destruction of the business of those who trade in fear. It proposes to give serenity and content to the human soul. It will put out the fires of eternal pain. It is striving to do away with violence and vice, with ignorance, poverty and disease. It lives for the ever present to-day, and the ever coming to-morrow. It does not believe in praying and receiving, but in earning and deserving. It regards work as

worship, labor as prayer, and wisdom as the savior of mankind. It says to every human being, Take care of yourself so that you may be able to help others; adorn your life with the gems called good deeds; illumine your path with the sunlight called friendship and love.

Secularism is a religion, a religion that is understood. It has no mysteries, no mummeries, no priests, no ceremonies, no falsehoods, no miracles, and no persecutions. It considers the lilies of the field, and takes thought for the morrow. It says to the whole world, Work that you may eat, drink, and be clothed; work that you may enjoy; work that you may not want; work that you may give and never need.—The Independent Pulpit, Waco, Texas, 1887.

CRITICISM OF "ROBERT ELSMERE," "JOHN WARD, PREACHER," AND "AN AFRICAN FARM."

IF one wishes to know what orthodox religion really is—I mean that religion unsoftened by Infidelity, by doubt—let him read "John Ward, Preacher." This book shows exactly what the love of God will do in the heart of man. This shows what the effect of the creed of Christendom is, when absolutely believed. In this case it is the woman who is free and the man who is enslaved. In "Robert Elsmere" the man is breaking chains, while the woman prefers the old prison with its ivy-covered walls.

Why should a man allow human love to stand between his soul and the will of God—between his soul and eternal joy? Why should not the true believer tear every blossom of pity, of charity, from his heart, rather than put in peril his immortal soul?

An orthodox minister has a wife with a heart. Having a heart she cannot believe in the orthodox creed. She thinks God better than he is. She flatters the Infinite. This endangers the salvation of her soul. If she is upheld in this the souls of others may be lost. Her husband feels not only accountable for her soul, but for the souls of others that may be injured by what she says, and by what she does. He is compelled to choose between his wife and his duty, between the woman and God. He is not great enough to go with his heart. He is selfish enough to side with the administration, with power. He lives a miserable life and dies a miserable death.

The trouble with Christianity is that it has no element of compromise—it allows no room for charity so far as belief is concerned. Honesty of opinion is not even a mitigating circumstance. You are not asked to understand—you are commanded to believe. There is no common ground. The church carries no flag of truce. It does not say, Believe you must, but, You must believe. No exception can be made in favor of wife or mother, husband or child. All human relations, all human love must, if necessary, be sacrificed with perfect cheerfulness. "Let the dead bury their dead—follow thou me. Desert wife and child. Human love is nothing—nothing but a snare. You

must love God better than wife, better than child." John Ward endeavored to live in accordance with this heartless creed.

Nothing can be more repulsive than an orthodox life—than one who lives in exact accordance with the creed. It is hard to conceive of a more terrible character than John Calvin. It is somewhat difficult to understand the Puritans, who made themselves unhappy by way of recreation, and who seemed to enjoy themselves when admitting their utter worthlessness and in telling God how richly they deserved to be eternally damned. They loved to pluck from the tree of life every bud, every blossom, every leaf. The bare branches, naked to the wrath of God, excited their admiration. They wondered how birds could sing, and the existence of the rainbow led them to suspect the seriousness of the Deity. How can there be any joy if man believes that he acts and lives under an infinite responsibility, when the only business of this life is to avoid the horrors of the next? Why should the lips of men feel the ripple of laughter if there is a bare possibility that the creed of Christendom is true?

I take it for granted that all people believe as they must—that all thoughts and dreams have been naturally produced—that what we call the unnatural is simply the uncommon. All religions, poems, statues, vices and virtues, have been wrought by nature with the instrumentalities called men. No one can read "John Ward, Preacher," without hating with all his heart the creed of John Ward; and no one can read the creed of John Ward, preacher, without pitying with all his heart John Ward; and no one can read this book without feeling how much better the wife was than the husband—how much better the natural sympathies are than the religions of our day, and how much superior common sense is to what is called theology.

When we lay down the book we feel like saying: No matter whether God exists or not; if he does, he can take care of himself; if he does, he does not take care of us; and whether he lives or not we must take care of ourselves. Human love is better than any religion. It is better to love your wife than to love God. It is better to make a happy home here than to sunder hearts with creeds. This book meets the issues far more frankly, with far greater candor. This book carries out to its logical sequence the Christian creed. It shows how uncomfortable a true believer must be, and how uncomfortable he necessarily makes those with whom he comes in contact. It shows how

narrow, how hard, how unsympathetic, how selfish, how unreasonable, how unpoetic, the creed of the orthodox church is.

In "Robert Elsmere" there is plenty of evidence of reading and cultivation, of thought and talent. So in "John Ward, Preacher," there is strength, purpose, logic, power of statement, directness and courage. But "The Story of an African Farm" has but little in common with the other two.

It is a work apart—belonging to no school, and not to be judged by the ordinary rules and canons of criticism. There are some puerilities and much philosophy, trivialities and some of the profoundest reflections. In addition to this, there is a vast and wonderful sympathy.

The following upon love is beautiful and profound: "There is a love that begins in the head and goes down to the heart, and grows slowly, but it lasts till death and asks less than it gives. There is another love that blots out wisdom, that is sweet with the sweetness of life and bitter with the bitterness of death, lasting for an hour; but it is worth having lived a whole life for that hour. It is a blood-red flower, with the color of sin, but there is always the scent of a god about it."

There is no character in "Robert Elsmere" or in "John Ward, Preacher," comparable for a moment to Lyndall in the "African Farm." In her there is a splendid courage. She does not blame others for her own faults; she accepts. There is that splendid candor that you find in Juliet in "Measure for Measure." She is asked:

"Love you the man that wronged you?"

And she replies:

"Yes; as I love the woman that wronged him."

The death of this wonderful girl is extremely pathetic.

None but an artist could have written it:

"Then slowly, without a sound, the beautiful eyes closed. The dead face that the glass reflected was a thing of marvellous beauty and tranquillity. The gray dawn crept in over it and saw it lying there."

So the story of the hunter is wonderfully told. This hunter climbs above his fellows—day by day getting away from human sympathy, away from ignorance. He lost at last his fellow-men, and truth was just as far away as ever. Here he found the bones of another hunter, and as he looked upon the poor remains the wild faces said:

"So he lay down here, for he was very tired. He went to sleep forever. He put himself to sleep. Sleep is very tranquil. You are not lonely when you are asleep, neither do your hands ache nor your heart."

So the death of Waldo is most wonderfully told. The book is filled with thought, and with thoughts of the writer—nothing is borrowed. It is original, true and exceedingly sad. It has the pathos of real life. There is in it the hunger of the heart, the vast difference between the actual and the ideal:

"I like to feel that strange life beating up against me. I like to realize forms of life utterly unlike my own. When my own life feels small and I am oppressed with it, I like to crush together and see it in a picture, in an instant, a multitude of disconnected, unlike phases of human life—a mediaeval monk with his string of beads pacing the quiet orchard, and looking up from the grass at his feet to the heavy fruit trees; little Malay boys playing naked on a shining sea-beach; a Hindoo philosopher alone under his banyan tree, thinking, thinking, thinking, so that in the thought of God he may lose himself; a troop of Bacchanalians dressed in white, with crowns of vine-leaves, dancing along the Roman streets; a martyr on the night of his death looking through the narrow window to the sky and feeling that already he has the wings that shall bear him up; an epicurean discoursing at a Roman bath to a knot of his disciples on the nature of happiness; a Kafir witch-doctor seeking for herbs by moonlight, while from the huts on the hillside come the sound of dogs barking and the voices of women and children; a mother giving bread and milk to her children in little wooden basins and singing the evening song. I like to see it all; I feel it run through me—that life belongs to me; it makes my little life larger, it breaks down the narrow walls that shut me in."

The author, Olive Schreiner, has a tropic zone in her heart. She sometimes prattles like a child, then suddenly, and without warning, she speaks like a philosopher—like one who had guessed the riddle of the Sphinx. She, too, is overwhelmed with the injustice of the world—with the negligence of nature—and she finds that it is impossible to find repose for heart or brain in any Christian creed.

These books show what the people are thinking—the tendency of modern thought. Singularly enough the three are written by women. Mrs. Ward, the author of "Robert Elsmere," to say the least is not satisfied with the Episcopal Church. She feels sure that its creed is not true. At the same time,

she wants it denied in a respectful tone of voice, and she really pities people who are compelled to give up the consolation of eternal punishment, although she has thrown it away herself and the tendency of her book is to make other people do so. It is what the orthodox call "a dangerous book." It is a flank movement calculated to suggest a doubt to the unsuspecting reader, to some sheep who has strayed beyond the shepherd's voice.

It is hard for any one to read "John Ward, Preacher," without hating Puritanism with all his heart and without feeling certain that nothing is more heartless than the "scheme of salvation;" and whoever finishes "The Story of an African Farm" will feel that he has been brought in contact with a very great, passionate and tender soul. Is it possible that women, who have been the Caryatides of the church, who have borne its insults and its burdens, are to be its destroyers?

Man is a being capable of pleasure and pain. The fact that he can enjoy himself—that he can obtain good—gives him courage—courage to defend what he has, courage to try to get more. The fact that he can suffer pain sows in his mind the seeds of fear. Man is also filled with curiosity. He examines. He is astonished by the uncommon. He is forced to take an interest in things because things affect him. He is liable at every moment to be injured. Countless things attack him. He must defend himself. As a consequence his mind is at work; his experience in some degree tells him what may happen; he prepares; he defends himself from heat and cold. All the springs of action lie in the fact that he can suffer and enjoy. The savage has great confidence in his senses. He has absolute confidence in his eyes and ears. It requires many years of education and experience before he becomes satisfied that things are not always what they appear. It would be hard to convince the average barbarian that the sun does not actually rise and set—hard to convince him that the earth turns. He would rely upon appearances and would record you as insane.

As man becomes civilized, educated, he finally has more confidence in his reason than in his eyes. He no longer believes that a being called Echo exists. He has found out the theory of sound, and he then knows that the wave of air has been returned to his ear, and the idea of a being who repeats his words fades from his mind; he begins then to rely, not upon appearances, but upon demonstration, upon the result of investigation. At last he finds that he has been deceived in a thousand ways, and he also finds

that he can invent certain instruments that are far more accurate than his senses—instruments that add power to his sight, to his hearing and to the sensitiveness of his touch. Day by day he gains confidence in himself.

There is in the life of the individual, as in the life of the race, a period of credulity, when not only appearances are accepted without question, but the declarations of others. The child in the cradle or in the lap of its mother, has implicit confidence in fairy stories—believes in giants and dwarfs, in beings who can answer wishes, who create castles and temples and gardens with a thought. So the race, in its infancy, believed in such beings and in such creations. As the child grows, facts take the place of the old beliefs, and the same is true of the race.

As a rule, the attention of man is drawn first, not to his own mistakes, not to his own faults, but to the mistakes and faults of his neighbors. The same is true of a nation—it notices first the eccentricities and peculiarities of other nations. This is especially true of religious systems. Christians take it for granted that their religion is true, that there can be about that no doubt, no mistake. They begin to examine the religions of other nations. They take it for granted that all these other religions are false. They are in a frame of mind to notice contradictions, to discover mistakes and to apprehend absurdities. In examining other religions they use their common sense. They carry in the hand the lamp of probability. The miracles of other Christs, or of the founders of other religions, appear unreasonable—they find that they are not supported by evidence. Most of the stories excite their laughter. Many of the laws seem cruel, many of the ceremonies absurd. These Christians satisfy themselves that they are right in their first conjecture—that is, that other religions are all made by men. Afterward the same arguments they have used against other religions were found to be equally forcible against their own. They find that the miracles of Buddha rest upon the same kind of evidence as the miracles in the Old Testament, as the miracles in the New—that the evidence in the one case is just as weak and unreliable as in the other. They also find that it is just as easy to account for the existence of Christianity as for the existence of any other religion, and they find that the human mind in all countries has traveled substantially the same road and has arrived at substantially the same conclusions.

It may be truthfully said that Christianity by the examination of other religions laid the foundation for its own destruction. The moment it

examined another religion it became a doubter, a sceptic, an investigator. It began to call for proof. This course being pursued in the examination of Christianity itself, reached the result that had been reached as to other religions. In other words, it was impossible for Christians successfully to attack other religions without showing that their own religion could be destroyed. The fact that only a few years ago we were all provincial should be taken into consideration. A few years ago nations were unacquainted with each other—no nation had any conception of the real habits, customs, religions and ideas of any other. Each nation imagined itself to be the favored of heaven—the only one to whom God had condescended to make known his will—the only one in direct communication with angels and deities. Since the circumnavigation of the globe, since the invention of the steam engine, the discovery of electricity, the nations of the world have become acquainted with each other, and we now know that the old ideas were born of egotism, and that egotism is the child of ignorance and savagery.

Think of the egotism of the ancient Jews, who imagined that they were "the chosen people"—the only ones in whom God took the slightest interest! Imagine the egotism of the Catholic Church, claiming that it is the only church—that it is continually under the guidance of the Holy Ghost, and that the pope is infallible and occupies the place of God. Think of the egotism of the Presbyterian, who imagines that he is one of "the elect," and that billions of ages before the world was created, God, in the eternal counsel of his own good pleasure, picked out this particular Presbyterian, and at the same time determined to send billions and billions to the pit of eternal pain. Think of the egotism of the man who believes in special providence. The old philosophy, the old religion, was made in about equal parts of ignorance and egotism. This earth was the universe. The sun rose and set simply for the benefit of "God's chosen people." The moon and stars were made to beautify the night, and all the countless hosts of heaven were for no other purpose than to decorate what might be called the ceiling of the earth. It was also believed that this firmament was solid—that up there the gods lived, and that they could be influenced by the prayers and desires of men.

We have now found that the earth is only a grain of sand, a speck, an atom in an infinite universe. We now know that the sun is a million times larger than the earth, and that other planets are millions of times larger than

the sun; and when we think of these things, the old stories of the Garden of Eden and Sinai and Calvary seem infinitely out of proportion.

At last we have reached a point where we have the candor and the intelligence to examine the claims of our own religion precisely as we examine those of other countries. We have produced men and women great enough to free themselves from the prejudices born of provincialism—from the prejudices, we might almost say, of patriotism. A few people are great enough not to be controlled by the ideas of the dead—great enough to know that they are not bound by the mistakes of their ancestors—and that a man may actually love his mother without accepting her belief. We have even gone further than this, and we are now satisfied that the only way to really honor parents is to tell our best and highest thoughts. These thoughts ought to be in the mind when reading the books referred to. There are certain tendencies, certain trends of thought, and these tendencies—these trends—bear fruit; that is to say, they produce the books about which I have spoken as well as many others.

THE LIBEL LAWS

Question. Have you any suggestions to make in regard to remodeling the libel laws?

Answer. I believe that every article appearing in a paper should be signed by the writer. If it is libelous, then the writer and the publisher should both be held responsible in damages. The law on this subject, if changed, should throw greater safeguards around the reputation of the citizen. It does not seem to me that the papers have any right to complain. Probably a good many suits are brought that should not be instituted, but just think of the suits that are not brought.

Personally I have no complaint to make, as it would be very hard to find anything in any paper against me, but it has never occurred to me that the press needed any greater liberty than it now enjoys.

It might be a good thing for a paper to publish each week, a list of mistakes, if this could be done without making that edition too large. But certainly when a false and scandalous charge has been made by mistake or as the result of imposition, great pains should be taken to give the retraction at once and in a way to attract attention.

I suppose the papers are liable to be imposed upon—liable to print thousands of articles to which the attention of the editor or proprietor was not called. Still, that is not the fault of the man whose character is attacked. On the whole I think the papers have the advantage of the average citizen as the law now is.

If all articles had to be signed by the writer, I am satisfied the writer would be more careful and less liable to write anything of a libelous nature. I am willing to admit that I have given but little attention to the subject, probably for the reason that I have never been a sufferer.

It would hardly do to hold only the writer responsible. Suppose a man writes a libelous article, leaves the country, and then the article is published; is there no remedy? A suit for libel is not much of a remedy, I admit, but it is some. It is like the bayonet in war. Very few are injured by bayonets, but a good many are afraid that they may be.

—The Herald, New York, October 26, 1888.

REV. DR. NEWTON'S SERMON ON A NEW RELIGION.

I HAVE read the report of the Rev. R. Heber Newton's sermon and I am satisfied, first, that Mr. Newton simply said what he thoroughly believes to be true, and second, that some of the conclusions at which he arrives are certainly correct. I do not regard Mr. Newton as a heretic or sceptic. Every man who reads the Bible must, to a greater or less extent, think for himself. He need not tell his thoughts; he has the right to keep them to himself. But if he undertakes to tell them, then he should be absolutely honest.

The Episcopal creed is a few ages behind the thought of the world. For many, years the foremost members and clergymen in that church have been giving some new meanings to the old words and phrases. Words are no more exempt from change than other things in nature. A word at one time rough, jagged, harsh and cruel, is finally worn smooth. A word known as slang, picked out of the gutter, is cleaned, educated, becomes respectable and finally is found in the mouths of the best and purest.

We must remember that in the world of art the picture depends not alone on the painter, but on the one who sees it. So words must find some part of their meaning in the man who hears or the man who reads. In the old times the word "hell" gave to the hearer or reader the picture of a vast pit filled with an ocean of molten brimstone, in which innumerable souls were suffering the torments of fire, and where millions of devils were engaged in the cheerful occupation of increasing the torments of the damned. This was the real old orthodox view.

As man became civilized, however, the picture grew less and less vivid. Finally, some expressed their doubts about the brimstone, and others began to think that if the Devil was, and is, really an enemy of God he would not spend his time punishing sinners to please God. Why should the Devil be in partnership with his enemy, and why should he inflict torments on poor souls who were his own friends, and who shared with him the feeling of hatred toward the Almighty?

As men became more and more civilized, the idea began to dawn in their minds that an infinitely good and wise being would not have created persons, knowing that they would be eternal failures, or that they were to suffer eternal punishment, because there could be no possible object in eternal punishment—no reformation, no good to be accomplished—and certainly the sight of all this torment would not add to the joy of heaven, neither would it tend to the happiness of God.

So the more civilized adopted the idea that punishment is a consequence and not an infliction. Then they took another step and concluded that every soul, in every world, in every age, should have at least the chance of doing right. And yet persons so believing still used the word "hell," but the old meaning had dropped out.

So with regard to the atonement. At one time it was regarded as a kind of bargain in which so much blood was shed for so many souls. This was a barbaric view. Afterward, the mind developing a little, the idea got in the brain that the life of Christ was worth its moral effect. And yet these people use the word "atonement," but the bargain idea has been lost.

Take for instance the word "justice." The meaning that is given to that word depends upon the man who uses it—depends for the most part on the age in which he lives, the country in which he was born. The same is true of the word "freedom." Millions and millions of people boasted that they were the friends of freedom, while at the same time they enslaved their fellow-men. So, in the name of justice every possible crime has been perpetrated and in the name of mercy every instrument of torture has been used.

Mr. Newton realizes the fact that everything in the world changes; that creeds are influenced by civilization, by the acquisition of knowledge, by the progress of the sciences and arts—in other words, that there is a tendency in man to harmonize his knowledge and to bring about a reconciliation between what he knows and what he believes. This will be fatal to superstition, provided the man knows anything.

Mr. Newton, moreover, clearly sees that people are losing confidence in the morality of the gospel; that its foundation lacks common sense; that the doctrine of forgiveness is unscientific, and that it is impossible to feel that the innocent can rightfully suffer for the guilty, or that the suffering of innocence can in any way justify the crimes of the wicked. I think he is mistaken, however, when he says that the early church softened or

weakened the barbaric passions. I think the early church was as barbarous as any institution that ever gained a footing in this world. I do not believe that the creed of the early church, as understood, could soften anything. A church that preaches the eternity of punishment has within it the seed of all barbarism and the soil to make it grow.

So Mr. Newton is undoubtedly right when he says that the organized Christianity of to-day is not the leader in social progress. No one now goes to a synod to find a fact in science or on any subject. A man in doubt does not ask the average minister; he regards him as behind the times. He goes to the scientist, to the library. He depends upon the untrammelled thought of fearless men.

The church, for the most part, is in the control of the rich, of the respectable, of the well-to-do, of the unsympathetic, of the men who, having succeeded themselves, think that everybody ought to succeed. The spirit of caste is as well developed in the church as it is in the average club. There is the same exclusive feeling, and this feeling in the next world is to be heightened and deepened to such an extent that a large majority of our fellow-men are to be eternally excluded.

The peasants of Europe—the workingmen—do not go to the church for sympathy. If they do they come home empty, or rather empty hearted. So, in our own country the laboring classes, the mechanics, are not depending on the churches to right their wrongs. They do not expect the pulpits to increase their wages. The preachers get their money from the well-to-do—from the employeer class—and their sympathies are with those from whom they receive their wages.

The ministers attack the pleasures of the world. They are not so much scandalized by murder and forgery as by dancing and eating meat on Friday. They regard unbelief as the greatest of all sins. They are not touching the real, vital issues of the day, and their hearts do not throb in unison with the hearts of the struggling, the aspiring, the enthusiastic and the real believers in the progress of the human race.

It is all well enough to say that we should depend on Providence, but experience has taught us that while it may do no harm to say it, it will do no good to do it. We have found that man must be the Providence of man, and that one plow will do more, properly pulled and properly held, toward feeding the world, than all the prayers that ever agitated the air.

So, Mr. Newton is correct in saying, as I understand him to say, that the hope of immortality has nothing to do with orthodox religion. Neither, in my judgment, has the belief in the existence of a God anything in fact to do with real religion. The old doctrine that God wanted man to do something for him, and that he kept a watchful eye upon all the children of men; that he rewarded the virtuous and punished the wicked, is gradually fading from the mind. We know that some of the worst men have what the world calls success. We know that some of the best men lie upon the straw of failure. We know that honesty goes hungry, while larceny sits at the banquet. We know that the vicious have every physical comfort, while the virtuous are often clad in rags.

Man is beginning to find that he must take care of himself; that special providence is a mistake. This being so, the old religions must go down, and in their place man must depend upon intelligence, industry, honesty; upon the facts that he can ascertain, upon his own experience, upon his own efforts. Then religion becomes a thing of this world—a religion to put a roof above our heads, a religion that gives to every man a home, a religion that rewards virtue here.

If Mr. Newton's sermon is in accordance with the Episcopal creed, I congratulate the creed. In any event, I think Mr. Newton deserves great credit for speaking his thought. Do not understand that I imagine that he agrees with me. The most I will say is that in some things I agree with him, and probably there is a little too much truth and a little too much humanity in his remarks to please the bishop.

There is this wonderful fact, no man has ever yet been persecuted for thinking God bad. When any one has said that he believed God to be so good that he would, in his own time and way, redeem the entire human race, and that the time would come when every soul would be brought home and sit on an equality with the others around the great fireside of the universe, that man has been denounced as a poor, miserable, wicked wretch.—New York Herald, December 13, 1888.

AN ESSAY ON CHRISTMAS.

MY family and I regard Christmas as a holiday—that is to say, a day of rest and pleasure—a day to get acquainted with each other, a day to recall old memories, and for the cultivation of social amenities. The festival now called Christmas is far older than Christianity. It was known and celebrated for thousands of years before the establishment of what is known as our religion. It is a relic of sun-worship. It is the day on which the sun triumphs over the hosts of darkness, and thousands of years before the New Testament was written, thousands of years before the republic of Rome existed, before one stone of Athens was laid, before the Pharaohs ruled in Egypt, before the religion of Brahma, before Sanscrit was spoken, men and women crawled out of their caves, pushed the matted hair from their eyes, and greeted the triumph of the sun over the powers of the night.

There are many relics of this worship—among which is the shaving of the priest's head, leaving the spot shaven surrounded by hair, in imitation of the rays of the sun. There is still another relic—the ministers of our day close their eyes in prayer. When men worshiped the sun—when they looked at that luminary and implored its assistance—they shut their eyes as a matter of necessity. Afterward the priests looking at their idols glittering with gems, shut their eyes in flattery, pretending that they could not bear the effulgence of the presence; and to-day, thousands of years after the old ideas have passed away, the modern parson, without knowing the origin of the custom, closes his eyes when he prays.

There are many other relics and souvenirs of the dead worship of the sun, and this festival was adopted by Egyptians, Greeks, Romans, and by Christians. As a matter of fact, Christianity furnished new steam for an old engine, infused a new spirit into an old religion, and, as a matter of course, the old festival remained.

For all of our festivals you will find corresponding pagan festivals. For instance, take the eucharist, the communion, where persons partake of the body and blood of the Deity. This is an exceedingly old custom. Among the ancients they ate cakes made of corn, in honor of Ceres and they called these cakes the flesh of the goddess, and they drank wine in honor of

Bacchus, and called this the blood of their god. And so I could go on giving the pagan origin of every Christian ceremony and custom. The probability is that the worship of the sun was once substantially universal, and consequently the festival of Christ was equally wide spread.

As other religions have been produced, the old customs have been adopted and continued, so that the result is, this festival of Christmas is almost world-wide. It is popular because it is a holiday. Overworked people are glad of days that bring rest and recreation and allow them to meet their families and their friends. They are glad of days when they give and receive gifts—evidences of friendship, of remembrance and love. It is popular because it is really human, and because it is interwoven with our customs, habits, literature, and thought.

For my part I am willing to have two or three a year—the more holidays the better. Many people have an idea that I am opposed to Sunday. I am perfectly willing to have two a week. All I insist on is that these days shall be for the benefit of the people, and that they shall be kept not in a way to make folks miserable or sad or hungry, but in a way to make people happy, and to add a little to the joy of life. Of course, I am in favor of everybody keeping holidays to suit himself, provided he does not interfere with others, and I am perfectly willing that everybody should go to church on that day, provided he is willing that I should go somewhere else.—The Tribune, New York, December, 1889.

HAS FREETHOUGHT A CONSTRUCTIVE SIDE?

THE object of the Freethinker is to ascertain the truth—the conditions of well-being—to the end that this life will be made of value. This is the affirmative, positive, and constructive side.

Without liberty there is no such thing as real happiness. There may be the contentment of the slave—of one who is glad that he has passed the day without a beating—one who is happy because he has had enough to eat—but the highest possible idea of happiness is freedom.

All religious systems enslave the mind. Certain things are demanded—certain things must be believed—certain things must be done—and the man who becomes the subject or servant of this superstition must give up all idea of individuality or hope of intellectual growth and progress.

The religionist informs us that there is somewhere in the universe an orthodox God, who is endeavoring to govern the world, and who for this purpose resorts to famine and flood, to earthquake and pestilence—and who, as a last resort, gets up a revival of religion. That is called "affirmative and positive."

The man of sense knows that no such God exists, and thereupon he affirms that the orthodox doctrine is infinitely absurd. This is called a "negation." But to my mind it is an affirmation, and is a part of the positive side of Freethought.

A man who compels this Deity to abdicate his throne renders a vast and splendid service to the human race.

As long as men believe in tyranny in heaven they will practice tyranny on earth. Most people are exceedingly imitative, and nothing is so gratifying to the average orthodox man as to be like his God.

These same Christians tell us that nearly everybody is to be punished forever, while a few fortunate Christians who were elected and selected billions of ages before the world was created, are to be happy. This they call the "tidings of great joy." The Freethinker denounces this doctrine as

infamous beyond the power of words to express. He says, and says clearly, that a God who would create a human being, knowing that that being was to be eternally miserable, must of necessity be an infinite fiend.

The free man, into whose brain the serpent of superstition has not crept, knows that the dogma of eternal pain is an infinite falsehood. He also knows—if the dogma be true—that every decent human being should hate, with every drop of his blood, the creator of the universe. He also knows—if he knows anything—that no decent human being could be happy in heaven with a majority of the human race in hell. He knows that a mother could not enjoy the society of Christ with her children in perdition; and if she could, he knows that such a mother is simply a wild beast. The free man knows that the angelic hosts, under such circumstances, could not enjoy themselves unless they had the hearts of boa-constrictors.

It will thus be seen that there is an affirmative, a positive, a constructive side to Freethought.

What is the positive side?

First: A denial of all orthodox falsehoods—an exposure of all superstitions. This is simply clearing the ground, to the end that seeds of value may be planted. It is necessary, first, to fell the trees, to destroy the poisonous vines, to drive out the wild beasts. Then comes another phase—another kind of work. The Freethinker knows that the universe is natural—that there is no room, even in infinite space, for the miraculous, for the impossible. The Freethinker knows, or feels that he knows, that there is no sovereign of the universe, who, like some petty king or tyrant, delights in showing his authority. He feels that all in the universe are conditioned beings, and that only those are happy who live in accordance with the conditions of happiness, and this fact or truth or philosophy embraces all men and all gods—if there be gods.

The positive side is this: That every good action has good consequences—that it bears good fruit forever—and that every bad action has evil consequences, and bears bad fruit. The Freethinker also asserts that every man must bear the consequences of his actions—that he must reap what he sows, and that he cannot be justified by the goodness of another, or damned for the wickedness of another.

There is still another side, and that is this: The Freethinker knows that all the priests and cardinals and popes know nothing of the supernatural—they

know nothing about gods or angels or heavens or hells—nothing about inspired books or Holy Ghosts, or incarnations or atonements. He knows that all this is superstition pure and simple. He knows also that these people—from pope to priest, from bishop to parson, do not the slightest good in this world—that they live upon the labor of others—that they earn nothing themselves—that they contribute nothing toward the happiness, or well-being, or the wealth of mankind. He knows that they trade and traffic in ignorance and fear, that they make merchandise of hope and grief—and he also knows that in every religion the priest insists on five things—First: There is a God. Second: He has made known his will. Third: He has selected me to explain this message. Fourth: We will now take up a collection; and Fifth: Those who fail to subscribe will certainly be damned.

The positive side of Freethought is to find out the truth—the facts of nature—to the end that we may take advantage of those truths, of those facts—for the purpose of feeding and clothing and educating mankind.

In the first place, we wish to find that which will lengthen human life—that which will prevent or kill disease—that which will do away with pain—that which will preserve or give us health.

We also want to go in partnership with these forces of nature, to the end that we may be well fed and clothed—that we may have good houses that protect us from heat and cold. And beyond this—beyond these simple necessities—there are still wants and aspirations, and free-thought will give us the highest possible in art—the most wonderful and thrilling in music—the greatest paintings, the most marvelous sculpture—in other words, free-thought will develop the brain to its utmost capacity. Freethought is the mother of art and science, of morality and happiness.

It is charged by the worshipers of the Jewish myth, that we destroy, that we do not build.

What have we destroyed? We have destroyed the idea that a monster created and governs this world—the declaration that a God of infinite mercy and compassion upheld slavery and polygamy and commanded the destruction of men, women, and babes. We have destroyed the idea that this monster created a few of his children for eternal joy, and the vast majority for everlasting pain. We have destroyed the infinite absurdity that salvation depends upon belief, that investigation is dangerous, and that the torch of reason lights only the way to hell. We have taken a grinning devil from

every grave, and the curse from death—and in the place of these dogmas, of these infamies, we have put that which is natural and that which commends itself to the heart and brain.

Instead of loving God, we love each other. Instead of the religion of the sky—the religion of this world—the religion of the family—the love of husband for wife, of wife for husband—the love of all for children. So that now the real religion is: Let us live for each other; let us live for this world, without regard for the past and without fear for the future. Let us use our faculties and our powers for the benefit of ourselves and others, knowing that if there be another world, the same philosophy that gives us joy here will make us happy there.

Nothing can be more absurd than the idea that we can do something to please or displease an infinite Being. If our thoughts and actions can lessen or increase the happiness of God, then to that extent God is the slave and victim of man.

The energies of the world have been wasted in the service of a phantom—millions of priests have lived on the industry of others and no effort has been spared to prevent the intellectual freedom of mankind.

We know, if we know anything, that supernatural religion has no foundation except falsehood and mistake. To expose these falsehoods—to correct these mistakes—to build the fabric of civilization on the foundation of demonstrated truth—is the task of the Freethinker. To destroy guideboards that point in the wrong direction—to correct charts that lure to reef and wreck—to drive the fiend of fear from the mind—to protect the cradle from the serpent of superstition and dispel the darkness of ignorance with the sun of science—is the task of the Freethinker.

What constructive work has been done by the church? Christianity gave us a flat world a few thousand years ago—a heaven above it where Jehovah dwells and a hell below it where most people will dwell. Christianity took the ground that a certain belief was necessary to salvation and that this belief was far better and of more importance than the practice of all the virtues. It became the enemy of investigation—the bitter and relentless foe of reason and the liberty of thought. It committed every crime and practiced every cruelty in the propagation of its creed. It drew the sword against the freedom of the world. It established schools and universities for the preservation of ignorance. It claimed to have within its keeping the source

and standard of all truth. If the church had succeeded the sciences could not have existed.

Freethought has given us all we have of value. It has been the great constructive force. It is the only discoverer, and every science is its child.—
The Truth Seeker, New York 1890.

THE IMPROVED MAN.

THE Improved Man will be in favor of universal liberty, that is to say, he will be opposed to all kings and nobles, to all privileged classes. He will give to all others the rights he claims for himself. He will neither bow nor cringe, nor accept bowing and cringing from others. He will be neither master nor slave, neither prince nor peasant—simply man.

He will be the enemy of all caste, no matter whether its foundation be wealth, title or power, and of him it will be said: "Blessed is that man who is afraid of no man and of whom no man is afraid."

The Improved Man will be in favor of universal education. He will believe it the duty of every person to shed all the light he can, to the end that no child may be reared in darkness. By education he will mean the gaining of useful knowledge, the development of the mind along the natural paths that lead to human happiness.

He will not waste his time in ascertaining the foolish theories of extinct peoples or in studying the dead languages for the sake of understanding the theologies of ignorance and fear, but he will turn his attention to the affairs of life, and will do his utmost to see to it that every child has an opportunity to learn the demonstrated facts of science, the true history of the world, the great principles of right and wrong applicable to human conduct—the things necessary to the preservation of the individual and of the state, and such arts and industries as are essential to the preservation of all.

He will also endeavor to develop the mind in the direction of the beautiful—of the highest art—so that the palace in which the mind dwells may be enriched and rendered beautiful, to the end that these stones, called facts, may be changed into statues.

The Improved Man will believe only in the religion of this world. He will have nothing to do with the miraculous and supernatural. He will find that there is no room in the universe for these things. He will know that happiness is the only good, and that everything that tends to the happiness of sentient beings is good, and that to do the things—and no other—that add to the happiness of man is to practice the highest possible religion. His

motto will be: "Sufficient unto each world is the evil thereof." He will know that each man should be his own priest, and that the brain is the real cathedral. He will know that in the realm of mind there is no authority—that majorities in this mental world can settle nothing—that each soul is the sovereign of its own world, and that it cannot abdicate without degrading itself. He will not bow to numbers or force; to antiquity or custom. He, standing under the flag of nature, under the blue and stars, will decide for himself. He will not endeavor by prayers and supplication, by fastings and genuflections, to change the mind of the "Infinite" or alter the course of nature, neither will he employ others to do those things in his place. He will have no confidence in the religion of idleness, and will give no part of what he earns to support parson or priest, archbishop or pope. He will know that honest labor is the highest form of prayer. He will spend no time in ringing bells or swinging censers, or in chanting the litanies of barbarism, but he will appreciate all that is artistic—that is beautiful—that tends to refine and ennoble the human race. He will not live a life of fear. He will stand in awe neither of man nor ghosts. He will enjoy not only the sunshine of life, but will bear with fortitude the darkest days. He will have no fear of death. About the grave, there will be no terrors, and his life will end as serenely as the sun rises.

The Improved Man will be satisfied that the supernatural does not exist—that behind every fact, every thought and dream is an efficient cause. He will know that every human action is a necessary product, and he will also know that men cannot be reformed by punishment, by degradation or by revenge. He will regard those who violate the laws of nature and the laws of States as victims of conditions, of circumstances, and he will do what he can for the wellbeing of his fellow-men.

The Improved Man will not give his life to the accumulation of wealth. He will find no happiness in exciting the envy of his neighbors. He will not care to live in a palace while others who are good, industrious and kind are compelled to huddle in huts and dens. He will know that great wealth is a great burden, and that to accumulate beyond the actual needs of a reasonable human being is to increase not wealth, but responsibility and trouble.

The Improved Man will find his greatest joy in the happiness of others and he will know that the home is the real temple. He will believe in the

democracy of the fireside, and will reap his greatest reward in being loved by those whose lives he has enriched.

The Improved Man will be self-poised, independent, candid and free. He will be a scientist. He will observe, investigate, experiment and demonstrate. He will use his sense and his senses. He will keep his mind open as the day to the hints and suggestions of nature. He will always be a student, a learner and a listener—a believer in intellectual hospitality. In the world of his brain there will be continuous summer, perpetual seed-time and harvest. Facts will be the foundation of his faith. In one hand he will carry the torch of truth, and with the other raise the fallen.—The World, New York, February 28, 1890.

EIGHT HOURS MUST COME.

I HARDLY know enough on the subject to give an opinion as to the time when eight hours are to become a day's work, but I am perfectly satisfied that eight hours will become a labor day.

The working people should be protected by law; if they are not, the capitalists will require just as many hours as human nature can bear. We have seen here in America street-car drivers working sixteen and seventeen hours a day. It was necessary to have a strike in order to get to fourteen, another strike to get to twelve, and nobody could blame them for keeping on striking till they get to eight hours.

For a man to get up before daylight and work till after dark, life is of no particular importance. He simply earns enough one day to prepare himself to work another. His whole life is spent in want and toil, and such a life is without value.

Of course, I cannot say that the present effort is going to succeed—all I can say is that I hope it will. I cannot see how any man who does nothing—who lives in idleness—can insist that others should work ten or twelve hours a day. Neither can I see how a man who lives on the luxuries of life can find it in his heart, or in his stomach, to say that the poor ought to be satisfied with the crusts and crumbs they get.

I believe there is to be a revolution in the relations between labor and capital. The laboring people a few generations ago were not very intellectual. There were no schoolhouses, no teachers except the church, and the church taught obedience and faith—told the poor people that although they had a hard time here, working for nothing, they would be paid in Paradise with a large interest. Now the working people are more intelligent—they are better educated—they read and write. In order to carry on the works of the present, many of them are machinists of the highest order. They must be reasoners. Every kind of mechanism insists upon logic. The working people are reasoners—their hands and heads are in partnership. They know a great deal more than the capitalists. It takes a thousand times the brain to make a locomotive that it does to run a store or

a bank. Think of the intelligence in a steamship and in all the thousand machines and devices that are now working for the world. These working people read. They meet together—they discuss. They are becoming more and more independent in thought. They do not believe all they hear. They may take their hats off their heads to the priests, but they keep their brains in their heads for themselves.

The free school in this country has tended to put men on an equality, and the mechanic understands his side of the case, and is able to express his views. Under these circumstances there must be a revolution. That is to say, the relations between capital and labor must be changed, and the time must come when they who do the work—they who make the money—will insist on having some of the profits.

I do not expect this remedy to come entirely from the Government, or from Government interference. I think the Government can aid in passing good and wholesome laws—laws fixing the length of a labor day; laws preventing the employment of children; laws for the safety and security of workingmen in mines and other dangerous places. But the laboring people must rely upon themselves; on their intelligence, and especially on their political power. They are in the majority in this country. They can if they wish—if they will stand together—elect Congresses and Senates, Presidents and Judges. They have it in their power to administer the Government of the United States.

The laboring man, however, ought to remember that all who labor are their brothers, and that all women who labor are their sisters, and whenever one class of workingmen or working women is oppressed all other laborers ought to stand by the oppressed class. Probably the worst paid people in the world are the working-women. Think of the sewing women in this city—and yet we call ourselves civilized! I would like to see all working people unite for the purpose of demanding justice, not only for men, but for women.

All my sympathies are on the side of those who toil—of those who produce the real wealth of the world—of those who carry the burdens of mankind.

Any man who wishes to force his brother to work—to toil—more than eight hours a day is not a civilized man.

My hope for the workingman has its foundation in the fact that he is growing more and more intelligent. I have also the same hope for the capitalist. The time must come when the capitalist will clearly and plainly see that his interests are identical with those of the laboring man. He will finally become intelligent enough to know that his prosperity depends on the prosperity of those who labor. When both become intelligent the matter will be settled.

Neither labor nor capital should resort to force.—The Morning Journal, April 27, 1890.

THE JEWS.

WHEN I was a child, I was taught that the Jews were an exceedingly hard-hearted and cruel people, and that they were so destitute of the finer feelings that they had a little while before that time crucified the only perfect man who had appeared upon the earth; that this perfect man was also perfect God, and that the Jews had really stained their hands with the blood of the Infinite.

When I got somewhat older, I found that nearly all people had been guilty of substantially the same crime—that is, that they had destroyed the progressive and the thoughtful; that religionists had in all ages been cruel; that the chief priests of all people had incited the mob, to the end that heretics—that is to say, philosophers—that is to say, men who knew that the chief priests were hypocrites—might be destroyed.

I also found that Christians had committed more of these crimes than all other religionists put together.

I also became acquainted with a large number of Jewish people, and I found them like other people, except that, as a rule, they were more industrious, more temperate, had fewer vagrants among them, no beggars, very few criminals; and in addition to all this, I found that they were intelligent, kind to their wives and children, and that, as a rule, they kept their contracts and paid their debts.

The prejudice was created almost entirely by religious, or rather irreligious, instruction. All children in Christian countries are taught that all the Jews are to be eternally damned who die in the faith of Abraham, Isaac and Jacob; that it is not enough to believe in the inspiration of the Old Testament—not enough to obey the Ten Commandments—not enough to believe the miracles performed in the days of the prophets, but that every Jew must accept the New Testament and must be a believer in Christianity—that is to say, he must be regenerated—or he will simply be eternal kindling wood.

The church has taught, and still teaches, that every Jew is an outcast; that he is to-day busily fulfilling prophecy; that he is a wandering witness in

favor of "the glad tidings of great joy;" that Jehovah is seeing to it that the Jews shall not exist as a nation—that they shall have no abiding place, but that they shall remain scattered, to the end that the inspiration of the Bible may be substantiated.

Dr. John Hall of this city, a few years ago, when the Jewish people were being persecuted in Russia, took the ground that it was all fulfillment of prophecy, and that whenever a Jewish maiden was stabbed to death, God put a tongue in every wound for the purpose of declaring the truth of the Old Testament.

Just as long as Christians take these positions, of course they will do what they can to assist in the fulfillment of what they call prophecy, and they will do their utmost to keep the Jewish people in a state of exile, and then point to that fact as one of the corner-stones of Christianity.

My opinion is that in the early days of Christianity all sensible Jews were witnesses against the faith, and in this way excited the hostility of the orthodox. Every sensible Jew knew that no miracles had been performed in Jerusalem. They all knew that the sun had not been darkened, that the graves had not given up their dead, that the veil of the temple had not been rent in twain—and they told what they knew. They were then denounced as the most infamous of human beings, and this hatred has pursued them from that day to this.

There is no other chapter in history so infamous, so bloody, so cruel, so relentless, as the chapter in which is told the manner in which Christians—those who love their enemies—have treated the Jewish people. This story is enough to bring the blush of shame to the cheek, and the words of indignation to the lips of every honest man.

Nothing can be more unjust than to generalize about nationalities, and to speak of a race as worthless or vicious, simply because you have met an individual who treated you unjustly. There are good people and bad people in all races, and the individual is not responsible for the crimes of the nation, or the nation responsible for the actions of the few. Good men and honest men are found in every faith, and they are not honest or dishonest because they are Jews or Gentiles, but for entirely different reasons.

Some of the best people I have ever known are Jews, and some of the worst people I have known are Christians. The Christians were not bad simply because they were Christians, neither were the Jews good because

they were Jews. A man is far above these badges of faith and race. Good Jews are precisely the same as good Christians, and bad Christians are wonderfully like bad Jews.

Personally, I have either no prejudices about religion, or I have equal prejudice against all religions. The consequence is that I judge of people not by their creeds, not by their rites, not by their mummeries, but by their actions.

In the first place, at the bottom of this prejudice lies the coiled serpent of superstition. In other words, it is a religious question. It seems impossible for the people of one religion to like the people believing in another religion. They have different gods, different heavens, and a great variety of hells. For the followers of one god to treat the followers of another god decently is a kind of treason. In order to be really true to his god, each follower must not only hate all other gods, but the followers of all other gods.

The Jewish people should outgrow their own superstitions. It is time for them to throw away the idea of inspiration. The intelligent Jew of to-day knows that the Old Testament was written by barbarians, and he knows that the rites and ceremonies are simply absurd. He knows that no intelligent man should care anything about Abraham, Isaac and Jacob, three dead barbarians. In other words, the Jewish people should leave their superstition and rely on science and philosophy.

The Christian should do the same. He, by this time, should know that his religion is a mistake, that his creed has no foundation in the eternal verities. The Christian certainly should give up the hopeless task of converting the Jewish people, and the Jews should give up the useless task of converting the Christians. There is no propriety in swapping superstitions—neither party can afford to give any boot.

When the Christian throws away his cruel and heartless superstitions, and when the Jew throws away his, then they can meet as man to man.

In the meantime, the world will go on in its blundering way, and I shall know and feel that everybody does as he must, and that the Christian, to the extent that he is prejudiced, is prejudiced by reason of his ignorance, and that consequently the great lever with which to raise all mankind into the sunshine of philosophy, is intelligence.

CRUMBLING CREEDS.

THERE is a desire in each brain to harmonize the knowledge that it has. If a man knows, or thinks he knows, a few facts, he will naturally use those facts for the purpose of determining the accuracy of his opinions on other subjects. This is simply an effort to establish or prove the unknown by the known—a process that is constantly going on in the minds of all intelligent people.

It is natural for a man not governed by fear, to use what he knows in one department of human inquiry, in every other department that he investigates. The average of intelligence has in the last few years greatly increased. Man may have as much credulity as he ever had, on some subjects, but certainly on the old subjects he has less. There is not as great difference to-day between the members of the learned professions and the common people. Man is governed less and less by authority. He cares but little for the conclusions of the universities. He does not feel bound by the actions of synods or ecumenical councils—neither does he bow to the decisions of the highest tribunals, unless the reasons given for the decision satisfy his intellect. One reason for this is, that the so-called "learned" do not agree among themselves—that the universities dispute each other—that the synod attacks the ecumenical council—that the parson snaps his fingers at the priest, and even the Protestant bishop holds the pope in contempt. If the learned can thus disagree, there is no reason why the common people should hold to one opinion. They are at least called upon to decide as between the universities or synods; and in order to decide, they must examine both sides, and having examined both sides, they generally have an opinion of their own.

There was a time when the average man knew nothing of medicine—he simply opened his mouth and took the dose. If he died, it was simply a dispensation of Providence—if he got well, it was a triumph of science. Now this average man not only asks the doctor what is the matter with him—not only asks what medicine will be good for him,—but insists on knowing the philosophy of the cure—asks the doctor why he gives it—what result he expects—and, as a rule, has a judgment of his own.

So in law. The average business man has an exceedingly good idea of the law affecting his business. There is nothing now mysterious about what goes on in courts or in the decisions of judges—they are published in every direction, and all intelligent people who happen to read these opinions have their ideas as to whether the opinions are right or wrong. They are no longer the victims of doctors, or of lawyers, or of courts.

The same is true in the world of art and literature. The average man has an opinion of his own. He is no longer a parrot repeating what somebody else says. He not only has opinions, but he has the courage to express them. In literature the old models fail to satisfy him. He has the courage to say that Milton is tiresome—that Dante is prolix—that they deal with subjects having no human interest. He laughs at Young's "Night Thoughts" and Pollok's "Course of Time"—knowing that both are filled with hypocrisies and absurdities. He no longer falls upon his knees before the mechanical poetry of Mr. Pope. He chooses—and stands by his own opinion. I do not mean that he is entirely independent, but that he is going in that direction.

The same is true of pictures. He prefers the modern to the old masters. He prefers Corot to Raphael. He gets more real pleasure from Millet and Troyon than from all the pictures of all the saints and donkeys of the Middle Ages.

In other words, the days of authority are passing away.

The same is true in music. The old no longer satisfies, and there is a breadth, color, wealth, in the new that makes the old poor and barren in comparison.

To a far greater extent this advance, this individual independence, is seen in the religious world. The religion of our day—that is to say, the creeds—at the time they were made, were in perfect harmony with the knowledge, or rather with the ignorance, of man in all other departments of human inquiry. All orthodox creeds agreed with the sciences of their day—with the astronomy and geology and biology and political conceptions of the Middle Ages. These creeds were declared to be the absolute and eternal truth. They could not be changed without abandoning the claim that made them authority. The priests, through a kind of unconscious self-defence, clung to every word. They denied the truth of all discovery. They measured every assertion in every other department by their creeds. At last the facts against them became so numerous—their congregations became so intelligent—

that it was necessary to give new meanings to the old words. The cruel was softened—the absurd was partially explained, and they kept these old words, although the original meanings had fallen out. They became empty purses, but they retained them still.

Slowly but surely came the time when this course could not longer be pursued. The words must be thrown away—the creeds must be changed—they were no longer believed—only occasionally were they preached. The ministers became a little ashamed—they began to apologize. Apology is the prelude to retreat.

Of all the creeds, the Presbyterian, the old Congregational, were the most explicit, and for that reason the most absurd. When these creeds were written, those who wrote them had perfect confidence in their truth. They did not shrink because of their cruelty. They cared nothing for what others called absurdity. They failed not to declare what they believed to be "the whole counsel of God."

At that time, cruel punishments were inflicted by all governments. People were torn asunder, mutilated, burned. Every atrocity was perpetrated in the name of justice, and the limit of pain was the limit of endurance. These people imagined that God would do as they would do. If they had had it in their power to keep the victim alive for years in the flames, they would most cheerfully have supplied the fagots. They believed that God could keep the victim alive forever, and that therefore his punishment would be eternal. As man becomes civilized he becomes merciful, and the time came when civilized Presbyterians and Congregationalists read their own creeds with horror.

I am not saying that the Presbyterian creed is any worse than the Catholic. It is only a little more specific. Neither am I saying that it is more horrible than the Episcopal. It is not. All orthodox creeds are alike infamous. All of them have good things, and all of them have bad things. You will find in every creed the blossom of mercy and the oak of justice, but under the one and around the other are coiled the serpents of infinite cruelty.

The time came when orthodox Christians began dimly to perceive that God ought at least to be as good as they were. They felt that they were incapable of inflicting eternal pain, and they began to doubt the propriety of

saying that God would do that which a civilized Christian would be incapable of.

We have improved in all directions for the same reasons. We have better laws now because we have a better sense of justice. We are believing more and more in the government of the people. Consequently we are believing more and more in the education of the people, and from that naturally results greater individuality and a greater desire to hear the honest opinions of all.

The moment the expression of opinion is allowed in any department, progress begins. We are using our knowledge in every direction. The tendency is to test all opinions by the facts we know. All claims are put in the crucible of investigation—the object being to separate the true from the false. He who objects to having his opinions thus tested is regarded as a bigot.

If the professors of all the sciences had claimed that the knowledge they had was given by inspiration—that it was absolutely true, and that there was no necessity of examining further, not only, but that it was a kind of blasphemy to doubt—all the sciences would have remained as stationary as religion has. Just to the extent that the Bible was appealed to in matters of science, science was retarded; and just to the extent that science has been appealed to in matters of religion, religion has advanced—so that now the object of intelligent religionists is to adopt a creed that will bear the test and criticism of science.

Another thing may be alluded to in this connection. All the countries of the world are now, and have been for years, open to us. The ideas of other people—their theories, their religions—are now known; and we have ascertained that the religions of all people have exactly the same foundation as our own—that they all arose in the same way, were substantiated in the same way, were maintained by the same means, having precisely the same objects in view.

For many years, the learned of the religious world were examining the religions of other countries, and in that work they established certain rules of criticism—pursued certain lines of argument—by which they overturned the claims of those religions to supernatural origin. After this had been successfully done, others, using the same methods on our religion, pursuing the same line of argument, succeeded in overturning ours. We have found

that all miracles rest on the same basis—that all wonders were born of substantially the same ignorance and the same fear.

The intelligence of the world is far better distributed than ever before. The historical outlines of all countries are well known. The arguments for and against all systems of religion are generally understood. The average of intelligence is far higher than ever before. All discoveries become almost immediately the property of the whole civilized world, and all thoughts are distributed by the telegraph and press with such rapidity, that provincialism is almost unknown. The egotism of ignorance and seclusion is passing away. The prejudice of race and religion is growing feebler, and everywhere, to a greater extent than ever before, the light is welcome.

These are a few of the reasons why creeds are crumbling, and why such a change has taken place in the religious world.

Only a few years ago the pulpit was an intellectual power. The pews listened with wonder, and accepted without question. There was something sacred about the preacher. He was different from other mortals. He had bread to eat which they knew not of. He was oracular, solemn, dignified, stupid.

The pulpit has lost its position. It speaks no longer with authority. The pews determine what shall be preached. They pay only for that which they wish to buy—for that which they wish to hear. Of course in every church there is an advance guard and a conservative party, and nearly every minister is obliged to preach a little for both. He now and then says a radical thing for one part of his congregation, and takes it mostly back on the next Sabbath, for the sake of the others. Most of them ride two horses, and their time is taken up in urging one forward and in holding the other back.

The great reason why the orthodox creeds have become unpopular is, that all teach the dogma of eternal pain.

In old times, when men were nearly wild beasts, it was natural enough for them to suppose that God would do as they would do in his place, and so they attributed to this God infinite cruelty, infinite revenge. This revenge, this cruelty, wore the mask of justice. They took the ground that God, having made man, had the right to do with him as he pleased. At that time they were not civilized to the extent of seeing that a God would not have the right to make a failure, and that a being of infinite wisdom and power

would be under obligation to do the right, and that he would have no right to create any being whose life would not be a blessing. The very fact that he made man, would put him under obligation to see to it that life should not be a curse.

The doctrine of eternal punishment is in perfect harmony with the savagery of the men who made the orthodox creeds. It is in harmony with torture, with flaying alive and with burnings. The men who burned their fellow-men for a moment, believed that God would burn his enemies forever.

No civilized men ever believed in this dogma. The belief in eternal punishment has driven millions from the church. It was easy enough for people to imagine that the children of others had gone to hell; that foreigners had been doomed to eternal pain; but when it was brought home—when fathers and mothers bent above their dead who had died in their sins—when wives shed their tears on the faces of husbands who had been born but once—love suggested doubts and love fought the dogma of eternal revenge.

This doctrine is as cruel as the hunger of hyenas, and is infamous beyond the power of any language to express—yet a creed with this doctrine has been called "the glad tidings of great joy"—a consolation to the weeping world. It is a source of great pleasure to me to know that all intelligent people are ashamed to admit that they believe it—that no intelligent clergyman now preaches it, except with a preface to the effect that it is probably untrue.

I have been blamed for taking this consolation from the world—for putting out, or trying to put out, the fires of hell; and many orthodox people have wondered how I could be so wicked as to deprive the world of this hope.

The church clung to the doctrine because it seemed a necessary excuse for the existence of the church. The ministers said: "No hell, no atonement; no atonement, no fall of man; no fall of man, no inspired book; no inspired book, no preachers; no preachers, no salary; no hell, no missionaries; no sulphur, no salvation."

At last, the people are becoming enlightened enough to ask for a better philosophy. The doctrine of hell is now only for the poor, the ragged, the ignorant. Well-dressed people won't have it. Nobody goes to hell in a

carriage—they foot it. Hell is for strangers and tramps. No soul leaves a brown-stone front for hell—they start from the tenements, from jails and reformatories. In other words, hell is for the poor. It is easier for a camel to go through the eye of a needle than for a poor man to get into heaven, or for a rich man to get into hell. The ministers stand by their supporters. Their salaries are paid by the well-to-do, and they can hardly afford to send the subscribers to hell. Every creed in which is the dogma of eternal pain is doomed. Every church teaching the infinite lie must fall, and the sooner the better.—The Twentieth Century, N, Y., April 21,1890.

OUR SCHOOLS.

I BELIEVE that education is the only lever capable of raising mankind. If we wish to make the future of the Republic glorious we must educate the children of the present. The greatest blessing conferred by our Government is the free school. In importance it rises above everything else that the Government does. In its influence it is far greater.

The schoolhouse is infinitely more important than the church, and if all the money wasted in the building of churches could be devoted to education we should become a civilized people. Of course, to the extent that churches disseminate thought they are good, and to the extent that they provoke discussion they are of value, but the real object should be to become acquainted with nature—with the conditions of happiness—to the end that man may take advantage of the forces of nature. I believe in the schools for manual training, and that every child should be taught not only to think, but to do, and that the hand should be educated with the brain. The money expended on schools is the best investment made by the Government.

The schoolhouses in New York are not sufficient. Many of them are small, dark, unventilated, and unhealthy. They should be the finest public buildings in the city. It would be far better for the Episcopalians to build a university than a cathedral. Attached to all these schoolhouses there should be grounds for the children—places for air and sunlight. They should be given the best. They are the hope of the Republic and, in my judgment, of the world.

We need far more schoolhouses than we have, and while money is being wasted in a thousand directions, thousands of children are left to be educated in the gutter. It is far cheaper to build schoolhouses than prisons, and it is much better to have scholars than convicts.

The Kindergarten system should be adopted, especially for the young; attending school is then a pleasure—the children do not run away from school, but to school. We should educate the children not simply in mind, but educate their eyes and hands, and they should be taught something that

will be of use, that will help them to make a living, that will give them independence, confidence—that is to say, character.

The cost of the schools is very little, and the cost of land—giving the children, as I said before, air and light—would amount to nothing.

There is another thing: Teachers are poorly paid. Only the best should be employed, and they should be well paid. Men and women of the highest character should have charge of the children, because there is a vast deal of education in association, and it is of the utmost importance that the children should associate with real gentlemen—that is to say, with real men; with real ladies—that is to say, with real women.

Every schoolhouse should be inviting, clean, well ventilated, attractive. The surroundings should be delightful. Children forced to school, learn but little. The schoolhouse should not be a prison or the teachers turnkeys.

I believe that the common school is the bread of life, and all should be commanded to eat of the fruit of the tree of knowledge. It would have been far better to have expelled those who refused to eat.

The greatest danger to the Republic is ignorance. Intelligence is the foundation of free government.—The World, New York, September 7, 1800.

VIVISECTION.

**A letter written to Philip G. Peabody. May 27, 1800.*

VIVISECTION is the Inquisition—the Hell—of Science.

All the cruelty which the human—or rather the inhuman—heart is capable of inflicting, is in this one word. Below this there is no depth. This word lies like a coiled serpent at the bottom of the abyss.

We can excuse, in part, the crimes of passion. We take into consideration the fact that man is liable to be caught by the whirlwind, and that from a brain on fire the soul rushes to a crime. But what excuse can ingenuity form for a man who deliberately—with an unaccelerated pulse—with the calmness of John Calvin at the murder of Servetus—seeks, with curious and cunning knives, in the living, quivering flesh of a dog, for all the throbbing nerves of pain? The wretches who commit these infamous crimes pretend that they are working for the good of man; that they are actuated by philanthropy; and that their pity for the sufferings of the human race drives out all pity for the animals they slowly torture to death. But those who are incapable of pitying animals are, as a matter of fact, incapable of pitying men. A physician who would cut a living rabbit in pieces—laying bare the nerves, denuding them with knives, pulling them out with forceps—would not hesitate to try experiments with men and women for the gratification of his curiosity.

To settle some theory, he would trifle with the life of any patient in his power. By the same reasoning he will justify the vivisection of animals and patients. He will say that it is better that a few animals should suffer than that one human being should die; and that it is far better that one patient should die, if through the sacrifice of that one, several may be saved.

Brain without heart is far more dangerous than heart without brain.

Have these scientific assassins discovered anything of value? They may have settled some disputes as to the action of some organ, but have they added to the useful knowledge of the race?

It is not necessary for a man to be a specialist in order to have and express his opinion as to the right or wrong of vivisection. It is not necessary to be a scientist or a naturalist to detest cruelty and to love mercy. Above all the discoveries of the thinkers, above all the inventions of the ingenious, above all the victories won on fields of intellectual conflict, rise human sympathy and a sense of justice.

I know that good for the human race can never be accomplished by torture. I also know that all that has been ascertained by vivisection could have been done by the dissection of the dead. I know that all the torture has been useless. All the agony inflicted has simply hardened the hearts of the criminals, without enlightening their minds.

It may be that the human race might be physically improved if all the sickly and deformed babes were killed, and if all the paupers, liars, drunkards, thieves, villains, and vivisectionists were murdered. All this might, in a few ages, result in the production of a generation of physically perfect men and women; but what would such beings be worth,—men and women healthy and heartless, muscular and cruel—that is to say, intelligent wild beasts?

Never can I be the friend of one who vivisects his fellow-creatures. I do not wish to touch his hand.

When the angel of pity is driven from the heart; when the fountain of tears is dry,—the soul becomes a serpent crawling in the dust of a desert.

THE CENSUS ENUMERATOR'S OFFICIAL CATECHISM.

I SUPPOSE the Government has a right to ask all of these questions, and any more it pleases, but undoubtedly the citizen would have the right to refuse to answer them. Originally the census was taken simply for the purpose of ascertaining the number of people—first, as a basis of representation; second, as a basis of capitation tax; third, as a basis to arrive at the number of troops that might be called from each State; and it may be for some other purposes, but I imagine that all are embraced in the foregoing.

The Government has no right to invade the privacy of the citizen; no right to inquire into his financial condition, as thereby his credit might be injured; no right to pry into his affairs, into his diseases, or his deformities; and, while the Government may have the right to ask these questions, I think it was foolish to instruct the enumerators to ask them, and that the citizens have a perfect right to refuse to answer them. Personally, I have no objection to answering any of these questions, for the reason that nothing is the matter with me that money will not cure.

I know that it is thought advisable by many to find out the amount of mortgages in the United States, the rate of interest that is being paid, the general indebtedness of individuals, counties, cities and States, and I see no impropriety in finding this out in any reasonable way. But I think it improper to insist on the debtor exposing his financial condition. My opinion is that Mr. Porter only wants what is perfectly reasonable, and if left to himself, would ask only those questions that all people would willingly answer.

I presume we can depend on medical statistics—on the reports of hospitals, etc., in regard to diseases and deformities, without interfering with the patients. As to the financial standing of people, there are already enough of spies in this country attending to that business. I don't think there is any danger of the courts compelling a man to answer these questions. Suppose a man refuses to tell whether he has a chronic disease or not, and

he is brought up before a United States Court for contempt. In my opinion the judge would decide that the man could not be compelled to answer. It is bad enough to have a chronic disease without publishing it to the world. All intelligent people, of course, will be desirous of giving all useful information of a character that cannot be used to their injury, but can be used for the benefit of society at large.

If, however, the courts shall decide that the enumerators have the right to ask these questions, and that everybody must answer them, I doubt if the census will be finished for many years. There are hundreds and thousands of people who delight in telling all about their diseases, when they were attacked, what they have taken, how many doctors have given them up to die, etc., and if the enumerators will stop to listen, the census of 1890 will not be published until the next century.—The World, New York, June 8, 1890.

THE AGNOSTIC CHRISTMAS

AGAIN we celebrate the victory of Light over Darkness, of the God of day over the hosts of night. Again Samson is victorious over Delilah, and Hercules triumphs once more over Omphale. In the embrace of Isis, Osiris rises from the dead, and the scowling Typhon is defeated once more. Again Apollo, with unerring aim, with his arrow from the quiver of light, destroys the serpent of shadow. This is the festival of Thor, of Baldur and of Prometheus. Again Buddha by a miracle escapes from the tyrant of Madura, Zoroaster foils the King, Bacchus laughs at the rage of Cadmus, and Chrishna eludes the tyrant.

This is the festival of the sun-god, and as such let its observance be universal.

This is the great day of the first religion, the mother of all religions—the worship of the sun.

Sun worship is not only the first, but the most natural and most reasonable of all. And not only the most natural and the most reasonable, but by far the most poetic, the most beautiful.

The sun is the god of benefits, of growth, of life, of warmth, of happiness, of joy. The sun is the all-seeing, the all-pitying, the all-loving.

This bright God knew no hatred, no malice, never sought for revenge.

All evil qualities were in the breast of the God of darkness, of shadow, of night. And so I say again, this is the festival of Light. This is the anniversary of the triumph of the Sun over the hosts of Darkness.

Let us all hope for the triumph of Light—of Right and Reason—for the victory of Fact over Falsehood, of Science over Superstition.

And so hoping, let us celebrate the venerable festival of the Sun.—The Journal, New York, December 25, 1892.

SPIRITUALITY.

IF there is an abused word in our language, it is "spirituality."

It has been repeated over and over for several hundred years by pious pretenders and snivelers as though it belonged exclusively to them.

In the early days of Christianity, the "spiritual" renounced the world with all its duties and obligations. They deserted their wives and children. They became hermits and dwelt in caves. They spent their useless years in praying for their shriveled and worthless souls. They were too "spiritual" to love women, to build homes and to labor for children. They were too "spiritual" to earn their bread, so they became beggars and stood by the highways of Life and held out their hands and asked alms of Industry and Courage. They were too "spiritual" to be merciful. They preached the dogma of eternal pain and gloried in "the wrath to come." They were too "spiritual" to be civilized, so they persecuted their fellow-men for expressing their honest thoughts. They were so "spiritual" that they invented instruments of torture, founded the Inquisition, appealed to the whip, the rack, the sword and the fagot. They tore the flesh of their fellow-men with hooks of iron, buried their neighbors alive, cut off their eyelids, dashed out the brains of babes and cut off the breasts of mothers. These "spiritual" wretches spent day and night on their knees, praying for their own salvation and asking God to curse the best and noblest of the world.

John Calvin was intensely "spiritual" when he warmed his fleshless hands at the flames that consumed Servetus.

John Knox was constrained by his "spirituality" to utter low and loathsome calumnies against all women. All the witch-burners and Quaker-maimers and mutilators were so "spiritual" that they constantly looked heavenward and longed for the skies.

These lovers of God—these haters of men—looked upon the Greek marbles as unclean, and denounced the glories of Art as the snares and pitfalls of perdition.

These "spiritual" mendicants hated laughter and smiles and dimples, and exhausted their diseased and polluted imaginations in the effort to make

love loathsome.

From almost every pulpit was heard the denunciation of all that adds to the wealth, the joy and glory of life. It became the fashion for the "spiritual" to malign every hope and passion that tends to humanize and refine the heart. Man was denounced as totally depraved. Woman was declared to be a perpetual temptation—her beauty a snare and her touch pollution.

Even in our own time and country some of the ministers, no matter how radical they claim to be, retain the aroma, the odor, or the smell of the "spiritual."

They denounce some of the best and greatest—some of the benefactors of the race—for having lived on the low plane of usefulness—and for having had the pitiful ambition to make their fellows happy in this world.

Thomas Paine was a groveling wretch because he devoted his life to the preservation of the rights of man, and Voltaire lacked the "spiritual" because he abolished torture in France and attacked, with the enthusiasm of a divine madness, the monster that was endeavoring to drive the hope of liberty from the heart of man.

Humboldt was not "spiritual" enough to repeat with closed eyes the absurdities of superstition, but was so lost to all the "skyey influences" that he was satisfied to add to the intellectual wealth of the world.

Darwin lacked "spirituality," and in its place had nothing but sincerity, patience, intelligence, the spirit of investigation and the courage to give his honest conclusions to the world. He contented himself with giving to his fellow-men the greatest and the sublimest truths that man has spoken since lips have uttered speech.

But we are now told that these soldiers of science, these heroes of liberty, these sculptors and painters, these singers of songs, these composers of music, lack "spirituality" and after all were only common clay.

This word "spirituality" is the fortress, the breastwork, the rifle-pit of the Pharisee. It sustains the same relation to sincerity that Dutch metal does to pure gold.

There seems to be something about a pulpit that poisons the occupant—that changes his nature—that causes him to denounce what he really loves and to laud with the fervor of insanity a joy that he never felt—a rapture that never thrilled his soul. Hypnotized by his surroundings, he

unconsciously brings to market that which he supposes the purchasers desire.

In every church, whether orthodox or radical, there are two parties—one conservative, looking backward, one radical, looking forward, and generally a minister "spiritual" enough to look both ways.

A minister who seems to be a philosopher on the street, or in the home of a sensible man, cannot withstand the atmosphere of the pulpit. The moment he stands behind the Bible cushion, like Bottom, he is "translated" and the Titania of superstition "kisses his large, fair ears."

Nothing is more amusing than to hear a clergyman denounce worldliness—ask his hearers what it will profit them to build railways and palaces and lose their own souls—inquire of the common folks before him why they waste their precious years in following trades and professions, in gathering treasures that moths corrupt and rust devours, giving their days to the vulgar business of making money,—and then see him take up a collection, knowing perfectly well that only the worldly, the very people he has denounced, can by any possibility give a dollar.

"Spirituality" for the most part is a mask worn by idleness, arrogance and greed.

Some people imagine that they are "spiritual" when they are sickly.

It may be well enough to ask: What is it to be really spiritual?

The spiritual man lives to his ideal. He endeavors to make others happy. He does not despise the passions that have filled the world with art and glory. He loves his wife and children—home and fireside. He cultivates the amenities and refinements of life. He is the friend and champion of the oppressed. His sympathies are with the poor and the suffering. He attacks what he believes to be wrong, though defended by the many, and he is willing to stand for the right against the world. He enjoys the beautiful. In the presence of the highest creations of Art his eyes are suffused with tears. When he listens to the great melodies, the divine harmonies, he feels the sorrows and the raptures of death and love. He is intensely human. He carries in his heart the burdens of the world. He searches for the deeper meanings. He appreciates the harmonies of conduct, the melody of a perfect life.

He loves his wife and children better than any god. He cares more for the world he lives in than for any other. He tries to discharge the duties of this life, to help those that he can reach. He believes in being useful—in making money to feed and clothe and educate the ones he loves—to assist the deserving and to support himself. He does not wish to be a burden on others. He is just, generous and sincere.

Spirituality is all of this world. It is a child of this earth, born and cradled here. It comes from no heaven, but it makes a heaven where it is.

There is no possible connection between superstition and the spiritual, or between theology and the spiritual.

The spiritually-minded man is a poet. If he does not write poetry, he lives it. He is an artist. If he does not paint pictures or chisel statues, he feels them, and their beauty softens his heart. He fills the temple of his soul with all that is beautiful, and he worships at the shrine of the Ideal.

In all the relations of life he is faithful and true. He asks for nothing that he does not earn. He does not wish to be happy in heaven if he must receive happiness as alms. He does not rely on the goodness of another. He is not ambitious to become a winged pauper.

Spirituality is the perfect health of the soul. It is noble, manly, generous, brave, free-spoken, natural, superb.

Nothing is more sickening than the "spiritual" whine—the pretence that crawls at first and talks about humility and then suddenly becomes arrogant and says: "I am 'spiritual.' I hold in contempt the vulgar joys of this life. You work and toil and build homes and sing songs and weave your delicate robes. You love women and children and adorn yourselves. You subdue the earth and dig for gold. You have your theatres, your operas and all the luxuries of life; but I, beggar that I am, Pharisee that I am, am your superior because I am 'spiritual.'"

Above all things, let us be sincere.—The Conservator, Philadelphia, 1891.

SUMTER'S GUN.

1861—April 12th—1891

FOR about three-quarters of a century the statesmen, that is to say, the politicians, of the North and South', had been busy making compromises, adopting constitutions and enacting laws; busy making speeches, framing platforms and political pretences, to the end that liberty and slavery might dwell in peace and friendship under the same flag.

Arrogance on one side, hypocrisy on the other.

Right apologized to Wrong for the sake of the Union.

The sources of justice were poisoned, and patriotism became the defender of piracy. In the name of humanity mothers were robbed of their babes.

Thirty years ago to-day a shot was fired, and in a moment all the promises, all the laws, all the constitutional amendments, and all the idiotic and heartless decisions of courts, and all the speeches of orators inspired by the hope of place and power, were blown into rags and ravelings, pieces and patches.

The North and South had been masquerading as friends, and in a moment, while the sound of that shot was ringing in their ears, they faced each other as enemies.

The roar of that cannon announced the birth of a new epoch. The echoes of that shot went out, not only over the bay of Charleston, but over the hills, the prairies and forests of the continent.

These echoes said marvelous things and uttered prophecies that none were wise enough to understand.

Who at that time had the slightest conception of the immediate future? Who then was great enough to see the end? Who then was wise enough to know that the echoes would be kept alive and repeated for years by thousands and thousands of cannon, by millions of muskets, on the fields of ruthless war?

At that time Abraham Lincoln, an Illinois lawyer, was barely a month in the President's chair, and that shot made him the most commanding and majestic figure of the nineteenth century—a figure that stands alone.

Who could have guessed the names of the heroes to be repeated by countless lips before the echoes of that shot should have died away?

There was at that time a young man at Galena, silent, unobtrusive, unknown; and yet, the moment that shot was fired he was destined to lead the greatest host ever marshaled on a field of war, destined to receive the final sword of the Rebellion.

There was another, in the Southwest, who heard one of the echoes of that shot, and who afterward marched from Atlanta to the sea; and another, far away by the Pacific, who also heard one of the echoes, and who became one of the immortal three.

But, above all, the echoes were heard by millions of men and women in the fields of unpaid toil, and they knew not the meaning, but felt that they had heard a prophecy of freedom. And the echoes told of death and glory for many thousands—of the agonies of women—the sobs of orphans—the sighs of the imprisoned, and the glad shouts of the delivered, the enfranchised, the redeemed.

They who fired that gun did not dream that they were giving liberty to millions of people, including themselves, white as well as black, North as well as South, and that before the echoes should die away, all the shackles would be broken, all the constitutions and statutes of slavery repealed, and all the compromises merged and lost in a great compact made to preserve the liberties of all.

WHAT INFIDELS HAVE DONE.

ONE HUNDRED years after Christ had died suppose some one had asked a Christian, What hospitals have you built? What asylums have you founded? They would have said "None." Suppose three hundred years after the death of Christ the same questions had been asked the Christian, he would have said "None, not one." Two hundred years more and the answer would have been the same. And at that time the Christian could have told the questioner that the Mohammedans had built asylums before the Christians. He could also have told him that there had been orphan asylums in China for hundreds and hundreds of years, hospitals in India, and hospitals for the sick at Athens.

Here it may be well enough to say that all hospitals and asylums are not built for charity. They are built because people do not want to be annoyed by the sick and the insane. If a sick man should come down the street and sit upon your doorstep, what would you do with him? You would have to take him into your house or leave him to suffer. Private families do not wish to take the burden of the sick. Consequently, in self-defence, hospitals are built so that any wanderer coming to a house, dying, or suffering from any disease, may immediately be packed off to a hospital and not become a burden upon private charity. The fact that many diseases are contagious rendered hospitals necessary for the preservation of the lives of the citizens. The same thing is true of the asylums. People do not, as a rule, want to take into their families, all the children who happen to have no fathers and mothers. So they endow and build an asylum where those children can be sent—and where they can be whipped according to law. Nobody wants an insane stranger in his house. The consequence is, that the community, to get rid of these people, to get rid of the trouble, build public institutions and send them there.

Now, then, to come to the point, to answer the interrogatory often flung at us from the pulpit, What institutions have Infidels built? In the first place, there have not been many Infidels for many years and, as a rule, a known Infidel cannot get very rich, for the reason that the Christians are so forgiving and loving they boycott him. If the average Infidel, freely stating

his opinion, could get through the world himself, for the last several hundred years, he has been in good luck. But as a matter of fact there have been some Infidels who have done some good, even from a Christian standpoint. The greatest charity ever established in the United States by a man—not by a community to get rid of a nuisance, but by a man who wished to do good and wished that good to last after his death—is the Girard College in the city of Philadelphia. Girard was an Infidel. He gained his first publicity by going like a common person into the hospitals and taking care of those suffering from contagious diseases—from cholera and smallpox. So there is a man by the name of James Lick, an Infidel, who has given the finest observatory ever given to the world. And it is a good thing for an Infidel to increase the sight of men. The reason people are theologians is because they cannot see. Mr. Lick has increased human vision, and I can say right here that nothing has been seen through the telescope, calculated to prove the astronomy of Joshua. Neither can you see with that telescope a star that bears a Christian name. The reason is that Christianity was opposed to astronomy. So astronomers took their revenge, and now there is not one star that glitters in all the vast firmament of the boundless heavens that has a Christian name. Mr. Carnegie has been what they call a public-spirited man. He has given millions of dollars for libraries and other institutions, and he certainly is not an orthodox Christian.

Infidels, however, have done much better even than that. They have increased the sum of human knowledge. John W. Draper, in his work on "The Intellectual Development of Europe," has done more good to the American people and to the civilized world than all the priests in it. He was an Infidel. Buckle is another who has added to the sum of human knowledge. Thomas Paine, an Infidel, did more for this country than any other man who ever lived in it.

Most of the colleges in this country have, I admit, been founded by Christians, and the money for their support has been donated by Christians, but most of the colleges of this country have simply classified ignorance, and I think the United States would be more learned than it is to-day if there never had been a Christian college in it. But whether Christians gave or Infidels gave has nothing to do with the probability of the Jonah story or with the probability that the mark on the dial went back ten degrees to prove that a little Jewish king was not going to die of a boil. And if the Infidels are all stingy and the Christians are all generous it does not even

tend to prove that three men were in a fiery furnace heated seven times hotter than was its wont without even scorching their clothes.

The best college in this country—or, at least, for a long time the best—was the institution founded by Ezra Cornell. That is a school where people try to teach what they know instead of what they guess. Yet Cornell University was attacked by every orthodox college in the United States at the time it was founded, because they said it was without religion.

Everybody knows that Christianity does not tend to generosity. Christianity says: "Save your own soul, whether anybody else saves his or not." Christianity says: "Let the great ship go down. You get into the little life-boat of the gospel and paddle ashore, no matter what becomes of the rest." Christianity says you must love God, or something in the sky, better than you love your wife and children. And the Christian, even when giving, expects to get a very large compound interest in another world. The Infidel who gives, asks no return except the joy that comes from relieving the wants of another.

Again the Christians, although they have built colleges, have built them for the purpose of spreading their superstitions, and have poisoned the minds of the world, while the Infidel teachers have filled the world with light. Darwin did more for mankind than if he had built a thousand hospitals. Voltaire did more than if he had built a thousand asylums for the insane. He will prevent thousands from going insane that otherwise might be driven into insanity by the "glad tidings of great joy." Haeckel is filling the world with light.

I am perfectly willing that the results of the labors of Christians and the labors of Infidels should be compared. Then let it be understood that Infidels have been in this world but a very short time. A few years ago there were hardly any. I can remember when I was the only Infidel in the town where I lived. Give us time and we will build colleges in which something will be taught that is of use. We hope to build temples that will be dedicated to reason and common sense, and where every effort will be made to reform mankind and make them better and better in this world.

I am saying nothing against the charity of Christians; nothing against any kindness or goodness. But I say the Christians, in my judgment, have done more harm than they have done good. They may talk of the asylums they have built, but they have not built asylums enough to hold the people who

have been driven insane by their teachings. Orthodox religion has opposed liberty. It has opposed investigation and free thought. If all the churches in Europe had been observatories, if the cathedrals had been universities where facts were taught and where nature was studied, if all the priests had been real teachers, this world would have been far, far beyond what it is today.

There is an idea that Christianity is positive, and Infidelity is negative. If this be so, then falsehood is positive and truth is negative. What I contend is that Infidelity is a positive religion; that Christianity is a negative religion. Christianity denies and Infidelity admits. Infidelity stands by facts; it demonstrates by the conclusions of the reason. Infidelity does all it can to develop the brain and the heart of man. That is positive. Religion asks man to give up this world for one he knows nothing about. That is negative. I stand by the religion of reason. I stand by the dogmas of demonstration.

CRUELTY IN THE ELMIRA REFORMATORY.

IN my judgment, no human being was ever made better, nobler, by being whipped or clubbed.

Mr. Brockway, according to his own testimony, is simply a savage. He belongs to the Dark Ages—to the Inquisition, to the torture-chamber, and he needs reforming more than any prisoner under his control. To put any man within his power is in itself a crime. Mr. Brockway is a believer in cruelty—an apostle of brutality. He beats and bruises flesh to satisfy his conscience—his sense of duty. He wields the club himself because he enjoys the agony he inflicts.

When a poor wretch, having reached the limit of endurance, submits or becomes unconscious, he is regarded as reformed. During the remainder of his term he trembles and obeys. But he is not reformed. In his heart is the flame of hatred, the desire for revenge; and he returns to society far worse than when he entered the prison.

Mr. Brockway should either be removed or locked up, and the Elmira Reformatory should be superintended by some civilized man—some man with brain enough to know, and heart enough to feel.

I do not believe that one brute, by whipping, beating and lacerating the flesh of another, can reform him. The lash will neither develop the brain nor cultivate the heart. There should be no bruising, no scarring of the body in families, in schools, in reformatories, or prisons. A civilized man does not believe in the methods of savagery. Brutality has been tried for thousands of years and through all these years it has been a failure.

Criminals have been flogged, mutilated and maimed, tortured in a thousand ways, and the only effect was to demoralize, harden and degrade society and increase the number of crimes. In the army and navy, soldiers and sailors were flogged to death, and everywhere by church and state the torture of the helpless was practiced and upheld.

Only a few years ago there were two hundred and twenty-three offences punished with death in England. Those who wished to reform this savage

code were denounced as the enemies of morality and law. They were regarded as weak and sentimental.

At last the English code was reformed through the efforts of men who had brain and heart. But it is a significant fact that no bishop of the Episcopal Church, sitting in the House of Lords, ever voted for the repeal of one of those savage laws. Possibly this fact throws light on the recent poetic and Christian declaration by Bishop Potter to the effect that "there are certain criminals who can only be made to realize through their hides the fact that the State has laws to which the individual must be obedient."

This orthodox remark has the true apostolic ring, and is in perfect accord with the history of the church. But it does not accord with the intelligence and philanthropy of our time. Let us develop the brain by education, the heart by kindness. Let us remember that criminals are produced by conditions, and let us do what we can to change the conditions and to reform the criminals.

LAW'S DELAY.

THE object of a trial is not to convict—neither is it to acquit. The object is to ascertain the truth by legal testimony and in accordance with law.

In this country we give the accused the benefit of all reasonable doubts. We insist that his guilt shall be really established by competent testimony.

We also allow the accused to take exceptions to the rulings of the judge before whom he is tried, and to the verdict of the jury, and to have these exceptions passed upon by a higher court.

We also insist that he shall be tried by an impartial jury, and that before he can be found guilty all the jurors must unite in the verdict.

Some people, not on trial for any crime, object to our methods. They say that time is wasted in getting an impartial jury; that more time is wasted because appeals are allowed, and that by reason of insisting on a strict compliance with law in all respects, trials sometimes linger for years, and that in many instances the guilty escape.

No one, so far as I know, asks that men shall be tried by partial and prejudiced jurors, or that judges shall be allowed to disregard the law for the sake of securing convictions, or that verdicts shall be allowed to stand unsupported by sufficient legal evidence. Yet they talk as if they asked for these very things. We must remember that revenge is always in haste, and that justice can always afford to wait until the evidence is actually heard.

There should be no delay except that which is caused by taking the time to find the truth. Without such delay courts become mobs, before which, trials in a legal sense are impossible. It might be better, in a city like New York, to have the grand jury in almost perpetual session, so that a man charged with crime could be immediately indicted and immediately tried. So, the highest court to which appeals are taken should be in almost constant session, in order that all appeals might be quickly decided.

But we do not wish to take away the right of appeal. That right tends to civilize the trial judge, reduces to a minimum his arbitrary power, puts his hatreds and passions in the keeping and control of his intelligence. That right of appeal has an excellent effect on the jury, because they know that

their verdict may not be the last word. The appeal, where the accused is guilty, does not take the sword from the State, but it is a shield for the innocent.

In England there is no appeal. The trials are shorter, the judges more arbitrary, the juries subservient, and the verdict often depends on the prejudice of the judge. The judge knows that he has the last guess—that he cannot be reviewed—and in the passion often engendered by the conflict of trial he acts much like a wild beast.

The case of Mrs. Maybrick is exactly in point, and shows how dangerous it is to clothe the trial judge with supreme power.

Without doubt there is in this country too much delay, and this, it seems to me, can be avoided without putting the life or liberty of innocent persons in peril. Take only such time as may be necessary to give the accused a fair trial, before an impartial jury, under and in accordance with the established forms of law, and to allow an appeal to the highest court.

The State in which a criminal cannot have an impartial trial is not civilized. People who demand the conviction of the accused without regard to the forms of law are savages.

But there is another side to this question. Many people are losing confidence in the idea that punishment reforms the convict, or that capital punishment materially decreases capital crimes.

My own opinion is that ordinary criminals should, if possible, be reformed, and that murderers and desperate wretches should be imprisoned for life. I am inclined to believe that our prisons make more criminals than they reform; that places like the Reformatory at Elmira plant and cultivate the seeds of crime.

The State should never seek revenge; neither should it put in peril the life or liberty of the accused for the sake of a hasty trial, or by the denial of appeal.

In my judgment, defective as our criminal courts and methods are, they are far better than the English.

Our judges are kinder, more humane; our juries nearer independent, and our methods better calculated to ascertain the truth.

THE BIGOTRY OF COLLEGES.

** A newspaper dispatch from Lawrence, Kansas, published yesterday, stated that Col. Robert O. Ingersoll had been invited by the law students of the Kansas State University to address them at the commencement exercises, and that the faculty council had objected and had invited Chauncey M. Depew instead.*

The dispatch also stated that the council had notified representatives of the law school that if they insisted on the great Agnostic speaking before the school, the faculty would take heroic measures to thwart their design.

It was also stated that the law students had made it clearly understood that the lecture Ingersoll had been invited to deliver was to be on the subject of law, and that his views on religion, the Bible and the Deity were not to be alluded to, and they considered that the faculty council had "subjected them to an insult," and had gone out of its way, also, to affront Colonel Ingersoll without cause.

Colonel Ingersoll, when seen yesterday and questioned about the matter, took it, as he does all things of that nature, philosophically and in a true manly spirit.

Chauncey M. Depew was seen at his residence, No. 43 West Fifty-fourth Street, last night and asked if he had been invited to address the students of the Kansas University in the place of Colonel Ingersoll. He said he had not.

"Would you go if you were invited?" he was asked.

"No; I would not," he answered. "You see, I am so busy here; besides, my social and semi-political engagements are such that I would not have time to go to such a distant point, anyhow.

"No, I do not care to express any opinion regarding the action of the faculty council of the Kansas University, but I consider Colonel Ingersoll one of the greatest intellects of the century, from whose teaching all can profit."—The Journal, New York, January 24, im.

UNIVERSITIES are naturally conservative. They know that if suspected of being really scientific, orthodox Christians will keep their sons away, so they pander to the superstitions of the times.

Most of the universities are exceedingly poor, and poverty is the enemy of independence. Universities, like people, have the instinct of self-preservation. The University of Kansas is like the rest.

The faculty of Cornell, upon precisely the same question, took exactly the same action, and the faculty of the University of Missouri did the same. These institutions must be the friends and defenders of superstition.

The Vanderbilt College, or University of Tennessee, discharged Professor Winchell because he differed with the author of Genesis on geology.

These colleges act as they must, and we should blame nobody. If Humboldt and Darwin were now alive they would not be allowed to teach in these institutions of "learning."

We need not find fault with the president and professors. They want to keep their places. The probability is that they would like to do better—that they desire to be free, and, if free, would, with all their hearts, welcome the truth. Still, these universities seem to do good. The minds of their students are developed to that degree, that they naturally turn to me as the defender of their thoughts.

This gives me great hope for the future. The young, the growing, the enthusiastic, are on my side. All the students who have selected me are my friends, and I thank them with all my heart.

A YOUNG MAN'S CHANCES TO-DAY.

* Col. Robert G. Ingersoll represents what is intellectually highest among the whole world's opponents of religion. He counts theology as the science of a superstition. He decries religion as it exists, and holds that the broadest thing a man, or all human nature, can do is to acknowledge ignorance when it cannot know. He accepts nothing on faith. He is the American who is forever asking, "Why?"—who demands a reason and material proof before believing.

As Christianity's corner-stone is faith, he rejects Christianity, and argues that all men who are broad enough to know when to narrow their ideas down to fact or demonstrable theory must reject it. Believe as he does or not, all Americans must be interested in him. His mind is marvelous, his tongue is silvern, his logic is invincible—as logic.

Col. Ingersoll is a shining example of the oft-quoted fact that, given mental ability, health and industry, a young man may make for himself whatever place in life he desires and is fitted to fill. His early advantages were limited, for his father, a Congregational minister whose field of labor often changed, was a man of far too small an income to send his sons to college. Whatever of mental training the young man had he was obliged to get by reason of his own exertion, and his splendid triumphs as an orator, and his solid achievements as a lawyer are all the result of his own efforts. The only help he had was that which is the common heritage of all American young men—the chance to fight even handed for success. It is not surprising, therefore, that Col. Ingersoll feels a deep interest in every bright young man of his acquaintance who is struggling manfully for the glittering prize so brilliantly won by the great Agnostic himself. He does not believe, however, that the young man who goes out into the world nowadays to seek his fortune has so easy a battle to fight as had the young men of thirty years ago. In conversation with the writer Col. Ingersoll spoke earnestly upon this subject.

Col. Ingersoll's views regarding the Bible and Christianity were not generally understood by the public for some time after he had become famous as an orator, although he began to diverge from orthodoxy when quite young, and was as pronounced an Agnostic when he went into the army, as he is now.

Col. Ingersoll is an inch less than six feet tall, and weighs ten more than two hundred pounds. He will be sixty-one next August, and his hair is snowy. His shoulders are broad and as straight as they were eighteen years ago when he electrified a people and place! his own name upon the list of a nation's greatest orators with his matchless

"Plumed Knight" speech in nominating

James G. Blaine for the presidency. His blue eyes look straight into yours when he speaks to you, and his sentences are punctuated by engaging little tricks of facial expression—now the brow is criss-crossed with the lines of a frown, sometimes quizzical and sometimes indignant—next, the smooth-shaven lips break into a curving smile, which may grow into a broad grin if the point just made were a humorous one, and this is quite likely to be followed by a look of such intense earnestness that you wonder if he will ever smile again. And all the time his eyes flash, illuminating, sometimes anticipatory, glances that add immensely to the clearness with which the thought he is expressing is set before you. He delights to tell a story, and he never tells any but good ones, but—and in this he is like Lincoln—he is apt to use his stories to drive some proposition home. This is almost invariably true, even when he sets out to spin a yarn for the story's simple sake. His mentality seems to be duplex, quadruplex, multiplex, if you please—and while his lips and tongue are effectively delivering the story, his wonderful brain is, seemingly, unconsciously applying the point of the story to the proving of a pet theory, and when the tale has been told the verbal application follows.

His birthplace was Dresden, N. Y. His early boyhood was passed in New York State and his youth and young manhood in Illinois, Ohio and Wisconsin.

His handgrasp is hearty and his manner and words are the very essence of straightforward directness. I called at his office once when the Colonel was closeted with a person who wished to retain him in a law case involving a good deal of money. After a bit I was told that I could see him, and as I entered he was saying: "The case can't be won, for you are in the wrong. I don't want it."

"But," pleaded the would-be client, "It seems to me that a good deal can be done in such a case by the way it is handled before the jury, and I thought if you were to be the man I might get a verdict."

"No, sir," was the reply, and the words fell like the lead of a plumb line; "I won't take it. Good morning, sir."

It has been sometimes said, indulgently, of Col. Ingersoll that he is indolent, but no one can hold that view who is at all familiar with him or his work. As a matter of fact, his industry is phenomenal, though, indeed, it is not carried on after the fashion of less brainy men. When he has an important case ahead of him his devotion to the mastery of its details absorbs him at once and completely. It sometimes becomes necessary for him to take up a line of chemical inquiry entirely new to him; again, to elaborate genealogical researches are necessary; still again, it may be essential for him to thoroughly inform himself concerning hitherto uninvestigated local historical records. But whatever is needful to be studied he studies, and so thoroughly that his mind becomes saturated with the knowledge required. And once acquired no sort of information

ever leaves him, for he has a memory quite as marvelous as any other of his altogether marvelous characteristics.

It is the same when he has an address to prepare. Every authority that can be consulted upon the subject to be treated in the address, is consulted, and often the material that suggests some of the most telling points is one which no one but Ingersoll himself would think of referring to. Here again his wonderful memory stands him in good stead for he has packed away within the convolutions of his brain a lot of facts that bear upon almost every conceivable branch of human thought or investigation.

His memory is quite as retentive of the features of a man he has seen as of other matters; it retains voices also, as a war time friend of his discovered last summer. It was a busy day with the Colonel, who had given instructions to his office boy that under no circumstances was he to be disturbed; so when his old friend called he was told that Col. Ingersoll could not see him "But," said the visitor: "I must see him. I haven't seen him for twenty years; I am going out of town this afternoon, and I wouldn't miss talking with him for a few minutes for a good deal of money."

"Well," said the boy, "he wasn't to be disturbed by anybody."

At this moment the door of the Colonel's private office opened, and the Colonel's portly form appeared upon the scene.

"Why, Maj. Blank," he said, "come in. I did tell the boy I wouldn't see anybody, but you are more important than the biggest law case in the world."

The Colonel's memory had retained the sound of the major's voice, and because of that, the latter was not obliged to leave New York without seeing and renewing his old acquaintance.

Col. Ingersoll's retorts are as quick as a flash-light and as searching. One of them was so startling and so effective as to give a certain famous long drawn out railroad suit the nickname. "The Ananias and Sapphira ease." Ingersoll was speaking and had made certain statements highly damaging to the other side, in such a way as to thoroughly anger a member of the opposing counsel, who suddenly interrupted the speaker with the abrupt and sarcastic remark:

"I suppose the Colonel, in the nature of things, never heard of the story of Ananias and Sapphira."

There were those present who expected to witness an angry outburst on the part of Ingersoll in response to this plain implication that his statement had not the quality of veracity, but they were disappointed. Ingersoll didn't even get angry. He turned slightly, fixed his limpid blue eyes upon the speaker, and looked cherubically. Then he gently drawled out.

"Oh, yes, I have, yes, I have. And I've watched the gentleman who has just spoken all through this case with a curious interest. I've been expecting every once in a while to see him drop dead, but he seems to be all right down to the present moment."

Ingersoll never gets angry when he is interrupted, even if it is in the middle of an address or a lecture. A man interrupted him in Cincinnati once, cutting right into one of the lecturer's most resonant periods with a yell:

"That's a lie. Bob Ingersoll, and you know it."

The audience was in an uproar in an instant, and cries of "Put him out!" "Throw him down stairs!" and the like were heard from all parts of the house. Ingersoll stopped talking for a moment, and held up his hands, smiling.

"Don't hurt the man," he said. "He thinks he is right. But let me explain this thing for his especial benefit."

Then he reasoned the matter out in language so simple and plain that no one of any intelligence whatever could fail to comprehend. The man was not ejected, but sat through the entire address, and at the close asked the privilege of begging the lecturer's pardon.

Like most men of genius, Colonel Ingersoll is a passionate lover of music, and the harmonies of Wagner seem to him to be the very acme of musical expression....

Notwithstanding his thoroughly heretical beliefs or lack of beliefs, or, as he would say, because of them, Colonel Ingersoll is a very tender-hearted man. No one has ever made so strong an argument against vivisection in the alleged interests of science as Ingersoll did in a speech a few years ago. To the presentation of his views against the refinements of scientific cruelty he brought his most vivid imagination, his most careful thought and his most impassioned oratory.

Colonel Ingersoll's popularity with those who know him is proverbial. The clerks in his offices not only admire him for his ability and his achievements, but they esteem him for his kindliness of heart and his invariable courtesy in his intercourse with them. His offices are located in one of the buildings devoted to corporations and professional men on the lower part of Nassau street and consist of three rooms. The one used by the head of the firm is farthest from the entrance. All are furnished in solid black walnut. In the Colonel's room there is a picture of his loved brother Ebon, and hanging below the frame thereof is the tin sign that the two brothers hung out for a shingle when they went into the law business in Peoria. There are also pictures of a judge or two. The desks in all the rooms are littered with papers. Books are piled to the ceiling. Everywhere there is an air of personal freedom. There is no servility either to clients or the head of the business, but there is everywhere an informal courtesy somewhat akin to that which is born of a fueling of great comradeship.

Of the Colonel's ideal home life the world has often been told. He lives during the winter at his town house in Fifth Avenue; in the summer at Dobbs Ferry, a charming place a few miles up the Hudson from New York.—Boston Herald, July, 1894.

A FEW years ago there were many thousand miles of railroads to be built, a great many towns and cities to be located, constructed and filled; vast areas of uncultivated land were waiting for the plow, vast forests the axe, and thousands of mines were longing to be opened. In those days every young man of energy and industry had a future. The professions were not overcrowded; there were more patients than doctors, more litigants than lawyers, more buyers of goods than merchants. The young man of that time who was raised on a farm got a little education, taught school, read law or medicine—some of the weaker ones read theology—and there seemed to be plenty of room, plenty of avenues to success and distinction.

So, too, a few years ago a political life was considered honorable, and so in politics there were many great careers. So, hundreds of towns wanted newspapers, and in each of those towns there was an opening for some energetic young man. At that time the plant cost but little; a few dollars purchased the press—the young publisher could get the paper stock on credit.

Now the railroads have all been built; the canals are finished; the cities have been located; the outside property has been cut into lots, and sold and mortgaged many times over. Now it requires great capital to go into business. The individual is counting for less and less; the corporation, the trust, for more and more. Now a great merchant employs hundreds of clerks; a few years ago most of those now clerks would have been merchants. And so it seems to be in nearly every department of life. Of course, I do not know what inventions may leap from the brains of the future; there may be millions and millions of fortunes yet to be made in that direction, but of that I am not speaking.

So, I think that a few years ago the chances were far more numerous and favorable to young men who wished to make a name for themselves, and to succeed in some department of human energy than now.

In savage life a living is very easy to get. Most any savage can hunt or fish; consequently there are few failures. But in civilized life competition becomes stronger and sharper; consequently, the percentage of failures increases, and this seems to be the law. The individual is constantly

counting for less. It may be that, on the average, people live better than they did formerly, that they have more to eat, drink and wear; but the individual horizon has lessened; it is not so wide and cloudless as formerly. So I say that the chances for great fortunes, for great success, are growing less and less.

I think a young man should do that which is easiest for him to do, provided there is an opportunity; if there is none, then he should take the next. The first object of every young man should be to be self-supporting, no matter in what direction—be independent. He should avoid being a clerk and he should avoid giving his future into the hands of any one person. He should endeavor to get a business in which the community will be his patron, and whether he is to be a lawyer, a doctor or a day-laborer depends on how much he has mixed mind with muscle.

If a young man imagines that he has an aptitude for public speaking—that is, if he has a great desire to make his ideas known to the world—the probability is that the desire will choose the way, time and place for him to make the effort.

If he really has something to say, there will be plenty to listen. If he is so carried away with his subject, is so in earnest that he becomes an instrumentality of his thought—so that he is forgotten by himself; so that he cares neither for applause nor censure—simply caring to present his thoughts in the highest and best and most comprehensive way, the probability is that he will be an orator.

I think oratory is something that cannot be taught. Undoubtedly a man can learn to be a fair talker. He can by practice learn to present his ideas consecutively, clearly and in what you may call "form," but there is as much difference between this and an oration as there is between a skeleton and a living human being clad in sensitive, throbbing flesh.

There are millions of skeleton makers, millions of people who can express what may be called "the bones" of a discourse, but not one in a million who can clothe these bones.

You can no more teach a man to be an orator than you can teach him to be an artist or a poet of the first class. When you teach him, there is the same difference between the man who is taught, and the man who is what he is by virtue of a natural aptitude, that there is between a pump and a spring—between a canal and a river—between April rain and water-works.

It is a question of capacity and feeling—not of education. There are some things that you can tell an orator not to do. For instance, he should never drink water while talking, because the interest is broken, and for the moment he loses control of his audience. He should never look at his watch for the same reason. He should never talk about himself. He should never deal in personalities. He should never tell long stories, and if he tells any story he should never say that it is a true story, and that he knew the parties. This makes it a question of veracity instead of a question of art. He should never clog his discourse with details. He should never dwell upon particulars—he should touch universals, because the great truths are for all time.

If he wants to know something, if he wishes to feel something, let him read Shakespeare. Let him listen to the music of Wagner, of Beethoven, or Schubert. If he wishes to express himself in the highest and most perfect form, let him become familiar with the great paintings of the world—with the great statues—all these will lend grace, will give movement and passion and rhythm to his words. A great orator puts into his speech the perfume, the feelings, the intensity of all the great and beautiful and marvelous things that he has seen and heard and felt. An orator must be a poet, a metaphysician, a logician—and above all, must have sympathy with all.

SCIENCE AND SENTIMENT.

IT was thought at one time by many that science would do away with poetry—that it was the enemy of the imagination. We know now that is not true. We know that science goes hand in hand with imagination. We know that it is in the highest degree poetic and that the old ideas once considered so beautiful are flat and stale. Compare Kepler's laws with the old Greek idea that the planets were boosted or pushed by angels. The more we know, the more beauty, the more poetry we find. Ignorance is not the mother of the poetic or artistic.

So, some people imagine that science will do away with sentiment. In my judgment, science will not only increase sentiment but sense.

A person will be attracted to another for a thousand reasons, and why a person is attracted to another, may, and in some degree will, depend upon the intellectual, artistic and ethical development of each.

The handsomest girl in Zululand might not be attractive to Herbert Spencer, and the fairest girl in England might not be able to hasten the pulse of a Choctaw brave. This does not prove that there is any lack of sentiment. Men are influenced according to their capacity, their temperament, their knowledge.

Some men fall in love with a small waist, an arched instep or curly hair, without the slightest regard to mind or muscle. This we call sentiment.

Now, educate such men, develop their brains, enlarge their intellectual horizon, teach them something of the laws of health, and then they may fall in love with women because they are developed grandly in body and mind. The sentiment is still there—still controls—but back of the sentiment is science.

Sentiment can never be destroyed, and love will forever rule the human race.

Thousands, millions of people fear that science will destroy not only poetry, not only sentiment, but religion. This fear is idiotic. Science will destroy superstition, but it will not injure true religion. Science is the

foundation of real religion. Science teaches us the consequences of actions, the rights and duties of all. Without science there can be no real religion.

Only those who live on the labor of the ignorant are the enemies of science. Real love and real religion are in no danger from science. The more we know the safer all good things are.

Do I think that the marriage of the sickly and diseased ought to be prevented by law?

I have not much confidence in law—in law that I know cannot be carried out. The poor, the sickly, the diseased, as long as they are ignorant, will marry and help fill the world with wretchedness and want.

We must rely on education instead of legislation.

We must teach the consequences of actions. We must show the sickly and diseased what their children will be. We must preach the gospel of the body. I believe the time will come when the public thought will be so great and grand that it will be looked upon as infamous to perpetuate disease—to leave a legacy of agony.

I believe the time will come when men will refuse to fill the future with consumption and insanity. Yes, we shall study ourselves. We shall understand the conditions of health and then we shall say: We are under obligation to put the flags of health in the cheeks of our children.

Even if I should get to heaven and have a harp, I know that I could not bear to see my descendants still on the earth, diseased, deformed, crazed—all suffering the penalties of my ignorance. Let us have more science and more sentiment—more knowledge and more conscience—more liberty and more love.

SOWING AND REAPING.

I HAVE read the sermon on "Sowing and Reaping," and I now understand Mr. Moody better than I did before. The other day, in New York, Mr. Moody said that he implicitly believed the story of Jonah and really thought that he was in the fish for three days.

When I read it I was surprised that a man living in the century of Humboldt, Darwin, Huxley, Spencer and Haeckel, should believe such an absurd and idiotic story.

Now I understand the whole thing. I can account for the amazing credulity of this man. Mr. Moody never read one of my lectures. That accounts for it all, and no wonder that he is a hundred years behind the times. He never read one of my lectures; that is a perfect explanation.

Poor man! He has no idea of what he has lost. He has been living on miracles and mistakes, on falsehood and foolishness, stuffing his mind with absurdities when he could have had truth, facts and good, sound sense.

Poor man!

Probably Mr. Moody has never read one word of Darwin and so he still believes in the Garden of Eden and the talking snake and really thinks that Jehovah took some mud, moulded the form of a man, breathed in its nostrils, stood it up and called it Adam, and that he then took one of Adam's ribs and some more mud and manufactured Eve. Probably he has never read a word written by any great geologist and consequently still believes in the story of the flood. Knowing nothing of astronomy, he still thinks that Joshua stopped the sun.

Poor man! He has neglected Spencer and has no idea of evolution. He thinks that man has, through all the ages, degenerated, the first pair having been perfect. He does not believe that man came from lower forms and has gradually journeyed upward.

He really thinks that the Devil outwitted God and vaccinated the human race with the virus of total depravity.

Poor man!

He knows nothing of the great scientists—of the great thinkers, of the emancipators of the human race; knows nothing of Spinoza, of Voltaire, of Draper, Buckle, of Paine or Renan.

Mr. Moody ought to read something besides the Bible—ought to find out what the really intelligent have thought. He ought to get some new ideas—a few facts—and I think that, after he did so, he would be astonished to find how ignorant and foolish he had been. He is a good man. His heart is fairly good, but his head is almost useless.

The trouble with this sermon, "Sowing and Reaping," is that he contradicts it. I believe that a man must reap what he sows, that every human being must bear the natural consequences of his acts. Actions are good or bad according to their consequences. That is my doctrine.

There is no forgiveness in nature. But Mr. Moody tells us that a man may sow thistles and gather figs, that having acted like a fiend for seventy years, he can, between his last dose of medicine and his last breath, repent; that he can be washed clean by the blood of the lamb, and that myriads of angels will carry his soul to heaven—in other words, that this man will not reap what he sowed, but what Christ sowed, that this man's thistles will be changed to figs.

This doctrine, to my mind, is not only absurd, but dishonest and corrupting.

This is one of the absurdities in Mr. Moody's theology. The other is that a man can justly be damned for the sin of another.

Nothing can exceed the foolishness of these two ideas—first: "Man can be justly punished forever for the sin of Adam." Second: "Man can be justly rewarded with eternal joy for the goodness of Christ."

Yet the man who believes this, preaches a sermon in which he says that a man must reap what he sows. Orthodox Christians teach exactly the opposite. They teach that no matter what a man sows, no matter how wicked his life has been, that he can by repentance change the crop. That all his sins shall be forgotten and that only the goodness of Christ will be remembered.

Let us see how this works:

Mr. A. has lived a good and useful life, kept his contracts, paid his debts, educated his children, loved his wife and made his home a heaven, but he

did not believe in the inspiration of Mr. Moody's Bible. He died and his soul was sent to hell. Mr. Moody says that as a man sows so shall he reap.

Mr. B. lived a useless and wicked life. By his cruelty he drove his wife to insanity, his children became vagrants and beggars, his home was a perfect hell, he committed many crimes, he was a thief, a burglar, a murderer. A few minutes before he was hanged he got religion and his soul went from the scaffold to heaven. And yet Mr. Moody says that as a man sows so shall he reap.

Mr. Moody ought to have a little philosophy—a little good sense.

So Mr. Moody says that only in this life can a man secure the reward of repentance.

Just before a man dies, God loves him—loves him as a mother loves her babe—but a moment after he dies, he sends his soul to hell. In the other world nothing can be done to reform him. The society of God and the angels can have no good effect. Nobody can be made better in heaven. This world is the only place where reform is possible. Here, surrounded by the wicked in the midst of temptations, in the darkness of ignorance, a human being may reform if he is fortunate enough to hear the words of some revival preacher, but when he goes before his maker—before the Trinity—he has no chance. God can do nothing for his soul except to send it to hell.

This shows that the power for good is confined to people in this world and that in the next world God can do nothing to reform his children. This is theology. This is what they call "Tidings of great joy."

Every orthodox creed is savage, ignorant and idiotic.

In the orthodox heaven there is no mercy, no pity. In the orthodox hell there is no hope, no reform. God is an eternal jailer, an everlasting turnkey.

And yet Christians now say that while there may be no fire in hell—no actual flames—yet the lost souls will feel forever the tortures of conscience.

What will conscience trouble the people in hell about? They tell us that they will remember their sins.

Well, what about the souls in heaven? They committed awful sins, they made their fellow-men unhappy. They took the lives of others—sent many to eternal torment. Will they have no conscience? Is hell the only place where souls regret the evil they have done? Have the angels no regret, no remorse, no conscience?

If this be so, heaven must be somewhat worse than hell.

In old times, if people wanted to know anything they asked the preacher. Now they do if they don't.

The Bible has, with intelligent men, lost its authority.

The miracles are now regarded by sensible people as the spawn of ignorance and credulity. On every hand people are looking for facts—for truth—and all religions are taking their places in the museum of myths.

Yes, the people are becoming civilized, and so they are putting out the fires of hell. They are ceasing to believe in a God who seeks eternal revenge.

The people are becoming sensible. They are asking for evidence. They care but little for the winged phantoms of the air—for the ghosts and devils and supposed gods. The people are anxious to be happy here and they want a little heaven in this life.

Theology is a curse. Science is a blessing. We do not need preachers, but teachers; not priests, but thinkers; not churches, but schools; not steeples, but observatories. We want knowledge.

Let us hope that Mr. Moody will read some really useful books.

SHOULD INFIDELS SEND THEIR CHILDREN TO SUNDAY SCHOOL?

SHOULD parents, who are Infidels, unbelievers or Atheists, send their children to Sunday schools and churches to give them the benefit of Christian education?

Parents who do not believe the Bible to be an inspired book should not teach their children that it is. They should be absolutely honest. Hypocrisy is not a virtue, and, as a rule, lies are less valuable than facts.

An unbeliever should not allow the mind of his child to be deformed, stunted and shriveled by superstition. He should not allow the child's imagination to be polluted. Nothing is more outrageous than to take advantage of the helplessness of childhood to sow in the brain the seeds of falsehoods, to imprison the soul in the dungeon of Fear, to teach dimpled infancy the infamous dogma of eternal pain—filling life with the glow and glare of hell.

No unbeliever should allow his child to be tortured in the orthodox inquisitions. He should defend the mind from attack as he would the body. He should recognize the rights of the soul. In the orthodox Sunday schools, children are taught that it is a duty to believe—that evidence is not essential—that faith is independent of facts and that religion is superior to reason. They are taught not to use their natural sense—not to tell what they really think—not to entertain a doubt—not to ask wicked questions, but to accept and believe what their teachers say. In this way the minds of the children are invaded, corrupted and conquered. Would an educated man send his child to a school in which Newton's statement in regard to the attraction of gravitation was denied—in which the law of falling bodies, as given by Galileo, was ridiculed—Kepler's three laws declared to be idiotic, and the rotary motion of the earth held to be utterly absurd?

Why then should an intelligent man allow his child to be taught the geology and astronomy of the Bible? Children should be taught to seek for the truth—to be honest, kind, generous, merciful and just. They should be taught to love liberty and to live to the ideal.

Why then should an unbeliever, an Infidel, send his child to an orthodox Sunday school where he is taught that he has no right to seek for the truth—no right to be mentally honest, and that he will be damned for an honest doubt—where he is taught that God was ferocious, revengeful, heartless as a wild beast—that he drowned millions of his children—that he ordered wars of extermination and told his soldiers to kill gray-haired and trembling age, mothers and children, and to assassinate with the sword of war the babes unborn?

Why should an unbeliever in the Bible send his child to an orthodox Sunday school where he is taught that God was in favor of slavery and told the Jews to buy of the heathen and that they should be their bondmen and bondwomen forever; where he is taught that God upheld polygamy and the degradation of women?

Why should an unbeliever, who believes in the uniformity of Nature, in the unbroken and unbreakable chain of cause and effect, allow his child to be taught that miracles have been performed; that men have gone bodily to heaven; that millions have been miraculously fed with manna and quails; that fire has refused to burn clothes and flesh of men; that iron has been made to float; that the earth and moon have been stopped and that the earth has not only been stopped, but made to turn the other way; that devils inhabit the bodies of men and women; that diseases have been cured with words, and that the dead, with a touch, have been made to live again?

The thoughtful man knows that there is not the slightest evidence that these miracles ever were performed. Why should he allow his children to be stuffed with these foolish and impossible falsehoods? Why should he give his lambs to the care and keeping of the wolves and hyenas of superstition?

Children should be taught only what somebody knows. Guesses should not be palmed off on them as demonstrated facts. If a Christian lived in Constantinople he would not send his children to the mosque to be taught that Mohammed was a prophet of God and that the Koran is an inspired book. Why? Because he does not believe in Mohammed or the Koran. That is reason enough. So, an Agnostic, living in New York, should not allow his children to be taught that the Bible is an inspired book. I use the word "Agnostic" because I prefer it to the word Atheist. As a matter of fact, no one knows that God exists and no one knows that God does not exist. To my mind there is no evidence that God exists—that this world is governed

by a being of infinite goodness, wisdom and power, but I do not pretend to know. What I insist upon is that children should not be poisoned—should not be taken advantage of—that they should be treated fairly, honestly—that they should be allowed to develop from the inside instead of being crammed from the outside—that they should be taught to reason, not to believe—to think, to investigate and to use their senses, their minds.

Would a Catholic send his children to a school to be taught that Catholicism is superstition and that Science is the only savior of mankind?

Why then should a free and sensible believer in Science, in the naturalness of the universe, send his child to a Catholic school?

Nothing could be more irrational, foolish and absurd.

My advice to all Agnostics is to keep their children from the orthodox Sunday schools, from the orthodox churches, from the poison of the pulpits.

Teach your children the facts you know. If you do not know, say so. Be as honest as you are ignorant. Do all you can to develop their minds, to the end that they may live useful and happy lives.

Strangle the serpent of superstition that crawls and hisses about the cradle. Keep your children from the augurs, the soothsayers, the medicine-men, the priests of the supernatural. Tell them that all religions have been made by folks and that all the "sacred books" were written by ignorant men.

Teach them that the world is natural. Teach them to be absolutely honest. Do not send them where they will contract diseases of the mind—the leprosy of the soul. Let us do all we can to make them intelligent.

WHAT WOULD YOU SUBSTITUTE FOR THE BIBLE AS A MORAL GUIDE?

** Written for The Boston Investigator.*

YOU ask me what I would "substitute for the Bible as a moral guide."

I know that many people regard the Bible as the only moral guide and believe that in that book only can be found the true and perfect standard of morality.

There are many good precepts, many wise sayings and many good regulations and laws in the Bible, and these are mingled with bad precepts, with foolish sayings, with absurd rules and cruel laws.

But we must remember that the Bible is a collection of many books written centuries apart, and that it in part represents the growth and tells in part the history of a people. We must also remember that the writers treat of many subjects. Many of these writers have nothing to say about right or wrong, about vice or virtue.

The book of Genesis has nothing about morality. There is not a line in it calculated to shed light on the path of conduct. No one can call that book a moral guide. It is made up of myth and miracle, of tradition and legend.

In Exodus we have an account of the manner in which Jehovah delivered the Jews from Egyptian bondage.

We now know that the Jews were never enslaved by the Egyptians; that the entire story is a fiction. We know this, because there is not found in Hebrew a word of Egyptian origin, and there is not found in the language of the Egyptians a word of Hebrew origin. This being so, we know that the Hebrews and Egyptians could not have lived together for hundreds of years.

Certainly Exodus was not written to teach morality. In that book you cannot find one word against human slavery. As a matter of fact, Jehovah was a believer in that institution.

The killing of cattle with disease and hail, the murder of the first-born, so that in every house was death, because the king refused to let the Hebrews

go, certainly was not moral; it was fiendish. The writer of that book regarded all the people of Egypt, their children, their flocks and herds, as the property of Pharaoh, and these people and these cattle were killed, not because they had done anything wrong, but simply for the purpose of punishing the king. Is it possible to get any morality out of this history?

All the laws found in Exodus, including the Ten Commandments, so far as they are really good and sensible, were at that time in force among all the peoples of the world.

Murder is, and always was, a crime, and always will be, as long as a majority of people object to being murdered.

Industry always has been and always will be the enemy of larceny.

The nature of man is such that he admires the teller of truth and despises the liar. Among all tribes, among all people, truth-telling has been considered a virtue and false swearing or false speaking a vice.

The love of parents for children is natural, and this love is found among all the animals that live. So the love of children for parents is natural, and was not and cannot be created by law. Love does not spring from a sense of duty, nor does it bow in obedience to commands.

So men and women are not virtuous because of anything in books or creeds.

All the Ten Commandments that are good were old, were the result of experience. The commandments that were original with Jehovah were foolish.

The worship of "any other God" could not have been worse than the worship of Jehovah, and nothing could have been more absurd than the sacredness of the Sabbath.

If commandments had been given against slavery and polygamy, against wars of invasion and extermination, against religious persecution in all its forms, so that the world could be free, so that the brain might be developed and the heart civilized, then we might, with propriety, call such commandments a moral guide.

Before we can truthfully say that the Ten Commandments constitute a moral guide, we must add and subtract. We must throw away some, and write others in their places.

The commandments that have a known application here, in this world, and treat of human obligations are good, the others have no basis in fact, or experience.

Many of the regulations found in Exodus, Leviticus, Numbers and Deuteronomy, are good. Many are absurd and cruel.

The entire ceremonial of worship is insane.

Most of the punishment for violations of laws are un-philosophic and brutal.... The fact is that the Pentateuch upholds nearly all crimes, and to call it a moral guide is as absurd as to say that it is merciful or true.

Nothing of a moral nature can be found in Joshua or Judges. These books are filled with crimes, with massacres and murders. They are about the same as the real history of the Apache Indians.

The story of Ruth is not particularly moral.

In first and second Samuel there is not one word calculated to develop the brain or conscience.

Jehovah murdered seventy thousand Jews because David took a census of the people. David, according to the account, was the guilty one, but only the innocent were killed.

In first and second Kings can be found nothing of ethical value. All the kings who refused to obey the priests were denounced, and all the crowned wretches who assisted the priests, were declared to be the favorites of Jehovah. In these books there cannot be found one word in favor of liberty.

There are some good Psalms, and there are some that are infamous. Most of these Psalms are selfish. Many of them, are passionate appeals for revenge.

The story of Job shocks the heart of every good man. In this book there is some poetry, some pathos, and some philosophy, but the story of this drama called Job, is heartless to the last degree. The children of Job are murdered to settle a little wager between God and the Devil. Afterward, Job having remained firm, other children are given in the place of the murdered ones. Nothing, however, is done for the children who were murdered.

The book of Esther is utterly absurd, and the only redeeming feature in the book is that the name of Jehovah is not mentioned.

I like the Song of Solomon because it tells of human love, and that is something I can understand. That book in my judgment, is worth all the ones that go before it, and is a far better moral guide.

There are some wise and merciful Proverbs. Some are selfish and some are flat and commonplace.

I like the book of Ecclesiastes because there you find some sense, some poetry, and some philosophy. Take away the interpolations and it is a good book.

Of course there is nothing in Nehemiah or Ezra to make men better, nothing in Jeremiah or Lamentations calculated to lessen vice, and only a few passages in Isaiah that can be used in a good cause.

In Ezekiel and Daniel we find only ravings of the insane.

In some of the minor prophets there is now and then a good verse, now and then an elevated thought.

You can, by selecting passages from different books, make a very good creed, and by selecting passages from different books, you can make a very bad creed.

The trouble is that the spirit of the Old Testament, its disposition, its temperament, is bad, selfish and cruel. The most fiendish things are commanded, commended and applauded.

The stories that are told of Joseph, of Elisha, of Daniel and Gideon, and of many others, are hideous; hellish.

On the whole, the Old Testament cannot be considered a moral guide.

Jehovah was not a moral God. He had all the vices, and he lacked all the virtues. He generally carried out his threats, but he never faithfully kept a promise.

At the same time, we must remember that the Old Testament is a natural production, that it was written by savages who were slowly crawling toward the light. We must give them credit for the noble things they said, and we must be charitable enough to excuse their faults and even their crimes.

I know that many Christians regard the Old Testament as the foundation and the New as the superstructure, and while many admit that there are faults and mistakes in the Old Testament, they insist that the New is the flower and perfect fruit.

I admit that there are many good things in the New Testament, and if we take from that book the dogmas of eternal pain, of infinite revenge, of the atonement, of human sacrifice, of the necessity of shedding blood; if we throw away the doctrine of non-resistance, of loving enemies, the idea that prosperity is the result of wickedness, that poverty is a preparation for Paradise, if we throw all these away and take the good, sensible passages, applicable to conduct, then we can make a fairly good moral guide,—narrow, but moral.

Of course, many important things would be left out. You would have nothing about human rights, nothing in favor of the family, nothing for education, nothing for investigation, for thought and reason, but still you would have a fairly good moral guide.

On the other hand, if you would take the foolish passages, the extreme ones, you could make a creed that would satisfy an insane asylum.

If you take the cruel passages, the verses that inculcate eternal hatred, verses that writhe and hiss like serpents, you can make a creed that would shock the heart of a hyena.

It may be that no book contains better passages than the New Testament, but certainly no book contains worse.

Below the blossom of love you find the thorn of hatred; on the lips that kiss, you find the poison of the cobra.

The Bible is not a moral guide.

Any man who follows faithfully all its teachings is an enemy of society and will probably end his days in a prison or an asylum.

What is morality?

In this world we need certain things. We have many wants. We are exposed to many dangers. We need food, fuel, raiment and shelter, and besides these wants, there is, what may be called, the hunger of the mind.

We are conditioned beings, and our happiness depends upon conditions. There are certain things that diminish, certain things that increase, well-being. There are certain things that destroy and there are others that preserve.

Happiness, including its highest forms, is after all the only good, and everything, the result of which is to produce or secure happiness, is good, that is to say, moral. Everything that destroys or diminishes well-being is

bad, that is to say, immoral. In other words, all that is good is moral, and all that is bad is immoral.

What then is, or can be called, a moral guide? The shortest possible answer is one word: Intelligence.

We want the experience of mankind, the true history of the race. We want the history of intellectual development, of the growth of the ethical, of the idea of justice, of conscience, of charity, of self-denial. We want to know the paths and roads that have been traveled by the human mind.

These facts in general, these histories in outline, the results reached, the conclusions formed, the principles evolved, taken together, would form the best conceivable moral guide.

We cannot depend on what are called "inspired books," or the religions of the world. These religions are based on the supernatural, and according to them we are under obligation to worship and obey some supernatural being, or beings. All these religions are inconsistent with intellectual liberty. They are the enemies of thought, of investigation, of mental honesty. They destroy the manliness of man. They promise eternal rewards for belief, for credulity, for what they call faith.

This is not only absurd, but it is immoral.

These religions teach the slave virtues. They make inanimate things holy, and falsehoods sacred. They create artificial crimes. To eat meat on Friday, to enjoy yourself on Sunday, to eat on fast-days, to be happy in Lent, to dispute a priest, to ask for evidence, to deny a creed, to express your sincere thought, all these acts are sins, crimes against some god. To give your honest opinion about Jehovah, Mohammed or Christ, is far worse than to maliciously slander your neighbor. To question or doubt miracles, is far worse than to deny known facts. Only the obedient, the credulous, the cringers, the kneelers, the meek, the unquestioning, the true believers, are regarded as moral, as virtuous. It is not enough to be honest, generous and useful; not enough to be governed by evidence, by facts. In addition to this, you must believe. These things are the foes of morality. They subvert all natural conceptions of virtue.

All "inspired books," teaching that what the supernatural commands is right, and right because commanded, and that what the supernatural prohibits is wrong, and wrong because prohibited, are absurdly unphilosophic.

And all "inspired books," teaching that only those who obey the commands of the supernatural are, or can be, truly virtuous, and that unquestioning faith will be rewarded with eternal joy, are grossly immoral.

Again I say: Intelligence is the only moral guide.

GOVERNOR ROLLINS' FAST-DAY PROCLAMATION.

THE Governor of New Hampshire, undoubtedly a good and sincere man, issued a Fast-Day Proclamation to the people of his State, in which I find the following paragraph:

"The decline of the Christian religion, particularly in our rural communities, is a marked feature of the times, and steps should be taken to remedy it. No matter what our belief may be in religious matters, every good citizen knows that when the restraining influences of religion are withdrawn from a community, its decay, moral, mental and financial, is swift and sure. To me this is one of the strongest evidences of the fundamental truth of Christianity. I suggest to-day, as far as possible on Fast-Day, union meetings be held, made up of all shades of belief, including all who are interested in the welfare of our State, and that in your prayers and other devotions and in your mutual councils you remember and consider the problem of the condition of religion in the rural communities. There are towns where no church bell sends forth its solemn call from January to January. There are villages where children grow to manhood unchristened. There are communities where the dead are laid away without the benison of the name of the Christ, and where marriages are solemnized only by Justices of the Peace. This is a matter worthy of your thoughtful consideration, citizens of New Hampshire. It does not augur well for the future. You can afford to devote one day in the year to your fellow-men, to work and thought and prayer for your children and your children's children."

These words of the Governor have caused surprise, discussion and danger. Many ministers have denied that Christianity is declining, and have attacked the Governor with the malice of meekness and the savagery of humility. The question is: Is Christianity declining?

In order to answer this question we must state what Christianity is.

Christians tell us that there are certain fundamental truths that must be believed.

We must believe in God, the creator and governor of the universe; in Jesus Christ, his only begotten son; in the Holy Ghost; in the atonement made by Christ; in salvation by faith; in the second birth; in heaven for believers, in hell for deniers and doubters, and in the inspiration of the Old and New Testaments. They must also believe in a prayer-hearing and prayer-answering God, in special providence, and in addition to all this they must practice a few ceremonies. This, I believe, is a fair skeleton of Christianity. Of course I cannot give an exact definition. Christians do not and never have agreed among themselves. They have been disputing and fighting for many centuries, and to-day they are as far apart as ever.

A few years ago Christians believed the "fundamental truths" They had no doubts. They knew that God existed; that he made the world. They knew when he commenced to work at the earth and stars and knew when he finished. They knew that he, like a potter, mixed and moulded clay into the shape of a man and breathed into its nostrils the breath of life. They knew that he took from this man a rib and framed the first woman.

It must be admitted that sensible Christians have outgrown this belief. Jehovah the gardener, the potter, the tailor, has been dethroned. The story of creation is believed only by the provincial, the stupid, the truly orthodox. People who have read Darwin and Haeckel and had sense enough to understand these great men, laugh at the legends of the Jews.

A few years ago most Christians believed that Christ was the son of God, and not only the son of God, but God himself.

This belief is slowly fading from the minds of Christians, from the minds of those who have minds.

Many Christians now say that Christ was simply a man—a perfect man. Others say that he was divine, but not actually God—a union of God and man. Some say that while Christ was not God, he was as nearly like God as it is possible for man to be.

The old belief that he was actually God—that he sacrificed himself unto himself—that he deserted himself; that he bore the burden of his own wrath; that he made it possible to save a few of his children by shedding his own blood; that he could not forgive the sins of men until they murdered him—this frightful belief is slowly dying day by day. Most ministers are ashamed to preach these cruel and idiotic absurdities. The Christ of our time

is not the Christ of the New Testament—not the Christ of the Middle Ages; nor of Luther, Wesley or the Puritan fathers.

The Christ who was God—who was his own son and his own father—who was born of a virgin, cast out devils, rose from the dead, and ascended bodily to heaven—is not the Christ of to-day.

The Holy Ghost has never been accurately defined or described. He has always been a winged influence—a divine aroma; a disembodied essence; a spiritual climate; an enthusiastic flame; a something sensitive and unforgiving; the real father of Jesus Christ.

A few years ago the clergy had a great deal to say about the Holy Ghost, but now the average minister, while he alludes to this shadowy deity to round out a prayer, seems to have but little confidence in him. This deity is and always has been extremely vague. He has been represented in the form of a dove; but this form is not associated with much intelligence.

Formerly it was believed that all men were by nature wicked, and that it would be perfectly just for God to damn the entire human race. In fact, it was thought that God, feeling that he had to damn all his children, invented a scheme by which some could be saved and at the same time justice could be satisfied. God knew that without the shedding of blood there could be no remission of sin. For many centuries he was satisfied with the blood of oxen, lambs and doves. But the sins continued to increase. A greater sacrifice was necessary. So God concluded to make the greatest possible sacrifice—to shed his own blood, that is to say, to have it shed by his chosen people. This was the atonement—the scheme of salvation—a scheme that satisfied justice and partially defeated the Devil.

No intelligent Christians believe in this atonement. It is utterly unphilosophic. The idea that man made salvation possible by murdering God is infinitely absurd. This makes salvation the blossom of a crime—the blessed fruit of murder. According to this the joys of heaven are born of the agonies of innocence. If the Jews had been civilized—if they had believed in freedom of conscience and had listened kindly and calmly to the teachings of Christ, the whole world, including Christ's mother, would have gone to hell.

Our fathers had two absurdities. They balanced each other. They said that God could justly damn his children for the sin of Adam, and that he could

justly save his children on account of the sufferings and virtues of Christ; that is to say, on account of his own sufferings and virtues.

This view of the atonement has mostly been abandoned. It is now preached, not that Christ bought souls with his blood, but that he has ennobled souls by his example. The supernatural part of the atonement has, by the more intelligent, been thrown away. So the idea of imputed sin—of vicarious vice—has been by many abandoned.

Salvation by faith is growing weak. People are beginning to see that character is more important than belief; that virtue is above all creeds. Civilized people no longer believe in a God who will damn an honest, generous man. They see that it is not honest to offer a reward for belief. The promise of reward is not evidence. It is an attempt to bribe.

If God wishes his children to believe, he should furnish evidence. He should not endeavor to make promises and threats take the place of facts. To offer a reward for credulity is dishonest and immoral—infamous.

To say that good people who never heard of Christ ought to be damned for not believing on him is a mixture of idiocy and savagery.

People are beginning to perceive that happiness is a result, not a reward; that happiness must be earned; that it is not alms. It is also becoming apparent that sins cannot be forgiven; that no power can step between actions and consequences; that men must "reap what they sow;" that a man who has lived a cruel life cannot, by repenting between the last dose of medicine and the last breath, be washed in the blood of the Lamb, and become an angel—an angel entitled to an eternity of joy.

All this is absurd, but you may say that it is not cruel. But to say that a man who has lived a useful life; who has made a happy home; who has lifted the fallen, succored the oppressed and battled to uphold the right; to say that such a man, because he failed to believe without evidence, will suffer eternal pain, is to say that God is an infinite wild beast.

Salvation for credulity means damnation for investigation.

At one time the "second birth" was regarded as a divine mystery—as a miracle—a something done by a supernatural power; probably by the Holy Ghost. Now ministers are explaining this mystery. A change of heart is a change of ideas. About this there is nothing miraculous.

This happens to most men and women—happens many times in the life of one man. If this happens without excitement—as the result of thought—it is called reformation. If it occurs in a revival—if it is the result of fright—it is called the "second birth."

A few years ago Christians believed in the inspiration of the Bible. They had no doubts. The Bible was the standard. If some geologist found a fact inconsistent with the Scriptures he was silenced with a text. If some doubter called attention to a contradiction in the Bible he was denounced as an ungodly and blaspheming wretch. Christians then knew that the universe was only about six thousand years old, and any man who denied this was an enemy of Christ and a friend of the Devil.

All this has changed. The Bible is no longer the standard. Science has dethroned the inspired volume. Even theologians are taking facts into consideration. Only ignorant bigots now believe in the plenary inspiration of the Bible.

The intelligent ministers know that the Holy Scriptures are filled with mistakes, contradictions and interpolations. They no longer believe in the flood, in Babel, in Lot's wife or in the fire and brimstone storm. They are not sure about the burning bush, the plagues of Egypt, the division of the Red Sea or the miracles in the wilderness. All these wonders are growing foolish. They belong to the Mother Goose of the past, and many clergymen are ashamed to say that they believe them. So, the lengthening of the day in order that General Joshua might have more time to kill, the journey of Elijah to heaven, the voyage of Jonah in the fish, and many other wonders of a like kind, have become so transparently false that even a theologian refuses to believe.

The same is true of many of the miracles of the New Testament. No sensible man now believes that Christ cast devils and unclean spirits out of the bodies of men and women. A few years ago all Christians believed all these devil miracles with all the mind they had. A few years ago only Infidels denied these miracles, but now the theologians who are studying the "Higher Criticism" are reaching the conclusions of Voltaire and Paine. They have just discovered that the objections made to the Bible by the Deists are supported by the facts.

At the same time these "Higher Critics," while they admit that the Bible is not true, still insist that it is inspired.

The other evening I attended Forepaugh & Sell's Circus at Madison Square Garden and saw a magnificent panorama of performances. While looking at a man riding a couple of horses I thought of the "Higher Critics." They accept Darwin and cling to Genesis. They admit that Genesis is false in fact, and then assert that in a higher sense it is absolutely true.

A lie bursts into blossom and has the perfume of truth. These critics declare that the Bible is the inspired word of God, and then establish the truth of the declaration by showing that it is filled with contradictions, absurdities and false prophecies.

The horses they ride, sometimes get so far apart that it seems to me that walking would be easier on the legs.

So, I saw at the circus the "Snake Man." I saw him tie himself into all kinds of knots; saw him make a necktie of his legs; saw him throw back his head and force it between his knees; saw him twist and turn as though his bones were made of rubber, and as I watched him I thought of the mental doublings and contortions of the preachers who have answered me.

Let Christians say what they will, the Bible is no longer the actual word of God; it is no longer perfect; it is no longer quite true.

The most that is now claimed for the Bible by the "Higher Critics" is, that some passages are inspired; that some passages are true, and that God has left man free to pick these passages out.

The ministers are preaching Infidelity. What would Lyman Beecher have thought of a man like Dr. Abbott? he would have consigned him to hell. What would John Wesley have thought of a Methodist like Dr. Cadman? He would have denounced him as a child of the Devil. What would Calvin have thought of a Presbyterian like Professor Briggs? He would have burned him at the stake, and through the smoke and flame would have shouted, "You are a dog of Satan." How would Jeremy Taylor have treated an Episcopalian like Heber Newton?

The Governor of New Hampshire is right when he says that Christianity has declined. The flames of faith are flickering, zeal is cooling and even bigotry is beginning to see the other side. I admit that there are still millions of orthodox Christians whose minds are incapable of growth, and who care no more for facts than a monitor does for bullets. Such obstructions on the highway of progress are removed only by death.

The dogma of eternal pain is no longer believed by the reasonably intelligent. People who have a sense of justice know that eternal revenge cannot be enjoyed by infinite goodness. They know that hell would make heaven impossible. If Christians believed in hell as they once did, the fagots would be lighted again, heretics would be stretched on the rack, and all the instruments of torture would again be stained with innocent blood. Christianity has declined because intelligence has increased.

Men and women who know something of the history of man, of the horrors of plague, famine and flood, of earthquake, volcano and cyclone, of religious persecution and slavery, have but little confidence in special providence. They do not believe that a prayer was ever answered.

Thousands of people who accept Christ as a moral guide have thrown away the supernatural.

Christianity does not satisfy the brain and heart. It contains too many absurdities. It is unphilosophic, unnatural, impossible. Not to resist evil is moral suicide. To love your enemies is impossible. To desert wife and children for the sake of heaven is cowardly and selfish. To promise rewards for belief is dishonest. To threaten torture for honest unbelief is infamous. Christianity is declining because men and women are growing better.

The Governor was not satisfied with saying that Christianity had declined, but he added this: "Every good citizen knows that when the restraining influences of religion are withdrawn from a community, its decay, moral, mental and financial is swift and sure."

The restraining influences of religion have never been withdrawn from Spain or Portugal, from Austria or Italy. The "restraining influences" are still active in Russia. Emperor William relies on them in Germany, and the same influences are very busy taking care of Ireland. If these influences should be withdrawn from Spain there would be "mental, moral and financial decay." Is not this statement perfectly absurd?

The fact is that religion has reduced Spain to a guitar, Italy to a hand organ and Ireland to exile. What are the restraining influences of religion? I admit that religion can prevent people from eating meat on Friday, from dancing in Lent, from going to the theatre on holy days and from swearing in public. In other words, religion can restrain people from committing artificial offences. But the real question is: Can religion restrain people from committing natural crimes?

The church teaches that God can and will forgive sins.

Christianity sells sin on a credit. It says to men and women, "Be good; do right; but no matter how many crimes you commit you can be forgiven." How can such a religion be regarded as a restraining influence! There was a time when religion had power; when the church ruled Christendom; when popes crowned and uncrowned kings. Was there at that time moral, mental and financial growth? Did the nations thus restrained by religion, prosper? When these restraining influences were weakened, when popes were humbled, when creeds were denied, did morality, intelligence and prosperity begin to decay?

What are the restraining influences of religion? Did anybody ever hear of a policeman being dismissed because a new church had been organized?

Christianity teaches that the man who does right carries a cross. The exact opposite of this is true. The cross is carried by the man who does wrong. I believe in the restraining influences of intelligence. Intelligence is the only lever capable of raising mankind. If you wish to make men moral and prosperous develop the brain. Men must be taught to rely on themselves. To supplicate the supernatural is a waste of time.

The only evils that have been caused by the decline of Christianity, as pointed out by the Governor, are that in some villages they hear no solemn bells, that the dead are buried without Christian ceremony, that marriages are contracted before Justices of the Peace, and that children go unchristened.

These evils are hardly serious enough to cause moral, mental and financial decay. The average church bell is not very musical—not calculated to develop the mind or quicken the conscience. The absence of the ordinary funeral sermon does not add to the horror of death, and the failure to hear a minister say, as he stands by the grave, "One star differs in glory from another star. There is a difference between the flesh of fowl and fish. Be not deceived. Evil communications corrupt good manners," does not necessarily increase the grief of the mourners. So far as children are concerned, if they are vaccinated, it does not make much difference whether they are christened or not.

Marriage is a civil contract, and God is not one of the contracting parties. It is a contract with which the church has no business to interfere. Marriage with us is regulated by law. The real marriage—the uniting of hearts, the

lighting of the sacred flame in each—is the work of Nature, and it is the best work that nature does. The ceremony of marriage gives notice to the world that the real marriage has taken place. Ministers have no real interest in marriages outside of the fees. Certainly marriages by Justices of the Peace cannot cause the mental, moral and financial decay of a State.

The things pointed out by the Governor were undoubtedly produced by the decline of Christianity, but they are not evils, and they cannot possibly injure the people morally, mentally or financially. The Governor calls on the people to think, work and pray. With two-thirds of this I agree. If the people of New Hampshire will think and work without praying they will grow morally, mentally and financially. If they pray without working and thinking, they will decay.

Prayer is beggary—an effort to get something for nothing. Labor is the honest prayer.

I do not think that the good and true in Christianity are declining. The good and true are more clearly perceived and more precious than ever. The supernatural, the miraculous part of Christianity is declining. The New Testament has been compelled to acknowledge the jurisdiction of reason. If Christianity continues to decline at the same rate and ratio that it has declined in this generation, in a few years all that is supernatural in the Christian religion will cease to exist. There is a conflict—a battle between the natural and the supernatural. The natural was baffled and beaten for thousands of years. The flag of defeat was carried by the few, by the brave and wise, by the real heroes of our race. They were conquered, captured, imprisoned, tortured and burned. Others took their places. The banner was kept in the air. In spite of countless defeats the army of the natural increased. It began to gain victories. It did not torture and kill the conquered. It enlightened and blessed. It fought ignorance with science, cruelty with kindness, slavery with justice, and all vices with virtues. In this great conflict we have passed midnight. When the morning comes its rays will gild but one flag—the flag of the natural.

All over Christendom religions are declining. Only children and the intellectually undeveloped have faith—the old faith that defies facts. Only a few years ago to be excommunicated by the pope blanched the cheeks of the bravest. Now the result would be laughter. Only a few years ago, for the

sake of saving heathen souls, priests would brave all dangers and endure all hardships.

I once read the diary of a priest—one who long ago went down the Illinois River, the first white man to be borne on its waters. In this diary he wrote that he had just been paid for all that he had suffered. He had added a gem to the crown of his glory—had saved a soul for Christ. He had baptized a papoose.

That kind of faith has departed from the world.

The zeal that flamed in the hearts of Calvin, Luther and Knox, is cold and dead. Where are the Wesleys and Whitfields? Where are the old evangelists, the revivalists who swayed the hearts of their hearers with words of flame? The preachers of our day have lost the Promethean fire. They have lost the tone of certainty, of authority. "Thus saith the Lord" has dwindled to "perhaps." Sermons, messages from God, promises radiant with eternal joy, threats lurid with the flames of hell—have changed to colorless essays; to apologies and literary phrases; to inferences and peradventures.

"The blood-dyed vestures of the Redeemer are not waving in triumph over the ramparts of sin and rebellion," but over the fortresses of faith float the white flags of truce. The trumpets no longer sound for battle, but for parley. The fires of hell have been extinguished, and heaven itself is only a dream. The "eternal verities" have changed to doubts. The torch of inspiration, choked with ashes, has lost its flame. There is no longer in the church "a sound from heaven as of a rushing, mighty wind;" no "cloven tongues like as of fire;" no "wonders in the heaven above," and no "signs in the earth beneath." The miracles have faded away and the sceptre is passing from superstition to science—science, the only possible savior of mankind.

A LOOK BACKWARD AND A PROPHECY.

** Written for the Twenty-fifth Anniversary Number of the New York Truth Seeker, September 3, 1898.*

I CONGRATULATE *The Truth Seeker* on its twenty-fifth birthday. It has fought a good fight. It has always been at the front. It has carried the flag, and its flag is a torch that sheds light.

Twenty-five years ago the people of this country, for the most part, were quite orthodox. The great "fundamental" falsehoods of Christianity were generally accepted. Those who were not Christians, as a rule, admitted that they ought to be; that they ought to repent and join the church, and this they generally intended to do.

The ministers had few doubts. The most of them had been educated not to think, but to believe. Thought was regarded as dangerous, and the clergy, as a rule, kept on the safe side. Investigation was discouraged. It was declared that faith was the only road that led to eternal joy.

Most of the schools and colleges were under sectarian control, and the presidents and professors were defenders of their creeds. The people were crammed with miracles and stuffed with absurdities. They were taught that the Bible was the "inspired" word of God, that it was absolutely perfect, that the contradictions were only apparent, and that it contained no mistakes in philosophy, none in science. The great scheme of salvation was declared to be the result of infinite wisdom and mercy. Heaven and hell were waiting for the human race. Only those could be saved who had faith and who had been born twice.

Most of the ministers taught the geology of Moses, the astronomy of Joshua, and the philosophy of Christ. They regarded scientists as enemies, and their principal business was to defend miracles and deny facts. They knew, however, that men were thinking, investigating in every direction, and they feared the result. They became a little malicious—somewhat hateful. With their congregations they relied on sophistry, and they answered their enemies with epithets, with misrepresentations and slanders; and yet their minds were filled with a vague fear, with a sickening dread.

Some of the people were reading and some were thinking. Lyell had told them something about geology, and in the light of facts they were reading Genesis again. The clergy called Lyell an Infidel, a blasphemer, but the facts seemed to care nothing for opprobrious names. Then the "called," the "set apart," the "Lord's anointed" began changing the "inspired" word. They erased the word "day" and inserted "period," and then triumphantly exclaimed: "The world was created in six periods." This answer satisfied bigotry, hypocrisy, and honest ignorance, but honest intelligence was not satisfied.

More and more was being found about the history of life, of living things, the order in which the various forms had appeared and the relations they had sustained to each other. Beneath the gaze of the biologist the fossils were again clothed with flesh, submerged continents and islands reappeared, the ancient forest grew once more, the air was filled with unknown birds, the seas with armored monsters, and the land with beasts of many forms that sought with tooth and claw each other's flesh.

Haeckel and Huxley followed life through all its changing forms from monad up to man. They found that men, women, and children had been on this poor world for hundreds of thousands of years.

The clergy could not dodge these facts, this conclusion, by calling "days" periods, because the Bible gives the age of Adam when he died, the lives and ages to the flood, to Abraham, to David, and from David to Christ, so that, according to the Bible, man at the birth of Christ had been on this earth four thousand and four years and no more.

There was no way in which the sacred record could be changed, but of course the dear ministers could not admit the conclusion arrived at by Haeckel and Huxley. If they did they would have to give up original sin, the scheme of the atonement, and the consolation of eternal fire.

They took the only course they could. They promptly and solemnly, with upraised hands, denied the facts, denounced the biologists as irreverent wretches, and defended the Book. With tears in their voices they talked about "Mother's Bible," about the "faith of the fathers," about the prayers that the children had said, and they also talked about the wickedness of doubt. This satisfied bigotry, hypocrisy, and honest ignorance, but honest intelligence was not satisfied.

The works of Humboldt had been translated, and were being read; the intellectual horizon was enlarged, and the fact that the endless chain of cause and effect had never been broken, that Nature had never been interfered with, forced its way into many minds. This conception of nature was beyond the clergy. They did not believe it; they could not comprehend it. They did not answer Humboldt, but they attacked him with great virulence. They measured his works by the Bible, because the Bible was then the standard.

In examining a philosophy, a system, the ministers asked: "Does it agree with the sacred book?" With the Bible they separated the gold from the dross. Every science had to be tested by the Scriptures. Humboldt did not agree with Moses. He differed from Joshua. He had his doubts about the flood. That was enough.

Yet, after all, the ministers felt that they were standing on thin ice, that they were surrounded by masked batteries, and that something unfortunate was liable at any moment to happen. This increased their efforts to avoid, to escape. The truth was that they feared the truth. They were afraid of facts. They became exceedingly anxious for morality, for the young, for the inexperienced. They were afraid to trust human nature. They insisted that without the Bible the world would rush to crime. They warned the thoughtless of the danger of thinking. They knew that it would be impossible for civilization to exist without the Bible. They knew this because their God had tried it. He gave no Bible to the antediluvians, and they became so bad that he had to destroy them. He gave the Jews only the Old Testament, and they were dispersed. Irreverent people might say that Jehovah should have known this without a trial, but after all that has nothing to do with theology.

Attention had been called to the fact that two accounts of creation are in Genesis, and that they do not agree and cannot be harmonized, and that, in addition to that, the divine historian had made a mistake as to the order of creation; that according to one account Adam was made before the animals, and Eve last of all, from Adam's rib; and by the other account Adam and Eve were made after the animals, and both at the same time. A good many people were surprised to find that the Creator had written contradictory accounts of the creation, and had forgotten the order in which he created.

Then there was another difficulty. Jehovah had declared that on Tuesday, or during the second period, he had created the "firmament" to divide the waters which were below the firmament from the waters above the firmament. It was found that there is no firmament; that the moisture in the air is the result of evaporation, and that there was nothing to divide the waters above, from the waters below. So that, according to the facts, Jehovah did nothing on the second day or period, because the moisture above the earth is not prevented from falling by the firmament, but because the mist is lighter than air.

The preachers, however, began to dodge, to evade, to talk about "oriental imagery." They declared that Genesis was a "sublime poem," a divine "panorama of creation," an "inspired vision;" that it was not intended to be exact in its details, but that it was true in a far higher sense, in a poetical sense, in a spiritual sense, conveying a truth much higher, much grander than simple, fact. The contradictions were covered with the mantle of oriental imagery. This satisfied bigotry, hypocrisy, and honest ignorance, but honest intelligence was not satisfied.

People were reading Darwin. His works interested not only the scientific, but the intelligent in all the walks of life. Darwin was the keenest observer of all time, the greatest naturalist in all the world. He was patient, modest, logical, candid, courageous, and absolutely truthful. He told the actual facts. He colored nothing. He was anxious only to ascertain the truth. He had no prejudices, no theories, no creed. He was the apostle of the real.

The ministers greeted him with shouts of derision. From nearly all the pulpits came the sounds of ignorant laughter, one of the saddest of all sounds. The clergy in a vague kind of way believed the Bible account of creation; they accepted the Miltonic view; they believed that all animals, including man, had been made of clay, fashioned by Jehovah's hands, and that he had breathed into all forms, not only the breath of life, but instinct and reason. They were not in the habit of descending to particulars; they did not describe Jehovah as kneading the clay or modeling his forms like a sculptor, but what they did say included these things.

The theory of Darwin contradicted all their ideas on the subject, vague as they were. He showed that man had not appeared at first as man, that he had not fallen from perfection, but had slowly risen through many ages from lower forms. He took food, climate, and all conditions into consideration,

and accounted for difference of form, function, instinct, and reason, by natural causes. He dispensed with the supernatural. He did away with Jehovah the potter.

Of course the theologians denounced him as a blasphemer, as a dethroner of God. They even went so far as to smile at his ignorance. They said: "If the theory of Darwin is true the Bible is false, our God is a myth, and our religion a fable."

In that they were right.

Against Darwin they rained texts of Scripture like shot and shell. They believed that they were victorious and their congregations were delighted. Poor little frightened professors in religious colleges sided with the clergy. Hundreds of backboneless "scientists" ranged themselves with the enemies of Darwin. It began to look as though the church was victorious.

Slowly, steadily, the ideas of Darwin gained ground. He began to be understood. Men of sense were reading what he said. Men of genius were on his side. In a little while the really great in all departments of human thought declared in his favor. The tide began to turn. The smile on the face of the theologian became a frozen grin. The preachers began to hedge, to dodge. They admitted that the Bible was not inspired for the purpose of teaching science—only inspired about religion, about the spiritual, about the divine. The fortifications of faith were crumbling, the old guns had been spiked, and the armies of the "living God" were in retreat.

Great questions were being discussed, and freely discussed. People were not afraid to give their opinions, and they did give their honest thoughts. Draper had shown in his "Intellectual Development of Europe" that Catholicism had been the relentless enemy of progress, the bitter foe of all that is really useful. The Protestants were delighted with this book.

Buckle had shown in his "History of Civilization in England" that Protestantism had also enslaved the mind, had also persecuted to the extent of its power, and that Protestantism in its last analysis was substantially the same as the creed of Rome.

This book satisfied the thoughtful.

Hegel in his first book had done a great work and it did great good in spite of the fact that his second book was almost a surrender. Lecky in his first volume of "The History of Rationalism" shed a flood of light on the

meanness, the cruelty, and the malevolence of "revealed religion," and this did good in spite of the fact that he almost apologizes in the second volume for what he had said in the first.

The Universalists had done good. They had civilized a great many Christians. They declared that eternal punishment was infinite revenge, and that the God of hell was an infinite savage.

Some of the Unitarians, following the example of Theodore Parker, denounced Jehovah as a brutal, tribal God. All these forces worked together for the development of the orthodox brain.

Herbert Spencer was being read and understood. The theories of this great philosopher were being adopted. He overwhelmed the theologians with facts, and from a great height he surveyed the world. Of course he was attacked, but not answered.

Emerson had sowed the seeds of thought—of doubt—in many minds, and from many directions the world was being flooded with intellectual light. The clergy became apologetic; they spoke with less certainty; with less emphasis, and lost a little confidence in the power of assertion. They felt the necessity of doing something, and they began to harmonize as best they could the old lies and the new truths. They tried to get the wreck ashore, and many of them were willing to surrender if they could keep their side-arms; that is to say, their salaries.

Conditions had been reversed. The Bible had ceased to be the standard. Science was the supreme and final test.

There was no peace for the pulpit; no peace for the shepherds. Students of the Bible in England and Germany had been examining the inspired Scriptures. They had been trying to find when and by whom the books of the Bible were written. They found that the Pentateuch was not written by Moses; that the authors of Joshua, Judges, Ruth, Samuel, Kings, Chronicles, Esther, and Job were not known; that the Psalms were not written by David; that Solomon had nothing to do with Proverbs, Ecclesiastes, or the Song; that Isaiah was the work of at least three authors; that the prophecies of Daniel were written after the happening of the events prophesied. They found many mistakes and contradictions, and some of them went so far as to assert that the Hebrews had never been slaves in Egypt; that the story of the plagues, the exodus, and the pursuit was only a myth.

The New Testament fared no better than the Old. These critics found that nearly all of the books of the New Testament had been written by unknown men; that it was impossible to fix the time when they were written; that many of the miracles were absurd and childish, and that in addition to all of this, the gospels were found filled with mistakes, with interpolations' and contradictions; that the writers of Matthew, Mark, and Luke did not understand the Christian religion as it was understood by the author of the gospel according to John.

Of course, the critics were denounced from most of the pulpits, and the religious papers, edited generally by men who had failed as preachers, were filled with bitter denials and vicious attacks. The religious editors refused to be enlightened. They fought under the old flag. When dogmas became too absurd to be preached, they were taught in the Sunday schools; when worn out there, they were given to the missionaries; but the dear old religious weeklies, the Banners, the Covenants, the Evangelists, continued to feed their provincial subscribers with known mistakes and refuted lies.

There is another fact that should be taken into consideration. All religions are provincial. Mingled with them all and at the foundation of all are the egotism of ignorance, of isolation, the pride of race, and what is called patriotism. Every religion is a natural product—the result of conditions. When one tribe became acquainted with another, the ideas of both were somewhat modified. So when nations and races come into contact a change in thought, in opinion, is a necessary result.

A few years ago nations were strangers, and consequently hated each other's institutions and religions. Commerce has done a great work in destroying provincialism. To trade commodities is to exchange ideas. So the press, the steamships, the railways, cables, and telegraphs have brought the nations together and enabled them to compare their prejudices, their religions, laws and customs.

Recently many scholars have been studying the religions of the world and have found them much the same. They have also found that there is nothing original in Christianity; that the legends, miracles, Christs, and conditions of salvation, the heavens, hells, angels, devils, and gods were the common property of the ancient world. They found that Christ was a new name for an old biography; that he was not a life, but a legend; not a man, but a myth.

People began to suspect that our religion had not been supernaturally revealed, while others, far older and substantially the same, had been naturally produced. They found it difficult to account for the fact that poor, ignorant savages had in the darkness of nature written so well that Jehovah thousands of years afterwards copied it and adopted it as his own. They thought it curious that God should be a plagiarist.

These scholars found that all the old religions had recognized the existence of devils, of evil spirits, who sought in countless ways to injure the children of men. In this respect they found that the sacred books of other nations were just the same as our Bible, as our New Testament.

Take the Devil from our religion and the entire fabric falls. No Devil, no fall of man. No Devil, no atonement. No Devil, no hell.

The Devil is the keystone of the arch.

And yet for many years the belief in the existence of the Devil—of evil spirits—has been fading from the minds of intelligent people. This belief has now substantially vanished. The minister who now seriously talks about a personal Devil is regarded with a kind of pitying contempt.

The Devil has faded from his throne and the evil spirits have vanished from the air.

The man who has really given up a belief in the existence of the Devil cannot believe in the inspiration of the New Testament—in the divinity of Christ. If Christ taught anything, if he believed in anything, he taught a belief in the existence of the Devil..His principal business was casting out devils. He himself was taken possession of by the Devil and carried to the top of the temple.

Thousands and thousands of people have ceased to believe the account in the New Testament regarding devils, and yet continue to believe in the dogma of "inspiration" and the divinity of Christ.

In the brain of the average Christian, contradictions dwell in unity.

While a belief in the existence of the Devil has almost faded away, the belief in the existence of a personal God has been somewhat weakened. The old belief that back of nature, back of all substance and force, was and is a personal God, an infinite intelligence who created and governs the world, began to be questioned. The scientists had shown the indestructibility of matter and force. Büchner's great work had convinced most readers that

matter and force could not have been created. They also became satisfied that matter cannot exist apart from force and that force cannot exist apart from matter.

They found, too, that thought is a form of force, and that consequently intelligence could not have existed before matter, because without matter, force in any form cannot and could not exist.

The creator of anything is utterly unthinkable.

A few years ago God was supposed to govern the world. He rewarded the people with sunshine, with prosperity and health, or he punished with drought and flood, with plague and storm. He not only attended to the affairs of nations, but he watched the actions of individuals. He sank ships, derailed trains, caused conflagrations, killed men and women with his lightnings, destroyed some with earthquakes, and tore the homes and bodies of thousands into fragments with his cyclones.

In spite of the church, in spite of the ministers, the people began to lose confidence in Providence. The right did not seem always to triumph. Virtue was not always rewarded and vice was not always punished. The good failed; the vicious succeeded; the strong and cruel enslaved the weak; toil was paid with the lash; babes were sold from the breasts of mothers, and Providence seemed to be absolutely heartless.

In other words, people began to think that the God of the Christians and the God of nature were about the same, and that neither appeared to take any care of the human race.

The Deists of the last century scoffed at the Bible God. He was too cruel, too savage. At the same time they praised the God of nature. They laughed at the idea of inspiration and denied the supernatural origin of the Scriptures.

Now, if the Bible is not inspired, then it is a natural production, and nature, not God, should be held responsible for the Scriptures. Yet the Deists denied that God was the author and at the same time asserted the perfection of nature.

This shows that even in the minds of Deists contradictions dwell in unity.

Against all these facts and forces, these theories and tendencies, the clergy fought and prayed. It is not claimed that they were consciously dishonest, but it is claimed that they were prejudiced—that they were

incapable of examining the other side—that they were utterly destitute of the philosophic spirit. They were not searchers for the facts, but defenders of the creeds, and undoubtedly they were the product of conditions and surroundings, and acted as they must.

In spite of everything a few rays of light penetrated the orthodox mind. Many ministers accepted some of the new facts, and began to mingle with Christian mistakes a few scientific truths. In many instances they excited the indignation of their congregations. Some were tried for heresy and driven from their pulpits, and some organized new churches and gathered about them a few people willing to listen to the sincere thoughts of an honest man.

The great body of the church, however, held to the creed—not quite believing it, but still insisting that it was true.

In private conversation they would apologize and admit that the old ideas were outgrown, but in public they were as orthodox as ever. In every church, however, there were many priests who accepted the new gospel; that is to say, welcomed the truth.

To-day it may truthfully be said that the Bible in the old sense is no longer regarded as the inspired word of God. Jehovah is no longer accepted or believed in as the creator of the universe. His place has been taken by the Unknown, the Unseen, the Invisible, the Incomprehensible Something, the Cosmic Dust, the First Cause, the Inconceivable, the Original Force, the Mystery. The God of the Bible, the gentleman who walked in the cool of the evening, who talked face to face with Moses, who revenged himself on unbelievers and who gave laws written with his finger on tables of stone, has abdicated. He has become a myth.

So, too, the New Testament has lost its authority. People reason about it now as they do about other books, and even orthodox ministers pick out the miracles that ought to be believed, and when anything is attributed to Christ not in accordance with their views, they take the liberty of explaining it away by saying "interpolation."

In other words, we have lived to see Science the standard instead of the Bible. We have lived to see the Bible tested by Science, and, what is more, we have lived to see reason the standard not only in religion, but in all the domain of science. Now all civilized scientists appeal to reason. They get their facts, and then reason from the foundation. Now the theologian

appeals to reason. Faith is no longer considered a foundation. The theologian has found that he must build upon the truth and that he must establish this truth by satisfying human reason.

This is where we are now.

What is to be the result? Is progress to stop? Are we to retrace our steps? Are we going back to superstition? Are we going to take authority for truth?

Let me prophesy.

In modern times we have slowly lost confidence in the supernatural and have slowly gained confidence in the natural. We have slowly lost confidence in gods and have slowly gained confidence in man. For the cure of disease, for the stopping of plague, we depend on the natural—on science. We have lost confidence in holy water and religious processions. We have found that prayers are never answered.

In my judgment, all belief in the supernatural will be driven from the human mind. All religions must pass away. The augurs, the soothsayers, the seers, the preachers, the astrologers and alchemists will all lie in the same cemetery and one epitaph will do for them all. In a little while all will have had their day. They were naturally produced and they will be naturally destroyed. Man at last will depend entirely upon himself—on the development of the brain—to the end that he may take advantage of the forces of nature—to the end that he may supply the wants of his body and feed the hunger of his mind.

In my judgment, teachers will take the place of preachers and the interpreters of nature will be the only priests.

POLITICAL MORALITY.

THE room of the House Committee on Elections was crowded this morning with committeemen and spectators to listen to an argument by Col. Robert G. Ingersoll in the contested election case of Strobach against Herbert, of the IId Alabama district. Colonel Ingersoll appeared for Strobach, the contestant. While most of his argument was devoted to the dry details of the testimony, he entered into some discussion of the general principles involved in contested election cases, and spoke with great eloquence and force.

The mere personal controversy, as between Herbert and Strobach, is not worth talking about. It is a question as to whether or not the republican system is a failure. Unless the will of the majority can be ascertained, and surely ascertained, through the medium of the ballot, the foundation of this Government rests upon nothing—the Government ceases to be. I would a thousand time rather a Democrat should come to Congress from this district, or from any district, than that a Republican should come who was not honestly elected. I would a thousand times rather that this country should honestly go to destruction than dishonestly and fraudulently go anywhere. We want it settled whether this form of government is or is not a failure. That is the real question, and it is the question at issue in every one of these cases. Has Congress power and has Congress the sense to say to-day, that no man shall sit as a maker of laws for the people who has not been honestly elected? Whenever you admit a man to Congress and allow him to vote and make laws, you poison the source of justice—you poison the source of power; and the moment the people begin to think that many members of Congress are there through fraud, that moment they cease to have respect for the legislative department of this Government—that moment they cease to have respect for the sovereignty of the people represented by fraud.

Now, as I have said, I care nothing about the personal part of it, and, maybe you will not believe me, but I care nothing about the political part. The question is, Who has the right on his side? Who is honestly entitled to this seat? That is infinitely more important than any personal or party

question. My doctrine is that a majority of the people must control—that we have in this country a king, that we have in this country a sovereign, just as truly as they can have in any other, and, as a matter of fact, a republic is the only country that does in truth have a sovereign, and that sovereign is the legally expressed will of the people. So that any man that puts in a fraudulent vote is a traitor to that sovereign; any man that knowingly counts an illegal vote is a traitor to that sovereign, and is not fit to be a citizen of the great Republic. Any man who fraudulently throws out a vote, knowing it to be a legal vote, tampers with the source of power, and is, in fact, false to our institutions. Now, these are the questions to be decided, and I want them decided, not because this case happens to come from the South any more than if it came from the North. It is a matter that concerns the whole country. We must decide it. There must be a law on the subject. We have got to lay down a stringent rule that shall apply to these cases. There should be—there must be—such a thing as political morality so far as voting is concerned.—New York Tribune, May 13, 1883.

A FEW REASONS FOR DOUBTING THE INSPIRATION OF THE BIBLE.

** Printed from manuscript notes found among Colonel Ingersoll's papers, evidently written in the early '80's. While much of the argument and criticism will be found embodied in his various lectures magazine articles and contributions to the press, it was thought too valuable in its present form to be left out of a complete edition of his works, on account of too much repetition. Undoubtedly it was the author's intention to go through the Bible in this same manner and to publish in book form. "A few Reasons for doubting the Inspiration of the Bible."*

THE Old Testament must have been written nearly two thousand years before the invention of printing. There were but few copies, and these were in the keeping of those whose interest might have prompted interpolations, and whose ignorance might have led to mistakes.

Second. The written Hebrew was composed entirely of consonants, without any points or marks standing for vowels, so that anything like accuracy was impossible. Anyone can test this for himself by writing an English sentence, leaving out the vowels. It will take far more inspiration to read than to write a book with consonants alone.

Third. The books composing the Old Testament were not divided into chapters or verses, and no system of punctuation was known. Think of this a moment and you will see how difficult it must be to read such a book.

Fourth. There was not among the Jews any dictionary of their language, and for this reason the accurate meaning of words could not be preserved. Now the different meanings of words are preserved so that by knowing the age in which a writer lived we can ascertain with reasonable certainty his meaning.

Fifth. The Old Testament was printed for the first time in 1488. Until this date it existed only in manuscript, and was constantly exposed to erasures and additions.

Sixth. It is now admitted by the most learned in the Hebrew language that in our present English version of the Old Testament there are at least one hundred thousand errors. Of course the believers in inspiration assert that

these errors are not sufficient in number to cast the least suspicion upon any passages upholding what are called the "fundamentals."

Seventh. It is not certainly known who in fact wrote any of the books of the Old Testament. For instance, it is now generally conceded that Moses was not the author of the Pentateuch.

Eighth. Other books, not now in existence, are referred to in the Old Testament as of equal authority, such as the books of Jasher, Nathan, Ahijah, Iddo, Jehu, Sayings of the Seers.

Ninth. The Christians are not agreed among themselves as to what books are inspired. The Catholics claim as inspired the books of Maccabees, Tobit, Esdras, etc. Others doubt the inspiration of Esther, Ecclesiastes, and the Song of Solomon.

Tenth. In the book of Esther and the Song of Solomon the name of God is not mentioned, and no reference is made to any supreme being, nor to any religious duty. These omissions would seem sufficient to cast a little doubt upon these books.

Eleventh. Within the present century manuscript copies of the Old Testament have been found throwing new light and changing in many instances the present readings. In consequence a new version is now being made by a theological syndicate composed of English and American divines, and after this is published it may be that our present Bible will fall into disrepute.

Twelfth. The fact that language is continually changing, that words are constantly dying and others being born; that the same word has a variety of meanings during its life, shows how hard it is to preserve the original ideas that might have been expressed in the Scriptures, for thousands of years, without dictionaries, without the art of printing, and without the light of contemporaneous literature.

Thirteenth. Whatever there was of the Old Testament seems to have been lost from the time of Moses until the days of Josiah, and it is probable that nothing like the Bible existed in any permanent form among the Jews until a few hundred years before Christ. It is said that Ezra gave the Pentateuch to the Jews, but whether he found or originated it is unknown. So it is claimed that Nehemiah gathered up the manuscripts about the kings and prophets, while the books of Job, Psalms, Proverbs, Ruth, Ecclesiastes, and

some others were either collected or written long after. The Jews themselves did not agree as to what books were really inspired.

Fourteenth. In the Old Testament we find several contradictory laws about the same thing, and contradictory accounts of the same occurrences. In the twentieth chapter of Exodus we find the first account of the giving of the Ten Commandments. In the thirty-fourth chapter another account is given. These two accounts could never have been written by the same person. Read these two accounts and you will be forced to admit that one of them cannot be true. So there are two histories of the creation, of the flood, and of the manner in which Saul became king.

Fifteenth. It is now generally admitted that Genesis must have been written by two persons, and the parts written by each can be separated, and when separated they are found to contradict each other in many important particulars.

Sixteenth. It is also admitted that copyists made verbal changes not only, but pieced out fragments; that the speeches of Elihu in the book of Job were all interpolated, and that most of the prophecies were made by persons whose names we have never known.

Seventeenth. The manuscripts of the Old Testament were not alike, and the Greek version differed from the Hebrew, and there was no absolutely received text of the Old Testament until after the commencement of the Christian era. Marks and points to denote vowels were invented probably about the seventh century after Christ. Whether these vowels were put in the proper places or not is still an open question.

Eighteenth. The Alexandrian version, or what is known as the Septuagint, translated by seventy learned Jews, assisted by "miraculous power," about two hundred years before Christ, could not have been, it is said, translated from the Hebrew text that we now have. The differences can only be accounted for by supposing that they had a different Hebrew text. The early Christian Churches adopted the Septuagint, and were satisfied for a time. But so many errors were found, and so many were scanning every word in search of something to sustain their peculiar views, that several new versions appeared, all different somewhat from the Hebrew manuscripts, from the Septuagint, and from each other. All these versions were in Greek. The first Latin Bible originated in Africa, but no one has ever found out which Latin manuscript was the original. Many were produced, and all

differed from each other. These Latin versions were compared with each other and with the Hebrew, and a new Latin version was made in the fifth century, but the old Latin versions held their own for about four hundred years, and no one yet knows which were right. Besides these there were Egyptian, Ethiopie, Armenian, and several others, all differing from each other as well as from all others in the world.

It was not until the fourteenth century that the Bible was translated into German, and not until the fifteenth that Bibles were printed in the principal languages of Europe. Of these Bibles there were several kinds—Luther's, the Dort, King James's, Genevan, French, besides the Danish and Swedish. Most of these differed from each other, and gave rise to infinite disputes and crimes without number. The earliest fragment of the Bible in the "Saxon" language known to exist was written sometime in the seventh century. The first Bible was printed in England in 1538. In 1560 the first English Bible was printed that was divided into verses. Under Henry VIII. the Bible was revised; again under Queen Elizabeth, and once again under King James. This last was published in 1611, and is the one now in general use.

Nineteenth. No one in the world has learning enough, nor has he time enough even if he had the learning, and could live a thousand years, to find out what books really belong to and constitute the Old Testament, the authors of these books, when they were written, and what they really mean. And until a man has the learning and the time to do all this he cannot certainly tell whether he believes the Bible or not.

Twentieth. If a revelation from God was actually necessary to the happiness of man here and to his salvation hereafter, it is not easy to see why such revelation was not given to all the nations of the earth. Why were the millions of Asia, Egypt, and America left to the insufficient light of nature. Why was not a written, or what is still better, a printed revelation given to Adam and Eve in the Garden of Eden? And why were the Jews themselves without a Bible until the days of Ezra the scribe? Why was nature not so made that it would give light enough? Why did God make men and leave them in darkness—a darkness that he, knew would fill the world with want and crime, and crowd with damned souls the dungeons of his hell? Were the Jews the only people who needed a revelation? It may be said that God had no time to waste with other nations, and gave the Bible to

the Jews that other nations through them might learn of his existence and his will. If he wished other nations to be informed, and revealed himself to but one, why did he not choose a people that mingled with others? Why did he give the message to those who had no commerce, who were obscure and unknown, and who regarded other nations with the hatred born of bigotry and weakness? What would we now think of a God who made his will known to the South Sea Islanders for the benefit of the civilized world? If it was of such vast importance for man to know that there is a God, why did not God make himself known? This fact could have been revealed by an infinite being instantly to all, and there certainly was no necessity of telling it alone to the Jews, and allowing millions for thousands of years to die in utter ignorance.

Twenty-first. The Chinese, Japanese, Hindus, Tartars, Africans, Eskimo, Persians, Turks, Kurds, Arabs, Polynesians, and many other peoples, are substantially ignorant of the Bible. All the Bible societies of the world have produced only about one hundred and twenty millions of Bibles, and there are about fourteen hundred million people. There are hundreds of languages and tongues in which no Bible has yet been printed. Why did God allow, and why does he still allow, a vast majority of his children to remain in ignorance of his will?

Twenty-second. If the Bible is the foundation of all civilization, of all just ideas of right and wrong, of our duties to God and each other, why did God not give to each nation at least one copy to start with? He must have known that no nation could get along successfully without a Bible, and he also knew that man could not make one for himself. Why, then, were not the books furnished? He must have known that the light of nature was not sufficient to reveal the scheme of the atonement, the necessity of baptism, the immaculate conception, transubstantiation, the arithmetic of the Trinity, or the resurrection of the dead.

Twenty-third. It is probably safe to say that not one-third of the inhabitants of this world ever heard of the Bible, and not one-tenth ever read it. It is also safe to say that no two persons who ever read it agreed as to its meaning, and it is not likely that even one person has ever understood it. Nothing is more needed at the present time than an inspired translator. Then we shall need an inspired commentator, and the translation and the commentary should be written in an inspired universal language, incapable

of change, and then the whole world should be inspired to understand this language precisely the same. Until these things are accomplished, all written revelations from God will fill the world with contending sects, contradictory creeds and opinions.

Twenty-fourth. All persons who know anything of constitutions and laws know how impossible it is to use words that will convey the same ideas to all. The best statesmen, the profoundest lawyers, differ as widely about the real meaning of treaties and statutes as do theologians about the Bible. When the differences of lawyers are left to courts, and the courts give written decisions, the lawyers will again differ as to the real meaning of the opinions. Probably no two lawyers in the United States understand our Constitution alike. To allow a few men to tell what the Constitution means, and to hang for treason all who refuse to accept the opinions of these few men, would accomplish in politics what most churches have asked for in religion.

Twenty-fifth. Is it very wicked to deny that the universe was created of nothing by an infinite being who existed from all eternity? The human mind is such that it cannot possibly conceive of creation, neither can it conceive of an infinite being who dwelt in infinite space an infinite length of time.

Twenty-sixth. The idea that the universe was made in six days, and is but about six thousand years old, is too absurd for serious refutation. Neither will it do to say that the six days were six periods, because this does away with the Sabbath, and is in direct violation of the text.

Twenty-seventh. Neither is it reasonable that this God made man out of dust, and woman out of one of the ribs of the man; that this pair were put in a garden; that they were deceived by a snake that had the power of speech; that they were turned out of this garden to prevent them from eating of the tree of life and becoming immortal; that God himself made them clothes; that the sons of God intermarried with the daughters of men; that to destroy all life upon the earth a flood was sent that covered the highest mountains; that Noah and his sons built an ark and saved some of all animals as well as themselves; that the people tried to build a tower that would reach to heaven; that God confounded their language, and in this way frustrated their design.

Twenty-eighth. It is hard to believe that God talked to Abraham as one man talks to another; that he gave him land that he pointed out; that he

agreed to give him land that he never did; that he ordered him to murder his own son; that angels were in the habit of walking about the earth eating veal dressed with butter and milk, and making bargains about the destruction of cities.

Twenty-ninth. Certainly a man ought not to be eternally damned for entertaining an honest doubt about a woman having been turned into a pillar of salt, about cities being destroyed by storms of fire and brimstone, and about people once having lived for nearly a thousand years.

Thirtieth. Neither is it probable that God really wrestled with Jacob and put his thigh out of joint, and that for that reason the Jews refused "to eat the sinew that shrank," as recounted in the thirty-second chapter of Genesis; that God in the likeness of a flame inhabited a bush; that he amused himself by changing the rod of Moses into a serpent, and making his hand leprous as snow.

Thirty-first. One can scarcely be blamed for hesitating to believe that God met Moses at a hotel and tried to kill him that afterward he made this same Moses a god to Pharaoh, and gave him his brother Aaron for a prophet;² that he turned all the ponds and pools and streams and all the rivers into blood,³ and all the water in vessels of wood and stone; that the rivers thereupon brought forth frogs;⁴ that the frogs covered the whole land of Egypt; that he changed dust into lice, so that all the men, women, children, and animals were covered with them;⁶ that he sent swarms of flies upon the Egyptians;⁸ that he destroyed the innocent cattle with painful diseases; that he covered man and beast with blains and boils;⁷ that he so covered the magicians of Egypt with boils that they could not stand before Moses for the purpose of performing the same feats, that he destroyed every beast and every man that was in the fields, and every herb, and broke every tree with storm of hail and fire;⁹ that he sent locusts that devoured every herb that escaped the hail, and devoured every tree that grew;¹⁰ that he caused thick darkness over the land and put lights in the houses of the Jews;¹¹ that he destroyed all of the firstborn of Egypt, from the firstborn of Pharaoh upon the throne to the firstborn of the maidservant that sat behind the mill,¹² together with the firstborn of all beasts, so that there was not a house in which the dead were not."

1 Ex. iv, 24. 5 Ex. viii, 16, 17. 9 Ex. ix, 25.

2 Ex. vii. 1. 6 Ex. viii, 21. 10 Ex. x, 15.
 3 Ex. viii, 19. 7 Ex. ix, 9. 11 Ex. x, 22, 23.
 4 Ex. viii, 3. 8 Ex. ix, 11. 12 Ex. xi, 5.
 13 Ex. xii, 29.

Thirty-second. It is very hard to believe that three millions of people left a country and marched twenty or thirty miles all in one day. To notify so many people would require a long time, and then the sick, the halt, and the old would be apt to impede the march. It seems impossible that such a vast number—six hundred thousand men, besides women and children—could have been cared for, could have been fed and clothed, and the sick nursed, especially when we take into consideration that "they were thrust out of Egypt, and could not tarry, neither had they prepared for themselves any victual." ¹

Thirty-third. It seems cruel to punish a man forever for denying that God went before the Jews by day "in a pillar of a cloud to lead' them the way, and by night in a pillar of fire to give them light to go by day and night," or for denying that Pharaoh pursued the Jews with six hundred chosen chariots, and all the chariots of Egypt, and that the six hundred thousand men of war of the Jews were sore afraid when they saw the pursuing hosts. It does seem strange that after all the water in a country had been turned to blood—after it had been overrun with frogs and devoured with flies; after all the cattle had died with the murrain, and the rest had been killed by the fire and hail and the remainder had suffered with boils, and the firstborn of all that were left had died; that after locusts had devoured every herb and eaten up every tree of the field, and the firstborn had died, from the firstborn of the king on the throne to the firstborn of the captive in the dungeon; that after three millions of people had left, carrying with them the jewels of silver and gold and the raiment of their oppressors, the Egyptians still had enough soldiers and chariots and horses left to pursue and destroy an army of six hundred thousand men, if God had not interfered.

¹ Ex. xii, 37-39

Thirty-fourth. It certainly ought to satisfy God to torment a man for four or five thousand years for insisting that it is but a small thing for an infinite being to vanquish an Egyptian army; that it was rather a small business to trouble people with frogs, flies, and vermin; that it looked almost malicious

to cover people with boils and afflict cattle with disease; that a real good God would not torture innocent beasts on account of something the owners had done; that it was absurd to do miracles before a king to induce him to act in a certain way, and then harden his heart so that he would refuse; and that to kill all the firstborn of a nation was the act of a heartless fiend.

Thirty-fifth. Certainly one ought to be permitted to doubt that twelve wells of water were sufficient for three millions of people, together with their flocks and herds,¹ and to inquire a little into the nature of manna that was cooked by baking and seething and yet would melt in the sun,² and that would swell or shrink so as to make an exact omer, no matter how much or how little there really was.³ Certainly it is not a crime to say that water cannot be manufactured by striking a rock with a stick, and that the fate of battle cannot be decided by lifting one hand up or letting it fall.⁴ Must we admit that God really did come down upon Mount Sinai in the sight of all the people; that he commanded that all who should go up into the Mount or touch the border of it should be put to death, and that even the beasts that came near it should be killed?⁵ Is it wrong to laugh at this? Is it sinful to say that God never spoke from the top of a mountain covered with clouds these words to Moses, "Go down, charge the people, lest they break through unto the Lord to gaze, and many of them perish; and let the priests also, which come near to the Lord, sanctify themselves, lest the Lord break forth upon them"?⁶

¹ Ex. xv, 27.

³ Ex. xix. 12.

⁵ Ex. xix, 13, 13.

² Ex. xvi, 23, 21

⁴ Ex. xvii, 11, 13.

⁶ Ex. xix, 21, 22

Can it be that an infinite intelligence takes delight in scaring savages, and that he is happy only when somebody trembles? Is it reasonable to suppose that God surrounded himself with thunderings and lightnings and thick darkness to tell the priests that they should not make altars of hewn stones, nor with stairs? And that this God at the same time he gave the Ten Commandments ordered the Jews to break the most of them? According to the Bible these infamous words came from the mouth of God while he was wrapped and clothed in darkness and clouds upon the Mount of Sinai:

If thou buy an Hebrew servant six years he shall serve: and in the seventh he shall go out free for nothing. If he came in by himself he shall go out by himself; if he were married, then his wife shall go out with him. If his

master have given him a wife, and she have borne him sons or daughters, the wife and her children shall be her master's, and he shall go out by himself. And if the servant shall plainly say, I love my master, my wife, and my children; I will not go out free: then his master shall bring him unto the judges; he shall also bring him to the door or unto the doorpost; and his master shall bore his ear through with an awl; and he shall serve him forever.² And if a man smite his servant, or his maid, with a rod, and he die under his hand, he shall be surely punished. Notwithstanding, if he continue a day or two, he shall not be punished; for he is his money.³

Do you really think that a man will be eternally damned for endeavoring to wipe from the record of God those barbaric words?

Thirty-sixth. Is it because of total depravity that some people refuse to believe that God went into partnership with insects and granted letters of marque and reprisal to hornets;⁴ that he wasted forty days and nights furnishing Moses with plans and specifications for a tabernacle, an ark, a mercy seat and two cherubs of gold, a table, four rings, some dishes and spoons, one candlestick, three bowls, seven lamps, a pair of tongs, some snuff dishes (for all of which God had patterns), ten curtains with fifty loops, a roof for the tabernacle of rams' skins dyed red, a lot of boards, an altar with horns, ash pans, basins, and flesh hooks, and fillets of silver and pins of brass; that he told Moses to speak unto all the wise-hearted that he had filled with wisdom, that they might make a suit of clothes for Aaron, and that God actually gave directions that an ephod "shall have the two shoulder-pieces thereof joined at the two edges thereof."

1 Ex. xix, 25, 26. 3 Ex. xxi, 20, 21

2 Ex. xxi, 2-6, 4 Ex. xxiii, 28

And gave all the orders concerning mitres, girdles, and onyx stones, ouches, emeralds, breastplates, chains, rings, Urim and Thummim, and the hole in the top of the ephod like the hole of a habergeon?¹

Thirty-seventh. Is there a Christian missionary who could help laughing if in any heathen country he had seen the following command of God carried out? "And thou shalt take the other ram; and Aaron and his sons shall put their hands upon the head of the ram. Then shalt thou kill the ram and take of his blood and put it upon the tip of the right ear of Aaron, and upon the tip of the right ear of his sons, and upon the thumb of their right

hand, and upon the great toe of their right foot."2 Does one have to be born again to appreciate the beauty and solemnity of such a performance? Is not the faith of the most zealous Christian somewhat shaken while reading the recipes for cooking mutton, veal, beef, birds, and unleavened dough, found in the cook book that God made for Aaron and his sons?

Thirty-eighth. Is it to be wondered at that some people have doubted the statement that God told Moses how to make some ointment, hair oil, and perfume, and then made it a crime punishable with death to make any like them? Think of a God killing a man for imitating his ointment!3 Think of a God saying that he made heaven and earth in six days and rested on the seventh day and was refreshed!4 Think of this God threatening to destroy the Jews, and being turned from his purpose because Moses told him that the Egyptians might mock him!5

1 Ex. xxvii and xxviii. 3 Ex. xxx, 23. 5 Ex. xxxii, 11, 12

2 Ex. xxix, 19, 20 4 Ex. xxxi, 17.

Thirty-ninth. What must we think of a man impudent enough to break in pieces tables of stone upon which God had written with his finger? What must we think of the goodness of a man that would issue the following order: "Thus saith the Lord God of Israel, Put every man his sword by his side, and go in and out from gate to gate throughout the camp, and slay every man his brother, and every man his companion, and every man his neighbor. Consecrate yourselves to-day to the Lord, even every man upon his son, and upon his brother; that he may bestow upon you a blessing this day"?1 Is it true that the God of the Bible demanded human sacrifice? Did it please him for man to kill his neighbor, for brother to murder his brother, and for the father to butcher his son? If there is a God let him cause it to be written in the book of his memory, opposite my name, that I refuted this slander and denied this lie.

Fortieth. Can it be true that God was afraid to trust himself with the Jews for fear he would consume them? Can it be that in order to keep from devouring them he kept away and sent one of his angels in his place?2 Can it be that this same God talked to Moses "face to face, as a man speaketh unto his friend," when it is declared in the same chapter, by God himself, "Thou canst not see my face: for there shall no man see me, and live"?3

Forty-first. Why should a man, because he has done a bad action, go and kill a sheep? How can man make friends with God by cutting the throats of bullocks and goats? Why should God delight in the shedding of blood? Why should he want his altar sprinkled with blood, and the horns of his altar tipped with blood, and his priests covered with blood? Why should burning flesh be a sweet savor in the nostrils of God? Why did he compel his priests to be butchers, cutters and stabbers?

1 Ex. xxxii, 27-29. 2 Ex. xxxiii, 2, 3.

3 Ex. xxxiii, 11, 20.

Why should the same God kill a man for eating the fat of an ox, a sheep, or a goat?

Forty-second. Could it be a consolation to a man when dying to think that he had always believed that God told Aaron to take two goats and draw cuts to see which goat should be killed and which should be a scapegoat?¹ And that upon the head of the scapegoat Aaron should lay both his hands and confess over him all the iniquities of the children of Israel, and all their transgressions, and put them all on the head of the goat, and send him away by the hand of a fit man into the wilderness; and that the goat should bear upon him all the iniquities of the people into a land not inhabited?² How could a goat carry away a load of iniquities and transgressions? Why should he carry them to a land uninhabited? Were these sins contagious? About how many sins could an average goat carry? Could a man meet such a goat now without laughing?

Forty-third. Why should God object to a man wearing a garment made of woolen and linen? Why should he care whether a man rounded the corners of his beard?³ Why should God prevent a man from offering the sacred bread merely because he had a flat nose, or was lame, or had five fingers on one hand, or had a broken foot, or was a dwarf? If he objected to such people, why did he make them?⁴

Forty-fourth. Why should we believe that God insisted upon the sacrifice of human beings? Is it a sin to deny this, and to deny the inspiration of a book that teaches it? Read the twenty-eighth and twenty-ninth verses of the last chapter of Leviticus, a book in which there is more folly and cruelty, more stupidity and tyranny, than in any other book in this world except some others in the same Bible. Read the thirty-second chapter of Exodus

and you will see how by the most infamous of crimes man becomes reconciled to this God.

1 Lev. xvi, 8. 2 Lev. xvi, 21, 22. 3 Lev. xix, 19, 27,

4 Lev. xxi, 18-20.

You will see that he demands of fathers the blood of their sons. Read the twelfth and thirteenth verses of the third chapter of Numbers, "And I, behold, I have taken the Levites from among the children of Israel," etc.

How, in the desert of Sinai, did the Jews obtain curtains of fine linen? How did these absconding slaves make cherubs of gold? Where did they get the skins of badgers, and how did they dye them red? How did they make wreathed chains and spoons, basins and tongs? Where did they get the blue cloth and their purple? Where did they get the sockets of brass? How did they coin the shekel of the sanctuary? How did they overlay boards with gold? Where did they get the numberless instruments and tools necessary to accomplish all these things? Where did they get the fine flour and the oil? Were all these found in the desert of Sinai? Is it a sin to ask these questions? Are all these doubts born of a malignant and depraved heart? Why should God in this desert prohibit priests from drinking wine, and from eating moist grapes? How could these priests get wine?

Do not these passages show that these laws were made long after the Jews had left the desert, and that they were not given from Sinai? Can you imagine a God silly enough to tell a horde of wandering savages upon a desert that they must not eat any fruit of the trees they planted until the fourth year?

Forty-fifth. Ought a man to be despised and persecuted for denying that God ordered the priests to make women drink dirt and water to test their virtue? 1 Or for denying that over the tabernacle there was a cloud during the day and fire by night, and that the cloud lifted up when God wished the Jews to travel, and that until it was lifted they remained in their tents?2

1 Num. v, 12-31. 2 Num. ix, 16-18.

Can it be possible that the "ark of the covenant" traveled on its own account, and that "when the ark set forward" the people followed, as is related in the tenth chapter of the holy book of Numbers?

Forty-sixth. Was it reasonable for God to give the Jews manna, and nothing else, year after year? He had infinite power, and could just as easily have given them something good, in reasonable variety, as to have fed them on manna until they loathed the sight of it, and longingly remembered the fish, cucumbers, melons, leeks, onions, and garlic of Egypt. And yet when the poor people complained of the diet and asked for a little meat, this loving and merciful God became enraged, sent them millions of quails in his wrath, and while they were eating, while the flesh was yet between their teeth, before it was chewed, this amiable God smote the people with a plague and killed all those that lusted after meat. In a few days after, he made up his mind to kill the rest, but was dissuaded when Moses told him that the Canaanites would laugh at him.¹ No wonder the poor Jews wished they were back in Egypt. No wonder they had rather be the slaves of Pharaoh than the chosen people of God. No wonder they preferred the wrath of Egypt to the love of heaven. In my judgment, the Jews would have fared far better if Jehovah had let them alone, or had he even taken the side of the Egyptians.

When the poor Jews were told by their spies that the Canaanites were giants, they, seized with fear, said, "Let us go back to Egypt." For this, their God doomed all except Joshua and Caleb to a wandering death. Hear the words of this most merciful God: "But as for you, your carcasses they shall fall in this wilderness, and your children shall wander in the wilderness forty years and bear your sins until your carcasses be wasted in the wilderness."² And yet this same God promised to give unto all these people a land flowing with milk and honey.

1 Num. xiv, 15, 16. 2 Num. xiv. 32-33.

Forty-seventh. "And while the children of Israel were in the wilderness they found a man that gathered sticks upon the Sabbath day.

"And they that found him gathering sticks brought him unto Moses and Aaron, and unto all the congregation.

"And they put him in ward, because it was not declared what should be done to him.

"And the Lord said unto Moses, The man shall be surely put to death; all the congregation shall stone him with stones without the camp.

"And all the congregation brought him without the camp, and stoned him with stones, and he died." 1

When the last stone was thrown, and he that was a man was but a mangled, bruised, and broken mass, this God turned, and, *touched with pity*, said: "Speak unto the children of Israel, and bid them that they make them fringes in the borders of their garments throughout their generations, and that they put upon the fringe of the borders a riband of blue."2

In the next chapter, this Jehovah, whose loving kindness is over all his works, because Korah, Dathan, and Abiram objected to being starved to death in the wilderness, made the earth open and swallow not only them, but their wives and their little ones. Not yet satisfied, he sent a plague and killed fourteen thousand seven hundred more. There never was in the history of the world such a cruel, revengeful, bloody, jealous, fickle, unreasonable, and fiendish ruler, emperor, or king as Jehovah. No wonder the children of Israel cried out, "Behold we die, we perish, we all perish."

Forty-eighth. I cannot believe that a dry stick budded, blossomed, and bore almonds; that the ashes of a red heifer are a purification for sin;3 that God gave the cities into the hands of the Jews because they solemnly agreed to murder all the inhabitants; that God became enraged and induced snakes to bite his chosen people; that God told Balaam to go with the Princess of Moab, and then got angry because he did go; that an animal ever saw an angel and conversed with a man.

1 Num. xv, 32-36. 2 Num. xv, 38, 3 Num. xix, 2-10.

I cannot believe that thrusting a spear through the body of a woman ever stayed a plague;1 that any good man ever ordered his soldiers to slay the men and keep the maidens alive for themselves; that God commanded men not to show mercy to each other; that he induced men to obey his commandments by promising them that he would assist them in murdering the wives and children of their neighbors; or that he ever commanded a man to kill his wife because she differed with him about religion;2 or that God was mistaken about hares chewing the cud;3 or that he objected to the people raising horses 4 or that God wanted a camp kept clean because he walked through it at night;5 or that he commanded widows to spit in the faces of their brothers-in-law;6 or that he ever threatened to give anybody

the itch;⁷ or that he ever secretly buried a man and allowed the corpse to write an account of the funeral.

Forty-ninth. Does it necessarily follow that a man wishes to commit some crime if he refuses to admit that the river Jordan cut itself in two and allowed the lower end to run away? Or that seven priests could blow seven ram's horns loud enough to throw down the walls of a city;⁸ or that God, after Achan had confessed that he had secreted a garment and a wedge of gold, became good natured as soon as Achan and his sons and daughters had been stoned to death and their bodies burned?¹⁰ Is it not a virtue to abhor such a God?

1 Num. XXV, 8.

4 Deut. xvii, 16.

7 Deut. xxviii, 27.

2 Deut. xiii, 6-10.

5 Deut. xxiii, 13, 14.

8 Josh, iii, 16.

3 Deut. xiv, 7.

6 Deut. xxv, 9.,

9 Josh. vi, 20.

10 Josh, vii, 24, 25.

Must we believe that God sanctioned and commanded all the cruelties and horrors described in the Old Testament; that he waged the most relentless and heartless wars; that he declared mercy a crime; that to spare life was to excite his wrath; that he smiled when maidens were violated, laughed when mothers were ripped open with a sword, and shouted with joy when babes were butchered in their mothers' arms? Read the infamous book of Joshua, and then worship the God who inspired it if you can.

Fiftieth. Can any sane man believe that the sun stood still in the midst of heaven and hasted not to go down about a whole day, and that the moon stayed?¹ That these miracles were performed in the interest of massacre and bloodshed; that the Jews destroyed men, women, and children by the million, and practiced every cruelty that the ingenuity of their God could suggest? Is it possible that these things really happened? Is it possible that God commanded them to be done? Again I ask you to read the book of Joshua. After reading all its horrors you will feel a grim satisfaction in the dying words of Joshua to the children of Israel: "Know for a certainty that the Lord your God will no more drive out any of these nations from before you; but they shall be snares and traps unto you, and scourges in your sides, and thorns in your eyes, until ye perish from off this good land."²

Think of a God who boasted that he gave the Jews a land for which they did not labor, cities which they did not build, and allowed them to eat of

oliveyards and vineyards which they did not plant.³ Think of a God who murders some of his children for the benefit of the rest, and then kills the rest because they are not thankful enough. Think of a God who had the power to stop the sun and moon, but could not defeat an army that had iron chariots.⁴

1 Josh, x, 13. 2 Josh, xiii, 13. 3 Josh. xxiv, 13.

4 Judges i, 19.

Fifty-first. Can we blame the Hebrews for getting tired of their God? Never was a people so murdered, starved, stoned, burned, deceived, humiliated, robbed, and outraged. Never was there so little liberty among men. Never did the meanest king so meddle, eavesdrop, spy out, harass, torment, and persecute his people. Never was ruler so jealous, unreasonable, contemptible, exacting, and ignorant as this God of the Jews. Never was such ceremony, such mummary, such stuff about bullocks, goats, doves, red heifers, lambs, and unleavened dough—never was such directions about kidneys and blood, ashes and fat, about curtains, tongs, fringes, ribands, and brass pins—never such details for killing of animals and men and the sprinkling of blood and the cutting of clothes. Never were such unjust laws, such punishments, such damned ignorance and infamy! Fifty-second. Is it not wonderful that the creator of all worlds, infinite in power and wisdom, could not hold his own against the gods of wood and stone? Is it not strange that after he had appeared to his chosen people, delivered them from slavery, fed them by miracles, opened the sea for a path, led them by cloud and fire, and overthrown their pursuers, they still preferred a calf of their own making? Is it not beyond belief that this God, by statutes and commandments, by punishments and penalties, by rewards and promises, by wonders and plagues, by earthquakes and pestilence, could not in the least civilize the Jews—could not get them beyond a point where they deserved killing? What shall we think of a God who gave his entire time for forty years to the work of converting three millions of people, and succeeded in getting only two men, and not a single woman, decent enough to enter the promised land? Was there ever in the history of man so detestible an administration of public affairs? Is it possible that God sold his children to the king of Mesopotamia; that he sold them to Jabin, king of Canaan, to the Philistines, and to the children of Ammon? Is it possible that an angel of the Lord devoured unleavened cakes and broth

with fire that came out of the end of a stick as he sat under an oak-tree?¹ Can it be true that God made known his will by making dew fall on wool without wetting the ground around it?² Do you really believe that men who lap water like a dog make the best soldiers?³ Do you think that a man could hold a lamp in his left hand, a trumpet in his right hand, blow his trumpet, shout "the sword of the Lord and of Gideon," and break pitchers at the same time? ⁴

Fifty-third. Read the story of Jephthah and his daughter, and then tell me what you think of a father who would sacrifice his daughter to God, and what you think of a God who would receive such a sacrifice. This one story should be enough to make every tender and loving father hold this book in utter abhorrence. Is it necessary, in order to be saved, that one must believe that an angel of God appeared unto Manoah in the absence of her husband; that this angel afterward went up in a flame of fire; that as a result of this visit a child was born whose strength was in his hair? a child that made beehives of lions, incendiaries of foxes, and had a wife that wept seven days to get the answer to his riddle? Will the wrath of God abide forever upon a man for doubting the story that Samson killed a thousand men with a new jawbone? Is there enough in the Bible to save a soul with this story left out? Is hell hungry for those who deny that water gushed from a "hollow place" in a dry bone? Is it evidence of a new heart to believe that one man turned over a house so large that over three thousand people were on the roof? For my part, I cannot believe these things, and if my salvation depends upon my credulity I am as good as damned already. I cannot believe that the Philistines took back the ark with a present of five gold mice, and that thereupon God relented.⁵

1 Judges vi, 21. 2 Judges vi, 37. 3 Judges vii, 5.

4 Judges vii, 20. 5 I Sam. vi. 4.

I can not believe that God killed fifty thousand men for looking into a box.¹ It seems incredible, after all the Jews had done, after all their wars and victories, even when Saul was king, that there was not among them one smith who could make a sword or spear, and that they were compelled to go to the Philistines to sharpen every plowshare, coulter, and mattock.² Can you believe that God said to Saul, "Now go and smite Amalek, and utterly destroy all that they have, and spare them not; but slay both man and

woman, infant and suckling"? Can you believe that because Saul took the king alive after killing every other man, woman, and child, the ogre called Jehovah was displeased and made up his mind to hurl Saul from the throne and give his place to another?³ I cannot believe that the Philistines all ran away because one of their number was killed with a stone. I cannot justify the conduct of Abigail, the wife of Nabal, who took presents to David. David hardly did right when he said to this woman, "I have hearkened to thy voice, and have accepted thy person." It could hardly have been chance that made Nabal so deathly sick next morning and killed him in ten days. All this looks wrong, especially as David married his widow before poor Nabal was fairly cold.⁴

Fifty-fourth. Notwithstanding all I have heard of Katie King, I cannot believe that a witch at Endor materialized the ghost of Samuel and caused it to appear with a cloak on.⁵ I cannot believe that God tempted David to take the census, and then gave him his choice of three punishments: First, Seven years of famine; Second, Flying three months before their enemies; Third, A pestilence of three days; that David chose the pestilence, and that God destroyed seventy thousand men.⁶

1 I Sam. vi, 19.

3 I Sam. xv.

5 I Sam. xxviii.

2 I Sam. xiii, 19, 20.

4 I Sam. xxv.

6 2 Sam. xxiv.

Why should God kill the people for what David did? Is it a sin to be counted? Can anything more brutally hellish be conceived? Why should man waste prayers upon such a God?

Fifty-fifth. Must we admit that Elijah was fed by ravens; that they brought him bread and flesh every morning and evening? Must we believe that this same prophet could create meal and oil, and induce a departed soul to come back and take up its residence once more in the body? That he could get rain by praying for it; that he could cause fire to burn up a sacrifice and altar, together with twelve barrels of water?¹ Can we believe that an angel of the Lord turned cook and prepared two suppers in one night for Elijah, and that the prophet ate enough to last him forty days and forty nights?^{*} Is it true that when a captain with fifty men went after Elijah, this prophet caused fire to come down from heaven and consume them all? Should God allow such wretches to manage his fire? Is it true that Elijah consumed another captain with fifty men in the same way?³ Is it a fact that

a river divided because the water was struck with a cloak? Did a man actually go to heaven in a chariot of fire drawn by horses of fire, or was he carried to Paradise by a whirlwind? Must we believe, in order to be good and tender fathers and mothers, that because some "little children" mocked at an old man with a bald head, God—the same God who said, "Suffer little children to come unto me"—sent two she-bears out of the wood and tare forty-two of these babes? Think of the mothers that watched and waited for their children. Think of the wailing when these mangled ones were found, when they were brought back and pressed to the breasts of weeping women. What an amiable gentleman Mr. Elisha must have been.⁴

Fifty-sixth. It is hard to believe that a prophet by lying on a dead body could make it sneeze seven times.⁵

1 I Kings xviii. 3 2 Kings i. 5 2 Kings iv.

2 I Kings xix. 4 2 Kings ii.

It is hard to believe that being dipped seven times in the Jordan could cure the leprosy.¹ Would a merciful God curse children, and children's children yet unborn, with leprosy for a father's fault?² Is it possible to make iron float in water?³ Is it reasonable to say that when a corpse touched another corpse it came to life?⁴ Is it a sign that a man wants to commit a crime because he refuses to believe that a king had a boil and that God caused the sun to go backward in heaven so that the shadow on a sun-dial went back ten degrees as a sign that the aforesaid would get well?⁵ Is it true that this globe turned backward, that its motion was reversed as a sign to a Jewish king? If it did not, this story is false, and that part of the Bible is not true even if it is inspired.

Fifty-seventh. How did the Bible get lost?⁵ Where was the precious Pentateuch from Moses to Josiah? How was it possible for the Jews to get along without the directions as to fat and caul and kidney contained in Leviticus? Without that sacred book in his possession a priest might take up ashes and carry them out without changing his pantaloons. Such mistakes kindled the wrath of God.

As soon as the Pentateuch was found Josiah began killing wizards and such as had familiar spirits.

Fifty-eighth. I cannot believe that God talked to Solomon, that he visited him in the night and asked him what he should give him; I cannot believe

that he told him, "I will give thee riches and wealth and honor, such as none of the kings have had before thee, neither shall there any after thee have the like."⁷ If Jehovah said this he was mistaken. It is not true that Solomon had fourteen hundred chariots of war in a country without roads. It is not true that he made gold and silver at Jerusalem as plenteous as stones. There were several kings in his day, and thousands since, that could have thrown away the value of Palestine without missing the amount.

1 2 Kings v. 3 2 Kings, vi. 6. 5 2 Kings xx, 1-11.

2 2 Kings v. 27. 4 2 Kings xiii, 21. 6 2 Kings xxii, 8.

7 2 Chron. i, 7, 12.

The Holy Land was and is a wretched country. There are no monuments, no ruins attesting former wealth and greatness. The Jews had no commerce, knew nothing of other nations, had no luxuries, never produced a painter, a sculptor, architect, scientist, or statesman until after the destruction of Jerusalem. As long as Jehovah attended to their affairs they had nothing but civil war, plague, pestilence, and famine. After he abandoned, and the Christians ceased to persecute them, they became the most prosperous of people. Since Jehovah, in anger and disgust, cast them away they have produced painters, sculptors, scientists, statesmen, composers, and philosophers.

Fifty-ninth. I cannot admit that Hiram, the King of Tyre, wrote a letter to Solomon in which he admitted that the "God of Israel made heaven and earth."¹ This King was not a Jew. It seems incredible that Solomon had eighty thousand men hewing timber for the temple, with seventy thousand bearers of burdens, and thirty-six hundred overseers.²

Sixtieth. I cannot believe that God shuts up heaven and prevents rain, or that he sends locusts to devour a land, or pestilence to destroy the people.³ I cannot believe that God told Solomon that his eyes and heart should perpetually be in the house that Solomon had built.⁴

Sixty-first. I cannot believe that Solomon passed all the kings of the earth in riches; that all the kings of the earth sought his presence and brought presents of silver and gold, raiment, harness, spices, and mules—a rate year by year.⁵ Is it possible that Shishak, a King of Egypt, invaded Palestine with seventy thousand horsemen and twelve hundred chariots of war?⁶

1 2 Chron. ii, 12. 3 2 Chron. vii, 13. 5 2 Chron. ix, 22-24.

2 2 Chron. ii, 18. 4 2 Chron. vii, 16. 6 2 Chron. xii, 2, 3.

I cannot believe that in a battle between Jeroboam and Abijah, the army of Abijah actually slew in one day five hundred thousand chosen men.¹ Does anyone believe that Zerah, the Ethiopian, invaded Palestine with a million men?² I cannot believe that Jehoshaphat had a standing army of nine hundred and sixty thousand men.³ I cannot believe that God advertised for a liar to act as his messenger.⁴ I cannot believe that King Amaziah did right in the sight of the Lord, and that he broke in pieces ten thousand men by casting them from a precipice.⁵ I cannot think that God smote a king with leprosy because he tried to burn incense.⁶ I cannot think that Pekah slew one hundred and twenty thousand men in one day.⁷

1 2 Chron. xiii, 17. 3 2 Chron. xvii, 14-19. 5 2 Chron. xxv, 12.

2 2 Chron. xiv, 9. 4 2 Chron. xviii, 19-22. 6 2 Chron. xxvi, 19.

7 2 Chron. xxviii, 6.

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